

PHILOLOGICAL
AND HISTORICAL
COMMENTARY ON
AMMIANUS MARCELLINUS
XXX

BY

J. DEN BOEFT, J.W. DRIJVERS
D. DEN HENGST, H.C. TEITLER



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Ammianus Marcellinus XXX

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2015

Library of Congress Cataloging-in-Publication Data

Philological and historical commentary on Ammianus Marcellinus XXX / by J. den Boeft, J.W. Drijvers, D. den Hengst, H.C. Teitler.

pages cm

Includes bibliographical references and index.

ISBN 978-90-04-29995-5 (hardback : alk. paper) – ISBN 978-90-04-30092-7 (e-book) 1.

Ammianus Marcellinus. Rerum gestarum libri. 2. Rome–History–Empire, 284–476–Historiography. I. Boeft, J. den, author. II. Drijvers, Jan Willem, author. III. Hengst, Daniël den, author. IV. Teitler, H. C., author.

PA6205.P478 2015

937'.08–dc23

2015023018

This publication has been typeset in the multilingual “Brill” typeface. With over 5,100 characters covering Latin, IPA, Greek, and Cyrillic, this typeface is especially suitable for use in the humanities. For more information, please see www.brill.com/brill-typeface.

ISBN 978-90-04-29995-5 (hardback)

ISBN 978-90-04-30092-7 (e-book)

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This book is printed on acid-free paper.

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PREFACE

Book 30 of the *Res Gestae* is the fifth book about the reigns of the Pannonian emperors Valentinian I and Valens. Just as he did in the previous books Ammianus alternates between affairs in the eastern and the western parts of the empire. However, this book brings the systematic account of events in the West to an end with the death of Valentinian I and the subsequent nomination of his infant son Valentinian II as *Augustus*. Ample space is reserved for the necrology of Valentinian. A large part of the book is taken up by a satirical description of the administration of justice, or rather injustice, under Valens. Ammianus also deals extensively with the affairs in Armenia and Valens' diplomatic exchanges with the Persians, as well as with Valentinian's dealings with the Sarmatae and Quadi in Pannonia and Valeria after he had pacified the Alamannic king Macrianus.

We thank friends and colleagues for their help and advice, Ines van de Wetering for the correction of our English, and the staff of the Fondation Hardt at Vandoeuvres where one of us enjoyed fruitful periods of study. Thanks are also due to Raphael Brendel for his bibliographical suggestions and to Erik Goosmann who gave the drafts of the maps their final form. As usual our publisher Koninklijke Brill prepared the publication of this volume with professional care and dedication.

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INTRODUCTION

Book 30 offers the reader a variety of events and situations in different parts of the Roman Empire. At first sight there seems to be little cohesion between the respective reports, but when seen in a wider perspective the contours of a changing world become visible.

The book opens with two chapters in which developments in faraway Armenia and Hiberia are described. The first of these is devoted to the adventures of the Armenian king Papa. Both the Persians and the Romans sought an alliance with this capricious and clever man. The Romans seemed to succeed, but the emperor Valens regarded Papa as unreliable, a suspicion supported by Armenian sources. For this reason he was murdered during a banquet to which he had been invited by the Roman general Traianus. Ammianus condemns this scandalous violation of the rules of hospitality in no uncertain terms.

The murder shows that the emperor Valens and his staff were convinced that the power of the Roman Empire in the East should remain unimpaired. This conviction continues in the second chapter, in which a long-standing enemy of Rome, the Persian king Sapor, enters the scene. He wants to change the conditions of the peace settlement of 363 with the emperor Jovian and to get direct control over Armenia and/or Hiberia. Understandably, this was unacceptable to the Romans, as was made clear to the king through diplomatic channels.

During the whole of this affair the Roman authorities thought they were in full control of the situation, both militarily and diplomatically. Then all of a sudden there was a sea change: the Roman forces in the East had to be transferred to Thracia, in order to put a stop to the invasions *totius Gothiae*, a very strong phrase, the more so because this is the only instance in the *Res Gestae* of 'Gothia' denoting the Goths as one people.

In the third chapter the attention of the reader is directed westward where the emperor Valentinian was actively engaged in strengthening the *limes* in Gaul, to prevent invasions into Roman territory. During these activities he received a report about the barbarian invasions into Illyricum, which he studied very carefully before sending an official to collect further information. Having gathered and analyzed all the facts he concluded that immediate action against the invaders was vital, a typical reaction of a military professional. In this case, however, Valentinian's staff strongly, and success-

fully, advised against military action during the winter season. Moreover, they stressed the necessity of his presence on the Rhine border, which was threatened by Alamannic chieftains, among them the particularly dangerous Macrianus, whom Valentinian had tried but failed to capture during a raid led by himself. Now peace was made with this very man; later he proved to be a faithful ally.

In the fourth chapter an entirely different subject is broached, namely the administration of justice. In two long chapters (28.1 and 29.1) Ammianus had shown that this had, in fact, become the administration of injustice, because both the prosecutors and the judges were guilty of alarming violations of the laws. Now it is the turn of the lawyers to be at the receiving end of Ammianus' total disgust with their pathetic conduct. The author himself had suffered from this, as he writes in an enigmatic phrase. In a longish satirical description, in which hyperbolic language abounds, the sorry state of the legal profession in Antioch is laid out. It is, in some way, the counterpart of chapter 28.1, in which the city of Rome witnesses a series of shocking cases of injustice perpetrated by dishonest judges.

In chapter five Valentinian leads the postponed military campaign into Pannonia to punish the Sarmatae and the Quadi, and also to find out why the Roman authorities had failed to prevent the invasions. He meets the PPO Probus, whom he had disliked from the moment he met him for the first time, and learns that the people hated this man for his harsh methods. He knew the emperor's constant need for money and tried to flatter him by fully supporting his heavy tax levies, as a result of which the people lost both their possessions and their zest for living. The entire chapter testifies to the strangely incoherent behaviour of the emperor: during the purely military actions he showed his harshness; when punishing high-ranking officials he tended to be far less severe than towards people of a lower order; although the feelings of the taxpayers were known to him, he continued to exploit them. The reader meets a man with a doubtless considerable military experience, but an underdeveloped understanding of the feelings of both ordinary and aristocratic people and a distressing inclination towards cruelty. In the last part of the chapter a few indisputable *omina* of his approaching death are mentioned.

The brief sixth chapter is entirely devoted to a respectful description of Valentinian's death, which was caused by apoplexy. Although the emperor did not lose his consciousness, he was unable to speak, which deprived the historian of the possibility to allow him a valedictory speech, which might have explained the ideas and ideals of this strange man.

Instead, the reader is offered an extensive necrology in not fewer than

seven pages in the Teubneriana, divided into three chapters by Adrien de Valois.

The first of these provides a very brief survey of the career of Valentinian's father Gratianus, a physically strong man with a military career which, in spite of some mishaps, was good enough to give his son a flying start, comparable to Jovian's sudden rise, described by Ammianus in Book 25. Next, the author deals briefly with Valentinian's praiseworthy military feats in various places and situations. Ammianus adds that these successes were partly ascribable to his generals, but that Valentinian himself had performed well, too (*egisse complura*), especially against the Alamans; they had been informed of the death of Julian, whom they feared, and this had raised their fighting spirit. It is remarkable that in the short survey of Valentinian's *actus* the administration of justice is not mentioned, although according to the historian's reports there was clearly much room for improvement in this field.

The author then proceeds to survey Valentinian's good and bad qualities and starts with the latter, which had much to do with his inborn inclination to harshness and his hot-tempered nature. This became manifest in his predilection for cruelty and in general the absence of the typical virtues of a ruler: *clementia* and readiness to support people who had to cope with misfortune. Valentinian's good qualities are next dealt with in less than half the space allotted to his *vitia*. The list of virtues begins with an amazing contradiction of an item in the list of *vitia*, viz. the heavy taxation: *tributorum ubique molliens sarcinas*. The brevity of the list of good qualities is perhaps not decisive, but it is noteworthy that the entire survey of his characteristics and accomplishments makes the reader doubt that he could have been the right person to rule the Roman Empire in the changing world of barbarian invasions and discontented subjects, which showed that Rome's power was visibly declining. He may have drawn this conclusion himself, if a remarkable *cri de coeur*, quoted by Socrates in *HE* 4.31.3–4 is essentially his: 'in a period in which the Roman Empire was in dire straits it was his turn to become its ruler, when a nation of such despicable barbarians, not content with being permitted to exist in safety within their own limits, dared to take up arms, invade the Roman territories, and break forth into open war'. Valentinian was unable to understand why people who had been treated well by Rome responded by waging war.

Be all this as it may, a decision about the succession of the deceased emperor was urgently needed, but the high-ranking military commanders who were on the spot had to tread warily, especially because they feared a coup of the Gallic forces, who had a habit of claiming a special competence

in such cases. They were also worried about the absence of Valentinian's sixteen year old son Gratian, who had the title Augustus: he was still in Trier, where his father had ordered him to stay. After a careful analysis of the situation it was decided that Valentinian's four year old son and namesake should also receive the title Augustus and play a part in ruling the Empire. Gratian graciously took this decision in his stride.

In Book 30 of the *Res Gestae* the historian presents us with a good deal of interesting information and interpretation, but the book also functions as an introduction to a new and dangerous phase in the history of the Roman Empire, in which its power, if not its very existence, was going to be severely tested.

CHRONOLOGY

Reiche, 1889, 49–51, 57–58 gives a chronological overview of the events described in Book 30, both in the East and in the West, as does Seeck (1906, 525–526 and 1919, 244–247). The comments of Heering, 1927, 40, 43, 53–57 are relevant to Valentinian's whereabouts in the West, those of Barnes 253 to what happened in the eastern part of the empire. For the eastern part we follow in general Lenski, 2007, 113–118.

In Book 30, as in other books of the *Res Gestae*, we find several temporal expressions, such as *tandem*, *prope diem*, *paulo postea* etcetera, which do not help much to reconstruct the exact order of events. Others are a little more helpful (*hieme iam extrema*, *pubescente iam vere*, *per continuos tres menses aestivos*), but there are only three passages which furnish precise chronological data (30.3.1, 30.6.6 and 30.10.5). Based on this information, and thanks to some laws of the *Theodosian Code*, a rough chronological reconstruction can be made. Some details, however, remain uncertain.

Valens' part of the Empire

In the opening sentence of Book 30 Ammianus refers to the assassination of the Quadian king Gabinius in the West, and that of the Armenian king Papa in the East (*Inter has turbarum difficultates, quas perfidia ducis rege Quadorum excitavit occiso per scelus, dirum in oriente committitur facinus Papa Armeniorum rege clandestinis insidiis obtruncato*). His choice of words suggests that the events in Valens' part of the empire which led to the murder of Papa, described in the first chapter of Book 30 (30.1.1–18), took place at the same time as the war with the Quadi (and Sarmatians), i.e. in the years 374–375. The murder of Papa by the general Traianus, described in 30.1.19–21, most probably took place in 375 (see for references ad 30.1.21, p. 25).

With the words *Haec per Armeniam notabiliter gesta sunt* Ammianus starts 30.2, a chapter of which the first part deals with the negotiations between Valens and the Persian king Sapor about Armenia and Hiberia (30.2.1–8). These took place over a period of two years, viz. the years 375–377,

as can be deduced from the words *hieme iam extrema* in 30.2.3 and *principio sequentis anni* in 30.2.4 (see the notes ad loc., pp. 34 and 37).

Valentinian's part of the Empire

Ammianus concludes his account of the events in the East in 30.2.9 (*Haec per eos agitata sunt tractus*, 30.2.9) and turns to the West, to give an account of the death of the former *magister officiorum* Remigius and his *domesticus* Caesarius (30.2.10–12). In 28.6.30 (p. 301) Remigius' death, possibly in 374, had already been mentioned. Other events in the West are dealt with in chapters 3, 5, 6 and 10 (chapter 4 is a digression about lawyers in the eastern provinces of the Roman Empire; chapters 7–9 contain the necrology of Valentinian).

Chapter 3 opens with a reference to the (third) consulship of Valentinian's son Gratian and that of his colleague Equitius (*Gratiano ascito in trabeae societatem Equitio consule*), i.e. to the year 374 (Bagnall et al., 1987, 282–283). In 30.3.1 Ammianus states in addition that Valentinian was building a *munimentum...prope Basiliam, quod appellant accolae Robur* (we happen to know that the emperor was in Robur on 10 July 374 [*Cod. Theod.* 8.5.33]), and also that it was in this *munimentum* that he received a report of the praetorian prefect Probus, informing him about the disasters in Illyricum caused by the Quadi and Sarmatians (which had been outlined in chapter 6 of Book 29).

Valentinian had the matter investigated and then immediately wanted to start a war in Illyricum (30.3.2). But 374 was already far advanced (*abunte autumno*, 30.3.3). His courtiers therefore advised him to wait till the beginning of spring (*ad usque veris principium*, *ibid.*), so that in the meantime another problem could be dealt with, viz. the danger emanating from the fact that Macrianus was still unpacified. After some negotiations a peace treaty was signed with this Alamannic king (30.3.4–6), whereupon Valentinian retired to the winterquarters in Trier (*Treveros Valentinianus ad hiberna discessit*, 30.3.7). He was back in Trier latest on 3 December 374 (*Cod. Theod.* 4.17.1).

The emperor was still in Trier on 9 April 375 (*Cod. Theod.* 12.6.16). He started his march to Illyricum when the spring was already well on its way (*Pubescente iam vere Valentinianus a Treveris motus*, 30.5.1). During the three summer months he stayed in Carnuntum to prepare the expedition (*Agens...apud Carnuntum imperator per continuos tres menses aestivos arma parabat et alimenta*, 30.5.11). From Carnuntum he sent the generals Mero-

baudes and Sebastianus ahead into barbarian territory, while he himself moved his camp to Aquincum, where he crossed the Danube and then attacked the Quadi (30.5.13). Having returned to Aquincum Valentinian spent some time in this city, but, since the autumn was progressing fast, he looked around for appropriate winter quarters (*apud Aquincum moratus autumnno praecipiti...commoda quaerebat hiberna*, 30.5.14), which he found in Savaria (*nullaque sedes idonea repperiri praeter Savariam poterat*, *ibid.*, cf. §16). However, before he billeted his troops there for the winter he strengthened the fortifications along the Danube and went to Brigetio (30.5.15, p. 131). In Brigetio a delegation of the Quadi was granted a hearing (30.6.1–2), during which the emperor became so enraged that he suffered an apoplexy (30.6.3–5) and died on 17 November 375 (Socr. *HE* 4.31.6, *Consul. Constant. a. 375*), *aetatis quinquagesimo anno et quinto, imperii minus centum dies secundo et decimo* (30.6.6, pp. 147–148).

Valentinian's son Gratian was in Trier when his father died and knew nothing of what had happened (*gestorum ignarus Gratianus agebat tum apud Treveros*, 30.10.1). He was then confronted with a *fait accompli*: it was arranged that his young half-brother Valentinianus, who at that time was staying with his mother Iustina in the *villa Murocincta*, should be sent for and made co-emperor (*prospectum...Valentinianus puer defuncti filius tum quadrimus vocaretur in imperium cooptandus...degens...cum Iustina matre in villa, quam Murocinctam appellant*, 30.10.4). Valentinian II was declared emperor on 22 November 375 (*sexto...die post parentis obitum imperator legitime declaratus Augustus nuncupatur more sollemni*, 30.10. 5, p. 205).

LEGENDA

1. The lemmata are taken from W. Seyfarth's Teubner-edition (Leipzig 1978), with one alteration: consonantal u is always printed as v (*venit* instead of *uenit*).

2. For references to Greek authors we follow the abbreviations and indications of books and chapters in H.G. Liddell and R. Scott, *A Greek-English Lexicon* and for patristic literature those in G.W.H. Lampe, *A Patristic Greek Lexicon*. Passages in Latin authors are indicated according to the system of P.W.G. Glare, *Oxford Latin Dictionary*. For later and Christian authors we follow the *Thesaurus Linguae Latinae*.

Some exceptions to these rules:

- In the case of Caesar, Sallust and Tacitus the division of the chapters into sections in the Teubner-editions has been taken into account.
- Seneca's *Dialogi* are referred to with the title of the individual works.
- For the *Panegyrici Latini* Mynors' OCT-edition has been used.
- Strabo is quoted from Radt's edition (*Strabons Geographika mit Übersetzung und Kommentar herausgegeben von Stefan Radt*, 4 vols., Göttingen 2002–2005).
- The Letters of Julian are quoted from Bidez' edition in the Budé-series.
- Eunapius' *History* is quoted from Blockley's edition (*The Fragmentary Classicising Historians of the Later Roman Empire*, vol. II, Liverpool 1983).
- Ausonius is quoted from Green's edition (*The Works of Ausonius. Edited with Introduction and Commentary by R.P.H. Green*, Oxford 1991).

3. As to secondary literature the following rules are observed:

- References to the six volumes of De Jonge's commentaries (Books 14–19) and to our commentaries on Books 20–29 are usually given with 'see De Jonge ad...(p. 000)'; 'see ad...(p. 000)'.
- Books or articles are normally referred to with the name of the author(s), the year of publication and the page(s). The full titles can be found in the bibliography; e.g. Hagendahl, 1921, 64 refers to H. Hagendahl, *Studia Ammianea*, Uppsala 1921, page 64.
- Quotations from existing translations and secondary literature are

given between inverted commas (“...”). Our own explanations of words or phrases in Greek and Latin texts are given between single inverted commas (‘...’).

- Occasionally reference is made to commentaries on other authors, e.g. Austin’s on Vergil and Koestermann’s on Tacitus, or to well-known editions like those in the Budé-series. As a rule these works are not mentioned in the bibliography.
- The volumes of the Groningen Commentaries on Apuleius are indicated by *GCA* and the year of publication.

Of the following books, which are referred to regularly, only the name of the author and the page(s) are given:

Angliviél de la Beaumelle	L. Angliviél de la Beaumelle. <i>Notes</i> in: G. Sabbah, <i>Ammien Marcellin, Histoire VI (Livres XXIX–XXXI)</i> , Paris 1999.
Barnes	T.D. Barnes, <i>Ammianus Marcellinus and the Representation of Historical Reality</i> , Ithaca-London 1998.
Blomgren	S. Blomgren, <i>De sermone Ammiani Marcellini quaestiones variae</i> , Diss. Uppsala 1937.
Ehrismann	H. Ehrismann, <i>De temporum et modorum usu Ammiano</i> , Diss. Strasbourg 1886.
Harmon	A.M. Harmon, <i>The Clausula in Ammianus Marcellinus</i> (Transactions of the Connecticut Academy of Arts and Sciences 16, 117–245), New Haven 1910.
Heumann-Seckel	H. Heumann & E. Seckel, <i>Handlexikon zu den Quellen des römischen Rechts</i> , Jena 1926 ⁹ .
Jones	A.H.M. Jones, <i>The Later Roman Empire 284–602. A Social Economic and Administrative Survey</i> , Oxford 1964 (repr. 1986).
Kelly	G. Kelly, <i>Ammianus Marcellinus. The Allusive Historian</i> , Cambridge 2008.
Kühner-Stegmann	R. Kühner & C. Stegmann, <i>Ausführliche Grammatik der lateinischen Sprache</i> , II, Satzlehre, 2 vols., Hannover 1955 ⁴ , 1976 ⁵ .
Leumann	M. Leumann, <i>Lateinische Laut- und Formenlehre</i> , Munich 1977.
Matthews	J.F. Matthews, <i>The Roman Empire of Ammianus</i> , London 1989 (repr. Ann Arbor 2008).
Paschoud	F. Paschoud, <i>Zosime, Histoire Nouvelle, II² (Livre IV)</i> , Paris 1979.

Pinkster I	H. Pinkster, <i>Oxford Latin Syntax, vol. 1 The Simple Clause</i> , Oxford 2015.
Sabbah	G. Sabbah, <i>La méthode d'Ammien Marcellin. Recherches sur la construction du discours historique dans les Res Gestae</i> , Paris 1978.
Seager	R. Seager, <i>Ammianus Marcellinus. Seven studies in his Language and Thought</i> , Columbia 1986.
Szantyr	J.B. Hofmann & A. Szantyr, <i>Lateinische Syntax und Stilistik</i> , Munich 1965 (repr. 1972).
Talbert	R.J.A. Talbert (ed.), <i>Barrington Atlas of the Greek and Roman World</i> , Princeton 2000.
Thompson	E.A. Thompson, <i>The Historical Work of Ammianus Marcellinus</i> , Cambridge 1947 (repr. Groningen 1969).
Wagner-Erfurdt	J.A. Wagner, <i>Ammiani Marcellini quae supersunt, cum notis integris Frid. Lindenbrogii, Henr. et Hadr. Valesiorum et Iac. Gronovii, quibus Thom. Reinesii quasdam et suas adiecit, editionem absolvit Car. Gottl. Aug. Erfurdt</i> , 3 vols., Leipzig 1808 (repr. in 2 vols., Hildesheim 1975).

The following translations are referred to with the name of the translator only:

Caltabiano	M. Caltabiano, <i>Ammiano Marcellino. Storie</i> , Milan 1998.
Hamilton	W. Hamilton and A. Wallace-Hadrill, <i>Ammianus Marcellinus: the Later Roman Empire (AD 354–378)</i> , Harmondsworth 1986.
Rolfe	J.C. Rolfe, <i>Ammianus Marcellinus</i> , with an English translation, 3 vols., London-Cambridge Mass. 1935–1939 (repr. 1971–1972).
Selem	A. Selem, <i>Le Storie di Ammiano Marcellino. Testo e Traduzione</i> , Turin 1965 (repr. 1973).
Seyfarth	W. Seyfarth, <i>Ammianus Marcellinus, Römische Geschichte. Lateinisch und Deutsch und mit einem Kommentar versehen</i> , vol. IV, Berlin 1986 ³ .
Viansino	G. Viansino, <i>Ammiano Marcellino. Storie</i> , 3 vols., Milan 2001–2002.

4. In cases where this is helpful for the reader or relevant for the interpretation the cursus is indicated as follows:

- *revocávit in státum*: cursus planus
- *sublátius éminens*: cursus tardus
- *fécit et vectigáles*: cursus velox

CHAPTER 1

Introduction

In this chapter Ammianus continues his account of the adventures of king Papa of Armenia. In 27.12 (pp. 281–289) he had narrated how Papa as a young prince, together with his mother (her name was Pharandzem), had been besieged in Artogerassa by Sapor's stooges Cylaces (*PLRE I*, Cylaces) and Arrabannes (*PLRE I*, Arrabannes). Later, Cylaces and Arrabannes sided with queen Pharandzem, who sent her son to Valens for protection. While Papa was enjoying Roman hospitality in Neocaesarea, Cylaces and Arrabannes asked Valens to send him back to Armenia. Valens granted the request, and the general Terentius reinstated Papa, without the royal *insignia*, on the throne of Armenia. This infuriated Sapor, who consequently invaded Armenia. Papa fled with Cylaces and Arrabannes to a remote mountain region. Sapor captured Artogerassa and killed Pharandzem, while Papa managed to stay out of Sapor's hands. In an astonishing volte-face Papa and the Persian king then entered into negotiations and Papa, on Sapor's prompting, killed Cylaces and Arrabannes, whose severed heads he sent to the Persian king as a token of submission. This is the situation at the beginning of this chapter.

Terentius, *dux et comes Armeniae*, suspected Papa of pro-Persian sympathies and reported as much to Valens, who invited the king to come to Tarsus, supposedly for diplomatic discussions. There he was kept in custody. When Papa understood that Terentius was plotting against him by urging Valens to put someone else on the Armenian throne, he managed to escape from Tarsus and reached his native country despite energetic efforts made by the Roman generals Barzimeres and Danielus to arrest him en route. This only increased Valens' hatred and distrust of Papa. Therefore, he ordered Traianus, who had succeeded Terentius, to eliminate Papa. After Traianus had gained Papa's trust, he invited him to a banquet, where he was murdered.

This chapter is one of the most stirring and colourful in the *Res Gestae*. Ammianus is exceptionally well informed about Armenian affairs, possibly, as Sabbah 234 suggested, thanks to the eunuch Eutherius, who was of Armenian origin. His account, however, raises some difficult questions. Normally, when dealing with conflicts between the Roman authorities and foreign powers, Ammianus identifies with the Roman position, but here his bias in

favour of Papa is unmistakable. He admires the king's cleverness and mentions his popularity with his Armenian subjects. He insists on Papa's loyalty towards the Romans in spite of the hostile treatment they had given him. Ammianus calls the murder of Papa a violation of the sacred rights of hospitality *inusitatum facinus et pudendum*. A comparison with the murder of king Gabinius by Marcellianus, son of the hated Maximinus (29.6.5, pp. 230–231), also strongly condemned by Ammianus, suggests that his dislike of the Roman perpetrators of these crimes is at least as important a factor in Ammianus' indignation as his compassion for the foreign victims. Ammianus makes no secret of his low opinion of Terentius whom he characterizes as a quarrelsome hypocrite.

What makes this chapter especially interesting is the fact that we are in a position to compare Ammianus' version of events with other sources. In earlier episodes, such as those dealing with the trials in Rome and Antioch (28.1 and 29.1–2) or Theodosius' campaign against Firmus (28.6) we were not able to check Ammianus' account against other versions, but in this case we have Armenian historical sources at our disposal, in particular Ps. P'awstos Buzand [Faustus of Byzantium], who offers a detailed account of Papa's death during the banquet given by the general Traianus. As the quotation from his work ad § 21 will show, there are striking similarities as well as marked differences between the two versions. Moreover, the Armenian histories offer a welcome addition to Ammianus' account in that they present an insight into internal Armenian affairs, in particular Papa's dealings with the Christian patriarch Narses. If Ammianus' account was all we had, we would have been left with the impression that Papa was the innocent victim of Roman perfidy. Whereas he certainly was a victim of perfidy, he was not innocent, for, as Ps. P'awstos Buzand tells us, Papa himself had murdered the patriarch Narses at a banquet some years before. This was a crime with serious political consequences, because Narses, the head of the Christian church of Armenia, had played a large pro-Roman part in Armenian politics. After Narses had been eliminated, Papa took a number of measures which seemed to pave the way for a return to traditional pagan beliefs; this was evidently more agreeable to Sapor than to Valens. Ammianus on his part restricts himself to Papa's dealings with the Roman authorities and explains Valens' decision to get rid of Papa as the result of slander by Terentius and other Roman generals, thereby disguising the fact that there were sound reasons to doubt Papa's loyalty.

In view of the fact that Ammianus is so well informed about details of Papa's flight from Tarsus to Armenia and of the circumstances of his death at the banquet of Traianus it is hard to believe that he was totally ignorant

about these Armenian affairs. Possibly, it was his usual detachment when dealing with religious matters and their connection with political decision making rather than a deliberate effort to marginalize Christianity, as Barnes 81 suggested, which stopped him from entering the field of Armenian religious politics. Ammianus' favourable treatment of Papa in this chapter probably owes more to his dislike of Papa's Roman enemies than to sympathy for Papa's behaviour as king of Armenia. If there is an undercurrent of anti-Christian sentiment in this chapter, it is to be found in Ammianus' malicious description of Terentius: *demisse ambulans semperque submaestus, sed quoad vixerat, acerrimus dissensionum instinator*, for which see below ad § 2.

Inter has turbarum difficultates, quas perfidia ducis rege Quadorum excitavit occiso per scelus, dirum in oriente committitur facinus Papa Armeniorum rege clandestinis insidiis obtruncato Ignoring the peaceful interlude of Claudius' urban prefecture at the end of Book 29, Ammianus leaves the scene of his narrative about western affairs, namely the disturbances caused by the incursions of the Quadi and Sarmatae, and embarks on Armenian matters. The prepositional phrase *inter has turbarum difficultates* indicates that the events described in this chapter took place at the same time as the invasions of the Quadi and Sarmatae, i.e. the years 374–375; Lenski, 2007, 114–115. *Dux* refers to Marcellianus (*PLRE* I, Marcellianus 2), *dux Valeriae*, son of the hated Maximinus, who had the Quadian king Gabinius killed at a banquet (29.6.5, pp. 230–231), as a consequence of which the Quadi crossed the Danube frontier and invaded Roman territory. The author opens this book with the report of yet another heinous crime: the murder of Papa. The similarity of these two despicable acts is brought out by the parallel structure of the sentence, in which *Armeniorum rege clandestinis insidiis obtruncato* balances *rege Quadorum occiso per scelus*. For the baleful connotation of *dirus* see ad 26.10.5 (p. 275). For Papa (*PLRE* I, Papa), king of Armenia since 369, see ad 27.12.9–14 (pp. 281–289). 1.1

cuius materiae impio conceptae consilio hanc primordialem fuisse novimus causam As was noted ad 26.10.10 (p. 284), *impio consilio* implies strong condemnation. In Liv. 40.23.8 for instance *impij consilij auctor* refers to fratricide. Amm. uses *materia* in three different meanings: 1. '(building) material', as in 17.10.9 (ut) *carpenta et materias ex opibus suis suorumque praeberet* and 29.1.30 *ex diversis metallicis materiis fabrefacta*, 2. 'source', 'ground', 'cause' for which see ad 28.1.34 (p. 73) and 3. '(subject) matter' as here, in 16.1.3 *ad laudativam paene materiam pertinebit* and 22.9.6 *pauca cum alijs huic materiae congruentibus in actibus Commodi principis digessimus*. For *primordialis*

'primary' see ad 23.6.24 *a Chaldaeorum arcanis labes primordialis exsiluit* (p. 159) and TLL X 2.1268.69–70: "legitur apud script. christ. inde a Tert., ceterum apud Amm. Marc. et Mart. Cap.". For auctorial statements like *diximus, praediximus, docuimus, rettulimus, novimus* see ad 28.1.17 (p. 40).

- 1.2 *consarcinabant in hunc etiamtum adultum crimina quaedam apud Valentem exaggerantes male sollertes homines dispendiis saepe communibus pasti* The verb *consarcinare* 'to patch together' is used in its literal meaning in 22.9.11 *chlamydem...consarcinasse* and in 31.2.5 *indumentis operiuntur linteis vel ex pellibus silvestrium murum consarcinatis*; it is more frequently used metaphorically 'to make up'; see ad 29.1.25 (p. 41). For *etiamtum* 'still (at that time)' cf. 16.5.8 *hunc etiamtum adultum*; 16.12.25 *etiamtum adultae lanuginis iuvenis*; 20.6.6 *lapidum recens structorum madoreque etiamtum infirmum*. As is observed ad 22.2.5 (pp. 15–16), *adultus* emphasizes youth, and is the opposite of *senex*, not of *puer*: Papa was still in the prime of life. *Crimina quaedam* is best taken ἀπὸ τοῖνοῦ with *consarcinabant* and *exaggerantes*. Amm. often criticizes Gallus, Constantius, Valens and Valentinian for acting upon exaggerated accusations; see ad 29.3.1 (p. 120). *Male* must be taken with *sollertes*, "habiles au mal" (Sabbah), "cunning" (Hamilton); taking it with *exaggerantes* would not produce a regular *cursus*. The *iunctura* is also found in Gel. 10.12.8 *ab hominibus istis male sollertibus huiuscemodi commenta*, although there the notion of malice seems to be absent; TLL VIII 242.39. For the note of bitterness in *pasci* see ad 22.4.3 (p. 39) and for *dispendium* ad 20.6.9 (p. 150).

The identity of these *male sollertes homines*, apart from Terentius, is not clear. Although Amm. calls their charges against Papa before Valens (*PLRE* I, Valens 8; cf. for him the notes ad 26.4.2–3 [pp. 79–81]) exaggerated, it cannot be denied that from the Roman perspective Papa had created problems in Armenia, inter alia by killing Cylaces and Arrabannes in order to gain the favour of Sapor (27.12.14, p. 289). According to the Armenian sources he also demanded that some Roman cities, among them Caesarea (in Cappadocia) and Edessa, should be yielded to his authority: Ps. P'awstos Buzand 5.32; Blockley, 1992, 35; Lenski, 2002, 177–179. Moreover, the Romans must have been aggravated by Papa's poisoning of the patriarch Narses at a banquet sometime after the summer of 371, possibly in 372 or 373: Ps. P'awstos Buzand 5.24; Movsēs Xorennac'i 3.38; *Vita Nerses* 12–14 pp. 36–42; Lenski, 2007, 113, esp. n. 68. Relations between Papa and Narses were strained because of religious and political disagreements, and Papa was constantly rebuked by the patriarch on account of his sins and evil acts: Ps. P'awstos Buzand 5.23–24; Gutmann, 1991, 179. Papa was not a convinced Christian; his mother

had consecrated him to the *dews*, the pagan demons of the old Armenian religion. As Ps. P'awstos Buzand 5.22 informs us, Papa may also have developed a certain amount of sympathy for Zoroastrianism, which would help to explain his overtures towards Sapor; Blockley, 1992, 190 n. 34. Not only did Narses protect Christian interests, the church in Armenia as a whole took a pro-Roman position, which was not to the liking of Papa: Blockley, 1975, 64–65; 1992, 35. The Christian interests and the role played by Narses are not mentioned at all by Amm., while they are prominent in the Armenian sources and indispensable for a correct understanding of the events he is describing. Lenski, 2002, 4 calls this omission misleading “for Nerses’s murder helped provoke Valens in turn to have Pap murdered”. It is uncertain whether Amm. was familiar with the detailed information provided by the Armenian sources, which date from the fifth (Movsēs Xorenac’i) and sixth (Ps. P'awstos Buzand) centuries and in the case of the *Vita Nerses* even from the tenth century, but it seems unlikely that he would have been completely ignorant of Papa’s record as king of Armenia. He may, however, have decided not to give a detailed account of these internal Armenian affairs, because doing so would have harmed the positive picture he intended to present of the Armenian king.

inter quos erat Terentius dux demisse ambulans semperque submaestus, sed quoad vixerat, acer dissensionum instinator Cf. 20.5.10 (the *Genius publicus* threatens to leave Julian): *ibo demissus et maestus* (p. 133). The short characterization of Terentius (*PLRE* I, Terentius 2) is obviously unflattering. His pretense of humility served to hide a lifelong contentiousness. For *demisse* ‘with downcast eyes’ as a mark of *humilitas* and *verecundia* cf. *supercilia humum spectantia* in 27.3.15, Amm.’s praise of humble provincial bishops (pp. 75–76). Neri, 1985, 214 n. 68 and 69 has an impressive list of parallels in Christian authors, both Greek and Latin, who demand such outward signs of submissiveness and modesty from priests and monks. As was stated above, Amm. ignores the religious aspects of Armenian internal and external politics. It may well be, however, that by mentioning this detail Amm. obliquely and maliciously alludes to Terentius’ Christian piety, and to the proclivity of his fellow Christians towards fanatical internal disputes, hinted at in the, admittedly problematical, statement in 22.5.4: *nullas infestas hominibus bestias ut sibi feralibus plerisque Christianorum* (p. 60). For the rare noun *instinator* see ad 21.12.20 (p. 177). Sabbah 238 n. 61 suggests that this may be the reason behind Amm.’s aversion to Terentius: “Peut-être faut-il voir une relation de cause à effet entre la piété chrétienne de Téréntius, qui est aussi attestée par Théodoret *HE* 4.32, et l’antipathie que lui manifeste Ammien.”

The adj. *submaestus* is found only here and in 15.8.11, the speech in which Julian was declared Caesar by Constantius: (Iulianum) *alloquitur contractioniore vultu submaestum*. There is no reason to attach any importance to this curious correspondence. In the case of Terentius *submaestus* is presented as a regular characteristic, whereas regarding Julian it was the expression of his anxiety in a situation fraught with danger. For adj. with prefix *sub-* see ad *subscruposus* (21.16.3, p. 247) and *subniger* (21.16.19, p. 274); see also Díaz y Díaz, 1964.

Terentius is consistently designated by Amm. as *dux*, but his full title must have been *comes et dux Armeniae*. He held this position roughly during the years 369–374; see for him 27.12.10 (p. 283). Although Terentius had installed Papa on the Armenian throne, he began to plot against him as a consequence of Papa's overtures to king Sapor and his murder of Cylaces and Arrabannes (see next section). Religious reasons, not mentioned by Amm., probably also played a part. The pious Christian Terentius must have been upset by the fact that Papa distanced himself from Christianity and by his clashes with the patriarch Narses, which resulted in the poisoning of the leader of the Armenian church. The threat posed by the king to the position of the Christian church in Armenia, and Rome's loss of ecclesiastical control over Armenia must have disturbed Terentius and Valens, since Papa appointed a new patriarch by the name of Yusik without the approval of the bishop of Cappadocian Caesarea who up till then had nominated the Armenian patriarchs. The king dismantled institutions, such as hospitals and asylums for widows and orphans, and rescinded regulations which had been established by Narses; Ps. P'awstos Buzand 5.29–31; Lenski, 2002, 177–178.

- 1.3 *qui ascitis in societatem gentilibus paucis ob flagitia sua suspensis in metum scribendo ad comitatum assidue Cylacis necem replicabat et Arrabannis* Just like the short characterization of Terentius, the description of his collaborators and their motives is biased and tantalizingly vague. Who were these *gentiles pauci*? What had been the shameful acts for which they feared punishment? Does *paucis* imply that king Papa had a solid backing among his people? *Gentilibus* is Henri de Valois' clever emendation of V's *gentibus*; for the adj. *gentilis* see ad 24.6.3 (p. 176). The word does not refer to members of the *Gentiles* belonging to the *scholae palatinae*, as Rolfe n. 5 implies by his reference to 14.7.9, but to Armenians, probably *nakharar* lords. The phrase *suspensis in* + acc. is without parallel. Normally *suspensus* used of persons indicates "a state of anxious uncertainty or suspense" (OLD s.v. 2a), sometimes specified by *timore* or *metu*, as in *futurorum timore suspensus* (14.10.2)

and *multipli metū suspensio* (18.3.2), inspired by Tac. *Hist.* 4.38.1 *maesta et multipli metū suspensa civitate*. The prepositional phrase in *metum* seems to express that a sense of guilt developed into fear. Amm. does not give the reasons for this. That the relations between *nakharar* lords and Papa were strained seems to be confirmed by Them. *Or.* 11, 149 d–150; cf. Lenski, 2002, 178. For Cylaces and Arrabannes, see 27.12.5 (p. 275). The two men sided initially with Sapor, but then defected to Papa. When the Armenian king inclined more and more to the Persian side and Sapor accused him of being the slave of Cylaces and Arrabannes, Papa had them both murdered and sent their heads to the Persian king: 27.12.14 (p. 289); cf. Blockley, 1975, 69–70.

Scribendo is a good example of the abl. of the gerund as an equivalent of the ptc. praesens; see ad 20.4.22 (p. 109) and 23.6.79 (p. 220). For *replicare* see ad 20.9.6 (pp. 228–229). The meaning ‘to hammer at’ is emphasized by *assidue* ‘constantly’ (the cursus ends before, not after *assidue*), as in 14.7.5 *id assidue replicando, quod*. Terentius uses the language of political polemics; cf. what Constantius said to his troops about the rebel Julian: 21.13.13 *elatus ascitis in societatem superbam auxiliariis paucis feritate speque postrema ad perniciosam audaciam promptis in noxam publicam conspiravit*. See for *comitatus* ‘the emperor’s headquarters’, ‘the court’ ad 20.4.11 (pp. 76–77) and 26.5.7 (p. 109).

addens eundem iuvenem ad superbos actus elatum nimis esse in subiectos immanem For Papa’s age see above ad section 2 *etiamtum adultum*. The accusation that Papa was arrogant and cruel to his subjects is not borne out by the joyful reception he received from his subjects after his escape from Tarsus: 30.1.15 *cum gaudio popularium summo susceptus*.

unde quasi futurus particeps suscipiendi tunc pro instantium rerum ratione tractatus idem Papa regaliter vocatus et apud Tarsum Ciliciae obsequiorum specie custoditus The charges by Terentius and his accomplices against Papa were successful and prompted Valens to summon the Armenian king to his court. Valens uses the same tactics which Constantius had chosen to draw Gallus away from his power base in Antioch: 14.11.1 *acciri mollioribus scriptis per simulationem tractatus publici nimis urgentis eundem placuerat Gallum*. Just as his father Arsaces had been approached by Constantius to make sure that he would be loyal to Rome in the impending conflict with Sapor (21.6.8), so Papa is invited for top level talks about urgent matters, the *res instantes* probably concerning Persia. For the rare noun *tractatus* ‘discussions’ cf. Veg. *mil.* 3.3 *Ante igitur quam inchoetur bellum, de copiis expensisque sollers debet esse tractatus*. In 21.6.2 (p. 78) *ad parile obsequium mittendus*

1.4

the noun *obsequium* refers to the *adoratio*, whereas in 30.1.22 *ut a citeriore caveret obsequio* it is an abstractum pro concreto, ‘personal attendant’, referring to *ministerium*. This may well be the case here, too. TLL IX 2.184.54sq. mentions a number of instances in which *obsequium* is the equivalent of *δορυφορία* ‘bodyguard’. The usurper Procopius had used the same tactics in the case of the *comes* Iulius: 26.7.5 *quasi iussu Valentis seria super barbaricis motibus tractaturus...accitus Constantinopolim strictius tenebatur*. Papa was invited *regaliter*, i.e. in a manner ‘proper for a king’ (see 29.1.18, p. 31), undoubtedly to make him feel that he had nothing to fear. When he arrived in Tarsus he was given a so-called guard of honour, which in reality was meant to keep him in custody. Tarsus was the capital of the province of Cilicia; 21.15.2 (p. 230); Hild, 2002, 38.

cum neque ad imperatoris castra accipi nec urgentis adventus causam scire cunctis reticentibus posset, tandem secretiore indicio comperit per litteras Romano rectori suadere Terentium mittere prope diem alterum Armeniae regem In the *cum*-clause *posset*, strictly speaking, only goes with *scire*; the link with *accipi* is slightly zeugmatic, but can be understood as the result of the fact that *posse* develops in the direction of an auxiliary verb, for which see ad 29.5.45 (p. 206). With *imperatoris castra* the imperial headquarters must be meant, but it is not likely that Valens himself was already present in or close to Tarsus, as may be surmised from Amm.’s remark in § 11 that the emperor only heard of Papa’s flight after the latter had crossed the Euphrates. If he had been in Tarsus, Valens would have heard of the escape of the Armenian king immediately. Papa only became suspicious when he was not received at court and when he found out through a secret source that Terentius had advised Valens to replace him as king of Armenia. As is noted ad 20.1.1 (p. 4), *rector* is a very general word, used by Amm. for all kinds of high-ranking officers and officials, including the emperor; Valens is also called *rector* in 29.2.14, 30.2.7 and 31.13.16. The construction of *suadere* with inf. is already found in Cicero; Szantyr 346. The distinction between *alius* and *alter* becomes blurred in Late Latin; Szantyr 208. Instances in Amm. are 15.5.4 *alter multum a vero illo dissonans superscribitur textus* and 22.14.7 (Apis) *quo perempto alter cum publico quaeritur luctu*.

ne odio Papae speque, quod revertetur, natio nobis opportuna deficeret ad iura Persarum eam rapere vi vel metu vel adulatione flagrantium Normally, *spes* in Amm. has a positive or neutral sense; see ad 26.6.9 (p. 146). Here, however, it has the connotation of fear, just as the verb *sperare* sometimes does. For *quod* + indic. fut. instead of an Acl cf. 14.11.6 *spe tamen, quod eum lenire*

poterit and see ad 20.8.10 (pp. 197–198). Note that, when Papa does return to his people, he is greeted with enthusiasm: *cum gaudio popularium summo susceptus* (§15). *Opportunus* ‘of strategic importance’ is used regularly of cities or locations; see ad 27.2.5 (p. 22). It suits the Armenians better than any other nation. For *iura* as an equivalent of *dicio* cf. 23.6.8 *nationem omnem in successoris unius iura translata* and 25.7.11 *ut Nisibis et Singara...transirent in iura Persarum* (p. 241). The present expression is a contamination of *deficere ad* + acc. and *transire in iura* + gen.

Quae reputans ille impendere sibi praesagibat exitium grave et doli iam prudens neque aliam nisi cito discessu salutis repperiens viam suadentibus his, quibus fidebat, conglobatis trecentis comitibus secutis eum e patria Seyfarth follows Heraeus’ correction *praesagibat* here and in 23.3.3 (V has *praesagebat* in both places), which is preferable to Gelenius’ *praesagiebat*, since in 23.3.3 this would not result in a regular cursus. The form *praesagibat* is found also in Pl. *Aul.* 178 and Cic. *Div.* 1.65. Harmon 186 tentatively suggested *praesagabat* as an alternative, but this is less attractive, since Amm. prefers the i-stem: 20.8.20 *praesagiens*, 31.2.24 *praesagiunt*. The expression *doli prudens* may have been inspired by Tac. *Hist.* 2.25.1; it is found nowhere else. *Via salutis* is a time-worn phrase; cf. Gel. 3.7.8 *Alia nisi haec salutis via nulla est*. The 300 companions are the military mounted escort which had accompanied Papa on his journey from Armenia to Tarsus. 1.5

cum equis velocissimis, ut in magnis solet dubiisque terroribus, audacter magis quam considerate pleraque die parte emensa egressus cuneatim properabat intrepidus The *ut*-clause must be connected to what follows (*audacter—considerate*). In a critical situation promptness of action is a prerequisite for success. In a similar predicament, when Silvanus had to be killed in his own army camp, a decisive action won the day: 15.5.31 *subitus armorum globus erupit atque, ut solet in dubiis rebus, audentior caesis custodibus regia penetrata Silvanum...trucidarant*. For *terror* ‘frightening event’ see ad 20.3.1 (p. 28). The archaism *plerusque* is found in 24.4.22 *noctis plerumque* (p. 129); TLL X 1.2432.35 sqq. There is a note on the gen. *die*, possibly a Sallustianism (*Jug.* 97.3 *vix decuma parte die relicua*), ad 24.2.11 *die maxima parte exempta* (p. 52) and on *emetiri* ad 22.13.3 *medietate noctis emensa* (p. 233). For *cuneatim* cf. 27.1.1 *cuneatim egressa multitudo licentius vagabatur* (p. 4).

cumque eum provinciae moderator apparitoris, qui portam tuebatur, indicio percitus festinato studio repperisset in suburbanis, ut remaneret, enixius obsecrabat et parum hoc impetrato mortis aversus est metu The word *moderator* 1.6

is a general term used by Amm. for different kinds of administrators, commanders and even the emperor himself; 20.8.14 (p. 205). In this passage the provincial governor of Cilicia is meant, whose name is not known; *PLRE* I, Anonymus 125. For the meanings of *apparitor* see ad 26.4.3 (p. 83) and 28.1.36 (p. 79). Here it refers to the attendant who guarded the city gate through which Papa had left Tarsus. Löfstedt, 1911, 94 defends V's *impercitus* as a form of 'DeKomposition', a double compound in which *in-* reinforces *percitus*, for which cf. 29.6.1 *inexcita* (p. 222). Baehrens, 1925, 67, however, rightly points out that *apparitoris...impercitus festinato studio* is far less attractive than Petschenig's *apparitoris...indicio percitus*. There are no parallels for *festinato studio*, which seems to be a variation on *itinere festinato* (17.12.4, 25.8.17). As Fesser, 1932, 36 demonstrates, transitive *festinare* is an archaism. The plural *suburbana* refers to the area surrounding a city, as in 21.12.14 *suburbana omnia circumibat*. The clause *ut remaneret* is subordinated to *obsecrabat*. For *enixius* 'urgently' cf. 15.7.3 *rogabatur enixius*, and for *parum* as the equivalent of *non* or *haud* see ad 23.6.82 (pp. 223–224). As the next section will show, Papa's determination was such, that the provincial governor feared for his life. *Aversus est* is stronger than, for instance, *redit*, suggesting that the governor is put to flight by Papa, cf. 24.6.12 *aversorum feriens suras et terga*; 25.3.5 *aversorumque Persarum et beluarum suffragines concidebat et dorsa*; 31.6.3 *aversisque residuis et telorum varietate confixis*.

- 1.7 *nec minus paulo postea legionem secutam iamque adventantem ipse cum promptissimis retrorsus excurrens fundensque in modum scintillarum sagittas, sed voluntate errans ita in fugam compulit, ut cum tribuno milites universi perterrefacti vividius, quam venerant, remearent ad muros* Despite the deplorable outcome of the attempt to keep Papa under control (*nec minus*), another unit is sent after him with an equally inglorious result. The size of army units, including legions, in the later Roman period is very hard to assess; see ad 27.12.16 (pp. 290–291), where a legion is said to have numbered between 500 and 2000 men. As Angliviel de la Beaumelle n. 215 notes, it is most unlikely that *legio*, normally used to designate an infantry unit, in this case refers to foot soldiers since infantrymen would not have been able to overtake the swift horses of Papa and his companions. In all likelihood therefore, *legio* here refers to a cavalry unit. It cannot have been large, since Papa and only the bravest of his 300 companions were able to put the Roman soldiers to flight. For *promptissimus*, a favourite with Livy and Tacitus, see ad 27.2.4 (p. 22) and cf. Liv. 1.54.2 (cum) *ipse cum promptissimis iuvenum praedatum atque in expeditiones iret* and Tac. *Hist.* 3.16.1 *Arrius Varus cum promptissimis equitum prorupit*. The comparison of arrows with

sparks seems to be unique. It is perhaps suggested by the ash rain of a volcano; cf. 31.4.9 *ut Aetnaeas favillas armatorum agmina diffundente barbaria*. In 23.4.3 Amm. observes that an arrow fired by a ballista is seen to throw out sparks: *percita interno pulsu a ballista ex oculis avolat interdum nimio ardore scintillans*. Conversely, Manilius compares shooting stars with arrows *cum vaga per liquidum scintillant lumina mundum / exsiliuntque procul volucris imitata sagittas*, “when wandering lights flash through the clear sky, and dart afar like winged arrows” (1.851–852; tr. Goold). As the words *voluntate errans* indicate, Papa had no intention to kill the Romans, only to stop their pursuit. For *voluntate* ‘deliberately’ cf. 30.4.12 *si voluntate matrem tuam finxeris occidis*. The detail is part of the pro-Papa tendency of this chapter. *Tribunus* is a title often used loosely for all commanding officers; Jones 640. See also ad 22.11.2 (p. 200), 23.3.9 (p. 53), 24.3.1 (p. 71). For tribunes in general in Amm. see Castillo, 2004. Amm. heaps scorn on the hapless Roman legion through an accumulation of details: *universi cum tribuno, perterrefacti, vividius* (the adverb, ‘at lightning speed’, is found only here in the *Res Gestae*).

exin solutus omni formidine biduo et binotio exanclatis itinerum laboribus magnis cum ad flumen venisset Euphraten et inopia navium voraginosum amnem vado transire non posset Crossing the Euphrates in Amm. often implies entering Persian territory; 18.6.3, 21.7.1. For rivers as dividing lines see Drijvers, 2011, 25–26. There was a direct route from Tarsus to Zeugma. If Papa indeed crossed the Euphrates there, it would have brought him into the region of Osdroene, which was still Roman territory. Doubt has been cast as to whether Papa could have reached the Euphrates in two days and two nights, since Tarsus and Zeugma were almost 200 km apart. The distance, however, must be reckoned from the point at which Papa was overtaken by the Roman legion. It may have taken the pursuers at least a day to catch up with the Armenians, so that the remaining distance fell far short of 200 km, in which case it may well have been covered in two days and nights. 1.8

For *solutus formidine* cf. 16.4.4 *metu solutus*. The expression with *formidine* seems to be a poeticism: Verg. *Ecl.* 4.14 *perpetua solvent formidine terras*; Sil. 13.893 *longa formidine solvet*. TLL V 2.1171.42 calls *exanclare* “vox prisci coloris”, and quotes Quint. *Inst.* 1.6.40 *ab ultimis et iam oblitteratis repetita temporibus, qualia sunt ‘topper’ et ‘antegerio’ et ‘exanclare’ et ‘prospapia’ et Saliorum carmina vix sacerdotibus suis satis intellecta*. Cf. Apul. *Met.* 7.6 *plurimis itineris difficultatibus...exanclatis*; 11.12 *tot ac tantis exanclatis laboribus* (also 6.3 and 11.14). For *voraginosus* cf. 18.7.6 (the Romans reinforced the borders of the Euphrates) *qua parum erat voraginosum*. The

causal adjunct *inopia navium* explains *vado transire*: Papa had no boats, and for that reason he would have had to cross the river on foot, but that, too, was impossible because the river was too dangerous.

nandi imprudentia paventibus multis ipse omnium maxime cunctabatur et remansisset, ni cunctis versantibus varia id repperire potuisset effugium in necessitatis abrupto tutissimum As the text stands, it was Papa himself who solved the problem of crossing the Euphrates. In view of the king's hesitation, and the fact that all his followers came up with suggestions, there is a distinct possibility that Amm. wrote *repperiri*. The fact that the passive infinitive occurs far more frequently with *posse* than the active form (eight instances against two, the present case included) points in the same direction. In 16.8.6 Amm. writes *in abrupto necessitatis*. For *versare* 'to ponder' cf. 25.8.2 *quidam diversa in necessitatis abrupto versantes* (p. 255).

- 1.9 *lectulos in villis repertos binis utribus suffulserunt, quorum erat abundans prope in agris vinarii copia* By binding leather wine bags filled with air to the beds, these became floatable and served Papa and the most distinguished of his companions as rafts to cross the river. The technique had already been used during the Mithridatic wars: Sal. *Hist.* 3.37 *duos* (which provides an argument to retain Gelenius' *binis*) *quam maximos utris levi tabulae subiecit*. See also Fron. *Str.* 3.13.6 *insidentem duobus inflatis utribus*, Plin. *Nat.* 6.176 (Arabes) *bubulos utres binos insternentes ponte piraticam exercent* and Suet. *Jul.* 57.1 *si flumina morarentur, nando traiciens vel innixus inflatis utribus*. Leather bags filled with air were also used for the construction of floating bridges; *constratis ponticulis multis ex utribus* (24.3.11, p. 91); *utribus e caesorum animalium coriis coagmentare pontes architecti promittebant* (25.6.15, p. 217). Veg. *mil.* 3.7 is devoted to the topic of how to cross large rivers.

quibus singulis proceres insidentes et regulus ipse iumenta trahentes praeruptos undarum occurrentium fluctus obliquatis meatibus declinabant, hocque commentando tandem ad ulteriorem ripam post extrema discrimina pervenerunt Only Papa himself and the most distinguished of his companions used the floating beds to cross the Euphrates with the current (*obliquatis meatibus*) while holding on to their horses. *Singulis* corresponds with the preceding *binis*, every nobleman was sitting on one of the beds, each bed being supported by two leather bags. Cf. 25.8.2 (pp. 254–255), where Amm. describes how soldiers crossed the Tigris on rafts or bladders: *pars ratibus temere textis iumenta retinentes hinc inde natantia, alii supersidentes utribus*. Shields were

also sometimes used; cf. 16.12.57 *nonnullos clipeis vectos praeruptas undarum occurrentium moles obliquatis meatibus declinantes*; 16.11.9, 24.6.7 (p. 183). For *regulus* ‘petty king’ see 29.5.2 (p. 153). The adj. *praeruptus* may have been inspired by Verg. A. 1.105 *insequitur cumulo praeruptus aquae mons*; TLL X 2.802.19–28. For *commentum* ‘device’ see ad 20.6.6 (p. 145).

residui omnes equis invecti natantibus et circumluente flumine saepe demersi iactatique infirmati periculoso madore expelluntur ad contrarias margines, ubi paulisper refecti expeditius quam diebus praeteritis incedebant A common method for cavalrymen to cross rivers was, according to Veg. *mil.* 3.7, to swim with their horses, keeping their cuirasses and arms afloat on fascines from dry reeds and sedge: *equites fascies de cannis aridis vel ulva facere consuerunt, super quos loricas et arma, ne uidentur, imponunt. Ipsi equique natando transeunt colligatosque secum fascies pertrahunt loris.* 1.10

For *residuus* as an synonym of *reliquus* see ad 20.4.6 (p. 65). The verb *invehi* can be used of a rider on horseback or of a charioteer. Here it must mean that the men were pulled across the river holding their swimming horses by the manes or the reins. For *circumluere* see ad 24.1.6 *circumluitur fluentis Euphratis* (p. 15). Gelenius’ *iactatique* for V’s *iactique* is probably correct in view of 30.8.14 *ut agitato mari iactatis portus patuit exoptatus*. The extremely rare noun *madore* ‘wetness’ is found three times in combination with *infirmus* or *infirmare*: Sal. *Hist.* 4.16 (ne) *nova munimenta madore infirmarentur*; 20.6.6 *lapidum recens structorum madoreque etiamtum infirmium* and in the present passage. Here it refers in all probability to the drenched clothes of the Armenians, which threatened to drown them. For *expeditius* see ad 29.1.24 (p. 40).

Hoc nuntiato princeps ante dicti fuga percussus, quem elaqueatum fidem rupturum existimabat, cum sagittariis mille succinctis et levibus Danielum mittit et Barzimerem revocaturus eum, comitem unum, alterum Scutariorum tribunum The information about Papa’s flight apparently only reached Valens when the king had already crossed the Euphrates. See for *ante dictus*, a favourite expression of Amm., here referring to Papa, ad 27.6.3 (p. 135). *Percussus* is a strong word, for which see ad 28.2.13 (p. 144) and cf. 26.7.13 *atrocitate nuntii Valens percussus*. Doubts about Papa’s loyalty are understandable in view of the treacherous way in which he had killed Cylaces and Arrabannes and sent their heads to Sapor as a token of submission (*ut ei morigerus*, 27.12.14). Still, Amm. insists that after his return to Armenia he remained loyal to Rome (§15). For *princeps* (and *principatus*) see ad 20.2.1 (p. 10), 20.4.8 (p. 71) and 20.4.12 (p. 81). 1.11

Apart from in the present passage the verb *elaqueare* ('to extricate from snares') is found only in Christian authors, for instance Prud. *Symm.* 2.146–147 *vincenda voluptas / elaqueanda animi constantia* ('pleasure must be overcome, strength of will unfettered', tr. Thomson). For *succinctus* 'light-armed' see ad 25.3.5 (p. 65). *Succinctis et levibus* is an instance of Amm.'s *abundantia sermonis*.

Danielus (*PLRE* I, Danielus) is only known from Amm. His precise function is not known; the *PLRE* suggests that he was *comes rei militaris*. Danielus is, together with Esaias (28.1.44, p. 89) and Iacobus (19.9.2), one of three biblical names in the *Res Gestae*. The tribune Barzimeres (*PLRE* I, Barzimeres) was of Germanic origin according to Waas, 1971², 91 and Lippold in *Gnomon* 46 (1974) 270. Humbach, 1968, 321 considers the name to be of Persian origin since it resembles the Persian personal name Burzmihr. Lenski, 2002, 179 n. 145 has the more likely suggestion that both men were of Ibero-Armenian origin. Barzimeres was killed by Goths in 377 when he was pitching camp at Dibaltum; 31.8.9–10. Amm. calls him a leader experienced in warfare (*eruditum pulvere militari rectorem*); apparently his experience did not help him to catch Papa, who managed to escape the ambush Barzimeres and Danielus had laid for him, as Amm. relates in the next sections. See for the *Scutarii* ad 20.2.5 (p. 21) and 25.10.9 (p. 327). According to Hoffmann, 1969–1970, vol. 1, 240–241 the archers were not a specific existing unit but an extraordinary division of the garrison in Cilicia, and partly recruited from the *sagittarii dominici* of Valens, whose presence is attested by funerary inscriptions in Seleucia in Cilicia; *CIG* 4.9207, 9230; cf. Lenski, 2002, 179 n. 145. Hoffmann considers the archers an infantry contingent, but infantrymen would not have been able to catch up with the swift horses of Papa and his companions. A cavalry unit or perhaps an infantry unit stationed in the region where the Armenians crossed the Euphrates, is therefore more likely. For *tribunus* see ad § 7 above.

- 1.12 *hi locorum gnaritate confisi, quia ille properans ut peregrinus et insuetus maeandros faciebat et gyros, compendiosis vallibus eius itinera praevenirent* Amm. opens this section with a Sallustianism: *Hist.* 3.84 *fiducia gnaritatis locorum* (also in 27.10.9), followed by a conspicuous borrowing from Gel. 16.8.17, noted by Hertz, 1874, 293 and Hagendahl, 1924, 172: *ne...tu quoque in illis dialecticae gyris atque maeandris* ('amid those mazes and meanders of logic', tr. Rolfe), *tamquam apud Sirenios scopulos* (cf. 29.2.14), *conseneskas*, in which Amm. uses the words *gyri* and *maeandri* in their spatial meaning. Remarkably, we find a very similar expression in Claud. *VI Cons. Hon.* 633–635, a description of military manoeuvres in honour of Honorius: *in varios*

docto discurritur ordine gyros, / quos neque semiviri Gortynia tecta iuveni / flumina nec crebro vincant Maeandria flexu ("The companies separate, wheeling and counter-wheeling with ordered skill, following a course more tortuous than the corridors of the Minotaur's Cretan palace or the reaches of Maeander's wandering stream", tr. Platnauer). For the *quia*-clause preceding the main clause see ad 29.1.24 (p. 38).

Unfortunately, it is not known to which region Amm. refers; possibly Osdroene, which Papa had reached by crossing the Euphrates (see ad § 8 above). Papa went in circles, because he was unacquainted with the region, which gave Danielus and Barzimeres the opportunity to outflank him and to set up roadblocks at points on the route which the Armenian king might take on his way north. *Compendiosis vallibus* is a vague and unparalleled expression. Ernesti's suggestion (in his *Glossarium Latinitatis* s.v. *compendiosus*) to read *callibus* is attractive. Cf. Mart. Cap. 3.263 *proposito igitur per compendiosos calles festina perfungar*.

et divisis inter se copiis clausere vias proximas duas trium milium intervallo distinctas, ut transiturus per utramvis caperetur improvidus; sed evanuit cogitatum hoc casu For *evanescere* "fere i.q. irritum reddi" see TLL V 2.996.26–71 and for *cogitatum* 'design' cf. Fron. Str. 2.5.31 *ne fremitu eorum cogitata proderentur*.

viator quidam ad citeriora festinans, cum bivium armato milite vidisset oppletum, per posterulam tramitem medium squalentem frutectis et sentibus vitabundus excedens The unnamed traveller was heading in the opposite direction of Papa on his way to the west bank of the Euphrates (*ad citeriora*). The words *bivium* and *per posterulam* make Amm.'s detailed description difficult to understand. The former is an almost certainly correct emendation of V's *vivum* by Henri de Valois. The *bivium* must be the place where the two roads, mentioned in the preceding section, met. Possibly, the traveller had seen the place filled with soldiers before Danielus and Barzimeres had divided their troops and blocked the roads separately. The other problem is *per posterulam*, a rare equivalent of *postica* 'back door' (TLL X 2.201.18 sqq.). Amm. may mean that the traveller avoided the two main roads issuing from the *bivium* and chose a hidden exit, which he called a *posterula*. That would make *tramitem* an apposition of *posterulam*, which is how Sabbah translates it: "(il) prit une voie écartée, une sente qui passait au milieu". What is certain is that Amm. again imitates Sallust: *Jug.* 38.1 (Iugurtha) *quasi vitabundus per saltuosa loca et tramites exercitum ductare*. For *squalere* and its derivatives, a favourite with Amm., see ad 21.14.2 (p. 218) and 22.15.22 (p. 276).

1.13

in Armenios incidit fessos et ductus ad regem arcano sermone solum, quae viderat, docet ac retinetur intactus For *arcanus sermo* ‘a confidential conversation’ cf. Liv. 42.17.4 *trahique magis quam vellet in arcanos sermones est coeptus*; Sen. Ben. 5.21.1 *Querar tamen cum eo, qui arcanum sermonem non continuerit*. It is best to take *solum* with *docet*; ‘he informed the king privately’.

- 1.14 *moxque metu dissimulato eques mittitur clandestinus ad dextrum itineris latus diversoria paraturus et cibum, quo paulum progressu in laevum tractum item alius talia facturus ire iubetur ocissime, alterum aliorum nesciens missum* Cf. Tac. Ann. 11.32.1 *dissimulando metum*; 15.69.2 *nihil metuens an dissimulando metu*. Papa evidently kept the information, that Roman troops were waiting for him, to himself. *Clandestinus* is used predicatively like other adjectives of manner such as *improvisus*, *obscurus*, *tacitus*; Kühner-Stegmann 1. 237; TLL III 1261.60–68. The prepositional phrase is somewhat misleading; *ad dextrum latus* or *ad iter dextrum* would have been clearer. For *ocissime* cf. 24.1.7 (p. 16) and 24.4.12. Although Fest. p. 181M writes *Ocius secundae collationis, et deinde tertiae ocissime frequentata sunt* (‘the comparative *ocius* and also the superlative *ocissime* are found frequently’) the only classical authors who use *ocissime* are Columella (once) and Pliny the Elder (14 times). The second horseman did not know that a colleague of his had been sent to the road on the right, just as the first man was definitely unaware that someone else was going to be sent to the road on the left. The measure was taken to prevent either of them from betraying Papa’s scheme.

- 1.15 *quibus ita utiliter ordinatis rex ipse cum suis dumeta, per quae venerat, viatore relegente retrorsus monstranteque hispidam et iumento onusto exiguam callem post terga relictis militibus evolavit* Cf. 23.1.5 *quibus ut convenerat ordinatis* and for the different shades of meaning of *ordinare* see ad 20.9.8 (p. 231) and 27.12.7 (p. 279). This is an extremely complicated sentence, in which the subject *rex ipse* is separated from the main verb *evolavit* by three ablativi absoluti consisting of no fewer than 20 words. Petschenig’s brilliant emendation of V’s *venat relegenter et rursus* is made even more convincing by the fact that *relegente retrorsus* was probably inspired by Verg. A. 3.690 *relegens errata retrorsus*. For *hispidus* ‘rough’ cf. Macr. Sat. 5.1.19 *terra...silvis et rupibus hispida*. The path was narrow, just wide enough for one pack-mule at a time. For *evolare* “accedente evadendi notione fere i.q. effugere” see TLL V 2.1065.21–50.

qui captis eius ministris missis ad mentes observantium praestringendas quasi venaticiam praedam modo non porrectis brachiis exspectabant Again a characteristic accumulation of participle constructions, the abl. abs. *captis ministris* (the two horsemen sent out by Papa) followed by the ptc. *coniunctum missis*. The horsemen themselves had acted on the supposition that they were Papa's quartermasters, but the real purpose of their mission is stated here. For *praestringere* 'to throw dust in someone's eyes' see ad 21.7.2 (p. 98) and for its derivative *praestrigiae* 'tricks' see De Jonge ad 17.5.11 (p. 155). The expression *venaticia praeda* is found only in Amm. (cf. 21.7.1, 29.3.3, 31.10.13). As is observed ad 21.7.1 (p. 96), the classical form of the adj. is *venaticus*. The detail *modo non porrectis brachiis* betrays the malicious delight with which Amm. reports the successful deception of Danielus and Barzimeres. For *modo non* 'almost', see ad 14.7.8 (p. 27) and 21.2.2 (p. 26). *Porrectis brachiis* is an unparalleled variation on *manibus porrectis* or *obviis manibus* (Hier. *epist.* 49.1 *amicum obviis, ut aiunt, manibus excipio*).

dumque hi venturum opperiuntur, ille regno incolumis restitutus et cum gaudio popularium summo susceptus fide pari deinde mansit immobilis iniuriis, quas pertulerat, omnibus demussatis It seems best to take *venturum* as a substantivized ptc. 'the man who was coming', i.e. Papa, referred to as *ille*. Amm. often writes *restituere in*; see ad 28.3.2 (p. 149). The construction with dat. is found only here in the *Res Gestae*; cf. Tac. *Ag.* 16.2 (Britannia) *quam unius proelii fortuna veteri patientiae restituit* ("the fortunes of a single battle restored it to its old submission", tr. Hutton). In *regno* both shades of meaning, 'kingship' and 'kingdom' are present. For the almost formulaic *mansit immobilis* see ad 25.3.9 (pp. 74–75). There is only one parallel for *demussare*, Apul. *Met.* 3.26 *demussata temporali contumelia* ("I swallowed the indignity for the time being", tr. Walsh); TLL V 1.519.34–36.

Note that Amm. goes out of his way to portray Papa in a flattering light. Whereas Terentius had suggested that Papa's subjects hated him (§ 4 *odio Papae speque, quod revertetur*), the king received a warm welcome on his return, a clear indication of his popularity among the common Armenians. As was mentioned above ad § 3, he enjoyed considerably less admiration from the *nakharar* lords. His esteem among the Christians cannot have been high either after he had killed Narses. Most of the Armenians, however, seem to have remained loyal to the old gods or had returned to the worship of the gods after the death of Narses (Ps. P'awstos Buzand 3.13, 5.31), like Papa himself, which helps to explain the king's popularity. His loyalty to Rome was unwavering (*fide pari deinde mansit immobilis*) and he even refrained from complaining about the treatment the Romans had given him. Lenski, 2002,

180 is justified in questioning whether Amm. can be trusted on this point since he “favored Pap just as much as he hated Valens and his generals”. It is fair to say that in the past his loyalty to Rome had been shaky, as his killings of Cylaces and Arrabannes and his overtures to Sapor demonstrate (27.12.14).

- 1.16 *Danielus post haec et Barzimeres, cum lusi iamiam revertissent, probrosis lacerati conviciis ac si inertes et desides ut hebetatae primo appetitu venenatae serpentes ora exacuere letalia, cum primum potuissent, lapso pro virium copia nocituri* The verb *ludere* is a simplex pro composito *eludere* ‘to dodge’ (TLL VII 2.1779.80–82), as in 26.8.3 (ni) *propere discedendo frustra sequentem lusisset*; 27.12.11 *mensibus quinque delitescentes regis multiformes lusere conatus*. For the geminatio *iamiam* see TLL VII 1.119.16–71, where it is noted that in Late Latin “saepius vix a simplice iam differt”. The form occurs only here in V. In 28.4.26, a desperately corrupt passage, Henri de Valois conjectured *ad exsequias virorum iamiam adventantes* for V’s *ad exsequias virorum fama iam adventantes*, where *iamiam* would have its most frequently attested meaning ‘any moment now’. Although in the present passage the meaning of *iamiam* is not clear, it seems prudent to leave the text as it stands. It would be in line with Amm.’s malicious mockery of the two generals to interpret it as: ‘as quickly as possible’, just like § 7 (ut) *vividius, quam venerant, remearent ad muros*.

For *lacerare conviciis* cf. 31.6.3 (Gothi) *lacerati...ad ultimum detestatione atque conviciis*. Amm. may have borrowed the expression from Valerius Maximus, the only classical author who uses it (4.4.11; 4.7.3; 5.1.2 ext.). *Ac si* is an equivalent of *quasi*; cf. 25.4.12 *dilectus artissime...ac si periculorum socius et laborum* (p. 136); TLL II 1083.76–1084.36. Hagendahl, 1924, 177 and 179 lists *inertes et desides* as an instance of Amm.’s *abundantia sermonis*.

Meurig-Davies, 1948, 221 aptly compares *ora exacuere letalia*, ‘they sharpened their deadly tongues’, with 30.4.13 *ora mercennaria procudentes*, ‘whetting their venal tongues’. For *exacuere* in this sense see TLL V 2.1138.77–1139.2. *Hebetare* ‘to make blunt’ is the opposite of *exacuere*. As TLL VI 3.2584.47 observes, *hebetatae* is a transferred epithet “de dentibus (audacius de ipsa bestia)”. In the comparison of Danielus and Barzimeres with serpents *primo appetitu* corresponds with their first attempt to capture Papa. After being outwitted by him, they renewed the attack, using venomous slander as their weapon. *Cum primum potuissent* represents *cum primum potuerimus* in oratio recta. For *labi* “fere i.q. effugere” see TLL VII 2.788.57 sqq., where it is observed that *lapsus* is a convenient substitute for the missing ptc. perf. of *fugere*.

et leniendi causa flagitii sui vel fraudis, quam meliore consilio pertulerunt, apud imperatoris aures rumor omnium tenacissimas incessabant falsis criminibus Papam For the meaning of *lenire* “to make to appear less serious” (OLD s.v. 4) cf. Tac. *Ann.* 2.29.2 *ne lenire neve asperare crimina videretur*. The term *flagitium* refers to the “disgrace” (OLD s.v. 3a) of the two generals, *fraus* to the trick, by which superior intelligence (*meliore consilio*) had outwitted them. For *incessare* ‘to attack’ (physically or verbally) see ad 24.2.11 (p. 52). Valens resembled Constantius in the eagerness with which he listened to rumours and insinuations; cf. 31.14.6 *criminantibus sine differentia veri vel falsi facillime patens* and see ad 29.1.20 (p. 34). 1.17

incentiones Circeas in vertendis debilitandisque corporibus miris modis eum callere fingentes The only other author who uses *incentio* is Gellius. It means more than just “the playing of music” (OLD s.v.); it is the equivalent of ἐπιμαγεία and has the connotation of ‘magical incantation’, as the instances in Gellius show: 4.13.3 *docet* (Democritus) *plurimis hominum morbidis* (or rather *morbis*?) *medicinae fuisse incentiones tibiarum*; 16.11.2 about the Marsi: (ut) *serpentium virulentorum domitores sint et incentionibus herbarumque succis faciant medelarum miracula*. The unparalleled adj. *Circeas* is Gelenius’ admirable emendation of V’s *cireas*. Circe is the sorceress par excellence: August. *civ.* 18.17 calls her *illa maga famosissima*. Like Circe, who put the companions of Odysseus under her spell with her incantations and then changed them into pigs (*Od.* 10.237–240), Papa, according to Danielus and Barzimeres, had used magic to conceal himself and his men in a cloud of darkness under which they were able to escape the roadblocks which had been set up. Danielus and Barzimeres clearly blackened Papa’s reputation as much as possible in order to cover up their incompetence in trying to capture the Armenian king. Their accusations may reflect Papa’s paganism in association with the idea that he was possessed by demonic powers (*dews*) since his birth: Ps. P’awstos Buzand 5.22; Blockley, 1975, 65 n. 30; Lenski, 2002, 179–180. It is clear what is meant by *vertendis*, but what about *debilitandis*? Ad 29.1.17 (p. 30) it is argued that *debilis* and its derivatives can denote different forms of mutilation, such as blinding or laming, which would be an acceptable interpretation here, too. For *miris modis* cf. *ad perstringendum fallendumque miris modis ab aetatis primitiis callens* (21.3.5, p. 39). For *callere* with acc., ‘to be an expert in’, cf. 15.7.8 *fatidicarum sortium fidem quaeve augurales portenderent alites scientissime callens* and 22.16.17 *pauci...scientiam callent, quae fatorum vias ostendit*.

addentesque, quod huiusmodi artibus offusa sibi caligine mutata sua suorumque forma transgressus tristes sollicitudines, si huic irrisioni superfuert, excitabit For *quod*-clauses with ind. fut. see ad 20.8.10 (pp. 197–198). With *huiusmodi artibus* magical practices are meant, called *artes pravae* in 21.1.7 (p. 13, where also other terms are listed). For *offundere caliginem*, both literally and metaphorically, cf. Curt. 9.5.28 *caligine oculis offusa velut moribundus extendi* (coepit) (“darkness veiled his eyes and he lay stretched out as if he were dead”, tr. Rolfe) and Cic. *Tusc.* 5.6 *hic error et haec indoctorum animis offusa caligo*; TLL IX 2.531.67–532.17. Invisibility is an epic motif since Homer: *Od.* 7.14–15 ἀμφὶ δ' Ἀθήνη / πολλὴν ἥερα χεῦε, Verg. *A.* 1.411–413 *at Venus obscuro gradientis aere saepsit / et multo nebulae circum dea fudit amictu, / cernere nequis eos neu quis contingere posset*. The expression *mutata forma* (here abl. abs.) is the Latin equivalent of μεταμόρφωσις: Ov. *Tr.* 1.1.117 *sunt quoque mutatae, ter quinque volumina, formae*. Making himself and his companions invisible would have been enough for Papa to give the Romans the slip; the superfluous addition of the transformation makes the report of Danielus and Barzimeres, by which they tried to conceal their incompetence, even less convincing.

In other instances of *transgredi* (‘to cross’, ‘to pass’) without object, the context makes the meaning immediately clear: 17.1.2 *ponte compacto transgressus*; 24.1.16 *miles ad ulteriorem ripam nullo urgente transgressus*. In the present text the meaning must be ‘to pass’ (sc. the Roman troops lying in wait for Papa), as in Tib. 2.1.75–76 *Hoc duce custodes furtim transgressa iacentes / ad iuvenem tenebris sola puella venit*, “he (Cupido) guides the girl who stealthily steps by prostrate watchers and comes alone to her lover in the night”, tr. Postgate. The only parallel for *tristes sollicitudines* is Ps. Quint. *Decl.* 4.3 *tristes sollicitudines et praescii metus*. In TLL VII 2.422.67 *irrisio* is defined as “risus contemptationis”, ‘derision’; cf. Cic. *Ver.* 4.144 *non laudationem sed potius inrisionem esse*.

- 1.18 *Hinc in illum inexplicabile auctum principis odium et doli struebantur in dies, ut per vim ei vel clam vita adimeretur* The adv. *hinc* denotes the result of the blackening of Papa by Danielus and Barzimeres. For the ellipsis of *est* after *auctum* see Blomgren 68–79. The adj. *inexplicabile* ‘implacable’ is a so-called proleptic secondary predicate (*odium auctum est ita ut inexplicabile fieret*). Szantyr 414 quotes another example of this use in Amm: 17.13.8 *conferti acieque densiore contracta*. For *struere dolum* (*dolos*) cf. Sen. *Her. O.* 1468 (Nessus) *hos struxit dolos* and Tac. *Ann.* 4.68.2 *compositum inter ipsos, ut Latiaris...strueret dolum*. There is a note on the Sallustianism *curare* denoting military command ad 29.4.3 (p. 140).

agentique tunc in Armenia Traiano et rem militarem curanti id secretis committitur scriptis For Traianus (PLRE I, Traianus 2) see the note ad 29.1.2 (pp. 4–5). As is argued there, he probably held the post of *comes rei militaris*. Terentius could not be kept in his position because Papa knew that he was plotting against him. He retired most likely in 374; Lenski, 2007, 114.

qui illecebrosis regem insidiis ambiens et modo serenae mentis Valentis indices litteras tradens, modo ipse sese eius convivii ingerens 1.19 This is the only instance of metaphorical *ambire* ‘to entrap’ in the *Res Gestae*. Cf. Verg. A. 7.333–334 *neu conubiis ambire Latinum / Aeneadae possint* with Horsfall’s note. For *serenus* “full of calm assurance, cheerful” (OLD s.v. 3) cf. 21.13.9 (Constantius addresses his troops) *ad serenitatis speciem et fiducia vultu formato*; Sil. 16.191–192 (king Syphax greets Scipio) ‘*quam te, Dardanide pulcherrime, mente serena / accipio intueorque libens*’; Claud. III Cons. Hon. 182–183 (about Arcadius and Honorius) *qui mente serena / maturoque regunt iunctas moderamine gentes*, “who with tranquil mind and ripe control rule over allied peoples” (tr. Platnauer). For *indices litteras* cf. Pan. 12.15.1 *litteras calamitatum suarum indices*; Ennod. *epist.* 1.23 *animorum indices epistulas*. The verb *se ingerere* has the connotation of importunity, as in 17.12.16 *ingerebat autem se post haec maximus numerus catervarum confluentium nationum et regum*, Plin. Pan. 86.2 *praefectum praetorio non ex ingerentibus se, sed ex subtrahentibus legere*, “a prefect for the praetorian guard was chosen not from those who put themselves forward but from those who held back” (tr. Radice) and Sidon. *epist.* 5.20.3 *impudentia sese ingerentum*. Traianus presented himself at Papa’s banquets uninvited (*ipse*).

ad ultimum composita fraude ad prandium verecundius invitavit One may wonder whether *componere* here means ‘to devise’, as in Prop. 2.9.31 *sed vobis facile est verba et componere fraudes* (“but it is easy for girls like you to contrive excuses and deceits”, tr. Goold) or ‘to plan’, as in Liv. 26.12.16 *Numidas fraude composita transisse* (“that the Numidians had pretended to change sides”, tr. Moore). This is how translators generally interpret it, e.g. Hamilton: “when his plans had matured”, Sabbah: “après avoir arrangé la trahison”. It seems slightly more in line with the emphasis on treachery (*illecebrosis...insidiis ambiens*) to take *composita fraude* as an abl. of manner, in which *composita* is used adjectivally strengthening the notion of deceit in *fraude*. This is how Sabbah translated the phrase in the letter addressed to Constantius by Sapor, 17.5.6 *Armeniam recuperare cum Mesopotamia debeo avo meo composita fraude praereptam*, “arrachée à mon aïeul par tromperie (*composita*) et déloyauté” (*fraude*). Taken in this sense *composita fraude*

goes with *verecundius* 'respectfully', for which cf. 31.2.23 *Martem...praesulem verecundius colunt*; in both places the comparative is used c.c.

After he had convinced Papa that he had nothing to fear from Valens, Traianus could execute his plan to murder the Armenian king. He invited him as a guest of honour to a banquet in Armenian style. In Armenian society social rank was displayed by the way the seats were assigned: Garsoïan, 1976, 30–31; 1981, 56–63. Since Papa was allotted the seat of honour he must have thought that he had nothing to fear. For the killing of adversaries of Rome during meals, see ad 29.6.5 (p. 230) and Lee, 2009. To the examples mentioned there can be added the remarkable story told by Livy (39.43.4) about Flamininus who, to impress the harlot Placentia with whom he was desperately in love, beheaded a convict while he was having dinner with her: *inter pocula atque epulas, ubi libare diis dapes, ubi bene precari mos esset, ad spectaculum scorti procacis, in sinu consulis recubantis, mactatam humanam victimam esse et cruore mensam respersam*. The *prandium* (also in 14.6.15) was the meal that Romans usually had around midday, i.e. at approximately the sixth hour of the day (e.g. Tac. *Ann.* 14.2.1; Suet. *Aug.* 78.1, *Cl.* 34.2), and sometimes at the fourth or fifth hour (Sidon. *epist.* 4.8.3, *carm.* 23.488 ff.); Hug, 1954. However, *prandium* is also used as a general designation for any kind of meal; see Vössing, 2004, 187, according to whom Amm. uses the word in this general meaning (188, n. 6).

qui nihil adversum metuens venit concessoque honoratiore discubuit loco For *adversus* 'hostile' cf. 14.11.5 *ne quid suspicaretur adversi*; 21.12.1 *nihil a tergo timens adversum*. As these parallels show, Amm. does not always obey the classical rule which prescribes the use of the gen. part. in such phrases for second declension adjectives; see ad 20.4.15 (p. 89).

- 1.20** *cumque apponerentur exquisitae cuppediae et aedes amplae nervorum et articulato flatilique sonitu resultarent* For *articulare* used of the human voice see TLL II 690.65 sqq. Cassiod. *in psalm.* 80.3 distinguishes three types of musical instruments: *Secunda partitio instrumentorum...est in percussionalia* (percussion), *in tensibilia* (strings), *in flatilia* (wind instruments); Cic. *S. Rosc.* 134 *cotidiano cantu vocum et nervorum et tibiarum*; Liv. 39.10.7 *in locum qui circumsonet ululatibus* (song) *cantuque symphoniae* (wind instruments and strings) *et cymbalorum et tympanorum pulsu* (percussion). In 14.6.18 (domus) *vocabili sonu perflabili tinnitu fidium resultantes* only song and wind instruments are mentioned. On musical instruments in Antiquity see Wille, 1967 and Comotti, 1989, 56–76.

iam vino incalescente ipso convivii domino per simulationem naturalis cuiusdam urgentis egresso The first abl. abs. *incalescente domino*, for which cf. Tac. Ann. 14.2.1 *cum id temporis Nero per vinum et epulas incalesceret*, is subordinated to the second (*domino*) *egresso*. Traianus pretends that he has to obey a call of nature. As OLD s.v. 2 observes, *natura* is often used euphemistically for the genitals or the excretory outlets, as in 23.6.79 *nec stando mingens nec ad requisita naturae secedens facile visitur Persa*. As TLL IX 1.190.58 (cf. 191.2–3) correctly observes, the adj. *naturalis* is used here “pro substantivo”.

gladium destitutum intentans torvo lumine ferociens quidam immittitur barbarus asper ex his, quos scurras appellant The many descriptive details result in a frightening picture. For *intentare* cf. Suet. Jul. 14.2 (*manus equitum strictos gladios...intentans*). Elsewhere Amm. uses *intentare* with an abstract object like *minas* (15.4.9) or *mortem* (15.5.37). The phrase *torvo lumine* is found frequently in poetry since Vergil used it in A. 3.677–678 of the one-eyed Cyclopes: *cernimus astantis nequiquam lumine torvo / Aetnaeos fratres*. Cf. 15.12.1 (Galli) *luminumque torvitate terribiles* and 31.7.11 (Romans and Goths) *torvitate mutua bellatores luminibus se contuebantur obliquis*. The verb *ferocire* is a good example of an archaic word (Paul. Fest. p. 92M *ferocit apud Catonem ferociter agit*), brought back to life by Gellius (1.11.15 [ut] *orationem eius erigeret aut ferocientem saevientemque cohiberet*) and Apuleius (*Met.* 9.2 *ratique me etiam eadem peste infectum ferocire*), and used eight times by Amm., e.g. 14.9.9 *ferociens Gallus ut leo cadaveribus pastus*. Wagner convincingly conjectured *scurras* for V's *supras*. As he observes in passing, the correct interpretation of *scurra* as *satelles* was given by Salmasius in his learned note ad HA AS 61.3 *unus ex Germanis qui scurrarum* (Hohl *scutarium*) *officium obtinebat*. For these barbarians, who were employed to execute questionable business, see ad 29.4.4 (pp. 141–142). Viansino aptly compared Greg. Naz. Or. 5.13 τῶν γελοιωστῶν βαρβάρων τινὰ τοῦτο τολμήσαι οἱ τοῖς στρατιώταις ἔπονται, λύπης τε ψυχᾶγωγία καὶ πότοις ἡδυσμα (‘one of the barbarian buffoons dared to do this, who follow the soldiers to amuse them when they are sad and give zest to their drinking-bouts.’).

confossurus iuvenem, ne exsilire posset etiamtum praepeditum V reads *confossuros iuvenem exsilire posset etiamtum inpraepeditus*. The ptc. fut. is used in a final sense, as is usual since Livy, especially after verbs of movement; cf. 20.9.9 *notarius Bononiam mittitur observaturus* and see ad 20.2.2 (p. 13). Gelenius' insertion of *ne* before *exsilire posset* seems as indispensable as his conjecture *praepeditum* for *inpraepeditus* is unnecessary and even mis-

guided, although it has been accepted by all editors and translators. Firstly, it spoils the *cursor velox etiámrum inpraepeditus* (cf. 18.2.5 *etiámrum interurbánte*), and secondly, *etiamrum* becomes unclear. As was stated ad 30.1.2, the adverb means 'still (at that time)'. With *praepeditum* the sentence would mean 'the barbarian was sent in to kill the young man, who at that time was still cut off from any possibility to escape', which raises the unanswerable question when precisely the young man would have had a chance to escape. With *inpraepeditus* we get 'to kill the young man in order to prevent him from escaping while he was at that time still free (unhindered) in his movements', which is perfectly understandable, because the reader knows that the king is doomed. The verb *exsilire* could mean 'to escape', as in 30.4.13 (if a man has fallen into the pits of the courts) *non nisi per multa exsiliet lustra* (TLL V 2.1863.63–64) or 'to rise up', as in 29.4.5 *exsiliente lucifero*. The former interpretation suits the context better. For *inpraepeditus* see ad 30.2.4 (pp. 36–37).

- 1.21 *quo viso regulus forte prominens ultra torum expedito dolone assurgens, ut vitam omni ratione defenderet, perforato pectore deformis procubuit victima multiplicatis ictibus foede concisa* TLL X 2.1850.35 s.v. *promineo* quotes the opening words of this section adding ("sc. ut intrantem conspiceret"), which does not tally with *forte*. The meaning is rather "as it happened, (he) was leaning forward beyond his couch" (tr. Rolfe). Although the same verb is used, the scene in Sen. *Suas.* 6.17, describing the murder of Cicero, is very different: *prominenti ex lectica praebentique immotam cervicem caput praecisum est*, since Cicero deliberately offered his neck to Antony's soldiers. Ps. P'awstos Buzand 5.32, quoted below, adds the detail that the dagger was strapped to Papa's right thigh. The alliteration *perforato pectore...procubuit* as well as *deformis* and *foede* adds pathos to the scene. For *procumbere* in the context of sacrifice see TLL X 2.1567.22–27, where Luc. 7.596 is quoted: *Vivat et, ut Bruti procumbat victima, regnet* ("Let him [Caesar] live to reign; and then let him fall a victim to the dagger of Brutus", tr. Duff). Ps. P'awstos Buzand 5.32, whose report is close to that of Amm., although it also has some remarkable differences, has the following story about Papa's murder: Papa was invited by Terentius (not by Traianus) to a banquet in the general's tent. While Papa was feasting, soldiers surrounded him on all sides; when he was given a festive cup of wine and music was played by drummers, flutists, lyre-players and trumpeters, the sign was given to kill the king: "And while King Pap held the festive cup of wine...as he reclined to the left, leaning on his elbow and holding the golden cup in his hand, while his right hand rested on the hilt of the dagger strapped to his right thigh; at the very moment that

he put the cup to his mouth to drink...the command was given by a glance to the Greek soldiers. Then, two of the axe-bearing legionnaires with gold-embossed shields...suddenly lifted up their axes and simultaneously struck King Pap. One struck straight at the neck with his axe, while the other axeman struck at his right hand placed on the hilt of the dagger, cut it off, and struck it aside. King Pap fell prone on the spot" (tr. Garsoïan). Ps. P'awstos Buzand is the only source which gives the name of the place where Papa was killed: "Xu in the district of Bagrawand". Movsēs Xorennac'i 3.39 has quite another story: Papa, whose reign is dated in the time of Theodosius I, is said to have rebelled against the emperor because of his slaughter of the inhabitants of Thessalonica. The king expelled Terentius from Armenia and began to prepare for war. On the orders of Theodosius Terentius returned and unexpectedly fell on Papa's camp. He captured the king and sent him to the emperor. Theodosius had him put to death.

The murder of Papa most probably took place in 375. In his fundamental chronological reconstruction of Valens' dealings with Persia and Armenia, which we follow in this commentary, Lenski, 2007, 115–116 argues that at least a year must have passed after Papa's escape from Tarsus. Traianus needed this time to placate Papa, and to mollify his anxieties and gain his trust before he could invite him to the *prandium* where he was killed. In May 375 Valens moved to the Tigris, as we know from Them. Or. 13, 163 c, 166 a and 168 c, possibly to be close at hand when Papa was replaced by a Roman nominee as king of Armenia. Another indication for the date are the words *hieme iam extrema* in 30.2.3 which refer to the winter after Papa's assassination, which must be the winter of 375–376 according to the chronological reconstruction of Lenski. Also Blockley, 1987, 226 and Greatrex, 2000, 38 date Papa's murder to 375. On the other hand PLRE I, Papa; Gutmann, 1991, 182; Demandt, 2007², 149 and Barnes 41 date the killing to 374.

In 31.1.3 Amm. remarks that many were haunted by the ghost of the Armenian king as well as by the ghosts of those executed in the Theodorus affair, thereby indicating that these killings were outrageous crimes: *super his larvale simulacrum Armeniae regis et miserabiles umbrae...in negotio Theodori caesorum...multos diris terroribus agitabant*.

hocque figmento nefarie decepta credulitate inter epulas, quae reverendae sunt vel in Euxino ponto hospitali numine contuente For the post-classical noun *figmentum*, found fifteen times in Amm., see ad 22.9.7 (p. 163) and 29.6.4 (pp. 229–230). *Nefarie* implies strong condemnation: by referring to the Pontus Euxinus Amm. emphasizes Traianus' treachery and the violation of the rules of hospitality. Even on the shores of this sea, which inter

alia because of the savage peoples living there (22.8.33–34, pp. 126–129) was initially called Πόντος ἄξεινος ('inhospitable sea') by the Greeks, and later euphemistically renamed εὐξείνιος—see the note ad 22.8.1 (p. 92)—, hospitality was respected. Cf. 29.6.5 about the murder of Gabinius *hospitalis officii sanctitate nefarie violata* (p. 230) and see ad 29.5.22 (p. 182). As is usual in Amm., the Greek word *Euxinus* has an accent derived from the Greek: *Eúxino pónto*, cf. *Eúxinos appellátur* in 22.8.33. Amm. uses *numen* normally in a henotheistic sense, adding adjectives such as *magnus*; see ad 25.8.3 (p. 256), 26.1.5 (p. 20) and 27.3.15 (p. 76). Despite the, no doubt intentional, juxtaposition of *Euxino ponto* and *hospitali* the adj. must be taken with *numine*. Traianus had his guest killed under the eyes of Ζεὺς Ἐεῖνιος or Jupiter Hospitalis; cf. Cic. *Deiot.* 18 *Iovis ille quidem hospitalis numen numquam celare potuisset*.

peregrinus cruor in ambitiosa lintea conspersus spumante sanie satietati superfuit convivarum horrore maximo dispersorum Here Amm. aims at the literary effect of ἔκπληξις 'shock' on the reader, by adding qualifications which are factually superfluous, but arouse pity and put the frightening scene vividly before the reader, such as *peregrinus*, *ambitiosa*, *sanie spumante* and *maximo*. The effect is heightened by the contrast *conspersus*—*dispersorum* and the fourfold alliteration with *s*, noted in Petschenig, 1897, 560. For *ambitosus* 'costly', 'ostentatious' see De Jonge ad 14.7.6 (p. 22). *Lintea* is a conjecture by Adrien de Valois. It comes closer to V's *lain et* than his brother Henri's *lectos* and Gronovius' *lances*. For the abl. abs. *spumante sanie* cf. Sil. 6.12 *spumans sanie lacus*. The expression *satietati superfuit* is in all probability borrowed from Cic. *Ver.* 13 *tantum quisque habet..., quantum hominis...satietati superfuit*, but it looks suspiciously as if Amm. did not properly understand its meaning: "none of them has anything left except what...remained over when his (Verres') greed was glutted" (tr. Greenwood). Similar misinterpretations were noted ad 29.3.1 *vertenti stilum* (p. 118) and 29.5.42 *inusserat monumenta* (p. 202). The horrifying spectacle was more than the table companions could stomach, so that they scattered in horror.

ingemiscat, si quis vita digressis est dolor, huius arrogantiam facti Fabricius ille Luscinus sciens, qua animi magnitudine Democharen vel, ut quidam scribunt, Niciam ministrum reppulerit regium colloquio occultiore pollicitum, quod Pyrrhum Italiam tunc bellis saevissimis exurentem veneno poculis necabit infectis, scripseritque ad regem, ut a citeriore caveret obsequio Henri de Valois aptly quotes Liv. 21.53.5 'quantum ingemiscant' inquit 'patres nostri circa moenia Carthaginis bellare soliti, si videant nos' eqs. As so often, the

comparative *occultiore* is used c.c. For *exurere bellis* cf. Tac. *Ann.* 6.12.3 *post exustum sociali bello Capitolium* and Sil 1.678 *exuri bello Carthaginis arva iubebat*. Petschenig's emendation *ut a citeriore* for V's *via exteriore* is certainly right. For Amm.'s idiosyncratic use of *citerior* 'private' see ad 27.10.4 (p. 229). For the abstractum pro concreto *obsequium* ('attendant') see ad § 4 above.

This is the third time that C. Fabricius Luscinus is referred to in the *Res Gestae*; he was mentioned earlier in 24.3.5 (in the plural *Fabricii*, pp. 81–82) and 24.4.24 (p. 134). He was consul in 282 and 278, censor in 275, and served as a model of incorruptible integrity; see further for him ad 24.3.5 (pp. 81–82; add to the literature mentioned there Berrendonner, 2001 and Vigourt, 2001).

Pyrrhus (319–272 BC), king of Epirus, who assisted the Tarentines in their struggle against Rome and campaigned in Italy in the years 280–275, is also mentioned in 16.10.5 and 24.1.3 (p. 11). For Amm.'s use of historical exempla see Blockley, 1994 and Wittchow, 2001. Roth, 2010, 190–194 has the interesting observation that Amm. refers to Pyrrhus because, firstly, it offers him the opportunity to create an image of an idealized past which even in times of crisis was characterized by the nobility of human interaction and secondly, to construct a symbiosis between the Greek and the Roman world: the Romans could learn from the Greeks, as in the case of Julian who learned from Pyrrhus how to choose a suitable place for his camp (24.1.3), and the Romans could impress their Greek opponents by their honorable conduct.

The story told by Amm. about the offer to poison Pyrrhus and Fabricius' response can be found with slight variations in Cicero, Gellius and Plutarch. Cic. *Off.* 3.86 *cum enim rex Pyrrhus populo Romano bellum ultro intulisset cumque de imperio certamen esset cum rege generoso ac potente perfuga ab eo venit in castra Fabricii eique est pollicitus si praemium sibi proposuisset se ut clam venisset sic clam in Pyrrhi castra rediturum et eum veneno necaturum. hunc Fabricius reducendum curavit ad Pyrrhum idque eius factum laudatum a senatu est*. Gel. 3.8 has two versions of the story. According to the one version, which Gellius says he derived from the history of Valerius Antias, a certain Timochares (Amm.'s Demochares), friend of Pyrrhus, came in secret to Fabricius and offered to poison the king in return for a reward. Fabricius notified the Senate, which sent envoys to Pyrrhus to warn him that he should be on his guard against treachery of those nearest to him. According to the other version, based on Quadrigarius, it was a certain Nicias who approached Fabricius. The latter, with his colleague Quintus Aemilius, sent a letter to Pyrrhus informing him about Nicias' offer to kill him. They let the king know that they had declined Nicias' offer since they would rather defeat

him on the battlefield, and because they had no desire to make war by means of bribes, rewards or treachery. To show his gratitude for this revelation Pyrrhus returned the Roman prisoners of war.

The pedantic alternative *vel, ut quidam scribunt, Niciam* makes it practically certain that Gel. 3.8.5 was Amm.'s source for this anecdote, as Kelly 274 and Roth, 2010, 190 rightly observe. In his n. 57 Kelly adds the interesting suggestion that the change from Timochares to the aurally similar Demochares may indicate that Amm. had heard the name rather than read it. The name Demochares is much more common than Timochares. Amm. knew Fabricius' cognomen Luscinus probably from Cic. *Parad.* 50 *ne semper Curios et Luscinos loquamur* or V. Max. 1.8.6; see ad 24.4.24 (p. 134).

Plut. *Pyrrh.* 21 reports that Pyrrhus' physician offered by letter to poison the king in return for a reward. In response Fabricius and his colleague sent a letter to Pyrrhus urging him to be on his guard against the plot of his physician. In this letter the consuls call themselves honourable and just, and they remark that they do not want to win the war against Pyrrhus by treachery. Pyrrhus punished the physician and to express his thanks returned the Roman prisoners of war.

tantum reverentiae locum apud priscam illam iustitiam vel hostilis mensae genialitas obtinebat For locus 'status' cf. 21.15.4 *locum obtinentes in aula regia primum* and 21.16.8 *fas...eodem loco ducens et nefas*. The noun *genialitas*, glossed as "festivitas", "jucunditas" in Forcellini, is found only here and in Symm. *Ep.* 4.27 *quid si vos una ad mensae genialitatem vocarem?* The phrase *vel hostilis mensae genialitas* is extremely compressed: 'the festive character of the table, even when the guest is an enemy'.

- 1.23 *verum excusabatur recens inusitatum facinus et pudendum necis exemplo Sertorianae* The adj. *inusitatus* is a vox media. Here it is used in malam partem, as in 14.7.14 *tumore inusitato quodam et novo* and Sen. *Phoen.* 264–265 *facinus ignotum efferum / inusitatum effare quod populi horreant*. For Q. Sertorius (123–73 B.C.) see the note ad 26.9.9 (p. 258); he is also mentioned in 24.6.7 (p. 182). Sertorius was killed by Perpenna at a banquet: Vell. 2.30.1 *Tum M. Perpenna praetorius, e proscriptis, gentis clarioris quam animi, Sertorium inter cenam Oscae interemit*; see also Plut. *Sert.* 26.10–11 and Flor. *Epit.* 2.10.9.

adulatoribus forsitan ignorantibus, quod, ut Demosthenes, perpetuum Graeciae decus, affirmat, numquam similitudine aut impunitate alterius criminis diluitur id, quod contra ac liceat arguitur factum See ad 29.5.23 (p. 185) for *forsitan ignorantibus* and similar expressions. For *decus* cf. Hor. *Carm.* 1.1.2 *o*

et praesidium et dulce decus meum; Sal. *Rep.* 2.13.1 *o Caesar nos te genuimus fortissimi viri in optima urbe decus praesidiumque nobis hostibus terrorem*; Gel. 19.8.6 *Plautus, linguae Latinae decus*. Demosthenes (384/3–322 B.C.) is also mentioned in 30.4.5; see for him e.g. Worthington, 2000; MacDowell, 2009. Amm. is referring to *In Androt.* 7: οὐ γὰρ εἴ τι πώποτε μὴ κατὰ τοὺς νόμους ἐπράχθη, σὺ δὲ τοῦτ' ἐμιμήσω, διὰ τοῦτ' ἀποφεύγοις ἂν δικαίως, ἀλλὰ πολὺ μᾶλλον ἀλίσκοιο, “if the practice has at any time be contrary to the laws and you have only followed precedent, you cannot for that reason in fairness escape, but ought all the more to be convicted” (tr. Vince). Quint. *Inst.* 5.14.4 quotes Demosthenes in a Latin translation: ‘*non enim, si quid umquam contra leges actum est idque tu es imitatus, idcirco te convenit poena liberari, quin e contrario damnari multo magis.*’ Gel. 10.19.3 quotes Demosthenes verbatim in Greek. As Hertz, 1874, 279 saw, Gellius is Amm.’s source for the passage of Demosthenes. Amm.’s Latin translation is far less precise than that of Quintilian; ‘paraphrase’ would be a better word for it. Especially the words *similitudine aut impunitate* are unclear. Demosthenes had said that imitation of an unlawful deed in the past should not lead to impunity in the present, but rather to a more severe punishment.

CHAPTER 2

Introduction

This is a strange chapter; in the first part Ammianus deals with Valens' negotiations concerning Armenia and Hiberia with the Persian king Sapor, who was evidently asking too much. These diplomatic exchanges took place over a period of two years—the years 375–377; see Lenski, 2007, 116. In the end the problems could only be solved by military operations. The Romans had prepared themselves well, and successes seemed to come easily, but then, all of a sudden, everything went wrong. Priority had to be given to the dangers posed by a Gothic invasion into Thrace.

The second, smaller, part contains a comparatively detailed report of the tracking down and consequent death of Remigius, accomplice of the Roman general Romanus during the latter's criminal career in Tripolis, dealt with in chapter 6 of book 28. The death of Remigius proves the vigilance of the Lady Iustitia, who in the end punishes all evil. It is noteworthy that Adrien de Valois, who introduced the division into chapters in his edition of 1681, does not pay any attention to this second part in his brief description of the contents of the present chapter.

Haec per Armeniam notabiliter gesta sunt This refers to the events described in the previous chapter. Instances of the adverb *notabiliter* 'noteworthy' are rare; this is the only occurrence in Amm. It can here be explained as a disjunct rather than as expressing manner: the author does not state that his report in the previous chapter concerned the remarkable way in which the events took place, but rather that they were noteworthy as such. Another example may explain this: when Perpetua arrived in paradise, she was welcomed by the following words of the Shepherd: '*bene venisti, tegnon*', which do not mean 'you came in a good manner', but 'it is good that you came' (*Perp.* 4.9). See Kühner-Stegmann 1.793, Pinkster I 10.2.1.2. 2.1

Sapor vero post suorum pristinam cladem comperto interitu Papae, quem sociare sibi impendio conabatur, maerore gravi percussus augenteque nostri exercitus alacritate formidinem maiora sibi praeseminans See for *vero* marking a change of topic ad 26.9.1 (p. 242) and 27.8.5 (p. 193). For the Sasanid ruler Sapor (*PLRE* I, Sapor II), who had already become king in 309/10 and

died in 379, see ad 20.6.1 (pp. 134–135), 25.7.6 (p. 229) and 27.12.1 (p. 268). It is not quite clear to which defeat the *pristina clades* refers, but Amm. was probably thinking of Sapor's defeat at Vagabanta in 371 at the hands of a Roman army under the command of Traianus and Vadomarius, described in 29.1.3 (pp. 5–7). The murder of Papa, which most probably took place in 375, is described in §19–20 of the previous chapter. For Sapor's attempts to get Papa on his side see 27.12.14 (pp. 288–289). Note that the author does not use the pluperfect *conatus erat*, which the reader may have expected: the imperfect expresses that at the time of the murder Sapor was still trying to win over king Papa. Amm. has a predilection for *impendio*, 'greatly'; see ad 20.7.1 (p. 154). He also often mentions the emotional reactions of rulers, such as anger, disappointment and irritation. In the present text Sapor's fear as to the possible effects of the murder was further exacerbated by the excellent morale of the Roman soldiers. This led to his preparation of even more ambitious projects (*maiora*). This is Amm.'s only instance of *praeseminare*, a rarely used agricultural metaphor.

The increased military activity of the Romans possibly refers to Traianus' actions in Armenia after he had succeeded Terentius in 374 (30.1.18 [p. 21]). The loss of Persian influence in Armenia, the murder of Papa and his replacement by a Roman nominee by the name of Varazdat (*PLRE* I, Varazdat), as Ps. P'awstos Buzand 5.34 and Movsēs Xorenac'i 3.40 inform us, clearly troubled Sapor. Since he realized that military action would be extremely risky, he intensified his diplomatic negotiations with the Romans; for diplomacy in general see Matthews, 1978; Helm, 1979; Eilers, 2009.

- 2.2 *Arrace legato ad principem misso perpetuam aerumnarum causam deleri penitus suadebat Armeniam, si id displicuisset, aliud poscens, ut Hiberiae divisione cessante remotisque inde partis Romanae praesidiis Aspacures solus regnare permetteretur, quem ipse praefecerat genti* Curiously, Amm. mentions the name of Sapor's negotiator, but without any further information about him (*PLRE* I, Arraces); he is not known from other sources either. For *princeps* (and *principatus*) denoting the emperor see the notes ad 20.2.1 (p. 10), 20.4.8 (p. 71) and 20.4.12 (p. 81). Since Papa was in all likelihood killed in 375, the embassy of Arraces probably took place late in 375; Lenski, 2007, 116.

Sapor is made to present his proposal as wise advice (*suadebat*), suggesting the radical elimination of the cause of the discord, viz. Armenia. One can hardly assume that Sapor proposes the total destruction of Armenia; *deleri* should only be combined with *causam*: see for other examples of *delere* with various "res incorporeae" as Patiens TLL V 435.29–50. This solution is possible, but also slightly unsatisfactory in that the content of Sapor's idea is not

mentioned. Hence Wagner's suggestion *deseri*. The *Agens* is not mentioned explicitly, but from Sapor's alternative one may conclude that he intends to invite the Romans to leave Armenia. Nevertheless, V's *aerumnarum causam deleri* returns explicitly in the next section: *semina radicitus amputari discordiarum*.

The alternative concerns Hiberia. According to the traditional rules the subj. pluperfect *displicuisset* is 'oratio obliqua' of 'oratio recta' fut. ex. *displicuerit: si id tibi displicuerit, posco aliud*, viz. the recognition of Aspacures as the sole ruler of Hiberia, for which see ad 27.12.4 (pp. 273–274). The ind. *praefererat* is probably an example of a rule in classical Latin: *quem ipse praefererat* is not part of Sapor's words, but an explanatory note of the author, who reminds the reader of the information in 27.12.4 (p. 274). Cf. for *cessare* denoting the end of a situation 23.6.82 *olim recepta consuetudo cessavit*.

Of course Sapor must have known that Valens would not pull out of Armenia since the Roman emperor had the upper hand and had nothing to gain from a withdrawal. The Persian king therefore proposed as a similarly unrealistic alternative the termination of the division of Hiberia, and Persian control over the kingdom by making Aspacures its sole ruler. Sapor's proposal seems to suggest that he would recognize Armenia's independence even when ruled by a pro-Roman king in exchange for Persian control over Hiberia. This was a considerable concession on the part of the Persians, and essentially a return to the peace settlement of 363 which included Armenian independence; Blockley, 1992, 35–36. As described by Amm. in 27.12.17 (pp. 291–292), the kingdom of Hiberia, situated north of Armenia, was divided by making the river Cyrus the boundary line. One part was within the Roman sphere of influence and ruled by Sauromaces (*PLRE* I, Sauromaces), while the other part fell within the authority of Persia and was ruled by Aspacures. The division had taken place in the summer of 370; see pp. xxii–xxiii of the commentary on Bk. 27. For Aspacures (*PLRE* I, Aspacures), cousin of Sauromaces, see the note ad 27.12.4 (p. 274).

ad quae Valens in hanc respondit sententiam nihil derogare se posse placitis ex consensu firmatis, sed ea studio curatiore defendere Cf. *in hanc sententiam locutum accipio*, 'I learn that he spoke in this vein' (Liv. 3.67.1). In summarizing Valens' answer Amm. aptly uses a juridical t.t.: *derogare* (see TLL V 639.21–48 and Heumann-Seckel s.v.: "entkräften, aufheben"). Cf. 28.4.14 *curatiore studio* (p. 195).

Valens rejected Sapor's proposals since he had nothing to gain from them; the emperor wanted to maintain the status quo and did not want to give up

Hiberia voluntarily arguing that the division of the kingdom had taken place with the common consent of both Sapor and himself.

glorioso proposito contrariae regis litterae hieme iam extrema perlatae sunt vana causantis et tumida This is the first chronological indication in this chapter and one of the few in Ammianus' report about the Armenian affairs in chapters 1 and 2 of this Book. According to Lenski's chronological reconstruction of Valens' dealings with Persia and Armenia, which is authoritative, *hieme iam extrema* refers to the end of the winter of 375–376; Lenski, 2007, 117. This implies that Sapor's second embassy—unfortunately Amm. does not mention the name(s) of the envoy(s)—to Valens took place early in 376. At that time Valens was staying in the Tigris region, as is clear from information given by Themistius in *Or.* 13.163 c, 166 a and 168 c; Themistius visited the emperor there, probably to offer his condolences for the death of his brother Valentinian, who had died on 17 November 375; Lenski, 2007, 113 n. 66, 117 n. 86.

As was noted ad 29.6.2, in the *Res Gestae* the adj. *gloriosus* occurs twice as often as in the works of Sallust, Livy and Tacitus taken together. In 29.6.2 Valentinian's fortifying of the *limes* was praised, here it is Valens' *propositum*. See for Amm.'s frequent use of this term ad 20.5.4 (p. 120). Here it denotes Valens' chosen mode of conduct, almost a synonym of ἡθός. Sapor's messages were the opposite of this praiseworthy stance: he came up with arguments without substance (*vana*), phrased in arrogant terms (*tumida*): empty vessels make the loudest noise. As in 28.6.4 (p. 260), the verb *causari* here means “causam afferre vel veram vel fictam” (TLL III 704.67) or “zum Vorwand brauchen” (Heumann-Seckel). These messages arrived at the very end of the winter, just before the beginning of the campaign season.

asseverarat enim non posse semina radicitus amputari discordiarum, nisi intervenissent conscii pacis foederatae cum Ioviano, quorum aliquos vita didicerat abscessisse Seyfarth accepts Clark's emendation of V's *at seuerat*. Petschenig, 1892, 686 also chooses the pluperfect with *adseruerat*. One wonders whether Gelenius' *adseuerabat*, printed by Sabbah, would not be a better choice: ‘he kept asserting’. In *semina radicitus amputari* metaphoric language has run riot: sowing, removing roots and pruning have been mixed together. See for the phrase *pacem foederare* ad 24.2.21 (p. 66). The peace treaty had been concluded fifteen years ago and not all those who had been involved were still alive, so that Sapor's proposals deserved to be characterized as ‘hollow’ (*vanus*), as the readers will agree (*enim*).

Sapor's proposal to solve the problems between both empires in the presence of those who had witnessed the conclusion of the 363 peace treaty between himself and Jovian, is understandable from the point of view of the Sasanid king. Sapor had in recent years suffered several setbacks in Armenia (cf. 27.12.9 *haec inopina defectio necesque insperatae Persarum*; 27.12.12 *operam teri frustra contemplans*; 27.12.15 *Arinthei adventu territi Persae*; 27.12.18 *pati se exclamans indigna*), among them the division of Hiberia (27.12.17) and the defeat at Vagabanta (29.1.3). It was therefore to his advantage to go back to the situation created by the treaty of 363. Note, however, that, as is observed ad 25.7.12 (pp. 241–243), it is not easy to reconstruct what precisely had been agreed upon between Sapor and Jovian. Amm., who often refers to the treaty, which was supposed to ensure the peace between Persia and Rome for thirty years, held Sapor responsible for breaching the agreement (see ad 29.1.3, p. 6). This must have made the proposal of the Persian king, to go back to the terms of the treaty, all the more arrogant in the eyes of Amm. For the emperor Jovian (*PLRE I*, Iovianus 3) see 21.16.20 (p. 276), 25.5.4–6 (pp. 180–190) and Ehling, 1996. Apart from Jovian, who died on 17 February 364, we do not know who else was present at the conclusion of the peace treaty nor who had since died.

Ingravescente post haec altius cura imperator eligere consilia quam invenire sufficiens id conducere rebus existimans Victorem magistrum equitum et Urbicium Mesopotamiae ducem ire propere iussit in Persas responsum absolutum et uniusmodi perferentes 2.4 Valens had firmly refused to comply with Sapor's aggressive proposals, but the Persian king's ongoing insistence worried him. He lacked, however, the ability to devise an adequate strategy himself, so that he had to rely on the advice of others. Comparative words are often left out before *quam*: see ad 27.8.9 (p. 198). Valens' lack of independence reminds the reader of Amm.'s judgment of this emperor at the very beginning of his imperial career: he had the title Augustus, but he was *morigerus* ('subservient') and behaved as an *apparitor*, 'servant'; see ad 26.4.3 (p. 83). Here it is phrased more elegantly: Valens was not made to develop bright ideas, but he was able to choose the best advice offered by his staff. He sent one of the most experienced generals and the zone commander (see ad 21.7.1, p. 95) to Persian territory with a clear and unequivocal message. See for *absolutus*, 'unambiguous', ad 21.16.18 (p. 271). Judging by CLCLT, this is the only case in which editores print *uniusmodi* as one word. It can be found in the editions of Henri de Valois, Wagner, Clark, Sabbah and Viansino. By adding this term Amm. emphasizes that Valens wanted to make absolutely sure that his opinion could not be misunderstood.

After two Persian embassies, Valens now sent envoys to Sapor. The emperor's worries had increased because of Sapor's aggressive behaviour shown by his violation of the treaty of 363. Valens, however, had no intention of deviating from the treaty and wanted to maintain the Roman presence in Armenia and Hiberia. Cf. Blockley, 1987, 227 n. 24 and Lenski, 2007, 117. Presumably the embassy took place sometime in 376 since the words *principio sequentis anni* later in this chapter most probably refer to the spring of 377; Lenski, 2007, 117. For Victor (*PLRE* I, Victor 4) see ad 24.1.2 (pp. 9–10) and 26.5.2 (p. 100). He had been sent on embassies by Valens before. In 366 he was dispatched to the Goths to demand satisfaction for their support of the usurper Procopius: 27.5.1 *Victor magister equitum ad Gothos est missus cogniturus aperte, quam ob causam gens amica Romanis foederibusque longae pacis obstricta tyranno dederat adminicula bellum principibus legitimis inferenti*. In 369 he served as an envoy together with Arintheus to negotiate terms with the Goths after Valens' wars against them; 27.5.9 *missique vicissim Victor et Arintheus, qui tunc equestrem curabant militiam et pedestrem, cum propositis condicionibus assentiri Gothos docuissent litteris veris, praestituitur componendae paci conveniens locus*. He already served as *magister equitum* under Jovian. For Urbicius (*PLRE* I, Urbicius) Amm. is our only source. He is also mentioned in § 7 of this chapter. As *dux Mesopotamiae* he commanded one of the armies along the eastern frontier; *Not. Dign. Or.* 36; Jones 609; see also 25.8.7 (pp. 261–262).

quod rex iustus et suo contentus, ut iactitabat, sceleste concupiscat Armeniam ad arbitrium suum vivere cultoribus eius permissis et, ni Sauromaci praesidia militum impertita principio sequentis anni, ut dispositum est, impraepedita reverterint, invitus ea complebit, quae sponte sua facere supersedit There was a marked contrast between the king's propagandistic 'self-portrait' and his actual deeds. As in the case of *praefecerat* in § 2, the ind. *iactitabat* can be interpreted either as an instance of Amm.'s frequent use of the ind. in subordinate clauses in oratio obliqua or as a parenthesis of the author. Here the first interpretation seems more likely: Valens reminds Sapor of his frequently boasting about his righteous and modest behaviour, which was the very opposite of his actual Armenian policy: this was entirely in violation of the entitlement to independence granted to the inhabitants of Armenia; see for *cultor* as a synonym of *incola* TLL IV 1318.77–1319.19. As to Hiberia, Valens demanded the unimpeded return of the Roman forces which had been allotted to the legitimate ruler Sauromaces. As is noted ad 26.6.11 (p. 151), Amm.'s five (or six, if Valesius' conjecture in 21.10. 5 is accepted) instances of the adverb *impraepedita* and two of the adj. are the only ones

attested in extant Latin texts. See also above, the note ad 30.1.2, in which it is argued that V's *inpraepeditum* should be kept. Whereas the first predicate of the *quod*-clause is a subj. (*concupiscat*), expressing Valens' judgment of the king's ideas, the main predicate of the second part is the ind. *complebit*, announcing Sapor's future action: he will reluctantly carry out what he had refrained from doing voluntarily. Translators tend to add that Sapor would 'have to' perform his task, but Valens is predicting a fact: 'he will do what he is told to do'. See for *comple* as a synonym of *perficere* and *absolvere* TLL III 2095.70–2097.73.

Valens demanded that Sapor must not interfere in Armenia and must respect the independence of the Armenians and allow Roman troops assigned to Sauromaces to return to Hiberia the following spring, i.e. the spring of 377 (Lenski, 2007, 117); otherwise he would be forced to take military action; see Blockley, 1992, 36, who also observes that the choice of Victor and Urbicius as envoys, both high-ranking military officers, was to underline that Valens' threat to undertake military action if necessary was serious. For the Hiberian king Sauromaces see 27.12.4 (p. 274). The Roman soldiers were to protect Sauromaces and the Roman interests in Hiberia. It is not quite clear why Amm. mentions that they should be allowed to return the following spring: were they temporarily engaged somewhere else, or had they withdrawn to their wintercamps?

quae legatio recta quidem et libera Surprisingly, editores obviously regard 2.5 these words as unproblematic. However, in the first place the ellipsis of a copula (*erat*) is remarkable. Even Blomgren 73 is inclined to accept Heraeus' addition, but this does not solve another problem, viz. that we do not so much need a characterization of the envoys, but rather of the fulfilment of their task. Moreover, what could *recta* and especially *libera* mean? Translations like "handelte richtig und freimütig" (Seyfarth), "This was frank and straightforward enough" (Hamilton), "se comporta avec droiture et franchise" (Sabbah) do not render the text as it stands, but rather what the translators would like it to be. It is reasonable to venture a conjecture: *quae legatio recte quidem deliberavit*: 'this delegation was indeed on the right track with its consultations'. If it is assumed that *de-* was lost after *dem-* by haplography, a process leading to the text printed by Seyfarth is conceivable. A verbal form in the ind. also fits better with the following '*ni de rupture*'.

ni deviasset in eo, quod absque mandatis oblatas sibi regiones in eadem Armenia suscepit exiguas. qua regressa advenit Surena, potestatis secundae post regem, has easdem imperatori offerens partes, quas audacter nostri sumpserunt

legati See for 'ni de rupture' ad 20.11.18 (p. 271). The Late Latin verb *deviare* fits well with *recta* or *recte*; cf. *ab aequitatis recto tramite deviasse* (22.10.2). The hyperbaton of *exiguas* lends emphasis to this adj. The envoys should not have taken any risk for such a small gain. Victor and Urbicius had deviated from their diplomatic assignment by accepting two regions in Armenia on behalf of Rome. This went against the treaty of 363 and the truce of 371 (29.1.4, p. 9). The Romans probably did not acquire these territories but were offered their allegiance by their princes; Blockley, 1992, 36. Gutmann, 1991, 187–188 remarked: "Es ist kaum möglich, die Gebiete zu identifizieren"; however, according to Lenski, 2002, 183 n. 164, following Adontz, 1970, the regions in question were perhaps Asthianene and Belabitene which later appear among the satrapies under Roman suzerainty (*Cod. Iust.* 1.29.5, *Iust. Nov.* 31.1.3); see also Greatrex and Lieu, 2002, 254 n. 40. The two territories may have formed a corridor which connected the empire with Hiberia; Zuckerman, 1991, 535–536 n. 35; Talbert 89 C2. Baynes, 1910, 641 has the interesting but unverifiable suggestion that the intention was to occupy the two districts with Roman garrisons. Baynes made his suggestion on the basis of information in Ps. P'awstos Buzand 5.32 where it is said that Papa's successor Varazdat advised the Greek officials, supposedly the envoys Victor and Urbicius, and through them the emperor, to build a town and fortifications as permanent garrison centres in the districts of Armenia to provide permanent protection against the Persians. The two territories mentioned by Amm. were, according to Baynes, part of this defensive plan.

At *qua regressa* the first of the six principal fragments of the Codex Hersfeldensis begins. The acceptance by Rome of the territories mentioned above was reason for Sapor to continue the diplomatic negotiations by sending his most important military officer, the Surena. This third embassy was probably dispatched in the winter of 376–377; Lenski, 2007, 118. Surena or Surên is the personal name of the head of the Surên family as well as a hereditary title. He came second in the Persian hierarchy after the king. As is noted ad 24.2.4 (p. 37), the genitivus qualitatis *potestatis secundae post regem* is the most exact indication of the Surena's status.

The Surên had previously headed an embassy to Jovian to negotiate peace; 25.7.5 (pp. 227–228). His purpose in offering the same territories as were accepted by Victor and Urbicius seems to have been to test Valens' commitment to Armenian independence. Valens' acceptance of these territories from Sapor would have indicated to the Persians, as Blockley, 1992, 36 observes, that Valens was prepared to continue negotiations over Armenia and Iberia. Cf. Lenski, 2007, 118 who is of the opinion that the Persians wanted Armenia or Hiberia in return.

quo suscepto liberaliter et magnifice, sed parum impetrato, quod poscebat, remisso parabantur magna instrumenta bellorum ut mollita hieme impetratore trinis agminibus perrupturo Persidem ideoque Scytharum auxilia festina celeritate mercante Cf. for *liberaliter* expressing that the host acted as a true gentleman 20.4.13 *liberaliter ita suscepti*, 23.2.1 *legationes liberaliter...susceptae*, 26.7.9 *blandeque acceptae et liberaliter*. The addition of *magnifice* is not superfluous: this adv. indicates the lavish character of the important Persian's reception, which contrasts with the failure of his mission. See for *parum* as a euphemistic alternative of *haud* or *non* ad 23.6.82 (pp. 223–224).

Consequently both the Persians and Romans prepared for war. Valens intended to invade Persia when winter had become milder (*mollita hieme*), probably in March 377. Presumably, the emperor intended to invade Persian territory at various points with three armies, possibly to create the impression of a huge force. This strategy is comparable to that of Julian when he advanced against Constantius as described in 21.8.3 (pp. 110–112, notes ad *agminibus distributis* and *id enim Alexander*) where Julian divided the army between himself, Jovinus and Jovius, and Nevitta; cf. also Julian's invasion of the Sasanid empire with two armies as described in 23.3.4–5 (pp. 39–45). *Agmina* can be smaller separate army units, as in 17.13.6 *in agmina plurima clam distributo exercitu* and 17.13.28 *in agmina nobilium legionum*; however, in this case it is more likely that larger armies are meant; cf. 24.1.2 *agminibus incedere quadratis* (pp. 5–6). The phrase *instrumenta bellorum* is explained ad 21.6.6 (p. 85) and 26.7.12 (p. 203). The interpretation of *ut* is not easy. It belongs to the category of “Partizipialkonjunktionen” (Szantyr 385) and probably expresses personal motivation, comparable to the function of ὡς in Greek participial constructions. See for transitive *perrumpere*, ‘to force a way into, to invade’, ad 21.7.2 (p. 96). The original form of the distributivum of the number 3 is *terni*, which occurs three times in the *Res Gestae*: 14.2.7, 23.6.85, 27.7.7. *Trini* is an alternative form derived from the example of *bini*; see Leumann 494. The distributiva were used for ‘pluralia tantum’, e.g. *bina castra*, but, as Szantyr 212 shows, they gradually developed into an alternative for the cardinalia. This seems to be the case here: a conjecture is therefore not necessary. Hagendahl, 1924, 203 lists *festina celeritate* as a case of ‘abundantia’, comparable to *rapida celeritate* (15.5.29) and *velocitate volucris* (14.11.26).

In order to strengthen his army Valens hired Scythian, i.e. Gothic, troops as Constantius and Julian had also done; 20.8.1 (p. 181) and 23.2.7 (p. 31). The usurper Procopius also was offered soldiers of Gothic origin; 27.4.1 (pp. 78–79). As Lenski, 2007, 118 observes, the negotiations with the Goths

must have taken place in the winter of 376–377; in 31.6.1–2 Amm. refers to the mustering of Gothic troops who were in winter quarters at Adrianople early in 377. It is entirely possible that these Goths were originally meant to reinforce the Roman army for the impending Persian invasion. They were given the order to cross (the Aegean) and to go to the province of Hellespontus (*verum imperatoris litteris repente perlatis, quibus transire iussi sunt in Hellespontum*, 31.6.2), in all likelihood, as Angliviel de la Beaumelle n. 431 suggests, to prevent them from combining their forces with those of Fritigern.

- 2.7 *Proinde parum adeptus ea, quae spe vana conceperat, Sapor ultraque solitum asperatus, quod ad expeditionem accingi rectorem compererat nostrum, iram eius conculcans Surenae dedit negotium, ut ea, quae Victor comes susceperat et Urbicius, armis repeteret, si quisquam repugnaret, et milites Sauromacis praesidio destinati malis affligerentur extremis* Sapor's optimistic objectives had not been achieved; on the contrary, the Roman emperor was preparing a campaign to restore the Roman presence in Armenia: this made him furious. Remarkably, the only other instance of *asperatus* in Amm. is 26.4.2, where Valentinian is furious because he had been checkmated by Dagalaifus' snappy remark. The phrase *ultra solitum* occurs only occasionally in other writers, six times in Tacitus. Amm.'s other instances are 16.11.3 and 16.12.36. In six of Amm.'s seven instances of *conculcare* the verb has a physical meaning: 'to crush'. In the present text it is a synonym of *contemnere*: Sapor 'despised' Valens' anger and ordered the Surena to regain the territory which the Roman envoys had taken and to create havoc among the Roman forces sent to protect the Hiberian king Sauromaces.

Because his diplomatic efforts had failed and Valens was preparing for an invasion of Persia, Sapor also prepared for war. The Persian king wanted at least to recover the territories Victor and Urbicius had accepted, and to harm the Roman troops which were to protect Sauromaces, possibly with the intention of deposing Sauromaces from his throne in Hiberia. Note that Victor is here called *comes* whereas in § 4 above he is designated as *magister equitum*.

- 2.8 *haecque, ut statuerat, maturata confestim nec emendari potuerunt nec vindicari, quia rem Romanam alius circumsteterat metus totius Gothiae Thracias licentius perrumpentis* Many a reader will find these words a disappointing anticlimax: the total failure of the strategy to strengthen the Roman position in Armenia and Hiberia is summarized in ten words, after which eleven words are spent on the cause of this collapse. The Surena carried out Sapor's

orders with due speed: he was able to recover the two Armenian regions which had been accepted by Victor and Urbicius without resistance from the Roman troops in Armenia, which, as may be surmised, were already on their way to Thrace to deal with the unrest there. And Valens' forces could do nothing about it. The main reason mentioned by Amm. was the fact that priority had to be given to a much greater danger, the invasions of the Goths. These will be the main theme of Book 31. The sudden change in the circumstances in the East was brought about by the Goths, who had rioted because they were hard-pressed by famine and want; they also felt humiliated by being shamefully treated by the *comes rei militaris* Lupicinus whom they suspected of making an attempt to kill the Gothic leaders Alavivus and Fritigern at a dinner party in Marcianopolis; 31.5.4–9. They were joined by the Gothic chieftains Sueridus and Colias when plundering Thrace; 31.6.3. In order to suppress the rioting Goths, Roman troops were transferred from the eastern frontier to Thrace; this transfer must have taken place in the spring of 377.

When Valens was informed about the Gothic troubles in Thrace, he immediately sent Victor to Sapor to restart negotiations over Armenia, as Amm. reports in 31.7.1, while he himself left Antioch; *Haec ex Thraciis magno maerore accepta Valentem principem in sollicitudines varias distraxerunt. et confestim Victore magistro equitum misso ad Persas, ut super Armeniae statu pro captu rerum componeret impendentium, ipse Antiochia protinus egressurus* e.q.s.

Cf. for *circumsistere* or *circumstare* used of threatening circumstances 19.2.13 *tot enim nos circumstantibus malis* (pp. 48–49); this use of the word implies that *metus* here denotes an “object of dread” (OLD s.v. 5b), with *Gothiae...perrumpentis* as a genitivus explicativus and *perrumpentis* as a dominant participle: ‘the spectre of an invasion without restraint in Thracia by the whole of Gothia’. The Goths are mentioned by many Late Latin authors, but *Gothia* occurs rarely; CLCLT lists only five instances; the present text is the only occurrence in Amm. In his note 231 Angliviel de la Beaumelle interprets it as denoting “une unité fictive” of the various Gothic peoples. Cf. what the Gothic king Athaulf once regarded as his ideal: *se inprimis ardentius inhiasse, ut oblitterato Romano nomine, Romanum omne solum Gothorum imperium et faceret et vocaret, essetque, ut vulgariter loquar, Gothia quod Romania fuisset* (Oros. 7.43.4). Later he recognized that this was not a realistic objective.

quae funera tunc explicari poterunt carptim, si ad ea quoque venerimus The deaths and destruction caused by the Gothic invasion are referred to with

quae funera, which is then referred to with *ea*, whilst *quoque* means 'like the disastrous events in Armenia and Hiberia'. The sentence pattern of *si* with fut. ex., either preceded or followed by a main clause with fut., occurs regularly in the *Res Gestae*. It is debatable whether the function of the conditional clause in this pattern differs from that of a temporal clause, also taking *tunc* into account. As is noted ad 23.6.10 (p. 141) and 28.1.2 (p. 7), *carptim* denotes a deliberate selection of important facts. Amm. gives an account of the *funera* in Book 31, chapters 2–5.

- 2.9 *Haec per eos agitata sunt tractus. quorum inter seriem Africanas clades et legatorum Tripoleos manes inultos etiam tum et errantes sempiternus vindicavit Iustitiae vigor, aliquotiens serus, sed scrupulosus quaesitor gestorum recte vel secus, hoc modo* See ad 20.3.1 (p. 27) for comparable phrases to denote the eastern provinces, and ad 20.1.1 and 25.8.12 (p. 269) for *series rerum* and *series gestorum*. As is noted ad 21.12.18 (p. 173), *agitari* as a synonym of *agi* and *fieri* is not common. The words *quorum inter seriem* indicate that the revenge taken by Iustitia for the affairs in Africa (described by Amm. in 28.6) took place during the diplomatic negotiations over Armenia between Valens and Sapor, i.e. in the years 375–377, which tallies well with Maximinus' tenure of office as PPO Galliarum for which see below ad § 11. Already in 28.6.25 Amm. had announced that Iustitia would avenge what had happened under Romanus in Africa and Tripolitana: *Hoc memorando fine externis domesticisque cladibus vexata conticuit Tripolis non indefensa, quia vigilavit Iustitiae oculus sempiternus ultimaeque legatorum et praesidis dirae*. The *legatorum Tripoleos manes* refer to the shades of the Tripolitanian envoys Iovinus, Caelestinus, Concordius and Lucius who were executed: *Valentinianus ad acerbitatem proclivior Iovinum quidem ut auctorem, Caelestinum vero Concordiumque et Lucium ut falsi conscios et participes puniri supplicio capitali praecepit* (28.6.22 [pp. 287–288]). As if to console and encourage the reader after the bad news in the preceding section, the historian adds a message showing that the Lady Iustitia is fully alive and vigilant: *inconivus Iustitiae oculus, arbiter et vindex perpetuus rerum, vigilavit attente* (29.2.20, pp. 104–105). This is one of the author's three fundamental reasons for his optimism about the future; the other two are the lesson of history which teaches that Rome always arises after a disaster and the fact that Julian's reign for all its brevity showed what a truly righteous ruler could achieve, even if he did have some questionable habits. Modern scholars may find this assessment unconvincing, but there it is. See ad 23.5.17 *nec erravere diu manes inulti* (pp. 118–119) for the idea that those who had died a violent death were entitled to be avenged.

In the present text Amm. returns to the *Tripoleos Africanae provinciae... aerumnas* (28.6.1, p. 256 sqq.) and, as was mentioned above, particularly the liquidation of some official envoys of the people of Tripolis (28.6.22, pp. 287–289). In 28.6.30 he anticipates the death of an important perpetrator of this crime, the former *magister officiorum* Remigius, who could only escape his arrest and punishment by taking his own life. *Iustitiae* can be regarded as a gen. poss., but it can also be interpreted as a gen. inversus: the entire phrase *sempiternus Iustitiae vigor* shows the advantage of the pattern, viz. an adj. added to the other noun creates an elegant combination, in which the permanence of the Lady Iustitia's energy comes out well. See ad 28.6.29 (p. 299). Human patience is often tested, but that is caused by her “minutely careful” (OLD s.v. *scrupulosus*) accuracy in assessing the facts in her role as an investigator in a criminal matter; see for this meaning of *quaesitor* ad 20.2.2 (p. 13) and for *secus* as an euphemism for ‘wrongly’ the survey ad 20.8.11 (pp. 198–199).

Remigius, quem populanti provincias rettulimus comiti fuisse Romano, postquam Leo in eius locum magister esse coepit officiorum, a muneribus rei publicae iam quiescens negotiis se ruralibus dedit prope Mogontiacum in genitilibus locis For Remigius (*PLRE* I, Remigius), *magister officiorum* to Valentinian in the years c. 365–371/372, see 27.9.2 (pp. 206–207) and 28.6.8 (p. 268), where Amm. calls him *rapinarum participem* of Romanus, the *comes Africae*, a man despised, perhaps even hated, by Amm. We owe *fuisse* to the Hersfeldensis, rightly followed by Gelenius, but not by V. Remigius' successor is also portrayed as a nasty man; see ad 28.1.12 (pp. 29–30). After his retirement Remigius returned from Tripolis to the region where he was born, in the vicinity of Mainz, where he devoted himself (see OLD s.v. *do* 22) to ‘tasks in the countryside’. It is not clear what this means; the adj. *ruralis* occurs rarely and *negotia* can denote both physical and managerial tasks. The latter meaning seems appropriate here.

For Romanus (*PLRE* I, Romanus 3) see the note ad 27.9.1 (pp. 204–205) and add to the literature mentioned there Mratschek, 2007; his regime as *comes Africae* in the years 364–c. 373 is described in detail in 28.6. Amm. had mentioned Remigius' support of his relative in 28.6.8 (*Remigium, affinem suum vel rapinarum participem*) and 29.5.2 (*Remigio tunc officiorum magistro, affine amicoque Romani*). Remigius was succeeded as *magister officiorum* by Leo in 371/372. He committed suicide before 17 November 375; see ad § 11 below. For Leo (*PLRE* I, Leo 1 + Roda in *Historia* 29 [1980] 100) see ad 26.1.6 (p. 25).

2.10

2.11 *quem ibi morantem securius praefectus praetorio Maximinus reversum ad otium spernens, ut solebat dirae luis ritu grassari per omnia, laedere modis, quibus poterat, affectabat* For Maximinus (*PLRE* I, Maximinus 7) see ad 28.1.5 (pp. 14–15). After his position as *vicarius urbis Romae* Maximinus was promoted to the function of PPO Galliarum in 372 or 373. He was still in office early in 376 as can be inferred from *Cod. Theod.* 9.6.1–2 of 15 March 376 (where *ad Maximinum* should be read instead of *ad Maximum*; cf. the subscription of *Cod. Theod.* 9.19.4 and Barnes 246 n. 13). Amm., who seems to have been obsessed by Maximinus' misconduct as an official in the service of Valentinian, describes in these sections that he went after Remigius as one of the malefactors in the African affairs. Given that Remigius committed suicide as a consequence of Maximinus' investigations whilst Valentinian was still alive, as Amm. tells us in 28.6.30 (*Valentiniano tamen superstite post superiora, quae narravimus, Remigius quoque digressus ad otium laqueo vitam elisit, ut congruo docebimus loco*), the dating of Iustitia's revenge for the African affairs can be narrowed down to the years 373–375 as the emperor died on 17 November 375; cf. Coşkun, 2004, 296 who proposes 374.

Remigius was the ideal victim for Maximinus, who scorned the pensionado in Mainz who thought himself safe, and in line with his habits he went to work 'like a plague' (*dirae luis ritu*), intending to harm Remigius in every possible way. The reader will be reminded of the first chapter of Book 28, where Maximinus, in his capacity of *vicarius urbis Romae*, was responsible for an endless series of criminal proceedings against Roman aristocrats. Even after his promotion to the post of PPO Galliarum he continued to pull the strings. Ammianus hated him. A contagious *lues* can 'march on' speedily. Amm. deals with plagues in the fourth chapter of Book 19, in which he refers to the descriptions in Homer and Thucydides. The phrase *luis ritu grassari* is comparable to *huiusmodi grassante pernicie* (19.4.3, p. 73).

utque rimaretur plura, quae latebant, Caesarium antehac eius domesticum, postea notarium principis, raptum, quae Remigius egerit vel quantum acceperit, ut Romani iuvaret actus infandos, per quaestionem cruentam interrogabat There are only six instances of *rimari* in the *Res Gestae*. The verb denotes careful scrutiny, e.g. (Julian) *exta rimabatur assidue* (22.1.1, p. 2). Maximinus 'kidnapped' (*raptum*) the former 'personal assistant' (see for *domesticus* 28.6.21, p. 286) of Remigius and questioned him under torture about Remigius' actions and the remunerations he received for services rendered to Romanus. Caesarius (*PLRE* I, Caesarius 4) is only known from this passage in the *Res Gestae*; see for him and his function Teitler, 1985, 20 and 120 with n. 65 on p. 284.

The combination of *quaestio* and *cruenta* occurs seven times in the *Res Gestae*, of which six are found in the ‘post-Julian books’. This is not surprising in view of the author’s growing interest in criminal proceedings.

quibus ille cognitis cum esset, ut dictum est, in secessu, conscientia malorum urgente vel rationem formidine superante calumniarum innodato gutture laquei nexibus interiit Strictly speaking, it has not yet been ‘said’, only implied that Remigius lived in a ‘secluded place’ (OLD s.v. *secessus* 2). The author cannot decide whether the bad news of Maximinus’ investigation had caused Remigius’ fear, or activated his conscience. The phrase *rationem formidine superante* has a Stoic ring: fear is one of the four human πάθη and Zeno defined πάθος in this way: ἡ ἄλογος καὶ παρὰ φύσιν ψυχῆς κίνησις (D.L. 7.110). Adherents of the Stoa would have regarded Remigius’ fear as a defeat of the λόγος and therefore ‘unnatural’. See ad 28.1.25 (p. 56) for *calumnia*, ‘false complaint’, both as a precise juridical t.t. and in a general sense. In reporting Remigius’ suicide the author could have used matter-of-fact terms like *se suspendere* or *vitam laqueo finire*, but, as in 26.6.27 *innodato gutture laquei nexibus interiit*, he prefers a more detailed description, which is, however, far less complex than Epicharis’ suicide in Tac. *Ann.* 15.57.2: when she was carried in a litter to the court for further questioning on the rack, *vinclo fasciae, quam pectori detraxerat, in modum laquei ad arcum sellae restricto indidit cervicem et corporis pondere conisa tenuem iam spiritum expressit*, “she fastened the breast-band (which she had stripped from her bosom) in a sort of noose to the canopy of the chair, thrust her neck into it, and, throwing the weight of her body into the effort, squeezed out such feeble breath as remained to her” (tr. Jackson). See ad 26.6.20 (p. 176) for the presence of *laqueus* in phrases denoting suicide by hanging.

Remigius’ suicide is also mentioned in 28.6.30, as quoted above ad § 11, and was already announced in 15.5.36 (*Remigio*) *cui multo postea, Valentini-ani temporibus, laqueus vitam in causa Tripolitanae legationis erupit*. As is noted ad 28.6.27 (p. 296) hanging was considered an infamous and ignoble death—cf. e.g. Verg. *A.* 12.603 *nodum informis leti*—and a form of suicide not approved of by the élite; Gris , 1982, 107–109; Van Hooff, 1990, 64–78. Hofmann, 2007, 188–190, who refers to the suicide of Remigius (and that of Palladius, 28.6.27), observes that many people who hanged themselves did so out of guilt and regret for their actions, as well as to avoid imprisonment and an even more horrible death.

CHAPTER 3

Introduction

This brief chapter is quite interesting in that it shows two strategies for coping with the dangers which were threatening the Roman borders. Valentinian is actively engaged in fortifying the Rhine border, when he receives the bad news about the barbarian invasions in Illyricum. With great care he makes himself acquainted with the facts. Having analyzed these he comes to the conclusion that an immediate military response is vital. All members of his staff try to talk him out of such an expedition: the approaching winter poses too many problems. Valentinian's way of thinking illustrates the normal reaction of military professionals. Invaders, who dare to attack the Roman Empire, must be thrown out. It is, so to speak, the honorable way of coping with them.

When the emperor finally gave in, the staff advised a different course, in which the emphasis was put on utility: persuading barbarian leaders to become allies of Rome. This proves to be practicable: a treaty was concluded with the dangerous Alamannic king Macrianus, who, as the facts showed, remained loyal to Rome till the end of his days.

Secuto post haec anno Gratiano ascito in trabeae societatem Equitio consule 3.1
Valentiniano post vastatos aliquos Alamanniae pagos munimentum aedificanti prope Basiliam, quod appellant accolae Robur, offertur praefecti relatio Probi docentis Illyrici clades Contrary to expectation the present abl. temporis *secuto...anno* and 27.5.5 *Anno secuto*, where we owe *Anno* to Gelenius, are the only instances of such a phrase; *anno sequenti*, which does not occur in Amm., is not often attested either. The abl. abs. *ascito...Equitio* is embedded in the abl. abs. *Gratiano consule*: 'during the consulate of Gratian, who had appointed Equitius as his colleague'. For the *trabea* as a symbol of the consulate see ad 21.10.8 (p. 145) and 23.1.1 (p. 2), the only other instance of *in trabeae societatem asciscere* is *Res Gestae* 25.10.11; the only instance of *in collegium trabeae asciscere* is 23.1.1. See for expressions denoting the appointment of consuls ad 22.7.1 (p. 69) and for the consulate in Late Antiquity apart from Bagnall et al., 1987 the literature cited ad 29.2.9 (p. 89).

For Valentinian's young son Gratian (*PLRE* I, Gratianus 2) see ad 26.9.1 (p. 242). Gratian was consul for the third time in 374, together with the

magister militum per Illyricum Equitius (*PLRE* I, Equitius 2; cf. for him ad 26.1.4, pp. 18–19, and 29.6.3, pp. 227–228); Bagnall et al., 1987, 282–283.

Precisely while he was dealing with his main business: namely fortifying the Rhine border (see chapter 2 of Book 28), Valentinian received a report about the disastrous events in Illyricum. The last time we saw him in action was in chapter 4 of Book 29, in which Amm. relates the emperor's attempt to capture the Alamannic king Macrianus (*PLRE* I, Macrianus 1). Presumably, this was in 371, as is argued on pp. 139–140 of the commentary on that book. After the attempt had failed, Valentinian returned to Trier (*redit Treveros maestus*, 29.4.6), from where, during the following years, he must have made the expeditions which resulted in the devastation of the Alamannic districts mentioned here. See for *pagus* ad 18.2.18 (p. 39). As is noted ad 20.10.2 (p. 240), the word is used about a geographical entity anywhere in the world, but most often with regard to Germany. Amm. uses the word *Alamannia* twice, here and in 20.4.1. See for the Alamans the literature cited ad 20.1.1 (p. 5), Fuchs, 1997; Lorenz, 1997 and Drinkwater, 2007. As to the *munimentum...prope Basiliam, quod appellant accolae Robur*, Valentinian's presence there on 10 July 374 is attested by *Cod. Theod.* 8.5.33 (*dat. VI Id. Iul. Robore Gratiano A. III et Equitio v.c. cons.*); on 20 June he was still in Trier (*Cod. Theod.* 13.4.4). The identification of its site is disputed; Seyfarth, 1986³, 350 n. 35 among others opts for *castrum Rauracense*, modern Kaiseraugst, but see Angliviel de la Beaumelle n. 236 and the literature cited ad 28.2.1 (p. 122); cf. further Niedermann, 1945; Mackensen, 2001, 597–598 and Schwarz, 2011, 331–332. In the discussion about the site some scholars prefer *munimentum* as antecedent of *quod* (so e.g. Oeri, 1896), others *Basiliam* (e.g. Berger, 1963, 83). The neuter of the relative pronoun (*quod* instead of *quam*) would then be comparable to *Munda, quod proxime ceperant* (*B. Hisp.* 41.6), interpreted by Szantyr 441 as a case of “Genusangleichung an die vorschwebende nicht-persönlichen Begriffe”, in the present case *oppidum*. A simpler explanation is that *quod* takes the gender of *Robur*. It is unknown how long Valentinian was occupied in Robur, but on 7 September 374 he was in Mogontiacum (Mainz), if, as seems likely, *Cod. Theod.* 4.13.7 was issued on this date: one should correct 375 into 374 by disregarding *p(ost) c(onsulatium)* in *dat. vii Id. Sept. Mogontiaci p. c. Gratiani A. iii et Equiti v. c. cons.*, ‘given on the seventh day before the Ides of September at Mainz in the year after the third consulate of Gratian Augustus and the *vir clarissimus* Equitius’; for discussion see Pergami, 1993, 636–637.

The *clades* in Illyricum about which Probus reported (see for *relatio* ad 26.5.10, p. 116) were sketched by Amm. in chapter 6 of Book 29: along the Danube the Roman provinces had been confronted with invasions from

Quadi and Sarmatians. The role played by Probus himself at the time is sketched in 29.6.9–11: the *praefectus praetorio Italiae Africae et Illyrici* Sextus Claudius Petronius Probus (*PLRE* I, Probus 5) first considered fleeing, but then came to his senses (Amm. had portrayed him in very negative terms in chapter 11 of Book 27; see the various notes ad loc.). There are notes concerning Probus' career ad 27.11.1 (pp. 252–253), 28.1.31 (pp. 70–71) and 29.6.9 (p. 236). For *Illyricum* see ad 20.1.1 (p. 1) and 21.6.5 (p. 84).

quibus ille, ut cunctatorem decuerat ducem, examinatus lectis attonitus cogitationibus anxius Paterniano notario misso negotium scrupulosa quaesivit indagine In this section Amm. goes to great lengths to describe Valentinian's state of mind very carefully. He read the report on the disasters (*quibus* refers to *clades*) *examinatus*: 'with considerable care'. See for *legere*, 'to read a report about', OLD s.v. 9. As is noted ad 25.7.7 (p. 230), the adv. occurs rarely. There are nine instances of *attonitus*, 'overwhelmed', in the *Res Gestae*. The cause can be fear (18.10.2 *attonitae metu mulieres*), the beauty of a spectacle in the theatre (23.5.3 *populo venustate attonito*), or weighty reflections (14.10.6 *imperator cogitationibus magnis attonitus*). Valentinian worried about the situation on rational grounds and decided to send Paternianus to investigate the situation on the spot. Valentinian shows that he was "a cautious general" (Rolfe), "un chef circonspect" (Sabbah). Apart from 28.1.44 (p. 90), Amm. uses *cunctator* as a term of praise; see ad 27.10.10 (pp. 240–241) *Valentinianus ut dux cunctator et tutus* (where the sarcasm, explained in the note, emphasizes the positive meaning as such). Paternianus (*PLRE* I, Paternianus 1) is not known from other sources. For (*tribuni et*) *notarii*, who were often given special commissions, see ad 20.4.2 (pp. 57–58) and 29.2.17 (p. 99).

3.2

moxque veris per eum nuntiis gestorum acceptis evolare protinus festinarat ausos temerare limitem barbaros primo fragore, ut mente conceperat, oppressurus armorum For *limes* in Amm. see ad 23.3.4 (p. 41) and 28.3.7 (p. 159), for literature on barbarians ad 20.4.1 (p. 55), 26.5.12 (p. 119) and 29.5.12 (p. 169). The adj. *veris* indicates that the emperor could now make decisions based on reliable information. Günther, 1891, 73 defends his conjecture *festinarat* with these words: "Ammian gebraucht ja für die einmalige Handlung in der Vergangenheit Perfekt Imperfekt und Plusquamperfekt ohne jeden Unterschied". To put it mildly, this is not particularly persuasive. It is more likely that the three pluperfect forms in the present section precede another state of affairs in the past: *decuerat* precedes everything else in the sentence, *festinarat* and *mente conceperat* precede *multa impediabant* in § 3. But is *festi-*

narat correct? In combination with an inf. the verb *festinare* is a synonym of *cupere* or *studere* according to TLL VI 1.619.10sq.; cf. OLD s.v. 4b “to be anxious or impatient to”. This could be the meaning in the present text, but Harmon’s conjecture *destinarat* deserves close attention. TLL V 1.758.22–72 provides a long list of passages in which the verb *destinare* can be explained as “in animo habere” or “sibi proponere”; cf. OLD s.v. 3 “to determine on”. In 23.6.40 Seyfarth prints Gardthausen’s totally unnecessary conjecture *festinaret* instead of V’s *destinaret*, preferred by Clark and Fontaine. In the present text Amm. describes Valentinian’s intended strategy of an immediate attack as based not on emotions, but on a rational evaluation of the situation. This strategy was in fact impossible, but that is another matter. The emperor’s staff pointed out that winter was approaching, but it was not easy to make him return *in meliorem sententiam* (§ 4), because he was determined (*destinarat*) to attack the enemy immediately. Harmon’s conjecture is at least persuasive and may well be right.

Valentinian regards the barbarians’ attacks on the *limes* as a violation of something holy or sacrosanct. There are two further instances of the verb *temerare* with a similar meaning in the *Res Gestae*: 19.1.6 and 20.11.3. The phrase *fragor armorum* also occurs in 21.4.8, 25.1.18 and 27.6.10 to describe a characteristic aspect of the battlefield. With *mente conceperat* Amm. indicates that the emperor had also planned how to attack the intruders.

- 3.3 *quia igitur abeunte autumnno multa impediabant et aspera, annitebantur omnes per regiam optimates, ut ad usque veris principium oratum retinerent et exoratum* The combination *quia igitur* is not attested before the fourth century A.D. There are seven instances in the *Res Gestae*. In the present text the function of *igitur* is enigmatic. Usually it refers to a precondition, mentioned in the preceding text, of a new development. See for this ad 25.1.18 (p. 36). Here, however, the precondition, viz. ‘it was the end of autumn’, has not been mentioned yet. All high-ranking officials ‘throughout the palace’ (*per regiam*) exerted themselves to convince the emperor that the end of autumn was not the right time to start a large military action. The autumn of 374 is meant, as § 1 makes clear. The invasions of the Quadi and Sarmatae had taken place in that year. The word *regia* is only one of the terms used by Amm. to denote the imperial court (Schlinkert, 1998, 138 n. 13: “Das Spektrum der begrifflichen Alternativen, die in den *res gestae* die politisch-soziale Institution ‘Hof’ bezeichnen, ist enorm”). We find *regia* e.g. in 26.7.6 *exambita regia* (p. 192) and 29.1.19 *qui tunc in regia versabantur*. Synonyms are *aula* (cf. 29.2.6 *ex aula regia* [p. 83]), *palatium* (28.6.17 *palatii summatibus proximo*; cf. also the note ad 26.10.1, p. 265), and, more common, *comita-*

tus, for which see ad 20.4.11 (pp. 76–77) and 26.5.7 (p. 109). Amm. uses the word *optimates* more often for non-Romans (cf. ad 20.6.3 [p. 139] and TLL IX 2.820.46–84) than for Romans, but see 24.7.3, 30.5.6, 31.10.15.

In his linguistic note ad 14.6.12 (p. 95 sprachlich) De Jonge seems to assume that *oratum* and *exoratum* are examples of Supine 1. Judging from the translations, other scholars regard both forms as instances of the perfect participle: “by entreaties and prayers” (Rolfe), “en le priant et en le suppliant” (Sabbah). This interpretation is far more likely, also because of the scarcity of Supine 1 in the *Res Gestae*; see De Jonge ad 14.6.12 (pp. 95 and 100 sprachlich). TLL V 2.1584.31–44 quotes some ancient scholars’ explanations of the difference between *orare* and *exorare*: the former is a synonym of *poscere*, ‘to ask’, the latter of *impetrare*, “to obtain by request” (OLD s.v.). The wordplay also occurs in Pl. *Cas.* 42–43 *orat ut eam det sibi / exorat, aufert* and Claud. in *Eutr.* 1.266–267 *mergique fretis spumantibus orat. / exoretque utinam*. In the present text *exorare* is a synonym of *persuadere*.

As to *veris principium*, it was *Aequinoctio...temporis verni confecto* (17.12.4) that Constantius in 358 started a surprise attack near the Danube. Valens took the field again in 366 *aperto iam vere* (26.9.1). In 368 Valentinian crossed the Rhine *anni tempore iam tepente* (27.10.6), i.e. in spring, but see the note on pp. 233–234, where it is observed that this indication of time contradicts Amm.’s statement in 17.8.1 (pp. 217–218) that the campaigning season in Gaul usually started in July.

primum durata pruinis itinera, ubi nec adultae in pastum herbae repperirentur nec cetera usui congrua, penetrari non posse firmantes TLL V 1.2293.77–2295.8 deals with *durare* being used “proprie”, in its material sense: ‘to make hard’. TLL X 1.648.31–64 is a list of instances of *pastus* in which a “locus, ubi animalia pascuntur” is denoted. The present text, however, belongs to the next list (648.65–649.22) which contains examples of *pastus* meaning ‘food’. In Late Latin the present stem of the verb *reperire* is spelt with double p. Apart from the disadvantages of the winter season there is an entirely different obstacle to the emperor’s preferred strategy: the dangers threatening the Rhine border required his personal presence. This argument will bring about the required result.

The advice given by the courtiers to wait till spring was no doubt wise. After the autumnal equinox was over conditions in these regions soon became wintry: *aequinoctio...autumnali exacto per eos tractus superfusae nives opplevire montes simul et campos*, 17.1.10. In 19.11.4 Amm. states that *nostri*, ‘our soldiers’, i.e. those of Constantius, when forced to fight during the winter near the Danube, ‘could only with difficulty, because of the

cold, tolerate life in the open' (*pruinis subdivales moras difficile tolerabant*). However, Julian's Gallic troops were *assueti glacialibus terris* (20.8.8); cf. also *militem Gallicanum pruinis assuetum et Rheno* (25.4.13), whereas some of Theodosius' soldiers in Africa were also accustomed to the cold (*pruinis assuetum...militem*, 29.5.7). Apart from the cold, as the courtiers rightly stressed, the supply of fodder and food was problematic. See for Amm.'s treatment of the procurement of sufficient provisions during campaigns Crump, 1975, 47 and 118.

dein vicinorum Galliis regum immanitatem maximeque omnium Macriani ut formidati tunc praetendentes, quem constabat impacatum relictum etiam ipsa urbium moenia temptatum In the *Res Gestae* there are more than seventy instances of *immanis*, *immaniter* and *immanitas* taken together. According to Seager 14 Amm. was obsessed with these words. It is not easy to pinpoint the precise meaning of *immanis*; it usually implies exceeding the boundaries of civilization to an alarming degree. Hence the combination with *barbarus*, which occurs in various authors, but not explicitly in Amm. In the present text it is implied: 'the kings who were the neighbours of Gallia' were barbarians. In Amm.'s instances of the verb *praetendere*, 'to put forward (as an argument)', a negative connotation is often implied: see ad 23.5.11 (pp. 104–105). In the present text this is unlikely: it was actually wise to be wary of the Alamans. The word *tunc* is added to *formidati* for those readers who knew Macrianus being an ally of Rome. This is Amm.'s only instance of the rare word *impacatus*, 'not pacified', a Roman euphemism for 'not subdued'.

The term *Galliis* must be taken in the sense of those provinces of the prefecture of *Galliae* (for which see ad 15.11.1, pp. 57–58), i.e. Germania Prima and Germania Secunda, which were close to the frontier with the barbaricum. Cf. 14.10.1 *crebris excursibus* (of Alamannic kings) *vastabantur confines limitibus terrae Gallorum*. As to *reges*, in the first place Alamannic *reges* must be meant (see Drinkwater, 2007, 117–120 for the term *rex* used for Alamans), but one cannot exclude that Amm. also thought of Franks (see ad 27.8.5 [pp. 194–195]). One wonders whether Macrianus' brother Hariobaudus (*PLRE* I, Hariobaudus) was among the Alamannic *reges* in these regions. He is mentioned in 18.2.15 (*Macrianus et Hariobaudus, germani fratres et reges*) and 18.2.18 (*Macriano quidem et Hariobaudus pax est attributa*).

Valentinian's unsuccessful attempt to capture Macrianus (*PLRE* I, Macrianus 1; cf. ad 28.5.8 [pp. 241–242]) had been narrated in chapter 4 of Book 29. In 29.4.5–6 we read that Macrianus escaped from the Romans (cf. 30.7.11),

whereupon Valentinian returned to Trier in a sad state of mind. If this *rex* of the Alamannic Bucinobantes (cf. 29.4.7) really had voiced the idea of capturing walled towns (which, according to Drinkwater, 2007, 305, is implausible), he was no doubt bluffing. Siege warfare was quite advanced in the fourth century so far as Romans and Persians were concerned, as e.g. Crump, 1975, 97–113 shows (cf. Campbell, 2006, 201–206), but there is no indication that the barbarian tribes on the Rhine and the Danube were equally skilled. They were *parum ad has calliditates dimicandi sollertes*, to quote Amm.'s words in 29.6.12, where he speaks of the Quadi and Sarmatians who backed away from attacking the city of Sirmium. Cf. 16.4.2 *post tricensimum denique diem abiere barbari tristes inaniter stulteque cogitasse civitatis obsidium musitantes*. It is true that barbarians sometimes attempted to besiege towns, as the Goths did in the third century (Zos. 1.43.1 Θεσσαλονίκην ἐπολιόρχουν; cf. Burns, 1980, 22–24 for this and some other examples) and the Alamannic Iuthungi in the time of Constantius, contrary to their habit: *Raetias turbulente vastabant adeo, ut etiam oppidorum temptarent obsidia praeter solitum* (17.6.1). However, in fact not much had changed since the days when Tacitus wrote *nihil tam ignarum barbaris quam machinamenta et astus oppugnationum* (Ann. 12.45.3; cf. D.C. 56.22.2 [barbarians] μήτε πολιορκεῖν ἢ πίσταντο κτλ.). Goessler, 1942 is far too positive about the achievements of barbarians in this field. Admittedly, the Alamannic prince Rando captured Mogontiacum in 368 A.D. (27.10.2), but he had taken advantage of the fact that the city had no garrison at that time. Bands of Goths under Sueridus and Colias beleaguered Adrianople for some time (31.6.3) and then went away without having achieved their aim, persuaded by their leader Fritigern, who saw that they had no experience in conducting a siege (*homines ignaros obsidendi contemplans*) and reminded them that he “had no quarrel with stone walls” (*pacem sibi esse cum parietibus*, tr. Hamilton) 31.6.4; cf. 31.15.15. Cf. 31.8.1, where Amm. states that the Goths did not attempt to besiege a city because they were totally ignorant of siege warfare: (*civitates*) *quarum nullam etiam circumsedere conati sunt haec et similia machinari penitus ignorantes*.

haec memorantes addentesque utilia reducere eum in meliorem sententiam statimque, ut conducebat rei communi, prope Mogontiacum blandius rex ante dictus accitur, proclivis ipse quoque ad excipiendum foedus, ut apparebat Note the difference between *haec memorantes*, which refers to facts, and *addentes utilia*, additional advice, which was advantageous. This cryptic phrase is partly explained by *ut conducebat rei communi* and then fully elucidated: an agreement with the dangerous Alamannic king. This policy may not have been honourable (*honestum*), but it was advantageous for the

Roman Empire (*conducebat rei communi*). Some of Amm.'s instances of *blandus* and *blanditiae* clearly show a hint of pernicious hypocrisy: Constantius wrote *blandius* to Gallus, but deprived him of his means to defend himself (14.7.9), Probus was *blandiensque interdum ut noceat* (27.11.5), king Papa killed the satraps Cylaces and Arrabannes *blanditiarum illecebris* (27.12.14).

See for *res communis* ad 22.11.4 (p. 203) and cf. 27.9.4 (p. 208), for *Mogontiacum* (Mainz) ad 27.10.1 (p. 226) en 29.4.7 (pp. 225–226). Note the difference between Macrianus' situation now and that of some years before, when he had to deal with Julian. This time Macrianus is able to negotiate with the Roman emperor on an equal footing (cf. Lorenz, 1997, 166–167), whereas in 359 Macrianus and his brother obtained a peace agreement from Julian peace after they had begged for it with anxious minds (*venerant pacem anxii animis precaturi*, 18.2.15).

et venit immane quo quantoque flatu distentus ut futurus arbiter superior pacis dieque praedicto colloquii ad ipsam marginem Rheni caput altius erigens stetit hinc inde sonitu scutorum intonante gentilium. The function of *et* is best explained as “beginning an emphatic or confirmatory sentence”: “and in fact” (OLD s.v. 2); cf. the famous words in Augustine's *Confessiones*: *et veni Mediolanum ad Ambrosium episcopum* (5.13.23). Amm. goes out of his way to portray the arrogant Macrianus as the absolute opposite of what Roman codes of conduct described as a decent leader. The words *immane quo quantoque* also occur in 15.8.15 (*gaudio*) and 25.8.2 (*ardore*). Ad 24.4.21 (p. 128) it is pointed out that the participle *distentus* derives from both *distinere* and *distendere*. The present text is an example of the latter, with the meaning ‘full (with)’. Macrianus took pride in this future role as an *arbiter superior pacis*, which he allotted to himself. Cf. for *flatus*, ‘pride’, 20.9.4 *tumentis flatu deposito*, 27.9.5 *horum flatus* and 28.1.31 *anhelans flatu superbo*. There is only one direct parallel of *arbiter pacis*: Liv. 24.2.4 *si Poenus rursus magis arbiter pacis quam adiutor belli fuisset*. An *arbiter* is a person who witnesses what is happening and is authorized to pass an official judgment; see ad 28.5.7 (pp. 239–240). The addition *superior* may denote that in his typical function he is above the parties. As is observed above ad 30.1.3, *gentilis* can be both a noun and an adjective; the former is more likely here: ‘countrymen’. Macrianus' arrogant behaviour in his dealings with Valentinian again contrasts sharply with the embarrassment he felt in 359, when he went to see Julian: *inter aquilas admissus et signa stupebat armorum viriumque varium decus visa tunc primitus* (18.2.17). It contrasts also with the way other Alamans and barbarians behaved in the presence of Julian. Cf. e.g. 16.12.65 (Chnodomarius) *qui primo curvatus, deinde humi suppliciter fusus gentilique*

prece veniam poscens bono animo esse est iussus, 17.8.5 (Chamavi) *quorum legatis paulo postea missis precatum consultumque rebus suis humi prostratis sub obtutibus eius pacem...tribuit*, 17.10.3 (Suomarius) *quia vultus incessusque supplicem indicabat, susceptus bonoque animo esse iussus...pacem genibus curvatis oravit*, 17.10.7 (Hortarius) *oravit ipse quoque veniam facturum se imperanda...promisit*, 17.10.9 (Hortarius) *ad colloquium...accitus a Caesare tremantibus oculis adorato...condicione difficili premebatur*.

For the habit of beating spears against shields of both Romans and barbarians see ad 20.5.8 (pp. 127–128), for *scutum* ad 21.2.1 (p. 25).

contra Augustus escensis amnicis lembis saeptus ipse quoque multitudine castrensi- 3.5
ordinum tutius prope ripas accessit signorum fulgentium nitore conspicuus Valentinian's meeting with Macrianus for peace talks resembles that of his brother Valens and the Gothic leader Athanaric on the Danube in, presumably, February or March 370 (see ad 27.5.10 [pp. 121–125], also for some other parallels). For *lembi*, small rowing or sailing boats, see ad 18.5.3 (p. 129) and 21.9.2 (p. 115), for *castrensis* ("ad castra pertinens, in castris usitatus, militaris") TLL III 544.51sq. Cf. for *saeptus* denoting security measures 20.5.1 *saeptusque tutius armatarum cohortium globis*, which suggests that in the present text too *tutius* belongs to *saeptus*. There is a note on the four main meanings of *ordo* in Amm. ad 20.5.7 (p. 125). Most often the word is found in a military context, as in the present text ("a throng of military officers", Rolfe). See for *signum* ad 25.1.8 (p. 17). The impression, which the brightness of the Roman standards made on adversaries, is a recurring theme in Amm.; see ad 28.5.3 (p. 235).

et immodestis gestibus murmureque barbarico tandem sedato post dicta et audita ultro citroque versus amicitia media sacramenti fide firmatur It is, unfortunately, impossible to define the "frantic gesticulations" (tr. Hamilton) of the Alamannic hooligans, but in all probability these will have expressed dislike of the Romans. Cf. Liv. 21.20.7 *Eadem ferme in ceteris Galliae conciliis dicta auditaque*, 34.33.3 *His dictis in vicem auditisque*. The present text and 28.1.29 are Amm.'s only instances in which *sacramentum* is no more than a synonym of *ius iurandum*. In the other nine cases it means a military oath in phrases denoting either discharge from military service, e.g. 24.3.2 *duo tribunos sacramento solvit* (p. 73), or re-entry, e.g. 26.7.4 *Gomoario et Agiloni revocatis in sacramentum*.

hisque perfectis discessit turbarum rex artifex delenitus futurus nobis deinceps 3.6
socius et dedit postea ad usque vitae tempus extremum constantis in concor-

diam animi facinorum documentum pulchrorum Clark, Rolfe and Sabbah wisely print a comma after *delenitus*. In 29.6.4 Seyfarth prints *delinitis*, but here he prefers the emendation of Adrien de Valois. The verb means ‘to calm down’. With *futurus* Amm. embarks on a succinct characterization of Macrianus’ future conduct as a loyal ally of Rome. This is phrased in a rather convoluted style. The direct object of *dedit* is *documentum*, which is accompanied by two genitives: *animi* is a gen. obiect.: the king demonstrated his feelings, which were unwavering (*constantis*). Here a difficulty arises: this is according to TLL IV 537.80–81 the only case in which *constans* is combined with *in* + acc.; in his notes Viansino regards it as “nuovo”. This is unsatisfactory. In TLL IV 537.61–72 some examples of *constans in* with abl. are given. Hence it is not rash to propose the emendation *concordia*, which solves the problem. Finally, the gen. *facinorum...pulchrorum* can be explained as gen. explic.: the demonstration which consisted of honorable deeds. Examples of Macrianus’ loyal conduct are not available.

- 3.7 *periit autem in Francia postea, quam dum internecive vastando perrupit avidus, oppetit Mallobaudis bellicosi regis insidiis circumventus* With *autem* a new topic is introduced. As is noted ad 20.4.10 (p. 76), Amm. uses *internecivus*, ‘murderous, destructive’ more than other authors. The verb *perrumpere* means ‘to invade’.

The name *Francia* for ‘the land of the Franks’ is a hapax in Amm. We find it in e.g. Hier. *Hilar.* 13, Auson. *Mos.* 434 and Claud. *Cons. Stil.* 1.237. It is not known what part of *Francia* Amm. precisely means and of which Frankish tribe Macrianus’ opponent Mallobaudes was king; as is noted ad 27.8.5 (p. 194), the Franks lived just north and east of the lower Rhine in what are now the Netherlands and the north-western parts of modern Germany, and they consisted of various tribes. Nor is it known when Macrianus invaded Mallobaudes’ kingdom where he met his death, but *postea* certainly denotes a date later than the autumn of 374 (cf. § 3). The dates given in *PLRE* I, Macrianus 1 are confusing; “around 380”, as Drinkwater, 2007, 318 suggests, is a mere guess. We shall meet Mallobaudes again in 31.10.6, as a high-ranking officer in the Roman army of 378: *Mallobauden...domesticorum comitem regemque Francorum, virum bellicosum et fortem*. As e.g. De Jonge ad 15.5.6 (pp. 82–83) and Waas, 1971², 108 already stated, he should not be identified with the *armaturarum tribunus* Mallobaudes mentioned in 14.11.21 and 15.5.6, pace *PLRE* I, Mallobaudes. For the spelling of Mallobaudes’ name (both the Hersfeldensis and the Fuldensis read Mellobaudes) see Wagner, 1997.

post foedus tamen sollemni ritu impletum Treveros Valentinianus ad hiberna discessit After the brief information about Macrianus' future conduct Amm. returns to the protagonist of the chapter. As is pointed out in the notes ad 20.5.1 (p. 114) and 26.3.6 (p. 73), in Late Latin *tamen* often functions as a purely connective particle without any adversative force.

Valentinian was back in Trier on 3 December 374 at the latest (*Cod. Theod.* 4.17.1), which implies that the peace with Macrianus had been concluded before that date, in, say, November 374.

CHAPTER 4

Introduction

At the beginning of this chapter the author announces that, having reported the actions in Gaul and the northern regions, he will now turn to the eastern part of the Roman Empire. There were, so he says, no military operations at the time, but the internal situation was continuously deteriorating, specifically as regards the proper administration of justice. This was threatened by some of the advisers of the emperor Valens. They made every effort to persuade him to stop his personal involvement in the justice system, because they feared that his honesty would interfere with the interest of the powerful, who opted for personal advantage rather than for moral rectitude. The PPO Modestus finally succeeded in convincing the emperor to change his attitude. This episode forms only part of the introduction to the main subject of the chapter: the incompetence and untrustworthiness of the lawyers in the eastern provinces of the empire.

Amm. then moves on to a brief historical overview of forensic rhetoric, in which he explicitly mentions some of its famous representatives, who combined professional skill with honest principles. In §8 the description of the present situation begins with *At nunc videre est*, a formula which announces a sketch showing how the lawyers of today are the total opposite of the lawyers of the past, with regard to their calibre. In a cryptic phrase in §4 the author had hinted at his own bad experiences with contemporary lawyers. He now enjoys himself with a satire on the entire profession, comparable to the two satirical digressions about the population of Rome in 14.6 and 28.4. There were, according to him, four categories of lawyers, all lacking true competence and honesty, and the general forensic climate was very unhealthy for all those who were involved, the lawyers themselves included.

In the course of the chapter the reader meets many people who do not come up to the mark either morally or intellectually. On the other hand, in his various historical overviews the author mentions praiseworthy men, icons of true civilization, the likes of Cicero and Demosthenes and others, whose intellect had been truly trained by *vetustatis lectionibus* (30.4.2), for instance the emperor Julian, *antiquitatum peritus* (23.5.21, p. 124), and, indeed, the man who possesses a thorough familiarity with the political and

literary history of the Greek and Roman world to the benefit of his readers, namely the author himself. In conformity with the customs of his trade he does not mention his name: his words suffice.

- 4.1 *Haec per Gallias et latus agebantur arctoum. at in eoīs partibus alto exter-
norum silentio intestina perniciēs augebatur per Valentis amicos et proxi-
mos, apud quos honestate utilitas erat antiquior* With the opening sen-
tence Amm. refers to Valentinian's dealings with the Alaman Macrianus
and the peace treaty with that king, as narrated in chapter 3. As in 30.3.3,
Galliae must be taken in the sense of: those provinces of the prefecture
of the Gauls (for which see ad 15.11.1, pp. 57–58) which were close to the
frontier with the barbaricum, i.e. Germania Prima and Germania Secunda.
Hagendahl, 1921, 71 deals with Amm.'s remarkable predilection for the Greek
adjectives *arctous* and *eous* to denote North and East respectively. These
adjectives are by no means unusual in Latin literary texts, but they occur
seldom in prose, as is amply illustrated by Hagendahl's material. See for
arctous ad 21.13.1 (p. 191) and for *in eoīs partibus* ad 18.4.2 (p. 98) and 26.5.2
(p. 101).

The contrast between internal and external affairs during Valens' reign is
also expressed in 29.1.4 *securus interim hostium externorum intestinis paene
perierat fraudibus* (p. 9). Unethical behaviour of Valens' courtiers (and of the
emperor himself) is chided by Amm. more than once, cf. 26.10.14, 29.1.19,
31.14.3. The phrase *altum silentium*, which was coined by Vergil in *A.* 10.63,
occurs more often in Amm. (see ad 21.4.8, p. 48), but only here does it
denote the absence of any notable events. This is surprising in view of the
dangers involved in king Sapor's aggressive policy and the presence of the
Goths near the Roman border. It is tempting to interpret *alto silentio* as an
abl. causae: the rise in internal troubles was due to the absence of military
activities, but a more neutral interpretation ('during the absence of') is
perhaps more likely in view of the fact that Valens' friends are explicitly
indicated as the culprits. Apart from 15.4.1 *id visum est honestum et utile*
this is the only passage in Amm., in which the two contrasting principles,
which are well known from Cicero's *De officiis*, are explicitly mentioned.
In Valens' immediate entourage practical advantage 'prevailed over' moral
principles. See for this meaning of *antiquior* Cic. *Fam.* 11.27.2 *nemo est mihi
te amicus antiquior* and *Div.* 1.27 *antiquiorem enim sibi fuisse possessionibus
suis gloriam* (with Pease's note).

*navabatur enim opera diligens, ut homo rigidus audire cupiens lites a studio
iudicandi revocaretur metu, ne ita ut Iuliani temporibus defensione innocen-*

tiae respirante frangeretur potentium tumor assumpta licentia latius solitus evagari Amm. uses the phrase *operam navare* (OLD: “to devote one’s energies”), which occurs often in classical Latin, ten times; in six cases the adj. *diligens* is added to *opera*. As in 28.4.3 (p. 174, where one should read Valens instead of Valentinian), *rigidus* has the positive connotation of sternness. Valens was not totally devoid of good qualities, but he was prone to listen to bad advisors. Cf. 27.5.8 *imperator rudis quidem, verum spectator adhuc aequissimus rerum, antequam adulationum perniciosus illecebris captus rem publicam funeribus perpetuo deflendis affligeret*, with Sabbah 448 and 504. There are notes on Julian’s administration of justice and his activities as a judge ad 21.12.23 (p. 183), 22.9.9 (p. 167), 22.10.1 (p. 186) and 25.4.9 (pp. 132–133). With *potentes* Amm. expresses the same as with *amici et proximi* in the foregoing sentence; cf. ad 27.10.10 (p. 242), but here it has, as often in Late Antiquity, an additional connotation: “qui ius opprimunt, iudicem vel adversarium terrent sim.” (TLL X 2.279.80–81). See for the opposition *potentes*—*tenuiores* in judicial matters below, ad § 2 (pp. 64–65). Cf. for another example of *respirare* with a transferred sense 16.8.6 *tandem veritas respiravit oppressa*. In various passages of the *Res Gestae* the evil influence of *licentia* is sketched. In a telling phrase in his deathbed speech Julian displays his aversion: *licentiam omnem actibus meis exterminans, rerum corruptricem et morum* (25.3.18, pp. 96–97). The mere idea of Valens as a sort of Julian ‘redivivus’ made the *potentes* nervous.

ob haec et similia concordi consensu dehortantibus multis maximeque Modesto praefecto praetorio regionum arbitrio spadonum exposito et subagreste ingenium nullius vetustatis lectionibus expolito coacto vultu fallente et asserente quod infra imperiale columen causarum essent minutiae privatarum Remarkably, sixteen of the nineteen instances of *haec et similia* in CLCLT are found in Amm. It is a formula which suggests that the author would be able to provide further information. The phrase *concordi consensu* would not have been out of place in the list of pleonastically used adjectives in Hagendahl, 1924, 202–207. This is Amm.’s only instance of the verb *dehortari*, a synonym of *dissuadere*. The term *imperiale columen* does not occur anywhere else. It is a shorter form of *potestatum omnium columen* (20.5.3).

Various translators assume that the historian notes two flaws in the PPO Modestus’ person: he is a plaything of the eunuchs at the imperial court and he lacks true education, which he tries to ‘hide’ (*fallente*) ‘with a forced facial expression’ (*coacto vultu*). This may just be possible, but Tränkle, 2008 offers a far more likely interpretation, in which *fallere* has the more usual meaning ‘to deceive’, and the gaps in education are ascribed to Valens.

Amm. refers to Valens' 'rusticity' in two other passages: in 29.1.11 (pp. 22–23) he calls him *subrusticum hominem* and in the elogium in 31.14.5 he uses the same characterization as in the present text. With this interpretation Modestus is one of the *multi*: 'when many (officials) tried to talk Valens out of his intentions, and most of all Modestus, who deceived his rustic mind' (as he had done in 29.1.11). Valens' lack of knowledge of ancient history (*nullius vetustatis lectionibus expolitus*) contrasts with the expertise which Julian was proud of: *haec ut antiquitatum peritus exposui* (23.5.21). As to the other weakness, being the plaything of the eunuchs at court, V's text has not been queried by any editores: the abl. *exposito* implies that this characterizes Modestus. Yet one wonders whether Amm. did not write *expositum*, to go with *ingenium*. We know very little about Valens' relations with the eunuchs at the court, but Amm. more than once refers to their influence on emperors, for instance *dumque ad spadonum arbitrium trahitur* (20.2.4, p. 18), *spadonum gracilentis vocibus...nimium quantum addictus* (21.16.16, pp. 267–268). In Valens' final moments a few of them were with him (31.13.14). OLD offers "unnatural, artificial, forced" as translations of *coactus*. Some editores prefer Gelenius' *nullis* to *nullius*, the reading of the Hersfeldensis and V. Blomgren 147 rightly upholds *nullius*, which is a clear case of what Löfstedt, 1956, II 109 ff. has explained as 'Kasusattraktion'; see also Szantyr 159–160. Details about the career of Flavius Domitius Modestus (PLRE I, Modestus 2) are given ad 29.1.10 (pp. 21–22). For (literature on) the function of *praefectus praetorio* see ad 21.6.5 (pp. 83–84), 23.5.6 (p. 94), 25.3.14 (p. 85) and 26.2.1 (p. 38). The following high-ranking officials may have joined Modestus in dissuading Valens to act as judge (but evidence is lacking): the *magister officiorum* Sophronius (PLRE I, Sophronius 3; cf. ad 26.7.2 [pp. 181–182] and Brauch, 2006); the *comes rei privatae* Fortunatianus (PLRE I, Fortunatianus 1; cf. ad 29.1.5 [p. 10]); the *comes sacrarum largitionum* Vindaonius Magnus (PLRE I, Magnus 12); Tatianus (PLRE I, Tatianus 5 + Martindale, 1974, 251; cf. Barnes, 1984 and Rebenich, 1989), who was *consularis Syriae et comes Orientis* 370/374 and *comes sacrarum largitionum* 374–380. Cf. in general for Valens' bureaucrats Lenski, 2002, 62–64.

As was mentioned above, Amm. refers to Valens' 'rusticity' in two other passages: in 29.1.11 (pp. 22–23) he calls him *subrusticum hominem*, and in the elogium in 31.14.5 he uses the same characterization as in the present text. He further says there, that the emperor was not schooled in liberal studies (*nec...liberalibus studiis eruditus*). By calling him *rudis* in 27.5.8 and 31.14.8 Amm. again refers to Valens' lack of education. Cf. Drijvers, 2012, esp. 94–97. Valens' poor schooling is also made manifest by the fact that, at least in the beginning of his reign, this ruler of the eastern part of the empire

was unable to understand Greek. Cf. e.g. Them. *Or.* 6. 71 c and for further evidence derived from Themistius Errington, 2000, 878–889. See also Lenski, 2002, 94–95.

The most influential of Valens' eunuchs was the Grand Chamberlain Heliodorus; see for him 29.1.5 (pp. 11–12) and 29.2.6–13 with the notes (esp. pp. 85–87). For eunuchs in general see the literature cited ad 20.2.3 (p. 14), 23.6.18 (p. 151), 27.12.5 (p. 275) and 29.2.7 (p. 85). *PLRE* I mentions two other courtiers of Valens who presumably, in view of their functions, were eunuchs, Mardonius 2 and Anonymus 29.

If Valens himself had known his classics, he would have been aware of the fact that some of his predecessors had not looked down on juridical proceedings. Cf. e.g. Suet. *Dom.* 8.1–2 and Plin. *Ep.* 6.31. Above all, there was the example of Julian (see ad § 1 and cf. Jul. Caes. *Mis.* 365 d: ἡ περὶ τὰς κρίσεις ἡμῶν ἀσχολία, “my constant attendance at trials”, tr. Wright). In general for the emperor as judge see Millar, 1977, 516–537 and Jones 505–507. Modestus argued that it was beneath the dignity of an emperor to sit as judge in trivial cases. He did not put forward the practical point Jones 505 refers to: “no emperor can have found time to deal personally with all appeals which came to his court”, adding: “There is, however, no record of how the problem was met until...440” (*Cod. Iust.* 7.42.32). Some concern for more efficiency in legal cases, though not with regard to the emperor, but to a high-ranking official, is shown in *Cod. Theod.* 2.1.8 (to which Seyfarth points in n. 40 of his bilingual edition), issued in 395 and addressed to the *vicarius urbis Romae* Pasiphilus (*PLRE* I, Pasiphilus 2). It states inter alia that Pasiphilus should only judge important crimes and not bother with slight and trivial matters.

ille ad humilitandam celsitudinem potestatis negotiorum examina spectanda instituisse arbitratus, ut monebat, abstinuit penitus laxavitque rapinarum fores, quae roborabantur in dies iudicum advocatorumque pravitae sententiarum paria, qui tenuiorum negotia militaris rei rectoribus vel intra palatium validis venditantes aut opes aut honores quaesivere praeclaros The campaign to stop Valens (*ille*) from occupying himself with all sorts of trials met with success: the emperor was even convinced that the ‘swarms’ of affairs which he had to examine ‘had been contrived’ to degrade his high status. There is, however, a textual problem: *instituisse* is not a passive form. Gelenius’ *instituta esse* has not been accepted by Clark (followed by Rolfe), or by Sabbah; in the latter’s translation *instituisse* retains its active meaning: “Valens, ayant cru qu’à entreprendre d’examiner des nuées d’affaires, il rabaisait la grandeur du pouvoir”. This rendering of *ad* with gerundive is impossible. The conclusion must be that Viansino rightly followed Henri

de Valois in printing Gelenius' *institutae esse*. The verb itself is here a juridical t.t.; see Heumann-Seckel s.v. 3 ("beginnen", "unternehmen") and TLL VII 1.1992.68–1993.11. See for *spectare* meaning "to examine, scrutinize" OLD s.v. 6; the gerundive *spectanda* can be interpreted as the equivalent of a part. fut. pass. with a 'final' connotation: 'in order to be examined'. Another problem, though a less serious one, is the subject of *monebat*. This is not Valens, who was the addressee of the recommendations. Hence *monebatur* (Günther, 1891, 68, who compares it with his ill-considered *agitabatur* in 26.7.3 [p. 184]). The only possible solution is to assume that Modestus is the subject. The tense supports this: it was precisely Modestus who kept warning against the danger of degrading the imperial dignity. There is, therefore, no need for the proposal of Mommsen: *monebant*.

Müller, 1873, 363 proposes another emendation: *negotiorum examina spectandorum*, but, as in the case of *nullius* in this section, this is an example of enallage; see Blomgren 146. It should be noted that *fores* is due to Gelenius; V has *plures*, which Petschenig, 1892, 686 proposes to emend to *funes* ("Ich schreibe *funes* nach Coripp. Ioh. II 60 *scelerum laxabat habenas*"). Other emendations assume the loss of a noun to go with *plures*. Sabbah is satisfied with V's text and combines *plures* and *rapinarum*: "laissa libre cours à la plupart des rapines". None of these solutions is fully convincing, but for Gelenius' *fores* there is a parallel: *laxabit atri carceris iam iam fores* (Sen. *Her. O.* 1141). The phrase *paria sentire* occurs rarely, but there is another instance in Amm.: *paria sentiens* (15.7.9).

In the text of the lemma the word *iudex* is used, as most frequently in Amm. (cf. e.g. §13 and 21 below), in its usual sense of 'judge'; for other meanings see ad 20.5.7 (pp. 125–126). *Advocatus* is one of the words Amm. uses for 'lawyer'; we also find it in 30.4.19 and 30.4.22. Synonyms are *defensor causarum* (22.10.4, 25.9.4 [p. 289], 28.1.14, 29.3.6), (*forensium causarum*) *patronus* (29.2.8, 30.4.19, 30.4.22), *scholasticus* (not in Amm.), *togatus* (not in Amm., but cf. 29.2.22 *contogatus* [p. 107]), and *causidicus* (not in Amm., but cf. *causidicina* in 30.4.22). See in general for lawyers in the Later Empire Jones 507–516, Wieling, 1996 and particularly Humfress, 2007, 93–132. Cf. also Matthews, 1992; Caltabiano, 1996; Mastroianni, 2010; Sánchez-Ostiz (forthcoming).

In a law of 293 (*Cod. Iust.* 2.13.1–2) the emperor Diocletian observed that in lawsuits *tenuiores* were often oppressed by the unfortunate interference of *potentes* (*saepe importunis potentium intercessionibus opprimuntur*); he therefore wanted to stop this malpractice. *Tenuiores* in the sense of 'poor people', 'lower classes' is already found in e.g. Tac. *Ann.* 16.5.3 and *Dig.* 48.19.28.2 (cf. the positivus of this adj. in Cic. *Off.* 2.70 and Plin. *Ep.* 2.20.13).

Diocletian's law is only one of many in which emperors tried to curb the power of *potentes*, *potentiores* or *potiores*, and defend, not only in judicial matters, the interests of the lower classes (*plebs*, *humiliores*, *inferiores*, *minores*, *pauperes*, *tenuiores* etc.; cf. for the terminology Grodzinsky, 1987, who restricts herself, however, to the Theodosian Code, as is especially clear on pp. 154–157 concerning *tenuiores*). See e.g. *Cod. Theod.* 1.15.1 and *Cod. Iust.* 1.40.2 and cf. e.g. Gaudemet, 1966; Wacke, 1980, 578–589 and Santucci, 1996. In a series of laws, *Cod. Theod.* 1.29.1–5, Valentinian and Valens attempted to defend the poor throughout the empire *contra potentium...iniurias* (*Cod. Theod.* 1.29.1) by reviving the office of *defensor civitatis*, for which see in the first place Frakes, 2001.

For an example of the influence of *militaris rei rectores* see e.g. *Lib. Or.* 39.14 about a lawyer who τοῖς δικασταῖς ἐπάγει τοὺς στρατηγούς δώροις... ἐκείνους ὑφ' ἑαυτῷ ποιοῦμενος ('is used to bring into the courtroom military officers, whom he had bribed, as allies against the judges'). As to *honores...praeclaros*, two of the five high-ranking officials of Valens mentioned above (p. 62), Vindaonius Magnus and Tatianus, had started their career as a lawyer (*Lib. Ep.* 1272 and *ILS* 8444, respectively). Cf. Jones 512: "The bar was undoubtedly throughout the period of the later empire the principal channel whereby men of modest origins could rise to the highest positions in the state". In 29.2.22 (pp. 106–109) we met another former barrister, Valens' favourite Festus (*PLRE* I, Festus 3), *consularis Syriae* in 365 or 368 and *pro-consul Asiae* a. 372–378. Pace Caltabiano, 1996, 482–483 ("un solo esempio specifico di avvocato corrotto durante l'impero di Valente"), the Palladius of 29.1.5 (pp. 11–12) does not, as far as we know, belong to this category.

Hanc professionem oratorum forensium πολιτικῆς μορίου εἶδωλον, id est civilitatis particulae umbram, vel adulationis partem quartam esse definit amplitudo Platonis Amm. opens his indictment of the oriental lawyers with two critical characterizations of forensic rhetoric in general, quoted from two famous, but diametrically opposed, philosophers, Plato and Epicurus. Subsequently he quotes a matter-of-fact definition, which within the present context appears to have a negative connotation. See for the various meanings of *professio* ad 21.6.6 (p. 86). The almost solemn definition in *TLL* X 2. 1691.25–26 is relevant for the present text: "ars vel negotium quodlibet, cui quis fere victus parandi causa operam dat".

Amm. mentions Plato, apart from in the present text, in 16.5.10, 22.16.22, 23.6.32 (*amplissimus Plato*), 25.4.2 and 30.4.5. The expression *amplitudo Platonis* was borrowed from *Cic. Orat.* 5. In 22.16.22 Amm. calls Plato *sermonum amplitudine Iovis aemulus*. Ad loc. (p. 309) it is noted that the word *ampli-*

tudo may have been suggested by the story that the philosopher was called Plato on account of the breadth and range of his written style, cf. D.L. 3.4 and Plin. *Ep.* 1.10.5 *Platonicam illam sublimitatem et latitudinem*. See Riginos, 1976, 35–38.

It is in the *Gorgias* that we find the Greek words quoted by Amm.: ἔστιν γὰρ ἡ ῥητορικὴ κατὰ τὸν ἑμὸν λόγον πολιτικῆς μορίου εἶδωλον (463 d, cf. 463 e). As to *adulationis partem quartam*, in *Grg.* 463 b Plato has Socrates state that flattery (κολακεία) has many parts (πολλὰ...μόρια), one of which is cookery (ἐν δὲ καὶ ἡ ὀψοποιική) and another rhetoric (ταύτης μόριον καὶ τὴν ῥητορικὴν ἐγὼ καλῶ), whereas the art of cosmetics and sophistry are two others (καὶ τὴν γε κομμωτικὴν καὶ τὴν σοφιστικὴν): thus there are four parts (τέτταρα ταῦτα μόρια). As Angliviel de la Beaumelle n. 247 observes, Amm. slightly adapts the meaning, for Socrates does not criticize the profession of advocates, but rhetoric in general; cf. Fornara, 1992, 425: “(Amm.’s quotations) define rhetoric or its subcategory, deliberative oratory, not forensic oratory”.

Epicurus autem κακοτεχνίαν nominans inter artes numerat malas Amm.’s words, listed as *fr.* 20.3 in Arrighetti, 1973², possibly derive from one of Epicurus’ lost works. Quintilian (*Inst.* 2.15.2), when discussing various definitions of rhetoric, states, without mentioning names, that *dicendi facultatem...quidam etiam pravitatem quandam artis id est κακοτεχνίαν nominaverunt* (‘some people have even called rhetoric a bad art or κακοτεχνία’). Cf. Quint. *Inst.* 2.20.2 *equidem illud, quod in studiis dicendi plerique exercuerunt et exercent aut nullam artem...puto...aut malam quasi artem, quam κακοτεχνίαν dicimus* (‘The way, indeed, in which many have proceeded and still proceed in the practice of speaking, I consider either as no art...or as it were a bad art, which we term κακοτεχνία’, tr. Watson).

Tisias suasionis opificem esse memorat assentiente Leontino Gorgia The Sicilians Tisias and his teacher Corax were considered among the ancients to be the inventors of the art of rhetoric. Cf. Cic. *Brut.* 46 *ait Aristoteles...tum primum...artem et praecepta Siculos Coracem et Tisiam conscripsisse* (‘the Sicilians Corax and Tisias have then, according to Aristotle, for the first time written precepts on the art of speaking’). “Welche Rolle Korax und Teisias dabei im einzelnen spielten, läßt sich angesichts der kaum miteinander zu vereinbarenden Überlieferung nicht entscheiden” (Baumhauer, 1999, 734). Cf. in general Hinks, 1940 and Kennedy, 1963, 58–61. Cole, 1991 argues that Corax (‘Raven’) was merely Tisias’ nickname. Gorgias of Leontini, the ‘father of the sophists’ (Philostr. *VS* 492), called himself an orator and a teacher of rhetoric, according to Pl. *Grg.* 449 a–b. “His visit to Athens as an ambassador

in 427 is traditionally seen as a landmark in the history of rhetoric, introducing Sicilian techniques into the Athenian tradition of oratory” (Russell, 2012, 622). See for him in general Kennedy, 1963, 61–68, Buchheim, 1989, and Narcy, 1998.

We find the definition, which Amm. ascribes to Tisias, also in [Marcellinus] *Introductio in prolegomena Hermogenis artis rhetoricae*, p. 277 Rabe (cited as *fr.* B II 13 by Radermacher, 1951, 30): οἱ περὶ Τισίαν καὶ Κόρακα ὀρίζονται αὐτὴν (i.e. rhetoric) οὕτως: “ῥητορικὴ ἐστὶ πειθοῦς δημιουργός”. According to Quint. *Inst.* 2.15.4 the words go back to Isocrates (or at least to the handbook circulating under Isocrates’ name): *dicens esse rhetorice ‘persuadendi opificem’, id est πειθοῦς δημιουργόν*. Quintilian adds (*Inst.* 2.15.5): *apud Platonem quoque Gorgias in libro, qui nomine eius inscriptus est, idem fere dicit*, referring to Pl. *Grg.* 453 a λέγεις ὅτι πειθοῦς δημιουργός ἐστὶν ἡ ῥητορικὴ. Sextus Empiricus (*M.* 2.61) mentions Xenocrates as the author of the definition.

quam a veteribus ita determinatam orientalium quorundam versutia ad usque bonorum extulit odium, unde etiam retinaculis temporis praestituti frenatur 4.4

The only other instance of *determinare* in the *Res Gestae* occurs in 22.8.43, where the verb has a geographical sense. Here it means ‘to define’. The *veteres* are the four individuals mentioned in the previous section. By far the most instances of *versutia* occur in Late Latin texts. The explicit addition of *orientalium* and *per eos omnes tractus* (§8) is probably meant to prevent Roman readers from becoming irritated. The translators assume that *bonorum* is a gen. subiectivus (the *boni* hated the lawyers’ rhetoric). In the various translations, however, the meaning of *extulit* is unclear. In TLL V 2.147.49–148.23 there is a list of instances of the verb *efferre* meaning “in statum vel condicionem sublimem adducere (adhibetur tam in bonam quam in malam partem)”; 30.1.3 is an example of the latter: *iuvenem ad superbos actus elatum*. This also seems to fit the present text: the *veteres* produced a disapproving definition of rhetoric (*ita determinatam*), which the ‘sly craftiness’ of some Easterners ‘upgraded’ to hatred of respectable people, with *bonorum* as a gen. obiectivus. However, TLL V 2.143.18–20 quotes Tac. *Hist.* 4.42.1 (*Regulum subversa Crassorum et Orfiti domus in summum odium extulerat*, “Regulus had made himself most bitterly hated for causing the downfall of the houses of the Crassi and of Orfitus” [tr. Moore]) as an example of *efferre* used as a synonym of *rapere* and *auferre* in a transferred sense, adding: “cf. Amm. 30.4.4”. Here Regulus is obviously the object of the hatred of others, who are not explicitly mentioned. Heubner ad loc. notes “Nachahmung des von Tac. geprägten Ausdruck Amm. 30.4.4”. If this is correct, it implies that in the

present text *bonorum* is indeed a gen. subi.: ‘the hatred felt by the elite’ and not ‘the hatred (of the lawyers) towards the *boni*’.

The words *retinaculis temporis praestituti frenatur* are interpreted by some scholars as a reference to a time limit for speakers in the courtrooms. So e.g. Rolfe: “this art...is even confined by the restraints of a time fixed beforehand”, with in n. 5 ad loc.: “so, at Athens, to a space of time marked by the emptying of the clepsydra, or water clock”. However, as Matthews, 1992, 50 remarks, “it was certainly not the case...that the institution of a time limit upon speakers was due to any recent experience in the east (*orientalium quorundam versutia*)”. Indeed, we know about this practice not only from classical Athens (see e.g. Arist. *Ath.* 67.2 with Rhodes’ commentary), but also from imperial Rome (Plin. *Ep.* 2.11.14, 6.2.6–7, cf. Wieling, 1996, 437 and the commentary of Wisse, Winterbottom and Fantham ad Cic. *de Orat.* 3.138). Should we therefore simply conclude with Fornara, 1992, 425 that “the assertion is factually false”? Or should we assume that Amm. did not think of a water-clock at all, but only wanted to say that, to borrow words of Libanius (*Or.* 62.43), it was “the pressure of business upon the governors regarding the levy of taxation and their allocation of a brief part of the day to court actions” (ἡ τῶν δικαζόντων περὶ τὰς εἰσπράξεις ἀσχολία καὶ τὸ ταῖς...δίκαις ὀλίγον μέρος τῆς ἡμέρας νέμειν) which “has expelled long, fine discourses and has revealed the true functions of the orator to be a nuisance” (μήκη τε καὶ κάλλη λόγων ἐξέβαλε καὶ τὸ τοῦ ῥήτορος ὡς ἀληθῶς ἔργον ὄχλον ἀπέφηνε, tr. Norman)? There is a better interpretation, to which Valesius showed the way.

He noted ad *retinaculis temporis praestituti frenatur*: “cum enim certus esset numerus patronorum, ubi ordine matriculae ad primum locum et Advocationem fisci pervenerant, post biennium abscedebant, ut patet ex Codice”. He apparently suggests that Amm.’s expression refers to the fact that sometimes the career of an advocate was limited to a certain period of time. Evidence for such a limitation is for example *Nov.* 10.2 pr. of Theodosius II, who abolished a rule made by one of his predecessors, which limited the career of an advocate to twenty years: *advocationem certo tempore artare litigatoribus noxium, grave iudicantibus aestimantes constitutionem abrogamus, quae XX annorum curriculis silentium imperat advocatis* (“We consider that it is harmful to the litigants and burdensome to judges to limit the practice of advocacy by a definite time limitation, and We abrogate the constitution which enjoins silence upon advocates after a career of twenty years”, tr. Pharr); cf. for similar laws *Nov.* 2.2, 2.4 and 13.1.9 of Valentinianus III. Libanius’ *Ep.* 857 is also relevant. In it Libanius states that his former pupil Diognetus (*PLRE* I, Diognetus), an advocate, did not like the fact that he was forced by the law to give up his profession (νόμῳ τῷ περὶ χρόνου σιγᾶν ἡναγ-

κασμένος); cf. Lib. *Ep.* 916, where it is stated that a law about a time limit was revoked, and see in general Jones 507–509 (for Valesius’ “biennium” in the case of advocates of the fisc see *Cod. Iust.* 2.7.12).

The reason for such a time limit must be sought in the fact that “the profession was overcrowded” (Jones 509) and threatened to become a burden for society. One possible remedy was the reintroduction of a *numerus clausus* (Valesius’ “certus...numerus patronorum”), which had existed before Constantine rescinded it in 319: *iussione subversa, qua certus advocatorum numerus singulis tribunalibus praefinitus est* (“We hereby revoke the order by which a fixed number of advocates was prescribed for the separate tribunals”, *Cod. Theod.* 2.10.1, tr. Pharr; cf. Wieling, 1996, 429 et seq.). Julian attempted to do this for the court of the PVR: *Sequitur illud, ut patronorum in foro numerum definiamus...Triginta igitur auditorio excellentiae tuae sufficere arbitramur* (Jul. c. *de postulando* 18–22; cf. Bischoff-Nörr, 1963 and Brendel, 2014, 30–35), and there are other examples, e.g. *Nov.* 10.1 of Theodosius II. Another remedy was a time limit, which is meant in the present text.

ergo absolutis super eius indignitate paucis, quam in illis partibus agens expertus sum, ad coeptorum cursum regrediar institutum In combination with *paucis* the verb *absolvere* means “to describe briefly” (OLD s.v. 6); *eius* refers to *professionem* at the beginning of the preceding section. It is clear that Amm. reports from personal experience about the situation in the East (*in illis partibus*): cf. this phrase in Constantius’ speech to his troops: *et ipse expertus et docente antiquitate* (21.13.13). Amm.’s personal involvement has resulted in an entirely satirical sketch; cf. Humfress, 2001, 71: “On the whole, modern historians have tended to accept Ammianus Marcellinus’ comic diatribe against late Roman advocates as historical fact. Yet it is clear from a wide range of both legal and extra-legal source material that late Roman advocates upheld the standards of their predecessors”. Amm.’s use of the first person singular (*expertus sum*) has its parallels in e.g. 15.5.22 (*inter quos ego quoque eram*), 16.7.8 (*neque legisse me neque audisse confiteor*) and 18.6.12 (*cum ego rapido ictu transirem*). He also uses the first person plural, for example *vidimus*, which occurs ten times in the *Res Gestae*, to denote that he saw something as a member of a group, for example in four passages of the report on the Persian expedition: 23.5.7, 23.5.17, 23.6.30, 24.2.3. Particularly interesting are *vidimus* in 29.1.24 (p. 39) and *reptabamus* in 29.2.4 (p. 80), which plead strongly in favour of the view of those scholars, who hold that our author was in Antioch during the treason trials of Valens in 371/372. He was apparently familiar with the procedures in the courtrooms, but the sug-

gestions on the basis of the present text that he himself “was for some time an advocate” and “attempted to practise at the bar” are mere guesses (Steele, 1922, 19 and Thompson 13, respectively; cf. Pack, 1953, 84: “he made an effort to qualify for the bar”). Further guessing makes no sense at all. See ad 28.4.1 (p. 167) for *redire*, *regredi* and *reverti* as technical terms concerning the structure of the *Res Gestae*.

4.5–7 Before passing a detailed judgment on the state of the legal profession which he had experienced, the historian provides a rough outline of the wonderful past, the days of men like Demosthenes and Cicero. Concerning the sources of this survey he restricts himself to a general reference to Athenian registers and the state of the art during the ages of the Roman Republic.

4.5 *Florebant elegantiae priscae patrociniis tribunalia, cum oratores concitae facundiae attenti studiis doctrinarum ingenio, fide, copiis ornamentisque dicendi pluribus eminebant ut Demosthenes, quo dicturo concursus audiendi causa ex tota Graecia fieri solitos monumentis Atticis continetur* For *florere* used about the good old past cf. 22.16.17 (p. 305) *et quamquam veteres cum his, quorum memini* (Aristarchus, Herodianus et ceteri), *floruere complures, tamen ne nunc quidem in eadem urbe* (= Alexandria) *doctrinae variae silent*. The first position of the predicate marks the first part of this lemma as a presentative sentence, in which a new topic is introduced, viz. a brief history of forensic oratory. See for such sentences ad 28.3.3 (p. 152) and Pinkster II 23, 1.2.1.2. The imperf. tense expresses that it was normal for this oratory to blossom in the idealized past (*priscae*). The somewhat surprising position of the gen. qualitatis *elegantiae priscae* before the word on which it depends (*patrociniis*, ‘oral pleadings’) but immediately behind *florebant*, emphasizes the excellence of the climate for this art, as was shown in the ‘performances of the lawyers’. As a rhetorical term *elegantia* denotes the correct and tasteful choice of words: *elegantia est, quae facit, ut locus unusquisque pure et aperte dici videatur* (*Rhet. Her.* 4.12.17). Remarkably, the only direct parallel of *concitae facundiae* is V. Max. 9.14.2 ext.: *Hybrean autem Mylasenum copiosae atque concitatae facundiae oratorem*. TLL IV 38.28–29 suggests, that in the present text *concitae* is a synonym of *ardentis*. In the context it obviously has a positive sense: ‘spirited’ seems a good translation. In a brief enumeration of the essential characteristics of a good lawyer Amm. mentions learning, talent, reliability and an abundant range of stylistic devices. Although the text of the lemma does not contain verbal quotations of Cicero, the contents are Ciceronian; cf. *neque enim ignoro et, quae bona sint, fieri meliora posse doctrina* (*de Orat.* 1.115), *ut enim hominis*

decus ingenium, sic ingeni ipsius lumen est eloquentia (*Brut.* 59), *copiam sententiarum atque verborum...perspexistis* (*Cael.* 45).

The words about Demosthenes, who is called *perpetuum Graeciae decus* in 30.1.23 (pp. 28–29), bear close resemblance to Cic. *Brut.* 289 (*ita necesse fuisse*) *cum Demosthenes dicturus esset, ut concursus audiendi causa ex tota Graecia fierent*; cf. also Cic. *Opt. Gen.* 21–23. For *monumenta* “de historicis narrationibus” (Viansino, 1985, II 104) cf. e.g. Plin. *Nat.* 4.102 *Graecis nostrisque monimentis* and 8.175 *Atheniensium monumentis* with TLL VIII 1464.28sq. One wonders which *monumenta Attica* Amm. had in mind. Fornara, 1992, 426 doubts whether he was thinking of any, and deems Amm.’s words both “instructive and disturbing”. Sabbah, 2006, 261 is more positive.

et Callistratus, quem nobilem illam super Oropo causam, qui locus in Euboea est, perorantem idem Demosthenes Academia cum Platone relictis sectatus est When the Athenian politician Callistratus was accused by Leodamas (Λεωδάμας κατηγορῶν...Καλλιστράτου, *Arist. Rh.* 1.7.13), the issue at stake must have been Callistratus’ conduct in the affairs of Oropus, as is generally assumed (see e.g. Grimaldi’s commentary ad loc.; cf. Sealey, 1956, 194–196 and Hochschulz, 2007, 150–154). Oropus had been seized by the Thebans in 367/366 B.C. Although the Athenians at first wanted to free the town by military force, they refrained from doing so and instead agreed to a compromise worked out by Callistratus, whereby the town would remain in the hands of the Thebans until a definitive solution could be found. When the Thebans later refused to yield, Callistratus had to stand trial.

It would seem that Amm. is wrong in situating Oropus (Talbert 55 F4) on Euboea. It was a “Küstenstadt im NW von Attika gegenüber Eretria, h. Skala Oropu” (Lohmann, 2000, 51). Note, however, that there may have been another city of that name; cf. e.g. St. Byz. pp. 710–711 Meineke Ὀρωπός...κέκληται ἀπὸ Ὀρωποῦ τοῦ Μακεδόνοιο τοῦ Λυκάονος. ἔστι καὶ ἄλλη Εὐβοίᾳς (Meineke regards the last words as an interpolation) and Plut. *fr.* 115 Sandbach Ὀρόπη...πόλις Ἐυβοίᾳς, ὅπου Ἀπόλλωνος διασημότερον ἱερόν, with Cazzaniga, 1965, 162.

The fact that during this trial Callistratus impressed the young Demosthenes with a brilliant oration is referred to in various sources, Plut. *Dem.* 5.1, *Mor.* 844 b, *Lib. Arg. D.* 6, *Suda* Δ 454, Ω 204, *Schol. D.*, 19.524, 24.271 and, most fully, Gel. 3.13, which undoubtedly is Amm.’s source, as Hertz, 1874, 277 already noted: *Hermippus hoc scriptum reliquit Demosthenem admodum adulescentem ventitare in Academiam Platonemque audire solitum. ‘Atque is,’ inquit ‘Demosthenes domo egressus, ut ei mos erat, cum ad Platonem pergeret complurisque populos concurrentes videret, percontatur eius rei causam*

cognoscitque currere eos auditum Callistratum. Is Callistratus Athenis orator in republica fuit, quos illi δημαγωγούς appellant. Visum est paulum devertere experiri, an digna auditio tanto properantium studio foret. 'Venit' inquit 'atque audit Callistratum nobilem illam τὴν περὶ Ὀρωποῦ δίκην dicentem atque ita motus et demultus et captus est, ut Callistratum iam inde sectari coeperit, Academiam cum Platone reliquerit' ("Hermippus has written that Demosthenes, when quite young, used to frequent the Academy and listen to Plato. 'And this Demosthenes,' says he, 'when he had left home and, as usual, was on his way to Plato, saw great throngs of people running to the same place; he asked what the reason for this was, and learned that they were hurrying to hear Callistratus. This Callistratus was one of those orators in the Athenian republic whom they call δημαγωγοί, or 'politicians'. Demosthenes thought it best to turn aside for a moment and find out whether the discourse justified such eager haste. He came,' says Hermippus, 'and heard Callistratus delivering that famous speech of his, ἡ περὶ Ὀρωποῦ δίκη. He was so moved, so charmed, so captivated, that he became a follower of Callistratus from that moment, deserting Plato and the Academy'" tr. Rolfe, slightly adapted). In 18.6.12 and 18.8.4 the verb *sectari* means to 'pursue' people who are fleeing, but here it denotes accompanying "a philosopher or sim. for instruction or enlightenment" (OLD s.v. 5). Gellius' *nobilem*, 'generally known', which is upheld by Amm., is somewhat surprising in that there are no other references to the Oropus affair in the whole of extant Roman literature. Amm. found Gellius' *dicentem* a bit too commonplace, and substituted it with *perorantem*. This verb means either "habere orationem totam" (TLL X 1.1604.67–68) or "dicendi finem facere" (ibid. 1605.56).

Gellius and Amm. are not the only authors who called Demosthenes a pupil of Plato. Cf. Plut. *Dem.* 5.7, where, as in Gellius, Hermippus of Smyrna (see for him Montanari, 1998) is mentioned as the source: "Ερμιππος δέ φησιν ἀδελφότοις ὑπομνήμασιν ἐντυχεῖν ἐν οἷς ἐγγράπτο τὸν Δημοσθένην συνεσχολάκεναι Πλάτῳ καὶ πλείστον εἰς τοὺς λόγους ὠφελῆσθαι" ("Hermippus says that he once came upon some anonymous memoirs in which it was recorded that Demosthenes was a pupil of Plato and got most help from him in his rhetorical studies", tr. Perrin). See further Plut. *Mor.* 844 b; D.L. 3.47; D.H. *Amm.* 1.5, Suda Δ 455. However, "der Unterricht bei Platon dürfte... spätere Erfindung sein" (Engels, 1997, 467). For Plato in Amm. see ad § 3 above (pp. 65–66), for Plato's school, the Academy, e.g. Baltes, 1993 and Slezák, 1996. In 16.1.5 Amm. has Julian taken away from Athens *ex academiae quibetis umbraculis* to become Caesar in the West (Seyfarth should have written *academiae* with a capital).

ut Hyperides et Aeschines et Andocides et Dinarchus et Antiphon ille Rhamnusius, quem ob defensum negotium omnium primum antiquitas prodidit accepisse mercedem In the *Vitae decem oratorum* ascribed to Plutarch (*Mor.* 832 b–852 e) we find short biographies of these five orators who all flourished in classical Athens; the other five are of Demosthenes, Lysias, Isocrates, who is mentioned by Amm. in 30.8.6, Isaeus, and Lycurgus, who is mentioned by Amm. in 22.9.9 (p. 167) and 30.8.13. For the canon of ten Attic orators see Douglas, 1956, who argues that there is no positive evidence for the canon before the 2nd century A.D. (but cf. Quint. *Inst.* 10.1.76 *Sequitur oratorum ingens manus, ut cum decem simul Athenis aetas una tulerit*) and Carey, 2012. Hyperides (389–322) was one of the leaders of the anti-Macedonian party in Athens; stylistically he was, according to Ps. Longinus *De sublimitate* 34.2, a blend of Demosthenes and Lysias; see for him and his work Weißenberger, 1998 and Cawkwell, 2012, 716–717. Aeschines (c. 397–c. 322) had a bitter enemy in Demosthenes, who accused him more than once of being in league with the Macedonians and betraying the interests of Athens. Their feud culminated in two speeches, Aeschines’ *Against Ctesiphon*, in which it was argued that Ctesiphon’s proposal to crown Demosthenes for his services to Athens should be rejected, and Demosthenes’ reply *De corona* or *Pro Ctesiphonte* (cf. §19 below). Demosthenes won the day, whereupon Aeschines retired from Athens to Rhodes. Cf. for him Engels and Weißenberger, 1996.

As a youth Andocides (c. 440–c. 390), together with Alcibiades and others, was accused of having mutilated the statues of Hermes on the eve of the great expedition to Sicily in 415, and of having profaned the Eleusinian mysteries. He was arrested, but escaped conviction by a partial confession. Most of his surviving orations deal with these affairs and their aftermath. Cf. Furley, 1996 and Cawkwell, 2012, 84–85. Originally Dinarchus (c. 360–c. 290) was not an Athenian citizen, unlike the other orators mentioned in the present text. Born in Corinth he lived in Athens as a metic and wrote speeches for others, but later he apparently gained citizenship. “Dinarchus marks the beginning of the decline in Attic oratory. He had little originality, except some skill in the use of new metaphors; he imitated his predecessors, especially Demosthenes” (Cawkwell, 2012, 452); cf. Engels and Weißenberger, 1997.

Antiphon (c. 480–411) of Rhamnus (a deme on the north-east coast of Attica; Lohmann, 2001) is highly praised by Thucydides, who regarded the speech Antiphon held in his own defence when accused of treason in 411 as the finest he knew (8.68.2). See in general Selzer, 1996 and Gagarin, 2002. As in 21.13.13 *docente antiquitate* and 27.4.4 *ut antiquitas docet* (pp. 82–

83) the noun denotes the available evidence provided by events in former ages. Amm.'s statement that Antiphon was the first to accept payment for defending someone is not found in any other source, but in comedy Antiphon's love of money was laughed at (Plut. *Mor.* 833 c κεκωμώδεται δ' εἰς φιλαργυρίαν ὑπὸ Πλάτωνος ἐν Πεισάνδρῳ; Philostr. *VS* 499 καθάπτεται δὲ ἡ κωμωδία τοῦ Ἀντιφώντος ὡς δεινοῦ τὰ δικανικά καὶ λόγους κατὰ τοῦ δικαίου συγκειμένους ἀποδιδομένου πολλῶν χρημάτων, "Antiphon is attacked in Comedy for being too clever in legal matters, and for selling for large sums of money speeches composed in defiance of justice", tr. Wright).

Whatever the truth about Antiphon, in imperial times "it was, of course, a common topos that advocates of a higher social standing pleaded cases to enhance their reputations, whilst those of a low social status sought out cases for the profit" (Humfress, 2007, 101). On payment and honoraria for advocates one should consult, as Humfress, *ibid.* n. 32 notes, *Dig.* 50.13.1.10, *Cod. Iust.* 2.6.3, 4.6.11, 2.6.06.3–5, *Cod. Theod.* 2.10.3–4, 8.10.2. See on this topic further Wieling, 1996, 440–449, Dimopoulou, 1999, 189sq. and Marotta, 2006, 95sq. At any rate, the *lex Cincia de donis et muneribus* of 204 B.C., *qua cavetur...ne quis ob causam orandam pecuniam donumve accipiat* (Tac. *Ann.* 11.5.3), had long been superseded.

4.6–7 Whereas in the case of Greek forensic rhetoric the intellectual background of the men in question was briefly indicated, the Roman orators tended to have had a political or military career.

4.6 *nec minus apud Romanos Rutilii et Galbae et Scauri vita moribus frugalitateque spectati* The combination of *vita* and *mores* occurs often and in various authors. The addition of *frugalitas* is remarkable, the more so because there is only one other instance of this word in the *Res Gestae*: 16.11.1. Is it meant to express a contrast with *accepisse mercedem* in the preceding section?

Since orators named Rutilius, Galba and Scaurus all feature in Cicero's *Brutus*, it is likely that Cicero's P. Rutilius Rufus, consul in 105 B.C. (Broughton, 1951, 555), is meant by Amm., rather than P. Rutilius Lupus, who in the early first century A.D. translated a work on rhetorical figures of speech by his contemporary Gorgias (not to be confused with Gorgias of Leontini). As Scardigli, 2010, 151 rightly observes, Seyfarth in n. 44 of his bilingual edition apparently failed to differentiate between these Rutilii: "P. Rutilius Lupus aus nachaugusteischer Zeit...von Cicero im 'Brutus' charakterisiert". See for Rutilius Lupus e.g. Quint. *Inst.* 9.2.102, for Rutilius Rufus e.g. Cic. *Brut.* 113, where his solemn and stern way of speaking is mentioned: *Rutilius...in quo-*

dam tristi et severo genere dicendi versatus est. In *Brut.* 115 Cicero refers to the in his eyes scandalous condemnation of Rutilius in 92 B.C. for extortion; cf. for this trial Kallet-Marx, 1990. See in general Kierdorf & Giaro, 2001.

Servius Sulpicius Galba, *vir eloquentissimus* (Cic. *Brut.* 127), was consul in 144 B.C. (Broughton, 1951, 470). His abilities as an orator are discussed in Cic. *Brut.* 86–94; see Sumner, 1973, 44–45 and Fündling, 2001. As to Scaurus, according to Seyfarth's n. 44 Mamercus Aemilius Scaurus is meant, "der als Verteidiger und Ankläger z. Z. des Tiberius auftrat" (he is followed by e.g. Mastrorosa, 2010, 90), but again, as in the case of Rutilius, it is more likely that Amm. had the Scaurus of Cicero's *Brutus* in mind, that is, M. Aemilius Scaurus, consul in 115 B.C., censor in 109 (Broughton, 1951, 531 and 545) and *princeps senatus* for a long period (Bates, 1986). In 115 he celebrated a triumph over the Carnian Gauls (Degrassi, 1954, 106). In *Brut.* 116 Cicero mentions him in the same breath as Rutilius: *Habemus igitur in Stoicis oratoribus Rutilium, Scaurum in antiquis.* See Sumner, 1973, 69–70 and Elvers, 1996.

et postea per varias aevi sequentis aetates censorii et consulares multi et triumphales, Crassi et Antonii et cum Philippis Scaevolae aliique numerosi civilibus stipendiorum officiis floruerunt laureasque fori speciosis certaminibus occupantes summis gloriae honoribus fruebantur The importance of the phrase *postea per varias aevi sequentis aetates* should not be overlooked: Amm. notes that in spite of the fluctuations in the history of the Roman Republic the quality of forensic rhetoric remained unimpaired. Blomgren 147 rightly interprets *civilibus stipendiorum officiis* as another case of enallage; see above ad § 2 (p. 64). After their military achievements the exemplary Roman idols shone (*floruerunt*) by performing the duties (*officiis*) belonging to a non-military career (*civilibus stipendiorum*). It is tempting to regard *laureasque fori speciosis certaminibus occupantes* as a playful allusion to their former military feats, but neither *certamen* nor *occupare* is an exclusively military term.

For *censorii* "de hominibus, qui censores fuerunt vel sunt" see TLL III 802.4–20. As is noted ad 29.2.15 (p. 96), Amm. uses the noun *consularis* either in the sense of 'ex-consul', as here and in e.g. 21.6.4 (p. 82), or in that of 'provincial governor' (cf. e.g. 28.1.26 *Sphalangio, Baeticae consulari*). For *triumphalis* designating someone who had been honoured with a triumph cf. e.g. Suet. *Jul.* 4.1 *Cornelium Dolabellam consularem et triumphalem*. Of the individuals, mentioned by name in the present text, all were *consulares*, some had been censor as well (Crassus, Antonius, Philippus), none had celebrated a triumph.

Licinius Crassus, consul in 95 B.C. and censor in 92 (Broughton, 1952, 11; 17) and M. Antonius, consul in 99 B.C., censor in 97 (Broughton, 1952, 1; 6–7) are two of the principal characters in Cicero's *De Oratore*. Antonius' outstanding merit, according to Cic. *Brut.* 215, was the excellency of his delivery; in certain respects he was on a par with Crassus, in others he surpassed him; however, when all is said and done Crassus was the best: (Antonius) *excellebat...actione; erantque ei quaedam ex his paria cum Crasso, quaedam etiam superiora; at Crassi magis enitebat oratio*. See for Crassus e.g. Sumner, 1973, 94–97; David, 1979; Roman, 1994 and Walde, 1999; for Antonius Sumner, 1973, 93–94; Scholz, 1963 and Elvers, 1996. Next to Crassus and Antonius, according to Cic. *Brut.* 173, came L. Marcius Philippus, consul in 91 B.C., censor in 86 (Broughton, 1952, 20; 54): *Duobus igitur summis, Crasso et Antonio, L. Philippus proximus accedebat, sed longo intervallo tamen proximus*; see for him Van Ooteghem, 1961, 157–170; Sumner, 1973, 102 and Elvers, 1999. As to Scaevola, according to Angliviel de la Beaumelle n. 251 Amm. refers to Q. Mucius Scaevola ('Augur'), consul in 117 B.C. (Broughton, 1951, 528), who was an eminent jurist (cf. e.g. Cic. *Brut.* 306); cf. for him Elvers, 2000. However, since we read in Cic. *Brut.* 102 that this Scaevola was never ranked among the orators (*oratorum in numero non fuit*), it is perhaps better to think of his namesake, Q. Mucius Scaevola ('Pontifex'), who was consul in 95 B.C. (Broughton, 1952, 11). This man, too, was a legal expert (cf. e.g. *Dig.* 1.2.41), but on top of that, an *orator* as well (Cic. *Brut.* 311) and a powerful speaker at that (Cic. *Brut.* 145 *iuris peritorum eloquentissimus*); cf. for him Sumner, 1973, 97; Bauman, 1983, 340–423; Elvers & Giaro, 2000 and Ferrary, 2012.

Cf. for some of the *alii...numerosi* Vell. 1.17.3, in whose list only one name occurs that is also found in Amm.: *at oratio ac vis forensis perfectumque prosae eloquentiae decus, ut idem separetur Cato (pace P. Crassi Scipionisque et Laelii et Gracchorum et Fannii et Servii Galbae dixerim) ita universa sub principe operis sui erupit Tullio, ut delectari ante eum paucissimis...possis* ("take oratory and the forensic art at its best, the perfected splendour of eloquence in prose, if we again except Cato—and this I say with due respect to Publius Crassus, Scipio, Laelius, the Gracchi, Fannius, and Servius Galba—eloquence, I say, in all its branches burst into flower under Cicero, its chief exponent, so that there are few before his day whom one can read with pleasure", tr. Shipley). See in general for the orators in the last century of the Roman Republic David, 1992.

- 4.7 *post quos excellentissimus omnium Cicero, orationis imperiosae fulminibus saepe depressos aliquos iudiciorum eripiens flammis* With only two in-

stances of *excellentissimus* (the other one occurs in 20.8.11) Amm. is just as sparing with this superlative as Cicero himself, who has three cases. Cf. for *imperiosus* Quint. *Inst.* 5.14.30 *Locuples et speciosa et imperiosa vult esse eloquentia*. Predictably, the paradosis offers both *fulminibus* and *fluminibus*. Both words are used in discussions about rhetoric, with a very clear majority for the ‘rivers’. In the present text *fulminibus* could be defended by quoting e.g. Cic. *Fam.* 9.21.1 *verborum meorum, ut scribis, fulmina*, but Wagner makes a, perhaps, decisive point: it is more natural to save people from the flames of a fire by streams of water than by flashes of lightning: in printing *fluminibus* Clark and Viansino may well have made the right choice. TLL V 1.614.52–615.12 registers a number of cases in which *deprimere* means “aliquem opprimere, vexare”; this suits the present text well, but *depressus* is listed among the passages in which it is a synonym of “miser, afflictus” (615.44–45). Cf. for ‘flames’ in a transferred sense 16.12.44 *barbari in modum exarsere flammaram* (p. 257), 28.6.1 *instar exarsere flammaram*.

The quotation is item 41 of the list “ex scriptis incertis” in Garbarino’s edition of Cicero’s fragmenta. Rolfe does not challenge this status, but refers to another passage in which *vituperatio* and *scelus* have a comparable role, although in a different context, viz. *Div. Caec.* 60. As in 20.8.15 and 29.3.4, the verb *firmare* means ‘to assert’. See the note ad 27.11.4 (p. 263), about Amm. normally using the name *Tullius* or the adj. *Tullianus* when he quotes from, or refers to, Cicero. The present text and 27.11.4 are the only cases in which he uses *Cicero*. See for Amm. and Cicero, whom our author greatly admired, ad 21.16.13 (p. 263), 26.1.2 (p. 15) and 28.1.40 (p. 83) with the bibliographical references cited there.

At nunc videre est per eos omnes tractus violenta et rapacissima genera hominum per fora omnia volitantium et subsidentium divites domus 4.8
One can only speculate about the identity of the lawyers Amm. had in mind. See for *at* marking the transition to a new theme ad 26.4.1 (p. 75) and ad 28.2.1 (p. 118), for *est videre* as a synonym of *videre licet* (28.4.21) Szantyr 349 and for *eos* above ad §1 (p. 60). The *fora* may denote the public squares in the towns, but the term can also be interpreted as a juridical t.t. referring to the entire domain of “forensic practice” (OLD s.v. 5, cf. also TLL VI. 1204.27–1205.41). Cf. 26.6.10 *subsident ut praedatrix bestia*. The lawyers behaved like animals in an ambush, waiting to strike. Cf. for *cubilia* Cic. *Ver.* 2.190 *ut omnes mortales istius avaritiae non iam vestigia sed ipsa cubilia videre possint*. The term *cubile* denotes the origin (of the affair), found by the lawyers when they were prying into people’s private lives in order to find potential disagreements. Sabbah, 2006, 273–274 suggests that *per fora omnia*

volitantium has been inspired by Cic. *de Orat.* 2.101, where negligent lawyers *toto foro volitare et a causa ad causam ire videantur*. This is plausible, the more so, because some other passages in Cicero's oeuvre, where people are said to 'fly around the *fora*', have a different meaning.

As is noted ad § 2 above, some of Valens' officials (Vindaonius Magnus, Tatianus and Festus) started their career as lawyers, but whether they were rapacious or not is unknown. The Heliodorus of Lib. *Or.* 62.46–49 (*PLRE* I, Heliodorus 2), however, might qualify (he must, pace Valesius, not be identified with the Heliodorus of 29.1.6 [p. 12]). He was one of Libanius' pupils, who spoke of him with disdain. Heliodorus was, according to Libanius, a trader in fish-sauce, who wanted to become an orator and a lawyer upon hearing some lawyers plead in a lawsuit in Corinth. His new profession earned him πολλὰ μὲν ἐν Μακεδονίᾳ γεωργίαι, πλείους δὲ ἐν Αἰτωλίᾳ καὶ Ἀκαρνανίᾳ, χρυσός, ἄργυρος, πλῆθος ἀνδραπόδων, ἵππων ἀγέλαι καὶ βοῶν (*Or.* 62.48), "many estates in Macedonia, more in Aetolia and Acarnania, gold, silver, vast numbers of slaves, herds of horses and cattle." (tr. Norman). And so, Libanius maliciously adds (*Or.* 62.49), "it is no cause for surprise that ignorance in lawsuits is a means of attaining wealth" (οὐδὲν θαυμαστόν...ἀμαθίαν ἐν δίκαις ἀφορμὴν εἰς πλοῦτον γενέσθαι, tr. Norman). Libanius also says, perhaps with some exaggeration, that Heliodorus was by no means the only example he could mention (πολλῶν δὲ ἔχων μνησθῆναι τοῦτῳ παραπλησίων, *ibid.*). The complaint about rapacious advocates was not new. Cf. e.g. *Cod. Theod.* 2.10.3 (25 March 325) *saepius claruit quosdam ex advocatis existimationi suae immensa atque illicita compendia praetulisse* ("It has become increasingly evident that some advocates have preferred enormous and illicit profits to their own reputation", tr. Pharr) and *Cod. Theod.* 2.10.4 (also from the time of Constantine) *advocatos, qui consceleratis depectionibus suae opis egentes spoliant atque nudant, non iure causae, sed fundorum, pecorum et mancipiorum qualitate rationeque tractata, dum eorum praecipua poscunt coacta sibi pactione transscribi, ab honestorum coetu iudiciorumque conspectu segregari praecipimus* ("There are advocates who by means of criminally extortionate agreements rob and strip bare those persons who need their help, and who consider not the right of a client's case but the quality and quantity of his farms, herds, and slaves and demand that the best part of such property shall be signed over to them by a forced pact. We order that such advocates shall be excluded from the assembly of the honorable and from the sight of the courts", tr. Pharr). In a law of Constantius, *Cod. Theod.* 8.10.2 (29 June 344), we read this: *nec latet mansuetudinem nostram saepissime scholasticos ultra modum acceptis honorariis in defensione causarum omnium et annonas et sumptus accipere consuesse, quibus tantis commodis fulti itinere, suam avari-*

tiam explere nequeunt ("It does not escape the notice of our Clemency that very often advocates are accustomed to accept exorbitant honorariums for the defense of their entire cases, and in addition to receive subsistence allowances and expenses. Supported by such great profits in their career, they are unable to sate their own avarice", tr. Pharr).

Heliodorus not only amassed wealth, he even became a governor (Lib. *Or.* 62.48). Likewise, the career of another pupil of Libanius, Severus (*PLRE* I, Severus 14), who became governor of Syria, "had been built on the earnings of advocacy" (Liebeschuetz, 1972, 50, referring to Lib. *Or.* 57.3 ff., for which see the comments of Casella, 2010, 196 ff.), as was that of the man Libanius calls Mixidemus, which is a pseudonym (Lib. *Or.* 39.3 sqq.; cf. Pack, 1935, 51, 55–56; MacMullen, 1988, 158–159; Petit, 1994, 165 nr. 199). See further Lib. *Or.* 38.3, where Libanius attacks the advocate Silvanus (*PLRE* I, Silvanus 3). That being a lawyer could be a lucrative job is also implied in Lib. *Ep.* 237.4, 466.1, 831.2, *Or.* 11.188, 51.16, 62.35. See for an exception Lib. *Ep.* 959.3 and cf. Wolf, 1952, 76–77 and Petit, 1955, 341. Note also the cautious remark of Jones 511: "It is impossible to estimate from the data available the earnings of a barrister, which naturally varied greatly according to the status of the court in which he practised and his own ability and reputation". See in general for the payment of advocates the literature cited ad § 5 above (p. 74).

ut Spartanos canes aut Cretas vestigia sagacius colligendo ad ipsa cubilia pervenire causerum For Spartan dogs see 29.3.3 (p. 118). "Nächst den lakonischen werden von den Schriftstellern die kretischen Hunde am meisten genannt und gerühmt" (Orth, 1913, 2551). The Cretan dogs, hunting dogs par excellence (αἱ δὲ Κρητικαὶ κύνες ἰχθυεῦται πάνυ, Ar. *Byz. Epit.* 2.194), were "tall and strong, with an elegant, long, sinewy body, lean flanks, a long head, short, straight ears, and a long thick tail" (Toynbee, 1973, 103). We find Spartan and Cretan dogs mentioned together in e.g. Ov. *Met.* 3.208, Grat. 212 and Luc. 4.440–444: *venator tenet ora levis clamosa Molossi, / Spartanos Cretasque ligat, nec creditur ulli / silva cani, nisi qui presso vestigia rostro / colligit et praeda nescit latrare reperta / contentus tremulo monstrasse cubilia loro* ("the hunter shuts the noisy mouth of the swift Molossian hound, and keeps on the lead the hounds of Sparta and Crete; the only dog allowed to range the forest is he who puzzles out the scent with nose to the ground and never thinks of barking when his prey is discovered, content to indicate the creature's lair by tugging at the leash", tr. Duff, adapted). Pointing to the similarities between the texts of Amm. and Lucan (cf. apart from the dogs *vestigia, colligendo-colligit, cubilia*), Salemmé, 1989, 39 notes: "È difficile che Ammiano non abbia tenuto presente il luogo lucaneo". In *Or.* 62.41

Libanius sketches some of the methods used by advocates (οἱ παρὰ ταῖς δίκαις συνηγορεῖν τάξαντες) to get clients: “they hire publicity men (μισθοῦνται προσαγωγέας), grab litigants (ἀρπάζουσι τοὺς δικάζομένους), flatter hawkers (κολακεύουσι καπήλους), send humble letters to neighbouring communities (πέμπουσιν εἰς τοὺς ἀστυγείτονας ταπεινὰς ἐπιστολάς), are slaves to the underlings of the governors (δουλεύουσι τοῖς τῶν ἀρχόντων ὑπηρέταις), make agreements with the criers for the pickings that they will get (συντίθενται πρὸς τοὺς κήρυκας ὑπὲρ τῶν ἐσομένων κερδῶν) or purchase audiences from the magistrate’s clerks” (ὠνοῦνται τὰς εἰσόδους παρὰ τῶν εἰσαγωγέων; tr. Norman, adapted). Small wonder, Libanius continues, that forensic oratory is in decline: ταυτὶ γάρ ἐστι τῆς νῦν ῥητορικῆς τὸ κράτος, βοῆσαι, ψεύσασθαι, ἐπι-ορκῆσαι, ταραῖσαι, θόρυβον ἐμβαλεῖν, ὑποσχέσθαι, δοῦναι (“The strong points of present-day oratory are shouting, lying, breaking oaths, creating riots and disturbance, giving promises and bribes”, tr. Norman).

4.9–22 From data in Libanius’ oeuvre a useful survey of the various specialist abilities of lawyers can be construed; see below pp. 81–82. Amm. now offers an alternative satirical overview, in which the methods of various types of lawyers are ridiculed in hyperbolic terms. There are four categories, each introduced by a term delineating a specific group, which has a more or less clear identity. The four groups also have something in common: their being driven by self-interest, which is a huge obstacle for true justice in the law courts. In a thoughtful paper Matthews, 1992 has explained Amm.’s satire as bearing testimony to the fragility of true justice, which was threatened from all sides, and is a recurring theme in the *Res Gestae*.

Amm. is not the first author to write satirically about lawyers. In a passage of his *Apocolocyntosis* Seneca has his bête noire Claudius dream about his own funeral, during which songs of praise were sung in his honour, and those who took part in the ceremony were urged to mourn: *caedite maestis pectora palmis / o causicidici, venale genus* (12.2.27–28). See further Eden ad loc. The language of the digression differs far more than is usual in the *Res Gestae* from the classical style of writing. It concentrates on picturing details, and has a strong tendency to draw the reader’s attention to itself. Such characteristics are often styled as baroque, or as typical of the ‘jeweled’ style, a term used by Michael Roberts as the title of the book which he published in 1989. This does not mean that this style implies a farewell to the accomplishments of authoritative writers of earlier periods. In fact, the digression contains quite a few allusions to Amm.’s favorites: Cicero, whose name occurs throughout the *Res Gestae*, and Aulus Gellius, who is never mentioned, but whose presence in the text itself has been

admirably mapped out by Hertz, 1874. His material has inspired others to get to grips with Ammianus' stylistic strategy regarding his remarkable use of phrases, borrowed from earlier Roman literature. It is not merely ornamental or, worse, only meant to show his familiarity with the various Latin authors. Salemmé, 1989, 37 tries to pinpoint Amm.'s handling of his sources in this way: Amm. uses "i suoi *fontes* letterari quasi come 'archivio', biblioteca da consultare". This differs from *aemulatio*, which occurs in many earlier Roman authors. It results in a remarkable mosaic style, which in its own way testifies to the continuity of Latin literature in the *Res Gestae*. Salemmé calls this 'la comparazione continuata', the title of a chapter in which the satirical digression, devoted to the forensic practice, is analyzed. Kelly 215–216 makes some pertinent critical remarks about this idea, but it must be said that it fits an analysis of Amm.'s satire quite well. See further Den Hengst, 2007, 167–169, who notes that the 'Roman' satires in 14.6 and 28.4 consist of "a series of vignettes with a maximum of visual impact".

The first three groups are reasonably well defined, in each case in one or two sections in the various modern editions, but the fourth takes up almost two pages, in which Amm. pulls out all the satirical stops in a dazzling series of hyperboles, in which he demonstrates what all the sham lawyers of this fourth category have in common: sheer ignorance. See also Kautt-Bender, 1991, 281–294.

In his primus est coetus eorum, qui seminando diversa iurgia per vadimonia mille iactantur viduarum postes et orborum limina deterentes et aut inter discordantes amicos aut propinquant vel affines, si simultatum levia senserint receptacula, odia struentes infesta The words *primus...coetus eorum* correspond with *Secundum...genus eorum* in §11, *Tertius eorum...ordo* in §13 and *Quartum atque postremum...genus* in §14. Matthews, 1992, 48 observed, "these are not really four categories of lawyers at all, but four ways in which the *conduct* of lawyers can be classified". This is true, but the satirical purpose of the classification is more important. The work of Libanius can help to draw up a normal, non-satirical classification of the different kinds of advocates in the eastern part of the Roman Empire, as Petit, 1955, 78–82 shows. Libanius discerns three types of lawyers: 1. lawyers in general (e.g. *Or.* 33.9–10, 46.4, 47.14), 2. lawyers at the tribunals of particular magistrates (e.g. *Ep.* 293), 3. lawyers of the city (e.g. *Or.* 36.7). For these lawyers he indiscriminately uses the terms σύνδικοι, ῥήτορες and συνήγοροι (whereas σύνδικος is also used by him, e.g. in *Or.* 27.32, to denote a person, who occupied the post of *defensor civitatis*; cf. for this office above ad §2 [p. 65]). See for Libanius and the career of advocates, "sur laquelle nous avons, par les discours et

la correspondance, d'abondants renseignements, et significatifs", also Petit, 1957, 179–183 (the quotation stems from pp. 179–180) and for Libanius as a possible influence on Amm. Sabbah 243–292, esp. 286–287.

In the present lemma the mere choice of words denotes the creation of a feud between people who should be living in harmony with one another. The lawyers, however, prove to be past masters in fabricating conflicts between friends and relatives, with their own profit as the main objective. The term *coetus* denotes an organized group of people and this suits the context: these lawyers create their own clientele by generating quarrels and conflicts between friends and relatives. Note the paradox: these men get together (*coire*) in order to sow dissension (*diversa iurgia*). They get involved in a thousand procedures: see for the precise meaning of the juridical t.t. *vadimonium* Heumann-Seckel s.v. and for *iactari* as a synonym of *occupari* or *versari* TLL VII 1.55.65–66 about *iactatus* in Cic. *de Orat.* 1.73; see, however, also the timely note of Leeman-Pinkster ad loc.: “drastischer als das neutrale versari”. The entrance to a house played an emotional role in Roman literature, for instance in Latin love poetry. Amm. uses it once in a pathetic phrase: *turba flebilis postes penatium amplexa vel limina lacrimabat* (25.9.5, p. 293). The word *receptaculum* can denote various places which are able to ‘receive’, for instance a place used by fishes for spawning (22.8.47), a place of refuge (29.5.25, p. 186). Here it continues the image of sowing: a place where the seeds of quarrels and feuds can thrive. The coni. perf. *senserint* is iterative: “whenever they became aware of”. As to *viduarum*, this is a hapax in Amm. For widows as a target for legacy hunters see Krause, 1994, 134–137; he notes on p. 134: “Die meisten Hinweise auf Erbschleicherei in der römischen Literatur beziehen sich auf kinderlose Greise, *orbi*”. Among the examples Krause cites are 14.6.22 (*praeter orbos et caelibes nec credi potest, qua obsequiorum diversitate coluntur homines sine liberis Romae*) and 28.4.22 (pp. 207–208). For *propinquans*, also a hapax in Amm., as someone “qui cum aliquo iungitur cognatione, necessitudine” see TLL X 2.2016.73 sqq.; in 26.6.1 *velut imperatoris cognatus* and 26.10.1 *eiusdem cognatus* we find its synonym. For *affinis*, “propinquus factus per nuptias”, see TLL I 1217.45 sqq. One is reminded of 28.4.26 (pp. 213–214), where Amm. satirically introduces a husband and his wife who both insist that the other writes her/his will, while *periti iuris altrinscūs asciscuntur*.

in quibus aetatis progressu non ut aliorum vitia intepescunt, sed magis magisque roborantur inter rapinas insatiabiles inopes ad capiendam versutis orationibus iudicium fidem, quorum nomen ex iustitia natum est, sicam ingenii destringentes Which words are the subject of *intepescunt* and *roborantur*?

Probably the nasty wiles of the lawyers, their *vitia*. Economical with his words, Amm. uses the term only in the comparison *ut aliorum vitia*: like the practices of people who are no lawyers. After this he almost imperceptibly switches from the *vitia* to the men themselves: *inopes* etc. In spite of their insatiable plundering they remained poor.

Wagner's remark about *sicam ingenii destringentes*: "insipida translatio", is less than felicitous. The phrase can be regarded as comparable to 29.1.19 *mortem in acie linguae portantis* (pp. 33–34). In the present text the 'dagger' is said to belong to their *ingenium*, which cannot have a positive meaning within the context. Renderings like "Begabung" or "talent" are only possible, if they are meant to be sarcastic. It seems better to choose a rendering like "natural disposition" (OLD s.v. 1): the lawyers in question drew the dagger of their nature, viz. the 'criminal' rhetoric of their 'crafty speeches' to 'deceive' (*ad capiendam*; see for this sense of *capere* TLL III 336.53 sqq.) the honesty of the judges. This is a bad development: *iudices* owe their title to *iustitia*. This etymology is not entirely correct; in fact, both *iudex* and *iustitia* are derived from *ius*. It is worth noting that etymology could be used as a (decisive) argument. In the present text it proves, that by deceiving judges the lawyers damage justice.

The term *iudex* is used here in its usual sense of 'judge', as is most often the case in Amm.; cf. ad 20.5.7 (pp. 125–126). Note, however, that in Amm. *iudex* also quite often means 'official', 'functionary', and that the main function of such officials, especially of governors of provinces, was to act as judges as a first resort (Harries, 1999a, 214). Cf. for judges in the later Roman Empire ad 23.6.82 (p. 224). The ideal judge in Amm.'s eyes was Julian, who meticulously deliberated *quibus modis suum cuique tribueret iustisque sententiis et improbi modicis coercerentur suppliciis et innocentes fortunae defenderentur intactis* (22.10.1); see for Julian as judge also ad § 1 (p. 61). But of course, not everyone was as impartial as Julian. See ad § 21 below, and compare for a contrast 30.8.13 about Valentinian. On the emperor as judge Millar, 1977, 507–547 is fundamental.

horum obstinatione libertatem temeritas, constantiam audacia praeceps, eloquentiam inanis quaedam imitatur fluentia loquendi; quarum artium scaevitate, ut Tullius asseverat, nefas est ad religionem decipi iudicantes Viansino ad loc. mentions some examples of a "sequenza di nomi in antitesi" in other authors, e.g. in Cic. *Part.* 81 on *vitia quae virtutem videntur imitari*. Amm. may well have been inspired by this passage, which ends with the observation that true rhetoric is imitated by *inanis quaedam profluentia loquendi*. See on *obstinatio* Seager 29–32. In most cases it has a negative meaning.

In the present text it appears out of nowhere: Amm. has fiercely criticized the lawyers, but not for obstinacy. Anyhow, this vice has resulted in a caricature of what responsible rhetoric should be. This is the only instance of *scaevitas* in the *Res Gestae*. The adj. occurs twice, in 28.2.9 (p. 136), where it is a plausible emendation, and 29.3.1. OLD s.v. interprets it as “instinctive choosing of the wrong”, which in the case of the lawyers has caused the evil tendency to deceive judges. See ad § 7 above (p. 77) for Amm.’s use of *Tullius* and *Cicero*. Blomgren 166–167 provides a good interpretation of the final part of the lemma: we should regard *ad* as a synonym of *secundum*, ‘in accordance with’, and combine *ad religionem* with *iudicantes* ‘judging in accordance with their conscience’.

ait enim: “cumque nihil tam incorruptum esse debeat in re publica quam suffragium, quam sententia, non intellego, cur, qui ea pecunia corruperit, poena dignus sit, qui eloquentia, laudem etiam ferat. mihi quidem hoc plus mali facere videtur, qui oratione, quam qui pretio iudicem corrumpit, quod pecunia corrumpere prudentem nemo potest, dicendo potest” With the consensus particle *enim* Amm. emphasizes, that his appeal to Cicero (*ut Tullius asseverat*) is a correct interpretation of a passage in Cicero’s oeuvre. The quotation is generally registered as coming from Book 5 of Cicero’s *De re publica*. Neutr. plur. *ea* refers to *suffragium* and *sententia*. See Szantyr 431.

- 4.11 *Secundum est genus eorum, qui iuris professi scientiam, quam repugnantium sibi legum abolevere discidia, velut vinculis ori impositis reticentes iugi silentio umbrarum sunt similes propriarum* This is obviously an entirely different category, consisting of excentric loners, aptly named *genus*, ‘a kind of people’, a word which is also used to denote the fourth group. In Antioch, and probably elsewhere in the East too, there was in the second half of the fourth century “increasing pressure on advocates to possess knowledge of Roman law” (Bradbury, 2004, 201)—note that in the eyes of Cicero and Quintilian an orator had to possess such knowledge: *neque legum ac iuris civilis scientia negligenda est* (Cic. *de Orat.* 1.18), *iuris quoque civilis necessaria huic viro scientia est* (Quint. *Inst.* 12.3.1) and see for developments of the rhetorical ‘genus iudiciale’ in the fourth century Hose, 2000; cf. also Liebs, 1980, 129–131 and Martini, 2007, esp. 47–51. Some pupils of Libanius, not satisfied with a mere rhetorical training, went to study in Berytus (Beirut) in the province of Phoenice, a centre for legal study second only to Rome (Lib. *Or.* 48.22, 49.27; cf. for law schools in Late Antiquity Dareggi, 2007, for Berytus in particular Collinet, 1925 and Rougé ad *Expos. mundi.* 25, pp. 244–245). As a rule they were young men, like the anonymous pupil mentioned in Lib. *Ep.*

1131, the Paeonius of Lib. *Ep.* 117 (cf. *PLRE* I, Paeonius 2) and the Theodotus of Lib. *Ep.* 1375, but experienced advocates like Hilarinus (Lib. *Ep.* 653) and Apringius (*PLRE* I, Apringius) also wanted to study law in Berytus. About Apringius Lib. *Ep.* 1170.1 writes to a governor of Phoenice: 'Απρίγγιος κατὰ τὴν παροιμίαν αὖθις Πυθῶδε πάλιν εἰς νέων διατριβάς. ἡγείται γὰρ καὶ νόμων δεῖν τῷ γε μέλλοντι συναγορεύσειν καλῶς. καίτοι πρὸ τοῦ τὸν <νόμων> ἔμπειρον ὁ ῥήτωρ προσλαμβάνων δι' ἀλλήλων ἴσχυον· ἀλλὰ νῦν ὁ μὴ 'κείνων μετέχων Αἰγιδεύς ἀτεχνῶς οὔτ' ἐν λόγῳ οὔτ' ἐν ἀριθμῷ ("Apringius is going back to schoolboy pursuits, in accordance with the old saying, 'Once more to Delphi'. He believes that a man who intends to be a succesful advocate also needs knowledge of the law, though in the past an orator found himself someone with an expertise in law and they gained strength through one another. Nowadays, however, the man with no knowledge of the law is a veritable 'fellow from Aegium—a nonentity and a no-account'", tr. Bradbury). See for Apringius also Lib. *Ep.* 1171 and 1203, and see in general for Libanius' complaints about law as a rival of rhetoric *Or.* 2.44 and 62.21–23, with Wolf, 1952, 77–85; Petit, 1957, 182–183; Festugière, 1959, 411–412; Liebeschuetz, 1972, 248–251 and De Salvo, 2007.

Amm.'s remark about the *repugnantium sibi legum...discidia*, "the conflict of mutually contradictory statutes" (Hamilton), which allegedly had destroyed *iuris...scientiam*, is "echoed" (Matthews, 1992, 49) in the advice given in Anon. *de mach. bell.* 21.1: *restat unum de tua serenitate remedium ad civilium curarum medicinam, ut confusas legum contrariasque sententias, improbitatis reiecto litigio, iudicio augustae dignationis illumines* ("the only remedy designed to cure our civilian woes awaits Your Serene Majesty: to throw light upon the confused and contradictory rulings of the laws by a pronouncement of Your August Dignity and put a stop to dishonest litigation", tr. Thompson, adapted; cf. for this passage Nörr, 1963; Brandt, 1988, 125–126 and Giardina, 1989, 106–107). It is this section of Amm.'s *Res Gestae*, as Humfress, 2007, 16 notes, "that has attracted the attention of modern scholars ever since Gothofredus, writing in 1665, referred to it in order to illustrate the decline of jurisprudence in the Late Empire". See her chapter (pp. 62–92) entitled 'legal experts and the late Roman courts'. See for *iugis*, 'continual' the notes ad 17.13.11 (p. 349) and 21.5.3 (p. 55).

hi velut fata natalicia praemonstrantes aut Sibyllae oraculorum interpretes vultus gravitate ad habitum composita tristiores ipsum quoque venditant, quod oscitantur The adj. *natalicius*, "of or belonging to the time of birth" (OLD s.v.), is a hapax in Amm. We find the word attested in e.g. Cic. *Div.* 2.89 (cf. 2.91), where Cicero summarizes the theories of those people *qui...Chal-*

daeorum natalicia praedicta defendunt, theories which he condemns (*o delirationem incredibilem!*, *ibid.* 2.90). Amm. did not think much of astrology either, which may *inter alia* be inferred, as Szidat, 1981, 72 argues against Ensslin, 1923, 84, from the fact that any reference to it is absent in the survey of divination in 21.1.7–14 (pp. 11 sq.; add to the literature cited on p. 12 Feichtinger, 2003). There are notes on the *Sibylla* and the Sibylline oracles ad 21.1.11 (p. 20) and 23.1.7 (p. 19).

As Wissowa, 1912², 534 n. 3 already noted, *interpretes* “ist die geläufigste Bezeichnung” for the *quindecimviri sacris faciundis* whose task, *inter alia*, it was to consult the Sibylline books. Cf. e.g. Cic. *N.D.* 3.5, *Div.* 1.4, Liv. 10.8.2 *decemviri sacris faciundis, carminum Sibyllae ac fatorum populi huius interpretes* and Gel. 4.1.1. Of these passages that of Gellius is the most interesting in view of its similarities with Amm.’s text. Gellius speaks in 4.1.1 about a grammarian who, in the presence of the philosopher Favorinus, held a discourse *vocisque et vultus gravitate composita tamquam interpretet arbiter Sibyllae oraculorum* (“with...an exaggerated gravity of voice and expression, as if he were the official interpreter of the Sibyl’s oracle”, tr. Rolfe, adapted). It is one of the many allusions to Gellius in Amm., as Hertz, 1874, 298–299 noted. Gel. 1.10.1–2 deals with Favorinus too (“It is not uncommon for Favorinus to serve as a Gellian mouthpiece”, Howley, 2013, 21) and also contains verbal similarities with Amm. Consult for this in the first place Salemme, 1989, 41–46 and see further Sabbah 516–518 and Kelly 207–209.

Yawning during official meetings was regarded as reprehensible: *Maximis privatis et publicis calamitatibus acceptis...sedetis et oscitmini* (*Rhet. Her.* 4.48), *videt oscitantem iudicem, loquentem cum altero* (Cic. *Brut.* 200), *in iure stans clare nimis et sonore oscitavit* (Gel. 4.20.8), *neque tamen protrahere voces oscitantem decet* (Iulius Victor p. 104.12 Giomini and Celentano). In Amm.’s days the discipline in the courts had dropped to such a low level that yawning had become rewarding in the literal sense of this term. TLL IX 2. 1104.48 interprets *quod oscitantur* as “ipsam oscitationem”.

- 4.12 *hi ut altius videantur iura callere, Trebatium loquuntur et Cascellium et Alfenum et Auruncorum Sicanorumque iam diu leges ignotas cum Euandri matre abhinc saeculis obrutas multis* See for *loqui* with acc. instead of *de* Szantyr 828. The art of name-dropping is obviously not a novelty of modern times. C. Trebatius Testa, C. Aulus Cascellius and P. Alfenus Varus were well known late republican and early Augustan jurists. The *eques* Trebatius was a close friend of Cicero’s (cf. Cic. *Fam.* 7.5–22), who dedicated his *Topica* to him, and a *familiaris* of Caesar (Cic. *Fam.* 7.14.2), and was highly respected by August-

tus (*Inst. Iust.* 2.45 pr.). Horace in *S.* 2.1 makes Trebatius his interlocutor in a charming dialogue, asking him how to write satires without bringing accusations of calumny upon himself. Cf. Bauman, 1985, 123–136; Tatum, 1998; Michel, 1999 and in general Giaro, 2002. Cascellius, *vir iuris civilis scientia clarus* (V. Max. 6.2.12), was quaestor by 73 B.C. (Broughton, 1952, 115), but did not hold other offices (as e.g. Rodger, 1972 correctly argues). He is mentioned by Horace in *Ars* 371. According to Macr. *Sat.* 2.6.1 he was a very witty man. See for him Bauman, 1985, 117–123 and Giaro, 1997.

Alfenus was close to Octavian, which earned him a consulate in 39 B.C. (Broughton, 1952, 386). Like Trebatius and Cascellius he is mentioned by Horace (*S.* 1.3.130). In *Ecl.* 9.27–29 Vergil has Moeris sing Alfenus' praises (he had been involved in the confiscation of rural property during and after the civil wars): *Vare, tuum nomen, superet modo Mantua nobis, / Mantua vae miserae nimium vicina Cremonae, / Cantantes sublime ferent ad sidera cycni* ('Varus, your name will be brought to the stars above us by singing swans, if only Mantua is left to us, Mantua, which, alas, is too near to miserable Cremona'). See for Alfenus in the first place Liebs, 2010 and cf. further Bauman, 1985, 89–105; Molnár, 1985 and Giaro, 1996. In *Dig.* 1.2.2.44–45 Amm.'s three jurists are, among some others, mentioned together: *plurimum auctoritatis habuit Alfenus Varus et Aulus Ofilius, ex quibus Varus et consul fuit, Ofilius in equestri ordine perseveravit...Trebatius peritior Cascellio, Cascellius Trebatius eloquentior fuisse dicitur...Cascellii scripta non exstant nisi unus liber bene dictorum, Trebatii complures, sed minus frequentantur* ('Alfenus Varus and Aulus Ofilius possessed the greatest authority; Varus became consul, but Ofilius remained an *eques*...Trebatius is said to have been more skilled than Cascellius, but Cascellius is claimed to have been more eloquent than Trebatius...No works of Cascellius are extant, except one of "Good Sayings". Of Trebatius there are several books, but they are used less').

The mythical king Euander supposedly migrated from Arcadia to Italy some sixty years before the Trojan war (D.H. 1.31.1) and founded on the Palatine Hill the first settlement of the future Rome (cf. e.g. Verg. *A.* 8.51–54, Liv. 1.5.1–2). He was the son of Hermes and an Arcadian nymph (Paus. 8.43.2), called Themis or Nicostrate or Carmenta in Plut. *Mor.* 278 b–c. Cf. Str. 5.3.3 (230C), Lyd. *Mens.* 1.11 and D.H. 1.31.1 ἦν οἱ μὲν Ἑλλήνες Θέμιν εἶναι λέγουσι καὶ Θεοφόρητον ἀποφαινοῦσιν, οἱ δὲ τὰς Ῥωμαϊκὰς συγγράψαντες ἀρχαιολογίας τῇ πατρὶω γλώσσῃ Καρμέντην ὀνομάζουσιν ('the Greeks call her Themis and say that she was inspired, but the writers of the early history of Rome call her, in the native language, Carmenta', tr. Cary). There are other traditions. Servius auctus ad Verg. *A.* 8.130 says that Euander's mother was Timandra, a

daughter of Tyndareus and a sister of Clytaemnestra and Helena, spouse of the Arcadian Echemus. According to *Orac. Sib.* P 40 Euander's mother was the Fourth Sibylla.

Et si voluntate matrem tuam finxeris occidisse, multas tibi suffragari absolutionem lectiones reconditas pollicentur, si te senserint esse nummatum See for *lectio*, "passage in a book", OLD s.v. 4. These *lectiones* were of course 'abstruse' to impress any clients, above all those who were well-to-do. Hertz, 1874, 293 refers to Gel. 14.6.1 *ex multis et variis et remotis lectionibus*. Killing one's own mother is a very ugly crime, typical of people like the emperor Nero.

- 4.13 *Tertius est eorum ordo, qui, ut in professione turbulenta clarescant, ad expugnamdam veritatem ora mercennaria procudentes per prostitutas frontes vilesque latratus, quo velint, aditus sibi patefaciunt crebros* After the silent pseudo-learning of the *iuris consulti* the third category makes a lot of noise. These men belong to an *ordo*, which like the first group is a kind of organization; see for such a sense of the word OLD s.v. 4: "a body of people having the same political or social status, an order, class". Their objective is to become famous by their defeating the truth. Chaos in the course of justice offers numerous possibilities for their corrupt practices, which gain for them admission to any place, whenever they bark. Note that *frons* does not always only denote the forehead, but sometimes the entire frontal side of the human head. OLD s.v. 4 contains a variety of instances in which the outward appearance of the brow conceals a person's true feelings. TLL X 2.2236.52–54 lists *prostitutas* among the cases in which *prostituere* is used about *quod venale proponitur*. These men neglect Cicero's advice in *de Orat.* 3.121: *non enim solum acuenda nobis neque procudenda lingua est, sed onerandum complendumque pectus maximarum rerum et plurimarum suavitate, copia, varietate*. As to *latratus* used about an orator cf. Cic. *Brut.* 58 *latrant iam quidam oratores, non loquuntur*, referred to by Quint. *Inst.* 13.3.31, and the note of Leeman and alii ad Cic. *de Orat.* 2.220. TLL VIII 792.3 interprets *mercennarius* as *mercede conductus*. This is not necessarily shameful, but the word can be used in *malam partem*: 'bribed' or "influenced solely by gain" (OLD s.v. 3).

qui inter sollicitudines iudicum per multa distentas irresolubili nexu vincientes negotia laborant, ut omnis quies litibus implicetur, et nodosis quaestionibus de industria iudicia circumscribunt, quae, cum recte procedunt, delubra sunt aequitatis, cum depravantur, foveae fallaces et caecae; in quas si captus ceci-

derit quisquam, non nisi per multa exsiliet lustra ad usque ipsas medullas exsuctus The strategy of these lawyers aims essentially at bringing the course of justice to a standstill, deceiving (*circumscribo* OLD s.v. 6) the overworked judges (*sollicitudines iudicum*) by complicated and indissoluble combinations of cases. As is noted ad § 2 above (p. 64), the word *iudex* is used by Amm. most frequently in its usual sense of ‘judge’; this is the case here, too. The loser is the defendant: if he ever escapes from this *fovea* (‘pit’), it will be in a ‘sucked dry’ condition. Note that in the present text *iudicium* means “a panel of *iudices*, a court” (OLD s.v. 3); cf. also Heumann-Seckel s.v. 5b: “die richterliche Behörde”, TLL VII 2.608.83–609.46 and 29.1.27 (p. 43). One fails to understand why Seyfarth, Sabbah and Viansino have not followed Clark in accepting the emendation *post* of V’s *per*, proposed by Cornelissen, 1886, 298, approved by Petschenig, 1892, 17 and not rejected by Löfstedt, 1936, 200–201 who, however, notes that *per* could have been inspired by *δίᾱ* with *gen*.

Quantum atque postremum est genus impudens, pervicax et indoctum eorum, qui, cum immature a litterariis eruperint ludis, per angulos civitatum discurrunt mimiambos non causarum remediis congrua commentantes fores divitum deterendo cenarum ciborumque aucupantes delicias exquisitas 4.14 The reader, who sees the word *postremum* with some relief, will soon find that he is in for an extensive series of caricatures of men, who have not even finished their primary school education. As in the case of the second category, which was described in § 11–12, this large group is indicated with the term *genus*. The *ludus litterarius* is the place, *ubi prima pueri elementa suscipiunt* (Origen, *hom. in Num.* 27.13.1 in Rufinus’ translation). Those, who prematurely left ‘primary school’ were really uneducated. They were not instructed by a *grammaticus* and never enjoyed the education provided by a rhetor. See for the three types of schools in the Roman world e.g. Marrou, 1975⁷, 389–421 and Bonner, 1977, 34–75; cf. also Kaster, 1983. For the combination *ludus litterarius* see 14.11.30 and 28.4.13, and for *litterarius* “i.q. ad litteras singulas, elementa eruditionis pertinens” TLL VII 2.1529.39 sqq. With his reference to the ‘primary school’ Amm. goes even further than Libanius, who in *Or.* 62.44 complains about the lack of rhetorical training in his time and sighs, that in former days “the judge had demanded a well-composed address and sent back to the schoolroom anyone who was incapable of producing one” (ὁ δικάζων λόγον εἶ συγκείμενον ἀπῆται καὶ τὸν μὴ τοῦτο ποιεῖν ἔχοντα πάλιν ἔπεμπεν εἰς διδασκάλου, tr. Norman).

A passage in Jerome’s famous letter to Eustochium can be helpful to establish the meaning of *angulos civitatum*: *nolo te sponsum quaerere per plateas*,

nolo circumire angulos civitatum (Hier. *epist.* 22.25). In the first century B.C. the Roman poet Cn. Matius wrote in imitation of Herodas *mimiambi*, mimes in choliambic metre; see Gel. 10.24.10, 15.25.2, 20.9.1–2 (Hertz, 1874, 279) and cf. Giovini, 2001. In the present context the term is surprising, and Wagner may well be right when he proposes: “Hoc loco sine dubio cantiunculae intelligendae vel convivales vel quibus in triviis adeo plebecula delectaretur”. TLL VIII 987.42–43 agrees. The premature dropouts make a nuisance of themselves with their pop songs. This is Amm.’s only instance of *aucupari* or *-are*, “to hunt after” (OLD s.v. 3).

Sabbah is the only editor who wisely prints a comma after *mimiambos*. The young nitwits prepared the texts of their songs instead of material that was useful for ‘solving the problems’ (*remediis*) in lawsuits. They also knew the way to the exquisite food on the tables of the elite. Cf. for the expression, in a totally different context, Gel. 6.16.1 *M. Varro in satyra...coenarum ciborum exquisitas delicias comprehendit* (Hertz, 1874, 290).

- 4.15 *qui cum semel umbraticis lucris et inhiandae undique pecuniae sese dediderint, litigare frustra quoslibet innocentes hortantur et ad defendendam causam admissi, quod raro contingit, suscepti nomen et vim negotii sub ore disceptatoris inter ipsos conflictuum articulos instruuntur circumlocutionibus indigestis ita scatentes, ut in colluvione taeterrima audire existimes ululabili clamore Thersiten* Establishing the precise meaning of *umbraticus* is rather difficult. This adj. is used by a number of authors from Plautus onwards, but, apart from Augustine, it is always a hapax in their respective extant oeuvre. The first instance we have is Pl. *Cur.* 556, where Collart ad loc. interprets the word as denoting “le commerçant qui vit dans l’ombre de sa boutique.” For the interpretation of the present text a passage in Gellius’ *Noctes Atticae* is more appropriate: *Negotiis enim se plerumque umbraticis et selulariis quaestibus intentos habent* (3.1.10), “For they are commonly intent upon indoor and sedentary pursuits” (tr. Rolfe). It denotes the opposite of appearing in the limelight; cf. *delicata et umbratica turba in convivio suo philosophantium* (Sen. *Ben.* 4.2.1 about the Epicureans).

After having been given a lawsuit to defend, they only learn the name of their client and the essence (*vim*) of the case in court, when standing before the judge (see Heumann-Seckel s.v. *disceptator* 4). See for *instruere aliquem aliquid*, ‘to inform a person about something’, Szantyr 43. As to *suscepti* denoting the client, see OLD s.v. *suscipere* 5: “to take a person under one’s protection”. The noun *articulus* occurs in many authors, from Plautus to Martianus Capella. The *Res Gestae* contains a dozen instances, five of which are combined with *necessitatis* or *necessitatum*. In these and comparable

cases *articulus* denotes a crucial point or a vital moment. TLL IV 238.16–46 registers a number of instances, in which *conflictus* is used “de contentionibus quae fiunt in foro vel apud iudicem.” As is explained ad 28.2.10 (p. 137), the verb *scatere* is here used metaphorically: they were ‘bubbling over’ with ‘periphrastic phrases’: the term *circumlocutio* as such does not imply any disapproval. Quint. *Inst.* 8.6.61 defines it as follows: *Quidquid enim significari brevius potest et cum ornatu latius ostenditur*, “anything which can be expressed more briefly, but is expanded in a decorative fashion” (tr. Russell). The fake lawyers, however, used this technique ‘in a disorderly manner’ (*indigestis*), so that in this horrible chaos the howling cries of Thersites seemed to be heard. This can be regarded as a direct reference to Hom. *Il.* 2.212 ἀμετροεπὴς ἐκολῶα, but Gel. 1.15.11–12, which focuses on precisely these words, is perhaps a more likely source. The phrase *ululabilis clamor* also occurs in 19.5.5, 20.6.7 and 24.1.7 (p. 16) to denote war cries of non-Roman nations. Seyfarth accepts the emendation *in colluvione*, which was proposed by Petschenig, 1892, 687, remarkably without any reference to Hertz, 1874, 686, who shows that Amm. imitates Gel. 1.15.17 *conluvione verborum taeter-rima*.

cum autem ad inopiam muniendarum venerint allegationum, ad effrenatam deflectunt conviciandi licentiam; quo nomine ob assidua in personas honorabiles probra diebus dictis aliquotiens sunt damnati. e quibus ita sunt rudes nonnulli, ut numquam se codices habuisse meminerint In Amm.’s world various people behave as they wish, most often the powerful and the barbarians; see Seager 24–27. The present text adds another group which is seized by the vice of *licentia*: nitwits (*rudes*). Failing in their task to defend their clients (*inopia muniendarum allegationum* [see for *allegatio* Heumann-Seckel s.v. 1: “Anführung (von Entschuldigungsgründen)”]), they turn to sustained abuse, only to be summoned to appear in court (*diebus dictis*) themselves. Amm.’s criticism of advocates who turned to unrestrained abuse (*effrenatam...conviciandi licentiam*) and insults (*probra*) accords with that of the Pannonian brothers themselves when they rebuked the *licentia conviciandi* of *advocati* and their use of *probra* in *Cod. Iust.* 2.6.6.1, presumably issued in 370 (cf. Pergami, 1993, 525–526): *Ante omnia...universi advocati ita praebeant patrocinia iurgantibus, ut non ultra, quam litium poscit utilitas, in licentiam conviciandi et maledicendi temeritatem prorumpant: agant, quod causa desiderat: temperent ab iniuria, nam si quis adeo procax fuerit, ut non ratione, sed probris putet esse certandum, opinionis suae imminutione quatietur* (“All advocates should, above all things, defend the cases of their clients in such a way as to do nothing more than the success of the actions demands. They

4.16

shall not employ unrestrained abuse and impertinent slander. They must do whatever the case requires, but refrain from unjust conduct; for if anyone should be so insolent as to think that his case should be conducted not by argument but by insults, he shall suffer the loss of reputation", tr. Scott, adapted). This text is addressed to the PVR Olybrius (*PLRE* I, Olybrius 3; cf. ad 28.1.8 [p. 20]), which supports the observation of Matthews, 1992, 50: "it is difficult to follow Ammianus in his observation that the abuses described by him were particularly prevalent in the east (30.4.4, 8)". The division in sections is not ideal: the last sentence (*e quibus* etc.) clearly belongs to the next section. The sentence in question can be interpreted in two ways: 'that they never remember having possessed books' and 'that they remember never to have possessed books'. The first interpretation is probably correct. See for the term *codex* 28.1.26 (p. 57). TLL III 1404.72–73 adds (*i. iuris*) which has inspired some translators to assume that *codex* here means 'law book'. This is possible, but not necessary: it seems more likely that Amm. meant to emphasize their lack of proper education in general.

- 4.17 *et si in circulo doctorum auctoris veteris inciderit nomen, piscis aut edulii peregrinum esse vocabulum arbitrantur, si vero advena quisquam inusitatum sibi antea Marcianum verbo tenus quaesierit oratorem, omnes confestim Marcianos appellari se fingunt* The phrase *in circulo doctorum* is undoubtedly inspired by Gel. 4.1.1 *in circulo doctorum hominum*. The reader who recognized this allusion, will have smiled at the idea that these barely educated lawyers would have mixed with truly learned men, such as are referred to in Gellius' phrase. The adj. *veteris* is important: well-educated people were acquainted with literary history, the would-be lawyers could only think of the food on the tables of the elite, mentioned in §14. This is Amm.'s only instance of *edulium*, "foodstuff" (OLD s.v.). He may have taken it from Gel. 6.16.4 *genera autem nominaque edulium*. The visitor had never met (*inusitatum sibi antea*) Marcianus, whose name is only mentioned as an example (*verbo tenus*). Wagner tentatively suggests *invisitatum* as an emendation of *inusitatum*. Petschenig, 1892, 686 agrees, but Löfstedt, 1950, 95 notes, that the two words are virtually synonymous. Pasoli, 1967, 463 proposes another interpretation: *sibi* does not refer to the *advena*, but to the lawyers present at the scene, who shamefully did not know who Marcianus was. This implies the assumption of a rather complicated pattern of the sentence. Viansino in his commentary ad loc. writes: "giurista (II–III secolo d. C.)". He apparently thinks of Aelius Marcianus (*PIR*² A 215), a lawyer in the time of the Severi, who inter alia wrote a manual of *Institutiones* (*Inst. Iust.* 4.3.1, *Dig.* 23.2.57a,

Cod. Iust. 7.7.1.1). Lana, 1993, 36 suggests that one of the orators by the name of Marcianus, mentioned by Libanius, may be meant (cf. *Lib. Ep.* 302, 1282, 1511, 1512). All this is speculative. Marcianus is a very common name.

nec iam fas ullum prae oculis habent, sed tamquam avaritiae venundati et usucapti nihil praeter insemnatam petendi licentiam norunt With *fas* Amm. introduces a non-juridical, but moral term: these men lack all respect for what is morally right and proper, and they are ready to sell themselves to greed or even to become its continuous property. The verb *usucapere* means “to acquire ownership by virtue of uninterrupted possession” (OLD s.v.). They follow only one guideline, their innate freedom to do what they want to do, in the present text ‘to sue’: the verb *petere* should here be interpreted as a juridical term; see Heumann-Seckel s.v. 4. 4.18

et si quem semel intra retia ceperint, cassibus mille impedicant per morborum simulationem vicissim consulto cessantes; utque pervulgati iuris proferatur lectio una, septem vendibiles introitus praeparant dilationum examina longissima contextentes Amm. finally switches from his somewhat monotonous moral indictment to a caricatural description of endless legal proceedings. Having captured a client, the lawyers handcuff him, but not in a literal sense. The verb *impedicare* is very rare, it means “pedicā (‘with a shackle’) vincere” (TLL VII 1.528.12–16). An organized ‘relay’ of sickness absences was a tried and tested method. In order to put forward one single passage of law they prepare seven introductions, which weave together very long ‘swarms’ of postponements. See for *vendibilis* OLD s.v. b: “acceptable to public taste”, for instance *vendibilem orationem* (*Cic. Amic.* 96); see the note of Seyffert-Müller ad loc.

For *lectio* see ad § 12 above (p. 88). In combination with *iuris* we find the word also in *Cod. Iust.* 6.61.5 pr.: (cum mulier) *diversis iuris lectionibus idem intellegi maritum et sponsum niteretur probare*, ‘(when the woman) relying on different passages of the law, tried to prove that the words husband and fiancé mean the same thing’; TLL VII 2.1086.38–39.

et cum nudatis litigatoribus dies cesserint et menses et anni, tandem obtrita vetustate controversia intromissa ipsa capita splendoris ingressa alia secum advocatorum simulacra inducunt See for *nudatis* OLD s.v. *nudo* 5b: “to strip a person of his wealth”, and cf. *Cod. Theod.* 2.10.4, quoted ad § 8 (p. 78). For *litigatoribus*, ‘the litigants’, ‘the parties in a lawsuit’, see TLL VII 2.1505.5–76 (where our passage is not cited) and cf. *litigare* in § 15 and *litigantibus* in § 22 of this chapter. In *Cod. Theod.* 2.11.1 Constantine states: *advocatorum errores* 4.19

in competenti iudicio litigatoribus non praeiudicant (“the errors of advocates in a competent court do not prejudice the litigants”, tr. Pharr).

At long last the case is brought before a court (*intromissa*), and the heads of the ‘elite’ among the lawyers make their entrance, accompanied by others, who are mere bogus advocates. See for this use of *alius* 24.1.11 (pp. 20–21), for *capita* denoting ‘chiefs’ 25.10.8 (p. 326) and for *splendor* 23.6.83 (*nobilitas omnis et splendor*, p. 225). It is probably useful to note that *controversia intromissa* is an abl. abs.; *obtrita* is an attributive adjunct to *controversia*, with *vetustate* as abl. causae: ‘when finally the dispute, worn out by the long wait, is brought into court’. See for *intromittere* as a juridical term Heumann-Seckel s.v. 2 and TLL VII 2.82.22–23.

See for *cedere* meaning “to pass, to come to an end” OLD s.v. 5. At first sight Amm.’s *cum...dies cesserint et menses et anni* might be interpreted as a satirical hyperbole, but in reality lawsuits could take up a lot of time. Amm. is not alone in pointing this out. Constantine wanted to improve the situation by acknowledging the judicial authority of bishops *ut miseri homines longis ac paene perpetuis actionum laqueis implicati ab improbis petitionibus vel a cupiditate praepostera maturo fine discedant* (“so that wretched men, entangled in the long and almost endless toils of litigation, may at length, with timely settlement, escape from unscrupulous legal attacks and from an unreasonable avarice”, *Const. Sirmond.* 1, tr. Pharr; Matthews, 1992, 50). The same emperor ordered, that “the proceedings of criminal cases” should be “concluded on the third day, or latest on the fourth day, or at any rate on the fifth” (*negotia...criminalia...tertia, vel ut tardissime quarta vel certe quinta die acta conficienda*, *Cod. Theod.* 1.12.1, tr. Pharr, adapted). Libanius in *Or.* 45.18 speaks about time-wasting and endless sessions in the court-rooms (πολλοὺς μεθ’ ἑκατέρων ῥήτορας καὶ μακροὺς παρ’ ἀμφοτέρων λόγους. καθίζει δὲ αὐτοὺς καὶ ἑσπέρα δικαστὰς οὐκ ὀλιγάκις, “a galaxy of legal talent on each side and longwinded speeches from both. Even nightfall often finds the judges in session”, tr. Norman) and sees this as concomitant with the fact, that δίκαι δὲ ὑπὲρ μικρῶν πολλαί, ὑπὲρ δὲ μεγάλων ὀλίγαι (“court hearings there are in plenty for matters of little moment, for matters of importance, few”, tr. Norman). Valentinian and Valens prohibited advocates to delay the trial of a case which had been entrusted to them: *nemo ex industria protrahat iurgium* (*Cod. Iust.* 2.6.6.4), and they fixed a period of thirty days for *iudices* to deal with an appeal (*Cod. Theod.* 11.30.32 *iudicibus non solum appellationis suscipiendae necessitas videtur imposita, verum etiam triginta dierum spatia definita sunt, intra quae negotii merita ad mansuetudinis nostrae scrinia conveniat destinari*, “It appears that not only is the necessity of accepting an appeal imposed on judges, but the period of thirty days is also fixed within

which the records must be sent to the bureaus of Our Clemency", tr. Pharr). See for *advocatus* and its synonyms ad § 2 above (p. 64).

cumque intra cancellorum venerint saepta et agi coeperint alicuius fortunae vel salus atque laborari debeat, ut ab insonte gladius vel calamitosa detrimenta pellantur, corrugatis hinc inde frontibus bracchiisque histrionico gestu formatis, ut contionaria Gracchi fistula post occipitium desit, consistitur altrinsecus diu After the arrival of the lawyers and their assistants in the official room marked off by a grille, one expects that all would spend their energy and expertise on safeguarding an innocent defendant's life and possessions, but instead a theatrical scene opens up before our eyes: two men develop a form of intimidating behaviour by puckering up their brows (*corrugatis frontibus*) and using their arms in a theatrical (*histrionico*) manner, so that one misses the flute-playing which accompanied Gaius Gracchus' speeches. See for this Cic. *de Orat.* 3.225–227, V. Max. 8.10.1, Plut. *TG* 2.4–5, Quint. *Inst.* 1.10.27 and Gel. 1.11.10–16. All these authors mention that the fluteplayer stood behind him. Schneider's addition of *sola*, which was inspired by 28.1.46 and 28.4.13, is attractive, but not necessary.

tandemque ex praemeditato colludio per eum, qui est in verba fidentior, suave quoddam principium dicendi exoritur Cluentianae vel pro Ctesiphonte orationum aemula ornamenta promittens After a long pause on both sides, finally, according to a secret arrangement (see Heumann-Seckel s.v. *colludere*), the lawyer who is the most self-confident, begins a speech, which promises to rival the beauty of the speeches in defence of Cluentius or Ctesiphon, spoken by Cicero and Demosthenes respectively. The *propositio* ('statement of the facts') of Cicero's lengthy speech, which dates from 66 B.C., was regarded as exemplary: *Nec video quod huius rei possit apud oratores reperiri melius exemplum quam Ciceronis pro A. Cluentio* (Quint. *Inst.* 4.1.35). Some literature on the speech for Cluentius: Pugliese, 1970; Classen, 1985; Fuhrmann, 1997. Demosthenes defended Ctesiphon in his famous speech Περὶ τοῦ στεφάνου. This speech was the answer to Aeschines' *Against Ctesiphon* (see ad § 5 above); cf. e.g. Cawkwell, 1969; Wankel, 1976 and Sawada, 1996. TLL VI 696.63–73 registers the instances of *fidere in*, with only one case in which *in* is followed by an acc.: *petitiones, in quas nos fidimus* (Cyp. *epist.* 21.3); see also Szantyr 87.

et in eam conclusionem cunctis finem cupientibus desinit, ut nondum se patroni post speciem litis triennium editam causentur instructos, spatioque prorogati temporis impetrato quasi cum Antaeo vetere colluctati perseveranter

flagitant pulveris periculosi mercedes While all those present in the courtroom were yearning for the end, Amm.'s orator concludes that the advocates, after the fake procedure, which had taken three years, had not yet been fully informed. See for *causari*, 'to mention something as an excuse for not taking a particular action', ad 20.8.20 (p. 217) and 25.5.3 (p. 176). The verb *edere* is a juridical t.t.: see Heumann-Seckel s.v. *edere* II: "vorlegen, bekannt machen" of the accusation. In view of this it is surprising that the editores all print *triennium* as if this can easily be interpreted in the context. Wagner explains it as "triennio ante", a simple, but baseless solution. Petschenig, 1892, 686 offers the much needed emendation: *ante triennium*. Having been granted extra time, they have further demands: as if, like Hercules in the old story, they had wrestled with the giant Antaeus, they now wanted a reward for their dangerous struggle. The Libyan giant Antaeus, son of Poseidon and Gaia, is also mentioned in 28.1.46. He used to kill strangers by forcing them to wrestle with him, whilst he himself regained his strength through contact with his mother; cf. e.g. Apollod. 2.115. *Pulvis* denotes the ground on which set battles were fought or martial arts were performed and is also used to refer to the battles and fights themselves; see TLL X 2. 2630.71–2631.11 for a list of cases in which *pulvis* refers to fighting in a transferred sense in public life, like *ad forensem pulverem* (Quint. *Inst.* 10.1.33).

- 4.20 *Verum tamen haec cum ita sint, non desunt advocatis incommoda plurima parum sustinenda recte victuro. namque sellulariis quaestibus inescati inter se hostiliter dissident et rupta maledicendi ferocia, ut dictum est, multos offendunt; quam tunc effutiunt, cum commissarum sibi causarum infirmitatem orationibus validis convelare non possunt* Although the adversative particle *verum* occurs often in the *Res Gestae*, the addition of *tamen* is found only here and in 25.4.19. Amm. notes that the lawyers' reprehensible personal conduct is also due to the general conditions within this professional group. This makes it difficult for a *recte victurus*. It is tempting to regard this as part. fut. of *vincere*: 'a person who aims to win lawsuits in a decent manner'; see for this meaning OLD s.v. *vinco* 5. However, the phrase *bene vivere* is used often by many authors, and in Amm.'s other six instances of *victurus* it is most likely the part. fut. of *vivere*. Men, who had been enticed by gainful sedentary occupations, are each other's enemies. This was probably inspired by Gel. 3.1.10 *Negotiis enim se plerumque umbraticis et sellulariis quaestibus intentos habent*; see above ad § 15. This is Amm.'s only instance of the verb *inescare*, which means "escā (by bait) illicere" (TLL VII 1. 1316.83). The proposals to add various preverbs to *rupta* are not necessary in view of OLD s.v. *rumpo* 5: "to burst forth"; *ferox* and *ferocia* denote defiant arrogance,

which manifested itself in abusing and offending, ‘as was mentioned’, viz. above in §16. They ‘blurt out’ (this arrogance), when they fail to hide the weakness of cases which had been entrusted to them by “effective” (OLD s.v. *validus*) pleas. This is Amm.’s only instance of *effutire*; he may have found it in Gellius, who uses it four times. As Hertz, 1874, 289 notes, Amm. definitely borrowed the rare verb *convelare* from Gel. 6.3.44 *multisque aliis argumentis convelat*.

et iudices patiuntur interdum doctos ex Philistionis aut Aesopi cavillationibus, quam ex Aristidis illius Iusti vel Catonis disciplina productos; qui aere gravi mercati publicas potestates ut creditores molesti opes cuiusque modi fortunae rimantes alienis gremiis excutiunt praedas The lawyers need patience because they are faced with judges whose erudition is derived from authors like Philistio and Aesopus. The former is mentioned by Martial 2.41.15 *mimos ridiculi Philistionis* and Jerome, *adv. Rufin.* 2.20 *mimum Philistionis*. The Suda (Φ 364) says that Philistion was a κωμικός from Prusa who wrote κωμωδίαῖ βιολογικαί (= μῖμοι, LSJ) of which one was called Μιμοψηφισταί, and dates him in the time of Socrates. However, according to Jerome (*Chron.* a. 6 A.D.), who is followed by Furley, 2000, he lived in the time of Augustus, hailed from Magnesia and was well-known in Rome: *Philistio mimografus, natione Magnesianus* (cf. Helm’s app. crit.) *Romae clarus habetur*. Ps. Chrys. *hom. in Mt.* 12:14 (PG 61.710) and Nilus Ancyranus *ep.* 3.8 (cf. Hammerstaedt, 1996) speak of the μωρολογίαι, “silly tales” (LSJ) of Philistion. See for *cavillatio*, a word which is quite common in Roman literature, ad 22.8.33 (p. 127). It is used for various forms of fun, both playful and sarcastic. Some scholars, among them Lindenbrog and Wagner, think that Aesopus is meant to be the tragic actor who is often mentioned by Cicero, e.g. in *Div.* 1.80 (cf. for him Blume, 1996), but it is far more likely that Amm. refers to the well-known writer of fables (cf. Luzzatto, 1996), who is not mentioned very often in Roman literature. This is Amm.’s only reference to him. He obviously regarded the mimes and fables as second rate literature, especially with regard to the guidelines of justice, for which the famous Athenian Aristides, and Cato, were the ideal guides. See for *quam* = *magis quam* Szantyr 593–594 and for examples in Amm. ad 27.8.8 (p. 198). Amm.’s negative judgment differs markedly from Gellius, who spends an entire caput (2.29) trying to show Aesopus’ ability to present *quae utilia monitu suasuque erant* in an attractive way. Anyhow, because of their neglect of true champions of justice, Amm.’s judges, who had bought their job with ‘serious money’ (see for the technical term *aes grave* ad 29.2.7 [p. 84]), were only after the revenues of this investment: like annoying creditors they stole their booty from other people’s ‘bosom’; see

OLD s.v. *gremium* 2: “the lap or bosom as a place in which objects are carried or put for safe keeping”.

The 5th-century B.C. Athenian politician Aristides (see for him Stein-Hölkeskamp, 1996) was already called just and righteous by Herodotus: ἄριστον ἄνδρα...καὶ δικαιοτάτον (8.79.1). Cf. for his epitheton *iustus* e.g. Nep. *Ar.* 1.2 *adeo excellebat Aristides abstinencia, ut...cognomine Iustus sit appellatus*, Cic. *Off.* 3.16, *Tusc.* 5.105 and Sen. *Cons. Helv.* 13.7. The absence of further details makes it difficult to decide whether Amm. means Cato Censorius or Uticensis (see ad 26.10.10 [p. 284] and 28.1.39 [p. 81]), but the first possibility seems more likely, in view of the fact that Plutarch joins Aristides to Cato Censorius (*Comp. Arist. Cat. Ma.*), as does Ausonius in *Par.* 22.3–4: *nec solus semper censor Cato nec sibi solus / iustus Aristides his placeant titulis* (“No more let Cato vaunt himself as the one and only ‘Censor’, nor Aristides pride himself as sole owner of the title of ‘The Just’”, tr. Evelyn White). Zecchini, 2007, 208 opts for Censorius, but does not discuss the alternative.

In many late antique sources there is talk of judges, who did not heed the rule expressed by Cicero in *Off.* 2.51: *Iudicis est semper in causis verum sequi*. In *Or.* 47.14 Libanius complains that in the case of his Jewish tenants against him the judge had yielded to the pressure of their military patron: καὶ ὁ δικάζων ὁ μὲν οὐκ ἦν, ἦν, ὁ δ' ἦν, οὐκ ἦν, ἀντὶ δικαστοῦ συνήγορος (“And there the judge became what he was not and ceased to be what he was: instead of judge he became advocate”, tr. Norman). In Lib. *Comp.* 5.4 we read: καὶ μισθὸς ῥήτορσιν ἐπ' ὀλέθρῳ δίδεται τῶν πολιτῶν καὶ λόγοι γράφονται κατὰ τῶν ἀσθενεστέρων καὶ χρήματα μάρτυρας εἰσάγει ψευδεῖς καὶ διαφθείρει δικαστὰς (“And payment is given to advocates for the destruction of their fellow citizens, and speeches are written against the weaker, and money brings in false witnesses and corrupts the judges”, tr. Gibson, adapted). From *Or.* 29.28, where Libanius admits that there existed ἀπρατὰ δικαστήρια (‘unprostituted courts’), in which not only the rich, but also the poor could win a case, we can deduce that according to him it was normally the other way around. We find similar utterances in the work of another Antiochene, John Chrysostom: *Laz.* 1–7 (PG 48. 1011) and *hom. 1–44 in 1Cor.* (PG 61. 136). More examples in De Salvo, 1996. Note, however, the cautious remark of Harries, 1999a, 231–232: “The literary representation of the Judge and the frequency of the attacks launched by ancient writers on the arrogance, venality and cruelty of *iudices* in late antiquity do not indicate, by themselves, that corruption or the abuse of power...were rife in the system (or that they were not)”. As to *mercati publicas potestates*, it should be kept in mind that “a professional judiciary had always been alien to Roman tradition. The administration of justice was one of the functions of a magistrate” (Jones 499; cf. Harries, 1999a, 214, quoted

ad § 9 above, p. 83), and that the selling of public offices was endemic in the Later Empire. See the literature cited ad 20.5.7 (p. 126) and in Angliviel de la Beaumelle n. 271, to which can be added Malavé Osuna, 2003; Caputo, 2004–2005; Marcone, 2006.

ad ultimum id habet causidicina cum ceteris metuendum et grave, quod hoc ingenitum est paene litigantibus cunctis, ut, cum iurgia mille casibus cadant, accidentia secus in potestate esse existiment patronorum et omnem certaminum exitum isdem soleant assignare et non vitiis rerum aut iniquitati aliquotiens disceptantium, sed solis defensantibus irascantur. verum unde huc declinavimus, revertamur Amm. winds up his gloomy picture of court procedures by pointing out the risk that lawyers always run: if a case does not meet with success for whatever reason, in the eyes of their clients they are always the culprits. In extant Roman literature there are only three other instances of *causidicina*: Symm. *Ep.* 5.16 and 75 and 9.32. There are, however, some instances in *Cod. Theod.*: 8.4.30.1 and 12.1.188. With *cum ceteris*, ‘among other disadvantages’, Amm. makes sure that it is clear that the anger of the clients is not the only unpleasant aspect. Note that *iurgium* is here a juridical t.t.; see Heumann-Seckel s.v. (“Prozeß”) and TLL VII 2.667.3–38. The polyptoton *casibus cadant* illustrates the connection between chance and failure. Clients, however, are convinced that the lawyers are responsible for a wrong result. See for such a meaning of *secus* 20.8.11 (pp. 198–199). They overlook the errors concerning the facts (*vitiis rerum*) and in quite a few cases (*aliquotiens*) the unfairness of the judges (*disceptantium*; see ad 22.10.2, p. 187).

See ad 22.8.48 (pp. 145–146) for the remarkable fact that ancient historians, Ammianus included, have not developed any really satisfactory formula to conclude a digression.

CHAPTER 5

Introduction

In the autumn of 374 Valentinian intended to lead a punitive expedition against the Sarmatians and the Quadi, who had invaded Pannonia and inflicted a humiliating defeat on two Roman legions. However, his advisers had persuaded him to postpone the campaign until the spring (30.3.3). The present chapter describes Valentinian's actions on the Danube border and illustrates the strong sides of the emperor as well as his defects.

On his way from Trier to Pannonia he was met by a delegation of Sarmatians who pleaded for mercy, arguing that the emperor would find them innocent. Valentinian wisely rejected their appeal and told the Sarmatians that he would judge their case on the spot, on the basis of documentary evidence (§1–2).

The military and civil authorities in Pannonia awaited Valentinian with grave misgivings, fearing that he would severely punish their miserable performance during the barbarian invasion, but on arrival the emperor seemed to have lost interest or to be unwilling to take action against people in high positions (§3). This did not apply to the PPO Petronius Probus, whom Valentinian had loathed ever since he had met him. Ammianus, who devotes a venomous chapter to this influential Roman aristocrat (27.11), elaborates on the ruthless way in which Probus increased and collected taxes, thereby forcing many families, both rich and poor, into bankruptcy and even suicide (§4–6).

The emperor seems not to have been aware of the misery of the Pannonians, until a chance remark, made during a meeting with a delegation from Epirus, opened his eyes. Their spokesman, the philosopher Iphicles, whom Valentinian knew personally, had at first made some noncommittal remarks, but when further questioned by the emperor he admitted that his fellow provincials suffered severely from Probus' avariciousness. This made Valentinian furious, and close cross-examination of the delegates in their own language revealed to him the full measure of Probus' misconduct. The vivid scene (§7–10) reveals both Valentinian's thoroughness and his vindictiveness against Probus.

During the summer months of 375 Valentinian made preparations for the expedition against the Quadi, during which time several innocent people

were condemned to death on ridiculous charges (§ 11–12). These incidents, which have no bearing whatsoever on the main topic of this chapter, reveal once again the atmosphere of lawlessness during Valentinian's reign.

The generals Merobaudes and Sebastianus were sent ahead into barbarian territory, and Valentinian himself also crossed the Danube and ravaged the lands of the Quadi in a lightning campaign, after which he chose Savaria for his winter quarters (§ 13–14).

Before settling down there Valentinian inspected the Danube frontier. He got as far as Brigetio, where he was destined to meet his death. The rest of the chapter (§ 15–19) is devoted to the traditional *omina mortis*, the most notable of which was the dream about the departure of his wife dressed in mourning, a sign that his Fortuna was leaving him, something which had also happened to his predecessors Constantius and Julian.

- 5.1 *Pubescente iam vere Valentinianus a Treveris motus per nota itinera gradu celeri contendebat eique regiones adventanti, quas petébat, legatio Sarmatarum offertur* Amm. resumes the narrative of Valentinian's military actions, which he had interrupted in 30.3 after reporting that the emperor, as soon as he had heard about the invasion of Pannonia by the Quadi and the Sarmatians, had decided to attack the barbarians. His advisers had persuaded him with great difficulty to postpone the expedition until the beginning of the spring (*ad usque veris principium*, 30.3.3) of the following year (375). In fact, the expedition started only when the spring was already (*iam*) well on its way. As is observed in TLL X 2.2439.35, the emperor was still in Trier, where he had spent the winter (cf. 30.3.7), on 9 April (*Cod. Theod.* 12.6.16). The expression *pubescente vere* is found only here and in 27.5.2. It refers roughly to the second month of spring, after *primo vere* (20.4.2) and before *adulto vere* (19.11.2, 20.8.1, 23.2.2 [p. 23]). The relative *quas* is dissyllabic; Harmon 227. Mediopassive *offerri* is rare; TLL IX 2.506.5–6. In 21.9.7 *principi ut captivus offertur ignobilis* and 26.9.9 *ductus ad castra imperatori offertur* it is certainly passive. Some (dubious) examples are given in TLL IX 2. 505.59–64.

As becomes clear in § 2, Valentinian was heading for Carnuntum, where he stayed during the three summer months (§ 11). It is therefore likely, as Kos, 1996, 169 argues, that the Sarmatian ambassadors met the emperor somewhere near Carnuntum in the north of Pannonia Prima, or perhaps already in Noricum Ripense, rather than in Sirmium, the capital of Pannonia Secunda, as Demougeot, 1979, 114 maintains. It is true that Sirmium was closer to Sarmatian territory (for which see below), but it is nowhere attested that Valentinian first visited this city and then returned to Carnuntum. Even

less likely is the suggestion of Jones, 1964, 87: “Valentinian may have passed through Aquileia on his journey from Treveri to Carnuntum”.

The distance from Trier to Carnuntum along the shortest route amounted to 645 Roman miles (955 km) according to the calculations of R. Voorburg (<http://www.omnesviae.org/nl/>; cf. the 941 km of a modern route planner, <https://de.maps.yahoo.com>). Although Valentinian made quick marches (for manner expressions with *gradu* see ad 20.4.12 [p. 81] and 20.4.20 [p. 104]), it must have taken him more than a month to reach his destination, in view of the fact that 30 km a day was the maximum an army covered in normal circumstances (cf. Elton, 1996, 245: “A day’s march obviously varied in length, but seems to have averaged 20 km”). That the emperor took some troops with him can be inferred from 30.10.1 (*cohortibus Gallicanis*, p. 197).

We know that Valentinian was in Carnuntum on 12 August 375 (*Cod. Theod.* 9.1.12, with Pergami, 1993, 647 and Birley, 2007, 16). The precise date at which the emperor arrived in this town is not known. Zos. 4.17.2 does not help; he writes that before Valentinian died (on 17 November) he had stayed in Illyria for nine months minus some days (έν... Ἰλλυριοῖς έννέα μήνας, έλλειπουσών όλίγων ήμερών, διατρίψας), but since the emperor was still in Trier on 9 April this cannot be correct (Seeck, 1920–1923²⁻⁴, V, 437 conjectures a scribal error έννέα μήνας instead of έπτά μήνας). Amm. 30.5.11 does not help either: *Agens... apud Carnuntum imperator per continuos tres menses aestivos* implies that Valentinian arrived in Carnuntum before the summer began. But when did the summer begin according to Amm.? Around 7 May, as the inscription ΘΕΡΟΥΣ ΑΡΧΗ on the *Horologium Augusti* seems to indicate? (Buchner, 1982, 79–80; cf. for the *Horologium Augusti* Haselberger, 2011). Exactly on 9 May, as Var. *R* 1.28.1 writes? Varro mentions the four signs during which the seasons begin and continues with *cum unius cuiusque horum IIII signorum dies tertius et vicesimus IIII temporum sit primus et efficiat ut ver dies habeat XCI, aestas XCIV... quae redacta ad dies civiles nostros, qui nunc sunt, primi verni temporis ex a.d. VII id. Febr., aestivi ex a.d. VII id. Mai.* (“as the twenty-third day of each one of these four signs is the first day of the four seasons, this makes spring contain 91 days, summer 94...which numbers, reduced to the official calendar now in force, fix the beginning of spring on February 7, of summer on May 9”, tr. Hooper and Ash). Or around 20 May, the date of the rising of the Pleiades (cf. Plin. *Nat.* 18.280 *vergiliae... quarum exortu aestas incipiat*)? We simply don’t know.

Bands of Quadi had started to invade Pannonia in the summer of 374 (*Quadorum natio mota est*, 29.6.1); they had been joined by Sarmatians (29.6.8, 29.6.14–15; cf. 26.4.5). In the fourth century the Sarmatians, *latrocinandi peritissimum genus* (16.10.20, cf. 29.6.8), had their home territory in

that part of the Great Hungarian Plain, which is occupied by modern Hungary between the Danube and the Theiss. Amm. mentions in 22.8.31 (p. 124) the Sarmatian tribe of the Iazyges, and speaks in 17.13.1, 19, 20, 30 and 29.6.15 (pp. 243–244) of the Free Sarmatians, *Sarmatae Liberi* or simply *Liberi*, to distinguish them from their former slaves, the Limigantes. See for the Sarmatians in general Sulimirski, 1970 and Von Bredow, 2001; for the relationship between Quadi and Sarmatians Dittrich, 1984 and Mráv, 1998, 95–97.

pedibusque eius prostrata orabat pacifica prece, ut propitius veniret et lenis nullius diri facinoris participes populares suos inventurus aut conscios The alliteration with *p* is abundant in this section. Petschenig, 1897, 556 acutely observes that “nicht selten eines dieser Wörter eigens zu dem Zwecke gewählt worden sein muss, um die Alliteration zu erzielen”. That helps to explain the surprising adj. *pacifica*, which would suit the emperor far better than the Sarmatians, who are humbly asking for mercy. With the exception of Luc. 3.304–305 *duramque viri (Caesaris) deflectere mentem / pacifico sermone parant* all instances of *pacificus* “de verbis, scriptis sim.” (TLL X 1.16.47–60) are found in Christian authors. For *prosternere* cf. 17.8.5 on the Chamavi: *humi prostratis sub obtutibus eius pacem...tribuit*; 29.1.34 *Theodorus...in precem venialem prostratus* (p. 57); Vell. 2.114.4 *prosternentemque se universam (Pannoniam) genibus imperatoris*; Luc. 7.371–372 (credite) *senatum / ...sacros pedibus prosternere canos* (“that senators...lay at your feet their venerable grey hairs”, tr. Duff). One is reminded of the Sarmatian prince Zizais, who in 358, while begging the emperor Constantius for peace, *pectore toto procubuit, exanimis stratus*, “fell flat on his breast, as if lying lifeless” (17.12.9, tr. Rolfe). There are many examples of *propitius* used of emperors; see TLL X 2.2055.73–2056.15.

The hyperbata *et lenis* and *aut conscios* show that it has become second nature to Amm. to put one noun or adjective before, and one after the verb. He chooses this word order also when it has no bearing on the cursus: *lénis veníret* and *cónscios inventúrus* would have been impeccable. For the combination of *consci* and *particeps* see 28.6.22 (p. 288).

- 5.2 *quibus saepe eadem iterantibus hactenus perpensa deliberatione respondit, haec in locis, ubi dicuntur admissa, quaerenda verissimis documentis et vindicanda* For *hactenus* ‘only this’ cf. 14.11.22 *Adrasteo pallore perfusus hactenus valuit loqui*; 25.3.20 *hactenus loqui vigore virium labente sufficiet*. The expression *perpensa deliberatione* occurs also in 22.9.2 *Omnibus...perpensa deliberatione dispositis* and in *Cod. Theod.* 10.19.3 *perpensa deliberatione duximus sancendum*. The present tense *dicuntur* is surprising. Instead of *ubi dicun-*

tur admissa one would have expected *ubi essent admissa*. The clause may be understood as expressing a general rule, but in that case one would have expected something like *talia* instead of *haec*. This is probably a case of contamination.

The places in question were in the provinces of Valeria, Pannonia Secunda (the Sarmatians even threatened to attack Sirmium, but shied away from a siege) and Moesia; 29.6.8–15 (pp. 235–244).

Sabbah 383 rightly observes that the *documenta* Valentinian wants to study are not just official reports, like the one sent by Probus (30.3.1, pp. 48–49) and the results of the investigations of Paternianus (30.3.2), but also “les constatations faites *de visu* par l’empereur lui-même sur les lieux de leurs ‘crimes’”. For the superlative *verissimus* see ad 29.4.1 (p. 135). The *documenta verissima* required by Valentinian will have to be more substantial than the unconfirmed protestations of innocence voiced by the Sarmatians. In the end, the investigation came to nothing, either because Valentinian was too indolent (cf. *intepuit* in § 3) or because his death (30.6.6) prevented him from taking action against the Sarmatians.

cumque exinde Carnuntum Illyriorum oppidum introisset, desertum quidem nunc et squalens, sed ductori exercitus pérquàm opportunum The Illyrian town of Carnuntum (modern Petronell/Deutsch-Altenburg; Talbert 13 B4) was situated on the Danube some 40 km east of Vindobona (Vienna) at the intersection of the Amber road and the *limes*-road along the Danube. Cf. ad 20.1.1 (p. 1), 21.5.13 (p. 72) and 21.7.1 (pp. 95–96) for Illyricum and *Illyrii*. In the first and second centuries A.D. Carnuntum was a military base, where *legio XV Apollinaris* and later *legio XIV Gemina Martia Victrix* had their quarters, as did auxiliary troops. Its civil settlement became the capital of Pannonia Superior when Pannonia was divided by Trajan (Haensch, 1997, 349–352), and it obtained municipal rights under Hadrian (e.g. *ILS* 7121). The fact that Marcus Aurelius made Carnuntum his headquarters for three years in the war against the Marcomanni (Eutr. 8.13.1) testifies to its unceasing military importance. Under the Severi its status was that of a *colonia* (e.g. *ILS* 7122). According to HA S 5.1 Septimius Severus was proclaimed Augustus in Carnuntum (but see Birley, 1988, 97 with n. 21, pointing to *epit.* 19.2 *Niger Pescennius apud Antiochiam, in Pannoniae Sabaria Septimius Severus creantur Augusti*; Haensch, 1997, 351 prefers the HA version). It was in Carnuntum that in 308 a conference of the former emperor Diocletian and some other tetrarchs took place (Zos. 2.10.4 with Paschoud’s n. 18, *ILS* 659, *Consul. Constant.* a. 308; Demandt, 2007², 79). In the fourth century, when Pannonia Superior had been divided into Pannonia Prima and Savia, Savaria (modern

Szombathely), and not Carnuntum, became capital of Pannonia Prima (cf. ad 30.5.14, p. 130). See for the history of the town e.g. Swoboda, 1964⁴; Jobst, 1983; Dietz, 1997; Humer, 2014 and the literature cited by Matthews 538 n. 28.

The interpretation of the words *desertum quidem nunc et squalens, sed ductori exercitus perquam opportunum* is disputed. Some scholars think that Valentinian found Carnuntum in 375 “to be ‘deserted and unkempt’ though still suitable for military use” (Matthews 395). Cf. e.g. Swoboda, 1964⁴, 75–76, Mócsy, 1974, 295 and Nixon, 1983, 55 n. 38: “The explanation for Valentinian’s entry which follows, viz. *sed ductori exercitus perquam opportunum*, guarantees that the *nunc* refers to 375”. Others take *nunc* as a reference to Amm.’s time of writing, e.g. Dittrich, 1984, 109 n. 99 (approvingly cited by Angliviel de la Beaumelle n. 274) and Viansino, who adds “[anni 390–395]” to his translation of *nunc* (“ora”). A similar reference to the time of writing is found in 29.6.1 *Quadorum natio...parum nunc formidanda, sed immensum quantum antehac bellatrix et potens*. Dittrich assumes that the Carnuntians left their town “im Zuge des letzten Germanensturms 395 n. Chr.”. She apparently thinks that until then Carnuntum had remained undamaged. Archaeologists tell a different story. “For the middle of the fourth century archaeological evidence shows that Carnuntum was severely affected by a damaging event with destroyed buildings found in all parts of the settlement. Many of these buildings were not rebuilt after the event” (Decker, Gangl & Kandler, 2006, 483). It is only for the time of Valentinian himself that “extensive reconstruction activity is confirmed especially in the legionary camp”, but even then traces of the former destruction remained visible: “in the *canabae* large areas of the settlement were abandoned” (Decker et al., *ibid.*; cf. 486–487).

The destruction of Carnuntum in the middle of the fourth century is interpreted by Kandler, 1989 and Decker, Gangl & Kandler, 2006 as the result of an earthquake. Humer & Maschek, 2007, Maschek, 2010 and Konecny, 2014 argue in the same vein. Gugl, 2011, 512 (cf. Gugl, 2007) is sceptical with respect to the earthquake hypothesis, but accepts a period of destruction and decay in the pre-Valentinian period. All this validates the interpretation of Matthews *cum suis*. It should further be noted that Carnuntum was not the only Pannonian city which showed signs of decline in the fourth century. Cf. 29.6.11 about Sirmium, 30.5.14 about Savaria and 30.5.17 about Brigetio.

Amm. has a predilection for *squalidus* and its derivatives, which he uses 39 times in the *Res Gestae*, mostly of rough and barren land, as in 22.15.22 (p. 276), or of a ravaged city as in the present text. When used of people its meaning is ‘unkempt’, as in 22.9.4 *quod ordo squalens occurrit et populus nimium quantum antehac florentissimus*. It is also used metaphorically as

meaning ‘vaguely’, ‘lacking precision’ with *verba sentiendi et cogitandi* as in 21.14.2 (p. 218) *secretum aliquid...quod interdum affuisse sibi squalidius aestimabat* and 26.1.10 (p. 30) *ne igitur haec computatio...scientiam omnem squalida diversitate confundat*, “in order that this computation...may not confuse all science by a disorderly diversity” (tr. Rolfe). For *ductor* used of emperors and generals see ad 25.1.2 (pp. 5–6).

ubi fors copiam dedisset aut ratio, e statione proxima reprimebat barbaricos appetitus Cf. Hor. S. 1.1.2 *seu ratio dederit seu fors obiecerit* with the subtle differentiation *dederit*—*obiecerit*. In Amm.’s version of the phrase the *cursus* necessitated the hyperbaton of *ratio*. On the frequent use of the iterative subjunctive in the *Res Gestae* see ad 27.11.2 (p. 258). For *appetitus* see ad 24.4.10 (p. 113). In the present text it is obviously equivalent to *impetus*.

As to *e statione proxima*, it has been suggested that Amm. refers to the fortress of Devín, strategically placed at the confluence of Danube and Morava in what is now a borough of Bratislava, the capital of Slovakia (Ondrouch, 1937; cf. Ondrouch, 1938, 9–10). Devín was situated on the left bank of the Danube, some 5 km as the crow flies from Carnuntum (Talbert 13 C4). It had been an important Roman military station during the Principate (see for *stationes* as ‘military posts’ ad 26.7.5 [p. 190]), but, although some of its buildings were once again in use in the fourth century, there are no signs of a reconstruction under Valentinian (Plachá & Pieta, 1990; Pieta, 2003; Bazovský, 2011). It seems therefore better to assume with Dobiaš, 1938 that Amm. refers with the words under discussion to Carnuntum itself as the base closest to enemy country from which the attacks of the barbarians could be blocked. Cf. for this use of *statio* e.g. 18.7.8 *reges Nisibi pro statione vili transmissa...per valles gramineas incedebant* (“the kings passed by Nisibis as an unimportant halting place...and were marching through the grassy valleys”, tr. Rolfe). Dittrich, 1984, 109 n. 99 notes: “Da man in Carnuntum von dem inzwischen halb abgetragenen Pfaffen- und dem Braunsberg aus freie Sicht in die Ebene jenseits der Donau hatte, konnte man von hier Truppenbewegungen des Feindes beobachten”. See for *statio* in general France & Nelis-Clément, 2014.

Et quamquam terrori cunctis erat, dum sperabatur, ut acer et vehemens mox iudices damnari iussurus, quorum perfidia vel secessione Pannoniarum nudatum est latus Cf. Sen. Ben. 1.13.3 (Hercules) *qui summum bonum duceret terrori esse cunctis mortalibus*. The clause *dum sperabatur* is in opposition to *cum illuc venisset* in the second half of this sentence, whereas the *ut*-clause explains why Valentinian’s approach filled the officials (for *iudex* see

ad 20.5.7, pp. 125–126) with fear. For *sperare* ‘to expect’, or even ‘to fear’ see De Jonge ad 14.7.5 (p. 20). The combination of *acer* and *vehemens* is found more than twenty times in Cicero. For *sperari* with future participle cf. 17.3.1 *plurimae gentes vi maiore collaturae capita sperabantur*; 30.10.1 (cohortes Gallicanae) *ausurae novum quoddam in tempore sperabantur*; Tac. *Hist.* 2.74.1 *ceterae Illyrici legiones secuturæ sperabantur*. As was argued ad 29.6.12 (p. 240), *perfidia* refers to the murder of king Gabinius perpetrated by Marcellianus (cf. 30.1.1 *perfidia ducis rege Quadorum...occiso per scelus*) and *secessio* to Equitius’ flight to a remote region of Valeria. The murder of Gabinius had provoked the Quadi to invade the Roman Empire, the flight of Equitius had weakened its border defences. For the diocese of the *Pannoniae* see ad 21.5.13 (p. 72).

cum illuc venisset, ita intepuit, ut neque in Gabinii regis inquireret necem neque iniusta rei publicae vulnera, quo sinente vel agente segnius evenissent, curatius vestigaret The verb *intepescere* is rarely used of people; TLL VII 1.2125.24–25 quotes Cassian. *conl.* 13.11.5 *si nos intepuisse perspexerit deus* as a parallel. For the murder of Gabinius by order of the *dux per Valeriam* Marcellianus see 29.6.5 (pp. 230–231). *Iniusta* is the correction in AG of the predictable corruption *iniusta* in V; it is certainly right in view of 29.6.8 *mag-nas inussisset rei publicae clades*. Valentinian failed to inquire who had been responsible, either by remaining passive (*sinente*) or by reacting too slowly (*agente segnius*), for the terrible damage inflicted by the barbarians. The prolepsis of *iniusta rei publicae vulnera* results in a complicated sentence. V added *ut* before *curatius*, probably because it is so far removed from the preceding *ut* (17 words!) that the scribe had forgotten that the conjunction had already been written. For *curatius* see ad 30.5.9 *quaerente curatius principe* (pp. 118–119).

eo videlicet more, quo erat severus in gregariis corrigendis, remissior erga maiores fortunas vel verbis asperioribus incessendas As was observed ad 27.2.10 (pp. 30–31), *videlicet* usually expresses that something is obvious or self-evident. The reader is by now only too familiar with Valentinian’s severity towards the little man and his leniency towards powerful people, for which see ad 27.9.4 (pp. 208–209). Cf. also *cum gregariorum etiam levia puniret errata, potiorum ducum flagitia progredi sinebat in maius* (30.9.1). *Remissior* corresponds with *intepuit* in the preceding sentence; cf. 20.10.1 (p. 235) *ne intepesceret neve ut remissus argueretur et deses*. For Amm.’s frequent use of abstractum pro concreto (*maiores fortunas* for ‘powerful people’) see ad 20.3.10 (p. 44), 25.2.2. (p. 44) and 28.6.4 (p. 262). For *vel* ‘even’,

which does not occur often in the *Res Gestae*, see ad 29.2.3 (p. 76). According to Amm. dignitaries should not only not be spared, but reprimanded even more severely than ordinary people.

solum tamen incitato petebat odio Probum numquam, ex quo eum viderat, minari desinens vel mitescens; cuius rei causae nec obscurae fuerunt nec leves For *incitato odio* cf. 31.2.11 *totum furori incitatissimo tribuentes* and V. Max. 1.8.6 *odio incitatissimo*; TLL VII 1.933.25–26. Amm. understands Valentinian's hatred of Petronius Probus (*PLRE* I, Probus 5) only too well; see ad 27.11 (pp. 251–252) and 29.6.9 (pp. 236–237). The Pannonian emperor's extreme dislike of the Roman aristocrat did not prevent him, though, from investing Probus with the consulate in 371 as the colleague of his son Gratian (Bagnall et al., 1987, 276–277).

It must have been in the summer of 364 that Valentinian met Probus for the first time, viz. when Probus was praetorian prefect of Illyricum (for which see ad 26.5.5 [pp. 106–107] and 27.11.3 [p. 259]), and Valentinian passed Sirmium on his way from Nicaea, where he was proclaimed Augustus on 25 February 364 (Amm. 26.2.2–3; Socr. *HE* 4.1.1), to Milan, where his presence is attested for 9 November 364 (*Cod. Theod.* 11.30.4). We know that Valentinian was in Sirmium on 5 July 364 (*Consult.* 9.6 *dat. III Non. Iul. Sirmio*), and that the terminus post quem for his departure from this city is 29 July 364 (*Cod. Theod.* 5.15.15 *dat. IIII Kal. Aug. Sirmio*).

hic praefecturam praetorio tunc primitus nactus eamque multis atque utinam probabilibus modis in longum proferre gestiens, non, ut prosapiae suae claritudo monebat, plus adulationi quam verecundiae dedit The adverb *tunc* refers to the moment when Valentinian first set eyes on Probus, that is, in 364, when, as we have seen, Probus indeed held his first prefecture. Failing to see this connection, and apparently thinking that Amm. refers to the year of Valentinian's Quadian campaign in 375, a textual corruption has been assumed. Mommsen conjectured *haud* instead of V's *tunc*, Heraeus (followed by e.g. Clark, Rolfe, Sabbah and Viansino in their editions, and by other scholars, e.g. Drexler, 1974 and Cameron, 1985) suggested that *non* before *primitus* must have been lost: *hic praefecturam praetorio <non> tunc primitus nactus* ("Probus had then achieved the prefectship—not for the first time", tr. Hamilton). Heraeus' proposal is ingenious indeed (cf. Amm. 17.11.1 *quod non tunc primitus accidit* and 23.5.16 *non nunc primitus, ut maledici mussitant*), but unnecessary, as is that of Mommsen. The conjectures should be rejected in view of the context. The text as it stands makes perfectly good sense. For a more detailed discussion see Teitler (forthcom-

ing). For (literature on) the *praefectus praetorio* see ad 21.6.5 (pp. 83–84), 23.5.6 (p. 94), 25.3.14 (p. 85) and 26.2.1 (p. 38). For *primitus*, ‘for the first time’, see TLL X 2.1259.64–73.

Wishes introduced by *utinam* are rare in historians. In Livy and Tacitus they are only found in speeches. Amm. uses *utinam* only once in a speech, and five times in authorial comments, as here; see ad 28.1.1 (pp. 5–6). Amm. had voiced his scepticism about Probus’ *modus operandi* in 27.11.1 with the words *iuste an secus, non iudicioli est nostri*. For *gestire* see De Jonge ad 17.11.1 (p. 267). Amm. had described Probus’ eagerness to stay in power vividly in 27.11.3 *ut natantium genus elemento suo expulsum haud ita diu spirat in terris, ita ille marcebat absque praefecturis*. The comma after *non* should be deleted. Probus did not live up to the distinction of his family in letting *adulatio*, ‘servility’ (towards the emperor), prevail over his *verecundia*, ‘self-respect’. For this meaning of *verecundia* cf. 25.10.15 about Jovian: *edax tamen et vino venerique indulgens, quae vitia imperiali verecundia forsitan correxisset* and OLD s.v. *verecundus* 1b “having a sense of honour or self-respect”. Note that this criticism explains why Amm. disapproved of Probus’ behaviour, rather than why Valentinian hated him. With respect to the ruthless way in which he collected the taxes Probus was ‘plus royaliste que le roi’, see ad § 6 below (pp. 112–113).

Amm. uses *prosapia* ‘(noble) lineage’ five times, e.g. 23.5.19 *clara prosapia Deciorum*, 26.7.16 *culminis summi prosapiam*; cf. Sal. Jug. 85.10 *hominem veteris prosapiae ac multarum imaginum*; Suet. Gal. 2.1 *nobilissimus magnaue et vetere prosapia*. For *claritudo* ‘renown’ see ad 23.5.14 (p. 109) and cf. 27.11.1 about Probus: *claritudine generis et potentia et opum amplitudine cognitus orbi Romano*, with the note (pp. 253–254).

- 5.5 *contemplatus enim propositum principis quaerendae undique pecuniae vias absque iustorum iniustorumque discretione scrutantis* For *propositum* ‘intention’, ‘inclination’, see ad 20.5.4 (p. 120) and for the term *princeps* ad 20.2.1 (p. 10). Valentinian was always on the lookout for ways and means to raise money; see the next section. Remarkably, in the *elogium* of Valentinian Amm.’s judgment on this point is far more positive. There he is characterized as *in provinciales admodum parcus, tributorum ubique molliens sarcinas* (30.9.1). However, in chapter 8 of the *elogium* we read: *Aviditas plus habendi sine honesti pravique differentia et indagandi quaestus varios per alienae vitae naufragia exundavit in hoc principe flagrantius adolescens*. When it comes to his indifference to right and wrong in matters of taxation the emperor is the opposite of the urban prefect Olybrius: *fisci lucra, unde poterat, circumcidens, iustorum iniustorumque distinctor* (28.4.1, p. 170).

errantem non reducebat ad aequitatis tramitem, ut saepe moderatores fecere tranquilli, sed ipse quoque flexibilem sequebatur atque traversum. unde graves oboedientium casus Mark the use of the imperfect. The perfect *reduxit* would have meant that Probus did not succeed in correcting the emperor; the imperfect implies that he did not even try. Amm. combines the notions of ‘the path of justice’, as in 14.1.8 *ad veritatis humanitatisque viam reducere* and ‘the straight (and narrow) path’, as in 22.10.2 (about Julian) *nec argui umquam potuit ob religionem vel quodcumque aliud ab aequitatis recto tramite deviasse*. The noun *moderator* is a general term for military commanders, provincial governors (as here) and even the emperor himself; see ad 20.8.14 (p. 205). The term is well chosen, because we have to think of advisors of the emperor who counsel moderation. There is a note on *tranquillus* ‘peaceful’ and its derivatives ad 27.6.8 (p. 142). As *ipse quoque* proves, the adjectives *flexibilem* and *traversum* refer to *tramitem*, not to Valentinian. In following a ‘tortuous and deviant’ course Probus behaved like the emperor. The population carried a very heavy burden because of this fiscal policy. Cf. the next section. For the substantive use of *oboedientes* ‘subjects’, attested already in Livy, see ad 21.12.25 (p. 187).

*exitialia provisorum nomina titulorum iuxta opulentas et tenues enervatas succidere fortunas argumentis aliis, post validioribus aliis, usu laedendi rep-
periente longaevo* Heraeus added *et* before *exitialia*, probably because he thought that there had to be a connection with the preceding sentence. Cf. however 14.5.6–7 *unde admissum est facinus impium, quod Constanti tempus nota inusserat sempiterna. Martinus agens illas provincias pro praefectis et cetera*, where a connecting particle like *et* is also missing. Amm. prepared the ground for his criticism of Probus in 17.3.3 and in 19.11.3. In the former passage we are told that Julian refused to impose supplementary taxation on Gaul as demanded by the PPO Florentius: *norat enim huiusmodi provisionum...insanabilia vulnera saepe ad ultimam egestatem provincias contrusisse, quae res, ut docebitur postea, penitus evertit Illyricum*. The word *provisionum* ‘earmarked budgets’ (see ad 27.3.10, pp. 60–61) returns in the present passage as *provisorum nomina titulorum* “items of imposts that had been instituted” (tr. Rolfe). In 19.11.3 Amm. praises the prefecture of Anatolius as a period of unparalleled prosperity for Illyricum, and he continues: *indemnesque deinde et innoxii earum incolae partium...viverent, ni postea exquisitorum detestanda nomina titulorum...ad usque proscriptiones miserrumque suspendia pervenerunt* (“In fact the inhabitants of those parts might have lived thereafter happy and untroubled lives...but for the abominable refinements of taxation to which they were later exposed...This resulted in

the outlawry or suicide of the wretched victims”, tr. Hamilton). The words *detestanda nomina titulorum* are echoed here in the form *exitialia provisorum nomina titulorum*, while the sarcastic *exquisitorum* (see TLL V 2.1821.83–1822.37 “cum nota vituperationis”) returns in the words *usu laedendi repperiente longaevo*.

For *iuxta...et* ‘as well...as’ cf. 19.12.7 *iuxta nobiles et obscuri* and 23.6.80 *iuxta in adversis rebus et prosperis*. The metaphor *enervatas succidere fortunas* is a variation on 28.1.46 *in succidendis familiarum nobilium nervis* (p. 93), the participle *enervatas* being a proleptic secondary predicate equivalent to *ita ut enervarentur*. The cursus (planus) *succidere fortunas* proves that *succidere* must be interpreted as a perfect tense form. This excludes the possibility, envisaged by Angliviel de la Beaumelle in n. 277, that *succidere* depends on *repperiente* ‘finding (a means) to cut’. The only way to construe the sentence is to take *argumentis...aliis* as an abl. instrumenti (‘using arguments’) and to supply *argumenta* as the object of *repperiente*. The turn of phrase *aliis post validioribus aliis* may have been inspired by Sallust, cf. *Jug.* 55.8 *aliis, post aliis minitari* and 63.5 *ab eo magistratu alium, post alium sibi peperit semperque in potestatibus eo modo agitabat*. The result would be: ‘using a series of arguments, each more powerful than the last, found by the long practice in oppression’.

denique tributorum onera vectigaliumque augmenta multiplicata optimatum quosdam ultimorum metu exagitatos mutare compulit sedes As is noted ad 21.16.17 (p. 270), strictly speaking there is a technical distinction between *tributa* ‘direct taxes’ and *vectigalia* ‘indirect taxes’, but here, as in 21.16.17 and 31.14.2 (*tributorum onera studio quodam molliens singulari, nulla vectigalium admittens augmenta*), the combination of *tributa* and *vectigalia* is probably used to designate ‘taxes of every kind’. *Tributorum* and *vectigalium* are best interpreted as gen. identitatis or inhaerentiae: ‘oppressive taxation’, and ‘additional taxes’ respectively. In view of the terms *augmenta* here and *provisorum* in the preceding section Jones 148 and Angliviel de la Beaumelle n. 277 are surely right in stating that Amm. refers to extraordinary payments over and above the normal taxes, for which see Karayannopulos, 1958, 138–141 and Jones 451–452. These extraordinary taxes go under various names. Cf. for *augmenta* 17.3.5 *indictionale augmentum* and *Cod. Theod.* 11.19.4 *dominici actores augmenti et superindicticii...dicuntur mediam nolle solvere pensionem* (“It is reported...that the overseers of imperial estates are unwilling to make the half payment of the additional tax and of the superindiction”, tr. Pharr). Interestingly, in a law issued on 19 March 365 the levy of extraordinary taxes had been forbidden by the Pannonian emperors: *nihil a provincialibus*

extraordinaria patimur indictione deposci (Cod. Theod. 11.16.11). Valentinian's fiscal policy is discussed ad 27.7.7 (p. 177). See in general for Amm. on Roman taxation Frank, 1972.

It has been suggested that Jerome was one of Probus' victims. In *Chron.* a. 372 we find the following complaint: *Probus praefectus Illyrici iniquissimis tributorum exactionibus ante provincias quas regebat quam a barbaris vastarentur erasit*. "Hieronymus, der wahrscheinlich aus einer Dekurionenfamilie aus dem Grenzgebiet zwischen Dalmatien und Pannonien stammte, war von der Steuerpolitik des Probus wohl persönlich betroffen" (Schmidt-Hofner, 2008, 118 n. 4). The prefect took a leaf out of Valentinian's book, who, according to Zos. 4.16.1, βαρύτατος ἦν ταῖς ἀπαιτήσεσι τῶν εἰσφορῶν σφοδρότερον ἐπικείμενος καὶ ὑπὲρ τὸ σύνηθες ταύτας εἰσπράττων ('was extremely demanding in imposing taxes, supervising them with greater strictness, and collecting more than was usual').

For *optimates* see ad 30.3.3 (p. 51). Here *curiales* may be meant (Krause, 1996, 162); cf. *alius ordinis primus* in §10. The expression *ultimorum metu* 'fear of death', is found only in Amm.; see ad 29.5.3 (p. 157). The singular *compulit* presents a problem. Henri de Valois tried to defend it as a Grecism (singular predicate after neuter plural subject), but there is no parallel in Amm. for such a construction. Heraeus proposed <per> *tributorum* with Probus as subject of *compulit*. However, it would be far more natural to take *onera* and *augmenta* as the subject, on a par with *nomina* in the preceding clause, and to read *compulerunt sedes* with Gelenius. For perfect forms in *-erunt* with short penultimate see ad 29.5.54 (p. 217). The expression *mutare sedes* 'to settle somewhere else' is found for the first time in Verg. A. 3.161 *mutandae sedes*; cf. also Tac. *Hist.* 5.2.2 (the Jews) *quos...metus atque odium mutare sedes perpulerit*. Elsewhere (15.3.11, 17.13.23, 22.15.9, 25.9.2) Amm. writes *solum vertere*.

et flagitantium ministrorum amaritudine quidam expressi, cum non suppetet, quod daretur, erant perpetui carcerum inquilini; e quibus aliquos, cum vitae iam taederet et lucis, suspendiorum exoptata remedia consumpserunt These *ministri* must have been tax collectors, called *flagitatores* in 21.16.17 *Augebat etiam amaritudinem temporum flagitatorum rapacitas inexplata* about the tax-collectors under Constantius. As is noted ad loc. (pp. 268–269), the most common technical terms for tax collector seem to be *susceptor*, which is found only once in Amm. (17.10.4; cf. *suscipientes* in 19.11.3), and *exactor*, a word not found in the *Res Gestae*. Tax collectors used to be curial officers, elected by the city councils. However, this changed under Valentinian: *Eligendi...erunt susceptores e diversis officiis, etiam ex largitio-*

nalibus civitatum, qui utique extra palatium degunt, “tax receivers shall be selected from the various office staffs and even from the office staff of the largesses in the municipalities from among those persons, of course, who reside outside the palace” (*Cod. Theod.* 8.3.1, tr. Pharr); cf. in this respect *Cod. Theod.* 6.35.6 and 12.6.4–11 with Schmidt-Hofner, 2008, 120–157. The effects were sometimes counterproductive, as *Cod. Theod.* 12.10.1 shows. The law last mentioned, addressed *ad Zosimum praesidem Epiri Novae*, is dated according to its subscription 18 November 373 (*dat. XIII kal. Dec. Mediolano Val(entini)ano et Valente IIII AA. consss.*), which, as Schmidt-Hofner, 2008, 562–563 argues, may well be right, pace Pergami, 1973, 110–112, who opts for 364. If 373 is indeed right, the law was issued during Probus’ prefecture. In it Valentinian pursues a question posed by the Epirote governor Zosimus (*PLRE* I, Zosimus 2), who had apparently complained about the activities of officials of the PPO as tax collectors: *comperimus imperatoriae iussionis auctoritate neglecta praefectianos ad perniciem provincialium exitiumque remeasse et exactionibus in provincia meritis tuis credita vel potius lucris et quaestibus suis contra vetitum laborare...horum si quis existat, volumus huius auctoritate praecepti in futurum susceptorum officiis eum deputari deque eius nomine universa clementiae nostrae auribus intimari*, “We have learned that the authority of the imperial command has been disregarded and that prefectural apparitors have returned to the devastation and ruin of the provincials, and that by their exactions in the province entrusted to Your Merit, they labor chiefly for their own gain and profit, contrary to the statutory prohibition...If any such person should now exist, it is Our will that, by the authority of this regulation, hereafter he shall be delivered to the office of tax receivers, and full information about his name shall be brought to the ears of Our Clemency” (tr. Pharr).

For metaphorical *amaritudo* see TLL I 1817.16sq., quoting Iulian. in *Os.* 2.10 *amaritudo iudicii, id est vindictae severitas*. Gelenius had good reason to doubt the correctness of *expressi*, since this verb is never used in the meaning ‘to extort’ with a human object. Amm. writes *exprimere alicui aliquid*, as in 17.3.5 *ut praeter solita nemo Gallis quidquam exprimere conaretur*. Instead Gelenius proposed *oppressi*, which deserves serious consideration; cf. 18.5.2 *cum omnibus se prospiceret undique periculis opprimendum largitionum comite...infestius perurgente*. The phrase *perpetui carcerum inquilini* has again a bitter ring; TLL VII 1.1808.81 “acerbe vel iniuriose dictum”; cf. Catiline’s jibe ‘*M. Tullius, inquilinus civis urbis Romae*’ in *Sal. Cat.* 31.7.

As is noted ad 26.7.4 (p. 186), as a rule the accused only stayed in jail temporarily; detention as a legal penalty was exceptional. The emperors Constantius and Constans had actually explicitly forbidden that fiscal debtors

should be imprisoned: *provinciales pro debitis...custodiam carceris minime sustinere oportet* (Cod. Theod. 11.7.7; cf. for this law Lovato, 1994, 187–189, and in general for imprisonment as a result of indebtedness Krause, 1996, 152–169).

For *vitae...et lucis* cf. Lucr. 3.79–81 *et saepe usque adeo, mortis formidine, vitae / percipit humanos odium lucisque videndae, / ut sibi consciscant mae- renti pectore letum*. Amm. ends his vehement indictment of Probus with an impressive oxymoron inspired by Cicero. *Consumere* ‘to kill’ normally has the cause of death as its subject, e.g. 14.5.9 *nonnullos gladii consumpsere poenales*; 16.12.66 *morbo veterani consumptus est*. Here, however, the victims of the extortion are released from their misery by the longed-for remedy provided by the noose; cf. Cic. Ver. 3.129 *ut homines iniuriae tuae remedium morte ac suspendio quaererent*. For hanging, considered to be an infamous and ignoble death, see ad 28.6.27 (p. 296), and for suicide as a means to end imprisonment ad 28.1.47 (p. 95). Cf. also 19.11.3, quoted above (pp. 111–112).

haec ita illecebrosius atque inhumanius agi loquebatur quidem pertinax rumor; Valentinianus vero tamquam auribus cera illitis ignorabat indifferenter quidem lucrandi vel ex rebus minimis avidus In the rare adverb *illecebrosius* the element of treachery seems predominant; TLL VII 1.366.42 “fallaciter”. Cf. 30.1.19 *illecebris...insidiis*. The value of the comparative, if there is any, is difficult to ascertain. Most translators interpret it as ‘ever more treacherous’, which would suit the context quite well, but there are no clear parallels. See ad 20.4.17 (p. 93) for the so-called comparativus pro positivo. For *pertinax rumor* see ad 28.1.30 (p. 69), where it is observed that a conscientious ruler should not disregard such persistent rumours. The reference to Odysseus, who plugged his ears with wax in order that he should not be bewitched by the Sirens’ song (*Od.* 12.47–48), is discussed at 27.11.6 (p. 265). A comma should be placed after *ignorabat* (‘he ignored’, not “knew nothing”, as Rolfe translates), since *indifferenter* must be taken with *lucrandi avidus*; cf. §5 above *principis quaerendae undique pecuniae vias absque iustorum iniustorumque discretionem scrutantis* and 30.8.8 *Aviditas plus habendi sine honesti pravique differentia*. The scribe of V seems to have inadvertently repeated the second *quidem* from the preceding line. 5.7

idque tantum cogitans, quod offerebatur, parsurus tamen fortasse Pannoniis, si haec ante ingemescenda compendia comperisset, quae nimium sero tali didicit casu Valentinian was only interested in the amount of money raised by taxation, not in the methods by which it was obtained, but he might have shown some mercy to his fellow Pannonians, if he had been informed in

time of their suffering during Probus' prefecture. For the use of the future participle in the apodosis of an irrealis see ad 21.6.8 (p. 91). For the adjectival use of *ingemescendus* cf. 26.6.19 and 30.7.10 (*clades*); TLL VII 1.1517.36–42. The combination with *compendium* 'gain' results in an oxymoron. *Ante* is an adverb, 'earlier', as opposed to *nimum sero*.

- 5.8 *ad provincialium residuorum exemplum etiam Epirotae acturos sibi gratias a praefecto mittere compulsi legatos* See ad 20.4.6 (p. 65) for Amm.'s frequent use of *residuus* as a synonym of *reliquus*. According to Ruf. Fest. 8 there were eighteen provinces in the Illyrian prefecture at the time of Valentinian and Valens; among these were two by the name of Epirus which belonged to the Macedonian diocese: *Provincias habet Illyricus XVIII...et in dioecesi Macedonica provinciae sunt septem: Macedonia, Thessalia, Achaia, Epiri duae, Praevalis, Creta* (cf. Eadie, 1967, 161–162). In e.g. *Not. Dign. Or.* 3.12–13 these provinces are called *Epirus Vetus* (Talbert 101 K4) and *Epirus Nova* (Talbert 101 K3). See for the *praeses* of Epirus Nova Zosimus and the law addressed to him about abuses perpetrated by tax collectors above ad § 6 (p. 114).

Presumably, it was the provincial assembly of Epirus which sent the deputation to the emperor, as in the case of the Tripolitani in 28.6.7 (pp. 265–267): *allapso legitimo die concilii, quod apud eos est annuum, Severum et Flaccianum creavere legatos*. *Sibi* refers to the Agent of *compulsi*, the PPO Probus. Whereas it had been the task of the Tripolitanian ambassadors to make complaints to Valentinian about the *comes Romanus*, the delegates of Epirus were to thank the prefect for his beneficial rule. The sentence is, of course, heavily sarcastic again. See for a discussion (in the time of Nero) about the appropriateness of expressions of gratitude by provincials Tac. *Ann.* 15.20–22. Pliny was very much in favour of this custom (*Pan.* 70.9).

Iphiclen quendam philosophum, spectatum robore pectoris hominem, adegere, non sponte propria, pergere ad id munus implendum Evidently Iphicles (PLRE I, Iphicles) was to act as the spokesman. Julian mentions a philosopher of this name in his essay *On the ignorant Cynics* (Jul. *Caes. Or.* 9.198 a). The qualification *spectatum robore pectoris* does not prove that Iphicles was either a Stoic or Cynic. Philosophers, at least those who really deserved the name, are generally mentioned by Amm. with respect on account of their moral strength; see ad 29.1.36 (pp. 60–61) on Pasiphilus, who under torture *de statu robustae mentis non potuit deturbari*. Iphicles displays a comparable intrepidity during his audience with the emperor. For expressions with *pectus* denoting steadfastness of character see TLL X 1.914.29–39. For infini-

tive constructions after *adigere* see ad 21.16.10 (p. 261). Gerundive with *ad* also occurs in 21.13.9 *ut eam* (multitudinem) *ad firmanda promptius adigeret imperanda*.

To choose philosophers and other intellectuals as delegates was a time-honoured practice in the Graeco-Roman world. Hecataeus of Miletus is already mentioned as such (πρεσβευτῆς ἀπεσταλμένος ὑπὸ τῶν Ἰώνων, D.S. 10.25.4), while the political embassy to Rome in 155 B.C. consisting of Carneades the Academic, Critolaus the Peripatetic and Diogenes the Stoic became quite famous (e.g. Gel. 6.14.9; Plin. *Nat.* 7.112; Plut. *Cat. Ma.* 22). For the Later Roman Empire Themistius deserves to be mentioned above all: “between 355 and 384 he served on ten embassies (ταῖς δεκά πρεσβείαις) for the senate *Or.* xvii 214B, cf. xxxi 352C–D” (*PLRE* I, Themistius 1, p. 892). More examples in Kienast, 1973 and Matthews, 1978.

Iphicles was not exactly itching to perform his *munus*. Small wonder, in view of the fact that, according to the Epirotes, Probus’ behaviour was anything but praiseworthy (sections 9–10). Moreover, to be a member of an embassy was not only an honour, but also a burden, as the following examples may show. An inscription from Acraephia in Boeotia honours Epaminondas son of Epaminondas for having undertaken ‘willingly and freely’ (προθυμότατα κατὰ [δωρε]άν) an embassy to Caligula, but also makes clear that others had declined (πρεσβεῖαν...ἣν ἄλλοι παρόντες ἐκ τῶν μειζόνων[ν] [πόλει]ων ἡρνήσαντο, *IG* 7.2711, 17–19), no doubt for financial reasons; C. Valerius Eutychianus sings the praises of his son who served five times as a delegate for the city of Milan at his own expense: *quinq(uies) gratuit(o) legation(ibus) urbic(is) et peregrin(is) pro re p(ublica) sua funct(i)* (*ILS* 6732). The *lex Ursonis* lays down that a *decurio* who declined to participate in a delegation, had to find a substitute; if he didn’t, he had to pay a fine of ten thousand sesterces to his fellow citizens (*Qui adversus ea fecerit, is HS CCICCC CCICCC(c(olonis) c(oloniae) G(enetivae) Iul(iae) d(are) d(amnas) e(sto)*, *ILS* 6087, 92). According to *Dig.* 50.7.9 someone who had been a delegate was given two years respite: *legatione functis biennii vacatio conceditur*.

qui cum imperatorem vidisset, agnitus adventusque sui causam interrogatus Graece respondit For *interrogare* with an internal accusative cf. Suet. *Tib.* 71.1 (the emperor Tiberius allowed only Latin in the senate) *militem quoque Graece testimonium interrogatum nisi Latine respondere vetuit*. 5.9

If only Amm. would have told his readers when and how Valentinian, who was first and foremost a military man, had become acquainted with a philosopher! The fact that Amm. expressly states that Iphicles answered in Greek proves, if proof were needed, that the emperor had asked him the

question in Latin. The court etiquette would certainly have demanded that the philosopher should answer in Latin, despite the fact that the province of Epirus belonged to the Greek speaking part of the empire; cf. Gerov, 1980, and see in general for the use of Latin and Greek Jones 986–991, Zgusta, 1980 and Millar, 2006, 20–25. However, Iphicles may not have known Latin, or perhaps the philosopher felt free to address the emperor in his own language (Greek), because the two men were on familiar terms (*agnitus*). This would presuppose that Iphicles knew that the emperor would understand him. The suggestion by Colombo, 2007, 403 that use was made of an interpreter “che nella narrazione ammianea dell’ episodio sparisce a beneficio dell’ efficacia drammatica” has no basis in the text.

It is a disputed question whether the Pannonian emperors knew Greek. Valentinian’s brother Valens did not, at least in the beginning of his reign (see ad 30.4.2, pp. 62–63). The emperor Aurelian (270–275) did not understand Greek either, if we may use an anecdote about him as evidence: Apollonius of Tyana addressed Aurelian in a vision *Latine, ut homo Pannonius intellegeret* (HA A 24.3). Did Valentinian in 375 differ from Valens and Aurelian in this respect? According to some scholars he did. Cf. e.g. Heering, 1927, 65; Alföldi, 1952, 122; Tomlin, 1973, 43 (“Valentinian even spoke Greek”); Vanderspoel, 1995, 157 n. 10 (“Valentinian did know Greek”). Others are less positive: “das Griechische beherrschte er, wenn überhaupt...nur soweit, als er es während seines Waffendienstes im Osten sich aneignen konnte” (Nagl, 1948, 2203); “er verfügte...nur über ganz geringe Griechischkenntnisse” (Van Hoof, 1997, 342). Still others go even further: “he never learned Greek” (Lenski, 2002, 94) and: “beide Kaiser [i.e. Valentinian and Valens] konnten kein Griechisch” (Demandt, 2007², 139 n. 28), referring to Them. *Or.* 6. 71 c Οὐδέποτε, ὦ βασιλεῖς, ἀναγκαίαν εἶναι μοι τὴν διάλεκτον τὴν κρατοῦσαν ὑπολαβὼν, ἀλλ’ ἰκανὸν αἰεὶ νομίσας τὴν πατριὸν καὶ Ἑλληνικὴν ἀποχρώντως μεταχειρίζεσθαι, νῦν, εἴπερ οἶόν τε ἦν, διημιψάμην ἂν τὴν γλῶτταν πρὸς τοὺς ἐκείνης τῆς λέξεως ἐπιστήμονας, ὥστε μὴ δι’ ἄλλοτρίας ὑμῖν φωνῆς συγγενέσθαι (“Never, your majesties, did I suppose the imperial language to be essential for me, but I always thought it enough to have a sufficient grasp of my native Greek, but now, if I were able, I would exchange my tongue with those who are skilled in that way of speaking so as not to converse with you in foreign speech”, tr. Moncur). In our view Valentinian did understand Greek; see the next note.

atque ut philosophus veritatis professor quaerente curatius principe, si hi, qui misere, ex animo bene sentiunt de praefecto, “gementes” inquit “et inviti” The clause *ut...professor* is subordinated to *inquit*. Cf. 22.4.1 *non ut philosophus veritatis indagandae professor* (pp. 37–38). For *curatius* cf. Plin. *Ep.* 1.1.1 *epis-*

tulas, si quas paulo curatius scripsissem; Tac. *Ann.* 2.27.1 *eius negotii initium ordinem finem curatius disseram*, 14.21.1 *ludos curatius editos*. The adverb implies that Valentinian did not confine himself to routine questions, but wished to be informed in detail about Probus' reputation among the inhabitants of his prefecture. Given the emperor's hatred of Probus (§ 4 *incitato petebat odio Probum*), this was only to be expected. The use of the present indic. *sentiant* instead of the regular *sentirent* may be interpreted as a form of *repraesentatio*. At the same time it helps to create a *cursus velox*. Cf. for *ex animo* Catul. 109.3–4 *di magni facite ut vere promittere possit / atque id sincere dicat et ex animo*; Cic. *Fam.* 12.17.2 *huic tu libro maxime velim ex animo, si minus, gratiae causa suffragere* ("I hope you will befriend the book because you really like it; but if not that, then for my sake", tr. Shackleton Bailey).

The verb to be supplied in Iphicles' answer is *bene sentiant*. The fact that Amm. gives Iphicles' answer '*gementes et inviti*' in *oratio recta* does not necessarily mean that Iphicles switched to Latin. In 23.5.3 Amm. reports that an actress on the stage in Antiochia, when she saw Persian soldiers approach, exclaimed "*nisi somnus est*", *inquit*, "*en Persae*", which she certainly said in Greek. This seems also to be the case here, since the phrase *gementes et inviti* is almost certainly a calque of ἄκοντες καὶ στένοντες, which unlike *gementes et inviti* is a set phrase. Cf. Epict. *Ench.* 2.20.16 ἡ φύσις ἔλκουσα ἐπὶ τὸ αὐτῆς βούλημα ἄκοντα καὶ στένοντα, 'nature, which forces a man against his will and groaning to do what she wants', 4.1.12 Οὐδὲν σοι φαίνεται εἶναι τὸ ἄκοντά τι ποιεῖν, τὸ ἀναγκαζόμενον, τὸ στένοντα πρὸς τὸ δοῦλον εἶναι; 'do you think that doing something against your will, under constraint and groaning, has nothing to do with being a slave?'; Greg. Naz. *De vita sua* 14 (PG 37, col. 1382, l. 14) σύρων (dragging a horse) ἄκοντα καὶ στένοντα; Favorin. *Fragm.* 96.22 ἄκοντες καὶ στενοντες καὶ ἀναγκαζόμενοι. So Iphicles, we may conclude, persisted in speaking Greek, obviously assuming that the emperor understood him.

There are good parallels for bilingual dialogues like the conversation between Iphicles and Valentinian. In *Cod. Theod.* 8.15.1 a lady, Agrippina, pleads her cause in Greek before the emperor Constantine, who gives his answer in Latin. Under the heading 'Code-switching, language choice and power' Adams, 2003, 383–394 discusses a number of records of similar exchanges in Greek papyri, in which a magistrate allows soldiers or citizens to bring their arguments forward in Greek, after which he pronounces his decisions in Latin. As Adams observes on pp. 557–558 about a *dux* in Egypt, "The supreme military official in Egypt was willing to receive a petition in Greek, but he responds in Latin, thus apparently symbolising his authority". This use of Latin as a "language of power" (Adams) goes back to Republican times, V. Max. 2.2.2 *Magistratus vero prisca quantopere suam populi*

Romani maiestatem retinentes se gesserint hinc cognosci potest, quod inter cetera obtinendae gravitatis indicia illud quoque magna cum perseverantia custodiebant, ne Graecis umquam nisi latine responsa darent.

- 5.10 *quo ille verbo tamquam telo percussus actus eius ut sagax bestia rimabatur genuino percunctando sermone, quod noscitabat, ubinam ille esset verbi gratia honore ante suos cellens et nomine vel ille dives aut alius ordinis primus* There is no exact parallel for *telo percussus*. With *percussus* we find Ps. Cic. Sal. 23 *eo telo percussus... Catilina fuit* and August. *in evang. Ioh.* 33.5 *tamquam...telo percussi*. See ad 24.3.13 (p. 96) for the frequent confusion of *percussus* and *percussus* in the textual tradition. Valentinian is implicitly compared to a hound. See also *sagacius* in 30.4.8; cf. Ov. Hal. 75–76 *quin laus prima canum, quibus est audacia praeceps / venandique sagax virtus viresque sequendi* (“those hounds merit the highest praise who possess outstanding daring, excellent sagacity in the chase, and power to pursue”, tr. Mozley) and, metaphorically, Tac. Hist. 4.11.1 *civitas rimandis offensis sagax* (“the city quick to discover offences”, tr. Moore).

V’s *quod non scitabat*, printed by Sabbah is highly dubious since Amm. only uses deponential forms of this verb. Henri de Valois conjectured *quos noscitabat*, ‘those whom he recognized’, which is far more attractive than *quod noscitabat* in Seyfarth’s Teubner edition (in his bilingual edition Seyfarth had preferred *quos noscitabat*), since that cannot be taken to mean ‘which the emperor was able to do’. *Quos noscitabat* would be the direct object of *perscrutando*, followed by the indirect question *ubinam ille esset* eqs. For the construction Colombo, 2007, 400 aptly compares 28.6.16 *qui Severum apud Carthaginem inventum et Flaccianum...percontando, quid egerint* eqs. The form *noscitabat* occurs only here in the *Res Gestae*. Amm. may have preferred it to *noverat* in order to obtain a regular cursus (*velox*).

Genuino sermone poses a problem. Which language is meant? There is only one parallel for the phrase, viz. Apul. Met. 3.29, where Lucius, in the shape of an ass, tries to appeal to the emperor: *genuino sermone nomen augustum Caesaris invocare temptavi*. Unfortunately, this passage does not help to solve the problem, since it has been explained either as a reference to Greek (cf. Met. 1.1 *linguam Attidem primis pueritiae stipendiis merui*), to Latin (Lucius tells his story in Latin) or even as the language of animals as opposed to human speech; Finkelpearl, 2006, 214–215. In the present passage the choice is between Latin and, as Colombo, 2007 and before him Sotiroff, 1972 have argued, Pannonian. In favour of the former is the fact that Pannonia was already thoroughly latinized in the first century A.D., as witness Vell. 2.110.5 *omnibus autem Pannoniis non disciplinae tantummodo*

sed linguae quoque notitia Romanae (“all the Pannonians were disciplined, but also knew Latin”, tr. Woodman) and HA A 24.3, quoted ad § 9 (p. 118). The adj. *genuinus*, however, seems to point in the other direction. It is often used to refer to the native country and the habits of non-Romans, for instance 25.6.14 (soldiers from the north) *qui maxima prae ceteris flumina transmeare in regionibus genuinis a prima pueritia sunt instituti*, 28.1.10 (the Pannonian) *Maximinus effudit genuinam ferociam pectori crudo affixam*, 31.2.18 (Halani) *quocumque ierint, illic genuinum existimant larem*. Moreover, the use of a ‘langue confidentielle’ would have stimulated the delegates to speak out plainly. “Valentiniano...interpellò i suoi conoscenti nel commune dialetto...rendendo incomprensibili le sue domande e le loro risposte alle orecchie degli altri presenti, soprattutto all’ italico Probo e ai suoi *consilarii*” (Colombo, 2007, 405).

Rochette, 2010, 460 n. 33 rejected Colombo’s suggestion, because in his opinion it is difficult to verify whether the Pannonian dialect was still spoken in the fourth century. However, see Mócsy, 1974, 358 “the tenacious survival of the local languages of the original population can be proved in Pannonia as well as in Moesia. Jerome was still able to speak the Illyrian dialect of his homeland”. Mócsy refers to *in Is* 7.19.5 *ζύθον transtulerunt, quod genus est potionis ex frugibus aquaque confectum, et vulgo in Dalmatiae Pannoniaeque provinciis, gentili barbaroque sermone appellatur sabaium*. Cf. also *in Ezech.* 1.4 *‘zeas’ sive ‘zeias’...quas nos vel ‘far’ vel gentili Italiae Pannoniaeque sermone ‘spicam’ ‘speltamque’ dicimus*. About Epirus Katičić, 1971, 380 remarks: “seit altersher scheint in Epirus auch eine andere Sprache im Gebrauch gewesen zu sein. Die Zweisprachigkeit des Landes dürfte daher recht alt sein.” According to Tovar, 1980, 366 Celtic dialects were spoken in all Transalpine regions: “Man kann vielleicht ohne allzugrosse Übertreibung vermuten, dass ein Einheimischer von den Bergen nördlich von Lissabon bis nach Dalmatien reisen und sich dabei ohne grössere Schwierigkeiten mit Galliern, Liguren, Keltiberern, Pannoniern usw. verständigen konnte.” For a very strong defence of the continued use of languages like Pannonian see Colombo, 2014. We may conclude that it is very likely that Valentinian and the delegates spoke with each other in Pannonian.

cumque disceret perisse aliquem laqueo, abisse alium trans mare, conscivisse sibi alium mortem aut plumbo vita erepta extinctum, in immensum excaudit Suicide, emigration, imprisonment and execution are mentioned time and again as consequences of a violation of justice; cf. 14.1.4, 19.11.3, 26.6.7–9 (pp. 140–142), 27.7.8 (pp. 177–179) and especially section 6 of this chapter. See further ad 30.8.6 (pp. 171–172). *Plumbo* refers to torture by means of a whip

with balls made of lead, for which see ad 28.1.29 (p. 65). Amm. uses *in immensum* more often (ten times) than any other writer. It is found from Cicero onward, see TLL VII 1.453.56–65. For *excandescere* see ad 20.9.2 (p. 223).

urente irarum nutrimenta tunc officiorum magistro Leone—pro nefas!—ipso quoque praefecturam, ut e celsiore scopulo caderet, affectante In 30.2.10 (p. 43) the promotion of Leo to the post of *magister officiorum* (for which function see ad 20.2.2, p. 13) as the successor of Remigius had been mentioned. In 28.1.12 Amm. accuses him of cruelty and brutality: *Leonem notarium, postea officiorum magistrum, bustuarium quendam latronem Pannonium efflantem ferino rictu crudelitatem, etiam ipsum nihilo minus humani sanguinis avidissimum*. Amm. combines the notion of burning anger, evoked by *excanduit*, with the notion of feeding the flames, expressed by *urente nutrimenta*. A problem is, however, that Leo does not burn the *nutrimenta*; he adds them to the flames. For that reason Walter, 1935, 128 proposed to read *suggerente* instead of *urente*, comparing 24.7.6 *alimenta affatim opulentis suggerentibus locis*, to which may be added 19.12.13 about Paulus Catena, another of Amm.'s 'bêtes noires': *quasi e promptuaria cella fallaciarum et nocendi species suggerente complures*, 'continually adding fresh material from his storehouse of lies and mischief'. We find the term *praefectura* used without further qualification to designate the *praefectura praetoriana* also in 15.13.2, 20.9.8, 21.6.9 and 26.10.7 (the full expression occurs seven times).

The exclamation *pro nefas* is found also in 17.9.4, an indignant protest of Julian's soldiers: *sed nunc, pro nefas,...fame ignavissimo mortis genere tabescentes*, "but now (Oh shameful indignity!) wasting away by hunger, the most despicable form of death" (tr. Rolfe, adapted). It does not occur in Sallust, Livy and Tacitus. Henri de Valois aptly compared the final clause *ut...caderet* to Claud. *in Ruf.* 1. 22–23 *tolluntur in altum / ut lapsu graviore ruant* (more parallels in Birt's commentary ad loc.) and Greg. Naz. *Or.* 14 (= PG 35, 897.34) *πλεῖον ἐπαιρόμενος, ἵνα καὶ πέσῃ χαλεπώτερον*.

quam si adeptus rexisset, prae his, quae erat ausurus, administratio Probi ferebatur in caelum For the preposition *prae* as a "Vergleichspartikel" see ad 26.2.5 (p. 48). Examples of the indic. impf. in the apodosis of an irrealis are listed by De Jonge ad 14.3.2 (p. 80, sprachlich); see also Kühner-Stegmann 2.401–405 and Szantyr 332–333. The imperfect tense could refer to the moment of writing, but in Amm. the distinction between imperfect and pluperfect is blurred. Cf. 16.7.4 *si Numa Pompilius vel Socrates bona quaedam dicerent de spadone...a veritate descivisse arguebantur* and 16.7.5 *quem si Constans imperator...audiret honesta suadentem et recta, nulla vel*

venia certe digna peccasset. For more examples see Ehrismann 28 and the notes ad 24.24.4 (p. 134) and 25.10.5 (p. 320). Note also that Amm. avoids using the perfect and pluperfect forms *latus sum*, *latus eram*. Elsewhere (15.1.2, 16.12.70, 22.10.6, 24.3.8, 25.4.19) Amm. uses the verb *extollere* in this phrase.

Agens itaque apud Carnuntum imperator per continuos tres menses aestivos arma parabat et alimenta, si qua fors secundasset, pervasurus opportune Qüädos, *tumultus atrocis auctores* See for Valentinian's arrival in Carnuntum and for *per continuos tres menses aestivos* above, ad § 1 (pp. 102–103), for *imperator* in the *Res Gestae* ad 21.4.4 (p. 45). Most scholars assume that Valentinian spent the summer months in his headquarters at Carnuntum, in other words, they take *apud* as in TLL II 337.61–62: “i.q. in c. abl. cum oppidorum nominibus (apud posteriores scriptores locativus fere interit)”. This is normal practice in Amm. Mócsy, 1974, 295, however, prefers to take *apud Carnuntum* in the sense of “near Carnuntum” (TLL II 336.42 et seq.: “i.q. iuxta, prope”) and supposes that the emperor established his court at the villa Murocincta, which he identifies with the ‘Palastanlage’ in Bruckneudorf, some 15 km south of Carnuntum (see for this villa 30.10.4, p. 203; in older literature, as in Mócsy, one finds, wrongly, the name of Parndorf instead of Bruckneudorf). Dittrich, 1984, 110 n. 100 is rightly sceptical about Mócsy's hypothesis.

Cf. for the combination *arma...et alimenta* V. Max. 2.7.2 (ut) *arma sua et alimenta ipsi ferrent.* During the time when the *Notitia Dignitatum* was written, and probably in the time of Valentinian too, there was an arms factory in Carnuntum (*Occ.* 9.20 *Carnuntensis scutaria*; *Carnuntensis*, Böck's correction of mss.' *Cornutensis*, is generally accepted; cf. e.g. James, 1988, 265, 269 and Gugl, 2011, 509). As Crump, 1975, 47 notes, Amm. normally devotes only an occasional passing comment to the procurement of provisions for the army, though he tends to offer more facts when the arrangements for supplying food materially affect the conduct of operations (e.g. 14.10.2, 17.8.1–2, 23.3.9, 24.1.11, 24.1.14–15). For the staple diet of soldiers see ad 25.2.2 (p. 43). The subject of *parabat* is of course *imperator*, but in fact the task of providing the army with rations for the men and fodder for the horses was the responsibility of the praetorian prefect (see ad 21.6.6, p. 88), i.e. Petronius Probus.

Amm. uses a wide variety of expressions for ‘if chance gave the opportunity’: *si fors copiam dederit* (29.5.32),—*dedisset* (15.10.10, 16.2.2, 16.9.3, 30.5.2),—(*ita*) *tulisset* (25.3.10, 27.10.10),—*attulisset* (31.7.6), *si (qua) fors iuvisset* (16.12.45, 19.3.1). The verb *secundare* ‘to be favourable’ is found only here in the *Res Gestae*. The pluperfect subjunctive represents a futurum

exactum in oratio recta (*si fors secundaverit, pervadam*). Note that *Quados* is trisyllabic. The *tumultus atrox* is the invasion of the Quadi reported in 29.6.6 (pp. 231–233). The Quadi had their home territory in the regions of southern Moravia, lower Austria north of the Danube, southern Slovakia, and part of Hungary.

in quo oppido Faustinus, filius sororis Viventii praefecti praetorio, notarius militans, Probo spectante negotium carnificis manu peremptus est post tormenta Faustinus (*PLRE* I, Faustinus 3) is only known from this passage. He belonged to the corps of (*tribuni et*) *notarii*, as did, for instance, Decentius under Constantius (20.4.2, pp. 57–58), Philagrius under Julian (21.4.2) and Faustinus' fellow Pannonian Leo (28.1.12), who under Valentinian rose to the post of *magister officiorum* (30.2.10, 30.5.10).

We met Faustinus' uncle Viventius (*PLRE* I, Viventius), who hailed from Sciscia, earlier, in 26.4.4 (p. 85), 27.3.11 (pp. 61–62) and 27.3.12 (pp. 68–69). He was a former *quaestor sacri palatii* and *praefectus urbi*, who had been *praefectus praetorio Galliarum* in 368–371. In 27.3.11 Amm. calls him *integer et prudens Pannonius*. For *spectare* 'to examine' see ad 21.12.20 (p. 177) and 25.5.7 (p. 190), for the praetorian prefect Probus above, ad § 4 (p. 109). Cases of magical practices and a fortiori those of high treason (§ 12) fell under his jurisdiction; cf. ad 29.1.5 (p. 12). For questioning under torture in such cases see ad 26.3.1 (pp. 62–64). We find the term *carnifex* no fewer than thirteen times in the *Res Gestae*, inter alia in 28.1.28 (p. 63); cf. for this executioner Clark, 2006.

vocatus in crimen, quod asinum occidisse dicebatur ad usum artium secretarum, ut asserebant quidam urgentes, ut autem aiebat ille ad imbecillitatem firmandam fluentium capillorum Cf. 14.11.23 *in crimen maiestatis vocatum* 'subjected to accusation of high treason'; Cic. *Scaur.* 1.4 *custos ille rei publicae proditoris est in crimen vocatus*. For *artes secretae* as one of the ways to describe magical practices see ad 23.6.32 (p. 169) and 26.3.2 (p. 65). The verb *urgere* is also used in a judicial context in 19.12.11 (p. 257), 21.6.2 (p. 78) and 28.4.25 (p. 212); cf. also *Artemius...Alexandrinis urgentibus...supplicio capitali multatus est* (22.11.2); Tac. *Ann.* 15.67.1 *postquam urgebatur, confessionis gloriam amplexus*; Dig. 48.18.18.2 *In ea causa, in qua nullis reus argumentis urgebatur, tormenta non facile adhibenda sunt*. The words *autem...fluentium*, which are missing in V, have been added by Gelenius. It is a prime example of a "saut du même au même" (*ut...ut*). This is one of nine passages about which Frobenius proudly proclaimed in his introduction to Gelenius' edition of 1533: "Nos nacti vetustum exemplar manu

descriptum innumera loca castigavimus, lacunas aliquot explevimus, scribarum incuria praetermissas, et in his *versus interdum integros* (our italics) restituimus". The fact that this line has 49 letters confirms that it is taken from the Hersfeldensis, in which the median length of the line is 45 letters; Robinson, 1936, 136–139. For a similar insertion by Gelenius see ad 27.3.3 (p. 45). It is very tempting to think that the loss of *autem* led to the substitution in the first *ut*-clause of *quidam* for *quidem*, which had become incomprehensible.

As Lindenbrog ad loc. observes, Amm. uses medical terms about hair loss or alopecia; cf. Marcell. *med.* c. 6 (tit.) *capillo fluenti atque infirmo*. The same author (6.19) prescribes inter alia the ashes of burned hooves of mules as a remedy for hair loss: *ungularum muli vel mulae exustarum cinis...fluentes capillos continent*; in c. 6.23 we read *capilli et barbae nascentur etiam glabro, si lichenem asini...conburas et teras et pulverem illum ex oleo vetere inponas* ('hair and beard will grow even on a hairless man, if you burn the excrescence on the leg of a donkey, pound it and apply the powder mixed with old oil'). Pliny prescribes an ass's genital organ, reduced to ash, for thicker hair and the prevention of going grey: *cinere genitalis asini spissari capillum putant et a canitie vindicari* (*Nat.* 28.164). This means that the medical use of a donkey's organs to cure hairloss is well attested. Since in Egypt the animal is associated with Seth, and generally with evil powers, it is also regularly mentioned in magical papyri. Hopfner I, 1921, § 452, p. 236 mentions the present passage with the following comment: "Das beweist deutlich dass man auch ausserhalb Ägypten im IV Jahrhundert den Esel im Schadenzauber verwendete." Moreau, 1953 is of a different opinion. He denies that the killing of a donkey can be explained by a reference to pagan religious practices, and argues, ingeniously, but not convincingly, that Amm.'s passage should be seen as a sacrilegious parody of the eucharistical sacrifice.

alio quoque in eum perniciose composito, quod petenti per iocum cuidam Nigrino, ut eum notarium faceret, exclamavit ille hominem ridens: "fac me imperatorem, si id volueris impetrare" The abl. *alio* must be taken as a form of the substantival neuter *aliud*, 'something else', not as masculine, as Rolfe takes it: "According to another, who was also suborned to ruin him". For substantival *aliud* cf. 24.1.11 *Acciderat aliud postridie dirum*, 25.10.8 *his ita tristibus laetum aliud addebatur*; and for *componere* 14.11.24 *qui in eum iam diu falsa composuerat crimina*. Nigrinus (not in *PLRE* I, but see Frakes, 1998, 380) is otherwise not known. Amm.'s anecdote is one of the testimonies which prove that (*tribuni et*) *notarii* were imperial *notarii* (Teitler, 1985, 19–

20). Seyfarth, 1965, 375–377 argued that Faustinus was condemned to death only as a result of the second accusation mentioned in this section. This was rightly rejected by Funke, 1967, 172–174. Amm. starts the story of Faustinus by reporting that he was killed after torture (§11), which is repeated at the end of section 12. If Amm. had wanted the reader to understand that Faustinus was acquitted of the charge of magic, but condemned on account of a joke, he would have marked the contrast between the outcome of the two accusations in unambiguous terms. Amm. adds *hominem ridens* to make it absolutely clear that Faustinus' words were not meant seriously.

hocque ludibrio inique interpretato et Faustinus ipse et Nigrinus et alii sunt interfecti Clauss, 1985 has the ingenious suggestion that the joke may have grated on the nerves of the *magister officiorum* Leo (cf. for him §10), who had supported Valentinian's candidacy for the emperorship (26.1.6) and had been duly rewarded with the function of *notarius* (Leo is for the first time attested in this capacity in 370; 28.1.12). The Agens of *inique interpretato* is in the first place Probus, who presided over the proceedings. Like the preceding *perniciose*, the adverb emphasizes that the accusers and the judge were bent on destroying Faustinus from the very beginning.

- 5.13 *Praemisso igitur Merobaude cum militari peditum manu, quam regebat, ad vastandos cremandosque barbaricos pagos comite adiuncto Sebastiano Valentinianus Aquincum propere castra commovit* The *magister peditum* Flavius Merobaudes (*PLRE* I, Merobaudes 2) was of German, probably Frankish origin (see for his function ad 20.2.1, pp. 10–11). Amm. mentions him in 28.6.9 (p. 300) as someone favourably disposed towards the *comes per Africam* Romanus. As appears from Zos. 4.17.1 he was an experienced soldier in 375 (he had served as an officer in the Roman army under Julian, cf. the note ad 25.9.12, p. 304): Μεροβαύδην δέ, στρατιωτικῶν ἔργων ἐμπειρίαν ἔχειν παρὰ τοὺς ἄλλους δοκοῦντα, παντὸς τοῦ στρατοπέδου προΐστησι ('Valentinian consigned the command of the whole army to Merobaudes, whom he regarded as more experienced in military matters than others'). Zosimus' words seem to suggest that Valentinian had more confidence in Merobaudes than in the *magister militum per Illyricum* Equitius (*PLRE* I, Equitius 2; see for him ad 26.1.4, pp. 18–19, and 29.6.3, pp. 227–228), who was still in function (30.6.2). Merobaudes is also mentioned in 30.10.2, 30.10.4, 31.7.4 and 31.8.2.

For *igitur* marking the return to the narrative see ad 26.7.1 (pp. 178–179). This is the first time that the verbs *vastare* and *cremare* are combined. For *barbaricos pagos* cf. 14.10.11 *barbaricos pagos adventans*; there is a note on *pagus* ad 18.2.8 (p. 39). Where precisely these *pagi* were located is not

known (“Der Verlauf der Kampfhandlungen gegen die Quaden bleibt bei Ammian in vielen Punkten unklar”, Dittrich, 1984, 111), but we may assume that Merobaudes first attacked Quadian territory opposite Carnuntum.

Sebastianus (*PLRE* I, Sebastianus 2) was, like Merobaudes, an experienced soldier, who inter alia had been *dux Aegypti* in 356–358, had served under Julian (23.3.5, pp. 42–43; 25.8.7) and had assisted Valentinian in his campaign against the Alamanni (27.10.6). As in 23.3.5 and 27.10.6 he is here called *comes*, i.e. *comes rei militaris* (“ein Titel der selten in dieser Vollständigkeit gebraucht wird”, Seeck, 1901, 662; cf. the note ad 20.4.18, pp. 97–98). In this book he is mentioned again in 30.10.3. In 378 Valens appointed him as *magister peditum* (31.11.1) and as such he fought in Thrace against the Goths (cf. 31.11.4, 31.12.1, 31.12.6 and 31.13.18).

Aquincum is referred to twice in the *Res Gestae*, in the present text and in the next section. Aquincum was located on the site of present day Budapest, or rather, of Buda and Óbuda on the right bank of the Danube, Pest being situated on the left bank (Talbert 21 B2). V has the reading *Acincum*, which is adopted by e.g. Clark, Rolfe and Sabbah and which, according to Češka, 1974, 107–108, Seyfarth should not have rejected. In inscriptions one never finds *Acincum*, only *Aquincum*, but inter alia in *Not. Dign. Occ.* 33.48 and 33.54 we find *Acinco* and in *Occ.* 9.19, about an arms factory, *Acincensis scutaria*.

Burian, 1996 and Németh, 2003, 99 in their articles on Aquincum do not mention 30.5.13–14, but instead refer to 19.11.8, although the reading of V there is *Acimincum*. De Jonge ad 17.13.4 (p. 333) rightly warns his readers: “Acimincum...should not be confused with Aquincum”, and Sabbah in n. 283 ad 19.11.8 identifies Acimincum (or Acumincum) with modern Szalan-Kemen (Slany-Kamen) or Stari Slankamen in Serbia (Talbert 21 C4; cf. Wilkes, 2005, 207).

Originally a settlement of the Celtic Eravisci (or Aravisci), Aquincum became a Roman military base in the first century A.D. (cf. Németh & Kérdő, 1986; Németh, 2003a). Out of this post a city developed (cf. *ILS* 2473 *vet(erani) et c(ives) R(omani) / co(n)s(istentes) ad / leg(ionem) II Ad(iutricem)*), which became the capital of Pannonia Inferior when Pannonia was divided by Trajan. It obtained municipal status under Hadrian (cf. e.g. *AE* 1953.14, 2003.1445 and Haensch, 1997, 98–104), who had first served in Aquincum as a tribune of the *legio II Adiutrix* and later resided there as governor of the new province of Pannonia Inferior (Birley, 1997, 52–53). Under Septimius Severus Aquincum became a *colonia* (cf. e.g. *CIL* 3.3362, 10495 and Carrié, 2005, 271). It is disputed whether Aquincum remained a provincial capital, now of Valeria, after Pannonia Inferior had been divided into Valeria and Pannonia Secunda under Diocletian or Constantine (cf. for this division ad 21.5.13, p. 72 and Fitz,

1994, 1175–1181): “Weitaus schwieriger ist die Identifizierung der Hauptstadt von Valeria”, Fitz, 1994, 1180 notes, mentioning as possible candidates Sopianae (Pécs), Gorsium-Herculia (near modern Székesfehérvár) and Aquincum. For Aquincum in general see Szilágyi, 1968 and Póczy, 2005; for late antique Aquincum Zsidi, 2011.

Since Amm. uses *commovere castra* or—*signa* with an accusative of direction in 17.12.21 *Brigetionem castra commota sunt* and 23.2.7 *Mesopotamiam propere signa commovit*, Henri de Valois was right in changing V’s *prope* to *propere*, with which cf. 27.2.4 *propere castra commovit* and 31.12.10 *signa prae-propere commoventur*.

navigiisque ad repentinum casum coniunctis et contabulato celeri studio ponte per partem aliam transiit in Quadros Bridges play an important part in the *Res Gestae*, and Amm. has a variety of expressions for bridge building; see ad 27.5.2 (pp. 108–109). Himmler, 2011, 63 suggests that the *navigia* with which the pontoon bridge was built probably belonged to the *classis Histrica*. This river fleet had its base in Florentia, modern Dunaszeksző (*Not. Dign. Occ.* 33.58; Reddé, 1986, 302), but, strangely, there is no mention of such a base in Aquincum in the *Notitia Dignitatum*, although there was an archaeologically attested big harbour in this city. See Himmler’s p. 64 for an attempt to explain the discrepancy, and for a bridge built by Valentinian in Brigetio 30.10.2 and ad 30.5.15 (pp. 132–133).

At first glance, one might interpret *ad repentinum casum* as referring to a surprise attack by the Quadi, but it would not make sense for the Romans to construct a bridge in order to oblige their enemies, so it must refer to a sudden attack by the Romans. As Valentinian decides to cross the river at another point, he must have built the pontoon bridge as a diversionary action. It is possible that it led from the right bank of the Danube in modern Buda to Contra Aquincum, a fortress on the Pest side of the river near the modern Elizabeth Bridge. This fortress served from the third century onwards as a bridgehead to secure the crossing of the Danube. It is mentioned in *Not. Dign. Occ.* 33.48, in the chapter about the *dux provinciae Valeriae: auxilia vigilum, contra Acinco in barbarico*. Another possibility for a crossing would be further north, where the fort of Transaquincum was located, also on the left bank of the Danube, at the mouth of the Rákos stream. *Not. Dign. Occ.* 33.65 *praefectus legionis, Transiacinco* must refer to this fort. The archaeologically attested fixed bridge of the second and third centuries north of the modern Árpád Bridge, which led from the right bank in modern Óbuda to Transaquincum (cf. e.g. Póczy, 1986, 404–405), apparently no longer existed. See for these and other possible crossing-places

Dittrich, 1984, 113 with n. 112; Zsidi, 2003, 43 and Németh, 2003b, 98–99. It should be noted that there were islands in the river off Aquincum in Roman times, and that as time went by the Danube changed its course by forming new bends and smaller branches. In the 19th century the course of the river was straightened due to river regulations (cf. in general Himmler, 2011, 7 ff.). Cf. for Contra Aquincum and Transaquincum Wilkes, 2005, 204 and Póczy, 2005, 106–110 and see further Mráv, 2003.

Surprisingly, the expression *per partem aliam* is found only here and in a disputed passage in Dict. 4.21. In Christian authors *per aliam partem* occurs frequently in discussions of Itala Ioh. 10.1 *qui non intrat per ostium in ovile ovium, sed ascendit aliunde, ille fur est et latro*, for instance August. in psalm. 95.3 *qui intrat per ianuam, pastor ovium est, ait dominus; qui autem per aliam partem adscendit, ille fur est et latro*.

speculantes quidem ex diruptis montibus eius adventum, quo plerique ancipites incertique accidentium cum suis caritatibus secesserunt, sed stupore defixos, cum in regionibus suis contra, quam opinabantur, augusta cernerent signa For *diruptus* ‘steep’ cf. 27.5.4 *antequam ad dirupta venirent et flexuosa* and 29.5.34 (montes) *diruptis rupibus inaccessos*. Dittrich, 1984, 114 n. 115 rejects the views of earlier scholars, who argued that these *montes* are to be sought east of Vác or, further north, in the Börzsöny mountains. She suggests: “sie dürften in der Nähe von Aquincum liegen”. However, there are no steep mountains east of the Danube near Budapest.

The combination *incipites incertique* is an instance of Amm.’s *abundantia sermonis*; cf. 19.5.6 *inter incertos nos et ancipites*; Hagendahl, 1924, 176. Normally *incertus* is followed by *de* or an indirect question, but cf. 21.13.4 and 22.1.1—*futurorum*. For *caritates* ‘loved ones’ see ad 28.1.3 (p. 9) and for *contra quam* ad 22.4.7 (p. 46). Amm. writes the perfect tense *secesserunt* instead of *secesserant* for metrical reasons. *Stupore defixus* is borrowed from Vergil, A. 1.495 *dum stupet optutuque haeret defixus in uno*. In the *cum*-clause the emphasis is on *augusta*. Although the Quadi did expect a Roman incursion, they were astounded to see the banners of the emperor himself.

progressus ergo coacto gradu, in quantum res tulit, iugulataque aetate promiscua, quam etiamtum palantem subitus occupavit excursus, et tectis combustis redit cum incolumibus cunctis, quos duxerat secum As Meurig Davies, 1948, 221 saw, V’s *coacto* ‘forced’ can be kept. Amm. may have borrowed it from Gel. 10.11.8 *coactius quid factum et festinantius*. Other manner ablatives with *gradu* are listed ad 20.4.12 (p. 81). For expressions like *in quantum res tulit* ‘as far as circumstances allowed’ see TLL VI 1.549.46 sqq. (“significatio prope

accedit ad notionem tolerandi"). Like *caritatibus* in the preceding section, *aetate promiscua* 'young and old without distinction' is an abstractum pro concreto. For *etiamtum* 'still...at that moment' see ad 30.1.2 (p. 4). *Excursus* 'invasion', 'raid' is normally used of barbarian inroads into Roman territory. For the connotation of surprise in *occupare* cf. 23.2.7 *ut...improvisus Assyrios occuparet* and 27.12.2 *alios excursibus occupans improvisis*.

itidemque apud Aquincum moratus autumnopraecipiti per tractus congelari frigoribus assuetos commoda quaerebat hiberna nullaue sedes idonea repperiri praeter Savariam poterat, quamvis eo invalidam tempore assiduisque malis afflictam In 30.3.3 (p. 51) Amm. had spoken of *durata pruinis itinera* in Pannonia during wintertime. *Savariam* is Heraeus' reading instead of *sabariam* of V, Accursius and Gelenius (the v in the name is in inscriptions much more frequently attested than the b). Savaria (modern Szombathely) was situated at the intersection of the Amber road (which led from Aquileia to Carnuntum and beyond) and roads to Aquincum and Brigetio (Talbert 20 D2; Angliviel de la Beaumelle n. 289 "au nord-est du lac Balaton" is wrong). It was the capital of Pannonia Prima (*Pass. Quirin.* 4; Fitz, 1994, 1183). Originally a Claudian colony (Plin. *Nat.* 3.146), it lay at a distance of 675 m (*ilia*) p(*assuum*) from Rome, as is indicated by a milestone which was discovered in 1996 (AE 2000, 1195). Recent studies have revealed much of the topography of the city (Soszartits, 1995; Wilkes, 2005, 184). See in general Scherrer, 2003.

The comparative adverb *itidem* 'likewise' (i.e. just as he had done before his invasion of the territory of the Quadi) is found more than 70 times in the *Res Gestae*; see ad 16.12.17 (p. 200). For *praeceps* "de tempore vergente" (TLL X 2.418.61–74) cf. Sal. *Hist. fr. incert.* 38 *ut primo mense veris novum dicatur ver, secundo adultum, tertio praeceps*; 19.9.1 *autumno praecipiti haedorumque iniquo sidere exorto* (p. 172). The verb *conglaciare* is extremely rare; cf. Cic. *N.D.* 2.26 (aqua) *quae neque conglaciaret frigoribus neque nive pruinaque concrederet* and Plin. *Nat.* 2.152 *grandinem conglaciato imbregigni*. There does not seem to be any reason to translate *invalidam* with "wirtschaftlich schwach" (Seyfarth). In all other cases where the adjective is used of cities (16.2.1 Augustudunum, 18.7.3 Carrhae, 20.7.9 Bezabde) it refers to the weakness of the walls. As is noted ad § 2 (p. 106), there were other Pannonian cities (Carnuntum, Sirmium, Brigetio) which showed signs of decline in the time of Valentinian. Balla, 1963 seeks the causes of this weakness in the recent invasions of the Quadi and Sarmatae and the fiscal policy of the emperor and his officials. Kandler, 1989, 333 thinks that, as in Carnuntum (cf. ad § 2, p. 106), an earthquake is to blame.

unde hoc, etiam si magni intererat, paulisper sequestrato impigre motus peragrata fluminis ripa castrisque praesidio competenti munitis atque castellis Brigetionem pervenit It is not immediately clear whether *unde* refers to Aquincum or to Savaria, as both towns were mentioned in the preceding section. Seeck, 1919, 246 opted for the first possibility. According to him Valentinian went from Aquincum to Brigetio and wanted to march from there to Savaria, where he never arrived (“Als er auf dem Wege dahin nach Brigetio gelangt war, holte ihn eine quadische Gesandtschaft ein”, 1920–1923²⁻⁴, V, 36). Seeck apparently assumed that Valentinian had not personally found out that Savaria was the only convenient place for suitable winter quarters (*commoda quaerebat hiberna nullaue sedes idonea repperiri praeter Savariam poterat*, § 14). And admittedly, the inf. pass. *repperiri* at first sight suggests, that the emperor had obtained this information from scouts or the like. However, Seeck did not take § 16 into account. In this section Amm. makes it irrefutably clear that the emperor did visit Savaria in person (*apud Savariam eodem adhuc constituto*). It is therefore likely that *unde* has to be taken as a reference to Savaria and that we must assume, with e.g. Dittrich, 1984, 115 n. 120 (and, remarkably, Seeck, 1906, 526), that from Aquincum Valentinian first went to Savaria (a distance of 169 Roman miles according to *Itin. Anton. Aug.* 263.3–9) and from there to Brigetio.

There was an inland road from Savaria to Brigetio (*Itin. Anton. Aug.* 262.9–263.2; cf. Szönyi, 2005). However, in view of *peragrata fluminis ripa castrisque praesidio competenti munitis atque castellis* it seems more likely that Valentinian, in order to reach the Danube, first took the Amber road via Scarbantia to Carnuntum (*Itin. Anton. Aug.* 262.6–8), and then marched along the river on the *limes*-road (for which see Visy, 2003a, 15–30) to Brigetio.

For the verb *sequestrare* ‘to put aside’ cf. 18.1.1 *sequestratis interim sollicitudinibus bellicis* and see ad 17.13.29 (p. 387) and 20.7.3 (p. 158). *Hoc* refers to the search for winter quarters. The emperor acts with admirable energy (*impigre*). For *competens* ‘suitable’, ‘adequate’ see ad 22.9.2 (p. 154). The combination *castris atque castellis* makes clear that we should think of a chain of fortifications along the Danube, for which see ad 27.4.6 *Hister, qua Romanum caespitem lambit, urbibus multis et castris contiguus et castellis* (p. 87), so that Rolfe’s “having protected his camp with an adequate force and with castles” is wide of the mark. Valentinian continues doing what he had done earlier on the Rhine border.

The following four *castella* between Carnuntum and Brigetio were still in use when *Not. Dign. Occ.* 34 was written, the chapter which lists the troops at the disposal of the *dux Pannoniae Primae et Norici Ripensis* (the names are cited as they occur in Seeck’s edition): 1. Gerolate (cf. Gerulata, *Itin. Anton.*

Aug. 247.3, Gerulatis, *Tab. Peut.* IV 2), modern Bratislava-Rusovce on the left bank of the Danube; 2. Flexo (cf. *Itin. Anton. Aug.* 247.2, *Tab. Peut.* IV 3: Ad Flexum), near modern Mosonmagyaróvár; 3. Quadrato (cf. Quadratis, *Itin. Anton. Aug.* 247.1), near Lébéymiklos; 4. Arrabona (cf. *Itin. Anton. Aug.* 246.6; *Tab. Peut.* IV 2), modern Győr. These forts were repaired, renovated or built during Valentinian's reign. The same holds good for the five *castella* down the Danube between Brigetio and Aquincum which are listed in *Not. Dign. Occ.* 33 at the disposal of the *dux provinciae Valeriae Ripensis*: a. Solva (cf. *Itin. Anton. Aug.* 266.13), modern Esztergom-Várhegy; b. Odiabo (cf. *Itin. Anton. Aug.* 246.3: Azao), near Almásfüzitő; c. Crumero (*Itin. Anton. Aug.* 246.2), modern Nyergesújfalu; d. Ad Herculem (*Itin. Anton. Aug.* 266.12), modern Pilismarót; e. Cirpi (*Itin. Anton. Aug.* 266.11), modern Dunabogdány; f. Constantia (to be identified with *Itin. Anton. Aug.* 266.10: Ulcisia castra), modern Szentendre. See in general Visy, 2003a and Visy, 2003b and the extensive bibliographical references cited there.

These forts were by no means the only ones along the Danube between Carnuntum and Aquincum which were used during Valentinian's reign. Moreover, "nicht nur größere und kleinere Militäranlagen existierten entlang des pannonischen Limes, sondern auch eine unter Valentinian I. erbaute dichte Kette von Wachttürmen (*burgi*)" (Borhy, 2014, 133; cf. for such *burgi* ad 29.6.3, pp. 227–228). Some of the archaeologically best explored forts are: 1. the one at Ács-Vaspuszta, nowadays generally identified with Ad Statuas, mentioned in *Itin. Anton. Aug.* 246.5 (cf. Gabler, 1989); 2. that on the left bank of the river near modern Iža-Leányvár in Slovakia which served as a bridgehead for Brigetio; its identification with Ptolemaeus' Κελαμαντία (*Geog.* 2.11.15) is disputed (Kuzmová & Rajtár, 1986, 186); 3. the fortress of Tokod, some twelve km south-west of Solva/Esztergom (cf. Mócsy, 1981 and Lörincz, 1981).

Brigitionem is Seyfarth's reading, whereas e.g. Clark, Rolfe and Sabbah keep V's *bregitionem*, a spelling which resembles that of *Not. Dign. Occ.* 33.51 and *Itin. Anton. Aug.* 246.4, 262.9, 263.2 and 265.3, where we find *Bregatione*. *Tab. Peut.* IV 2 has *Brigantio*. Epigraphically attested is only *Brigetio* (*CIL* 3.11009), *Brig(etio)* or *Bri(getio)*, as Seyfarth in n. 84 of his bilingual edition points out as justification for his choice. Like Constantius after a campaign against the Quadi (17.12.21, p. 322), Valentinian had moved his camp to Brigetio (Talbert 20 F2). From 30.10.2 *avulso ponte, quem compaginarat ante necessitas invadens terras hostiles* we can deduce that he had ordered a bridge to be built there—as we have seen, opposite Brigetio was the fortress of Iža-Leányvár. Apparently, this was done with an eye on a new invasion into barbarian territory (cf. *cum ab urbe praedicta tenderet ad procinctum*

in § 17). Whether this bridge was a pontoon bridge, as the one of § 13, or a fixed bridge, is unknown. Visy's remark is tantalizing: "Noch vor hundert Jahren konnte R. Gyulai die Reste einer römischen Brücke bei Brigetio feststellen" (1988, 57; he refers to Gyulai, 1885 and 1886). However, Borhy, 2012, 41 is sceptical in this respect, "da wir von der Existenz einer Brücke von Holz- oder Steinkonstruktion durch archäologische Funde keine Beweise haben".

Several inscriptions attest the municipal status of the city of Brigetio, modern Szöny/Komárom, during the Principate (e.g. *CIL* 3.4281, 4322), while *CIL* 3.4335 makes clear that in the course of time ("seit der Mitte des 3. Jhs.", according to Borhy, 2011, 533) it became a *colonia*. Originally a military base (cf. e.g. *AE* 1903.218 and 1971.318), inter alia of the *legio I Adiutrix* (*AE* 2006.1047, 1049), it remained a vital link in the defensive system of the later empire (cf. e.g. *Not. Dign. Occ.* 33.51). See for Brigetio Visy, 2003a, 30–31; Borhy, 2004, 2011 and 2012.

ibique diu compositum ad quietem principis fatum sortem denuntiabat ei supremam prodigiis ingerentibus multis Amm. is a confirmed determinist, cf. 23.5.5 *nulla vis humana vel virtus meruisse umquam potuit ut quod praescripsit fatalis ordo non fiat* and see ad 21.14.3 (pp. 220–221). In 29.1.15 (p. 27) he reports that an attempt on Valens' life near Antioch had failed, because the emperor was destined to die in Thrace: *ferrumque ad iugulum eius prope adactum a militaribus fato reflectente depulsum, quem lacrimosis in Thracia discriminibus destinarat*. An excellent discussion of the semantic field *fatum*—*fortuna* is Ensslin, 1923; see also Davies, 2004, 268–275. *Compositum fatum* is the equivalent of *praescriptum fatorum ordinem* in 15.3.3. In a different sense cf. Prop. 3.13.63–64 *sola Parim Phrygiae fatum componere...dixit* (only Cassandra said) "that Paris was building the doom of Phrygia", tr. Camps.

This is the only instance in the *Res Gestae* of *quies* '(sleep of) death'. In 31.3.6 *in quietem tamquam nullo obstante compositis*, ("who had lain down to rest, as if they had no enemy near them", tr. Hamilton) the noun has its usual meaning. As Nisbet-Hubbard observe ad Hor. *Carm.* 1.24.5 *perpetuus sopor* "Sleep was a euphemism for death from early times". Pease has a long note on it ad Cic. *Div.* 1.63. The expression *sors suprema* 'the hour of death' is used metaphorically in Verg. *A.* 5.190–191 *Hectorei socii, Troiae quos sorte suprema / delegi comites*; cf. also Ps. Quint. *Decl.* 5.20 *quamvis suprema sorte conlabens* 'although he collapsed and lost his life'. In view of 17.12.16 *ingerebat autem se post haec maximus numerus catervarum* and 30.1.19 *ipse sese eius conviviis ingerens* Petschenig may well have been right in adding *se* after *prodigiis*.

5.16 *namque diebus ante paucissimis ruinas fortunarum indicantia celsarum arse-
re crinita sidera cometarum, quorum originem supra docuimus* The *omina*
listed in this section are totally traditional; cf. Mouchová, 1970. As Shake-
speare knew, “when beggars die, there are no comets seen; the heavens
themselves blaze forth the death of princes”. Julian saw a comet (or rather a
meteor) in the night preceding his death on the battlefield (25.2.4, pp. 47–
48) and in the last days of Jovian *visa sunt interdiu sidera cometarum* (25.10.2,
pp. 311–312). The words *diebus ante paucissimis* should not be taken at face
value. The comet announcing Valentinian’s demise on November 17, 375 was
in all probability Halley’s comet, which appeared, not on 7.11.373, as Seyfarth
in n. 85 of his bilingual edition writes, but in March–April 374 (cf. Stephen-
son and Walker, 1985, 54), that is to say a year and a half earlier. This tal-
lies with the “Verformungstendenz” as defined by Demandt, 1970, 505: “Das
Bestreben, eine ungefähre Gleichzeitigkeit zwischen Finsternissen und his-
torischen Vorgängen in genaue Gleichzeitigkeit zu verwandeln”.

For *celsior fortuna* as a description of royal or imperial power cf. 17.5.4
(from a letter by Sapor) *celsiores fortunas idem loqui decet atque sentire*;
20.10.1 *Iulianus tamen iam celsiore fortuna militisque fiducia laetior*; 25.10.16
audita enim filii (Jovian) *celsiore fortuna*. The digression about comets to
which Amm. refers is in 25.10.2–3 (pp. 312–316).

*ante apud Sirmium repentino fragore nubium fulmen excussum palatii et
curiae partem incendit et fori* Amm. dates the flash of lightning in Sirmium
before (*ante*) the appearance of the comet, that is, before March–April 374.
According to Zosimus it was after Valentinian had died (17 November 375)
that a thunderbolt set fire to the palace and the forum in Sirmium: Τοῦτου
τελευτήσαντος ἐμπροσὶν τῷ Σιρμίῳ σκηπτὸς τὰ βασιλεια κατέφλεξε καὶ τὴν ἀγο-
ράν (4.18.1, with Paschoud’s n. 137). See for Sirmium (Talbert 21 B5), modern
Sremska Mitrovica in Serbia, ad 21.9.5 (p. 121), ad 26.5.4 (p. 104) and Jeremić,
2005. *Palatium* in the present text must be synonymous with *regia* in 21.10.1,
where Julian’s entry into Sirmium is described; in 26.5.4 (*cum*) *ambo fratres
Sirmium introissent, diviso palatio*, the word means ‘court personnel’. See
Popović, 2011 for a recent survey of the excavations of a residential complex,
which includes the imperial palace, in the south-eastern part of late antique
Sirmium. The *curia* of Sirmium (not referred to by Zosimus) is mentioned
by Amm. only here (the *curia* in 21.10.7 is that of Rome, pace Viansino, 1985,
I 358).

The noun *fragor* is used frequently in the *Res Gestae* for the din of bat-
tle, but a few times also of thunder: 20.11.25 *iugi fragore tonitrua fulgoraque
mentes hominum pavidas perterrebant*; 31.15.5 *cum fragore caelesti imbres*

nubibus atris effusi. Amm.'s words echo the standard explanation of thunder and lightning as being caused by the violent clash of clouds, cf. Lucr. 6.160–161 *fulgit item, nubes ignis cum semina multa / excussere suo concursu* “It lightens likewise, when the clouds at their clashing have struck out many seeds of fire”, tr. Bailey. A similar coincidence of a comet with a flash of lightning announced the death of Claudius: Suet. *Cl.* 46.1 *exortus crinitae stellae, quam cometen vocant, tactumque de caelo monumentum Drusi patris*. In the months preceding Domitianus’ death *tot fulgura facta nuntiataque sunt, ut exclamaverit: “feriat iam, quem volet”* (Suet. *Dom.* 15.2). For the burning of the palace cf. D.C. 73.24.1–2 βῦας ἀπ’ αὐτοῦ (the Capitol) ἔβυξε, πῶρ τε νύκτωρ ἀρθέν... ἔς τε τὸ παλάτιον μετεωρισθὲν ἐσῆλθε καὶ πολλὰ πάνυ αὐτοῦ κατέκαυσεν “an owl hooted there; and a fire that began at night... entered the palace and consumed very extensive portions of it”, tr. Cary. According to Const. *or. s. c.* 25.2 Diocletian experienced in Nicomedia what he feared would happen ever since he had ordered the persecution of the Christians: ἐδγούτο μέντοι τὰ βασιλεια καὶ ὁ οἶκος αὐτοῦ, ἐπινεμομένου σκηπτοῦ νεμομένης τε οὐρανίας φλογός (‘And really, the palace and his house were destroyed by the fury of a thunderstorm and a fire that raged from heaven’). It was ancient custom that, whenever a palace or another public building had been struck by lightning, *haruspices* were called in to interpret the phenomenon (*Cod. Theod.* 16.10.1).

et apud Savariam eodem adhuc constituto bubo culminibus regii lavacri insidens occentansque funebria As is argued ad §15, Valentinian stayed for a while in Savaria on his way from Aquincum to Brigetio. See for Savaria (Szombathely) ad §14 (p. 130). Archaeologists have discovered the remains of a set of buildings in this town, which must have been the residence of the governor of Pannonia Prima, or an imperial palace (Szentlélek, 1995; Tóth, 2011). Here comes, just at the right time and in the right place, the owl, that “fatal bellman, which gives the stern’st good-night”. Its most famous appearance in Latin literature is Verg. *A.* 4.462–463, where the bird is the harbinger of Dido’s death: *solaque culminibus ferali carmine bubo / saepe queri et longas in fletum ducere voces*; see Pease’s extensive note. *Occentans funebria* ‘bursting into a dirge-like song’ sounds like a paraphrase of Vergil’s *ferali carmine*. The original meaning of *occentare* is defined by Festus p. 181M as follows: *occentassint antiqui dicebant quod nunc convicium fecerint dicimus*, ‘what we now call *convicium facere* (‘to utter abuse’) our ancestors called *occentare*’. TLL IX 2.343.11 defines the present use of the verb as (to sing) “male ominandi causa”. Valens’ death was also announced by owls: 31.1.2 *querulum quoddam nocturnae volucres tinniebant et flebile*, “night-birds burst into doleful shrieks”, tr. Hamilton.

For anaphoric *idem* see ad 20.4.5 (p. 64); *eodem* refers to Valentinian. As TLL IV 523.45 observes, *constitutus* in the sense of *positus* 'being', 'staying' is rare in classical authors, but very frequent in Late Latin.

nulla iacientium sagittas et lapides contemplabili dextera cadere potuit, certatim licet ardenti studio petebatur This is a very laboured phrase. One would have expected a passive infinitive like *expelli* or *deturbari* instead of *cadere*. It might be a calque of Greek πίπτειν as a loco-passive of βάλλειν, but it seems more likely that Amm. had a phrase in mind like *Aeneae magni dextra cadis* (Verg. A. 10.830); see TLL III 24.84–25.9. *Nulla* would go more naturally with *sagittae* and *lapides* than with *dextera*. It might be explained as a form of enallage or 'Kasusattraktion' for which see ad 30.4.2 (p. 64), intended to avoid a cacophonous accumulation of ablatives like *nullis sagittis et lapidibus contemplabili dextera iactis*. For *contemplabilis* 'skilful' see ad 23.4.2 (p. 62) and for manner expressions with *studio* ad 20.9.1 (p. 220).

- 5.17 *item cum ab urbe praedicta tenderet ad procinctum, per portam voluit, unde introiit, exire, ut omen colligeret, quod cito remeabit ad Gallias* After the intermezzo about comets and *omina* in Sirmium and Savaria the author returns to Brigetio, the last residence of Valentinian. Before retiring to his winter quarters in Savaria, he planned a second invasion into the territory of the Quadians. Since Valentinian did not use Savaria, but Brigetio as his army base, *ab urbe praedicta* must refer to Brigetio, not to Savaria, as e.g. Dittrich, 1984, 116–117, Matthews 395 and Lenski, 2002, 43 maintain. Valentinian had entered Brigetio coming from Savaria (§16 *apud Savariam eodem adhuc constituto*), which lies some 150 km south-west of Brigetio. Now, for a new campaign (*procinctum*) against the Quadi (cf. above, ad §15, p. 131 and Dittrich, 1984, 117–118), he wants to leave Brigetio in a westerly direction, using the same gate as he had used when entering the city. The final clause *ut omen colligeret* is problematical. The only parallel for *omen colligere* is Serv. A. 5.85 *Graecos apud Aulidem omen futuri decennalis belli ex serpente collegisse, qui etiam matrem consumpsit novem pullis comesis*, but that is different. The Greeks inferred from the number of the birds eaten by the snake that the war was going to last ten years. For *colligere* 'to deduce', 'to infer', cf. for instance Plin. Nat. 2.58 *quo argumento amplior errantium stellarum quam lunae magnitudine colligitur*; cf. TLL III 1617.10 sqq. In the present passage Valentinian leaves the western city gate in the hope that in this way he will obtain an *omen* announcing his speedy westward return to Gaul. For *procinctus* 'campaign' see ad 20.1.3 (p. 8). For the indic. fut. in *quod*-clauses see ad 20.8.10 (pp. 197–198).

cumque locus aggestis ruderebus neglectus purgatur, lapsam forem ferratam, quae exitum obseravit, multitudo remove non potuit viribus magnis enisa et ille, ne frustra tereret diem, coactus per aliam egressus est portam Amm. does not bother to explain how such a mass of rubble could have accumulated in the short time since Valentinian's arrival in Brigetio. For *purgare* in its literal meaning 'to clear' see 24.6.2 (p. 173). For the singular *foris* see TLL VI 1.1057.59sq. Plin. *Nat.* 6.30, speaks, perhaps more precisely, about *fores...ferratis trabibus*. Livy uses the Greek word for a portcullis: *cataracta deiecta...erat; eam partim vectibus levant partim funibus subducunt in tantum altitudinis ut subire recti possent* (27.28.10).

nocteque, quam lux ereptura eum vita secuta est, ut per quietem solet, videbat coniugem suam absentem sedere passis capillis amictu squalenti contextam; quam aestimari dabatur Fortunam eius esse cum taetro habitu iam disces-suram Cf. 29.2.5 *morte ereptus* (p. 82). As is stated there, Amm. favours the dat. incommodi of personal pronouns with *eripere*, whereas in other cases he uses the abl. separativus. The clause *ut...solet* is subordinated to *videbat*; cf. 15.3.5 *si per quietem quisquam, ubi fusius natura vagatur, vidisse aliquid amico narrasset*. Valentinian's (second) wife Iustina (*PLRE I*, Iustina) lived at the time *in villa, quam Murocinctam appellant* (30.10.4). See for her ad 28.1.57 (p. 115), ad 28.2.10 (p. 139, where the words "near Sirmium" should be deleted) and Sabbah, 1992, 99–101. The disappearance of the Genius or Fortuna as an *omen mortis* is also reported in 21.14.2 (pp. 217–220) about Constantius and in 25.2.3 (pp. 45–46) about Julian. There is a difference, however, between on the one hand Constantius and Valentinian, and Julian on the other. As Plaikner, 1978, 94–95 observed, for the first two the Genius is their personal tutelary deity: 21.14.2 *putabatur Genius esse quidam tutelae salutis appositus* and the present text *aestimari dabatur Fortunam eius esse*. Regarding Julian, however, it is the *Genius publicus* who leaves him: 25.2.3 *vidit...speciem illam Genii publici, quam...conspexit in Galliis*, referring to 20.5.10. We may add that in the case of Julian, the Genius is immediately recognizable by his attributes: 20.5.10 *ut formari Genius publicus solet*, 25.2.3 *velata...cornucopia*, whereas in the case of Constantius and Valentinian the Genius or Fortuna needs to be interpreted as such: 21.14.2 *et putabatur Genius esse*, 30.5.18 *quam aestimari dabatur* (see for this phrase ad 24.8.5 *ut opinari daretur* [p. 230] and ad 26.1.7 [p. 26]) *Fortunam eius esse*.

progressus deinde matutinus contractiore vultu subtristis, cum eum oblatus non susciperet equus anteriores pedes praeter morem erigens in sublime The use of the adj. (*matutinus*) instead of a temporal adverb (*mane*) is very

common in Greek, but also well attested in Latin, mainly in poetical texts; Verg. *A.* 8.465 *nec minus Aeneas se matutinus agebat*; Hor. *Ars* 268–269 *vos exemplaria Graeca / nocturna versate manu, versate diurna*; Kühner-Stegmann 1.235–236, Szantyr 161. For *contractiore vultu subtristis* “frowning and depressed” (tr. Hamilton) cf. 15.8.11 *contractiore vultu submaestum*. There is a note on adjectives with *sub-* ad 30.1.2 (p. 6). Cf. Vergil’s description of a wounded horse rearing high: *tollit se arrectum quadripes et calcibus auras / verberat* (*A.* 10.892–893).

innata feritate concitus, ut erat immanis, dexteram stratoris militis iussit abscidi, quae eum insilientem iumento fulserat consuete On Valentinian’s excessive irascibility and savage ferocity see 27.7.4–8 (pp. 164–179) and 29.3.1–9 (pp. 118–134). See further 30.8.2 (p. 165). For the corps of *stratores* ‘grooms’ see ad 29.3.5 (p. 124). It was one of the tasks of a *strator* (see for another ad 29.3.5, p. 124) to bring the horse to the emperor and to help him mount, which was not easy for a fully armed man. It was a *strator* who killed Caracalla: HA *Cc* 7.2 *cum illum in equum strator eius levaret, pugione latus eius confodit*. The Greek term is ἀναβολεύς, cf. Plut. *Crass.* 31.5 (Crassus was offered a horse) οἱ τ’ ἀναβολεῖς αὐτὸν ἀράμενοι περιεβίβασαν (“and the grooms lifted Crassus up and mounted him”, tr. Perrin).

Amm. uses *abscidere* in 28.6.28 with a dat. incommodi: *cum sibi iussas abscidi linguas didicissent*, so that V’s *militi* (and E’s *stratori*) cannot be rejected out of hand. The classical expression for mounting a horse is *insilire in equum*, cf. Liv. 6.7.2, 8.9.9 and 22.3.11, but there are parallels for *insilire* with dat.; see TLL VII 1.1910.13–16. For *consuete* Petschenig, 1892, 687 compared 23.2.8 *ad suscipiendum consuete pabulum*.

perissetque cruciabiliter innocens iuuenis, ni tribunus stabuli Cerialis dirum nefas cum sui periculo distulisset For *cruciabiliter* ‘agonizingly’ cf. 26.6.3 (p. 133). We have met Valentinian’s brother-in-law Cerialis (*PLRE* I, Cerialis 1) before, in 28.2.10 (pp. 138–139). He was in the right position to save the young man’s life, since as *tribunus stabuli* he was in command of the *stratores*; see ad 20.4.3 (p. 61). The only thing Cerialis could do was to postpone the punishment ordered by Valentinian, whose sudden death probably saved the soldier’s life. The *strator* of the present text had more luck than his colleague Constantianus, who was stoned to death on the emperor’s order (29.3.5, pp. 124–125).

CHAPTER 6

Introduction

This brief chapter in the centre of Book 30 describes the last day of the life of the emperor Valentinian. He receives a delegation from the Quadi, who the year before had crossed the Danube and invaded Roman territory. At first the envoys behaved submissively, promising to support the Roman state, but then they came up with unacceptable excuses, even suggesting that the building of a Roman stronghold had understandably provoked the wrath of the local population. Valentinian, who had a reputation of quickly flying into a rage, reacted furiously. He then calmed down, but precisely at that moment he suffered an apoplexy, which in spite of the measures taken by the imperial staff resulted in the emperor's death. In contrast to various other, somewhat sensational, descriptions of Valentinian's agony Ammianus' report is respectful whilst also providing more, and better, information about this event of huge importance, the sudden loss of a very capable commander-in-chief.

Post haec Quadorum venere legati pacem cum praeteritorum oblitteratione suppliciter obsecrantes, quam ut adipisci sine obstaculo possent, et tirocinium et quaedam utilia rei Romanae pollicebantur Envoys of the Quadi visited the imperial headquarters which were still at Brigetio (Hier. *Chron.* a. 375 cited below ad § 3 [p. 142]); see also 30.5.15 above (p. 131), to negotiate a truce, and to atone for their uprising and their incursions into Roman territory the year before, i.e. 374, reported in 29.6.1–16. The embassy arrived in Brigetio shortly before 17 November 375, the date of Valentinian's death (see below pp. 147–148). In contrast to the verb *oblit(t)erare* the noun *oblit(t)eratio*, “effacement from the memory” (OLD s.v.), is less common. As is noted in Heumann-Seckel, *obstaculum*, “that which stands in the way” (OLD s.v.), is also used in juridical contexts; see also TLL IX 2. 239.27–41. For *tirocinium*, an abstract term for (Quadian) soldiers made available to the Roman army, see 20.8.1 (pp. 179–180). It was common Roman practice to demand recruits as a condition of a peace agreement; 28.5.4 (p. 236), 31.10.17; Zos. 2.15.1; Southern & Dixon, 1996, 70. We can only guess at the *utilia* the Quadi promised apart from the *tirocinium*. In 17.10.9 (p. 260) Amm. mentions that, as part of the agreement between Julian and the Alamannic king Hortarius,

the latter was to supply carts and timber to rebuild the cities which the Alamanni had destroyed: (ut) *carpenta et materias ex opibus suis suorumque praeberet*. Suomarius, another Alamannic king, supplied the Romans with grain, which Hortarius could not do because his country had been ravaged: *annonam enim transferre ita ut Suomarius ea re compelli non potuit, quod ad internecionem regione eius vastata nihil inveniri poterat, quod daretur* (17.10.9).

6.2 *quos quoniam suscipi placuit et redire indutiis, quae poscebantur, indultis, quippe eos vexari diutius nec ciborum inopia nec alienum tempus anni patiebantur, in consistorium Equitio suadente sunt intromissi* See for Amm.'s frequent use of *suscipere* as a synonym of *accipere* ad 22.14.1 (p. 237) and for *indulgere* as a synonym of *donare* TLL VII 1.1253.23 sqq. and OLD s.v. 5: "to grant as a favour". Cf. 29.6.16 *indultae foederibus pacis* (p. 245). The Quadi were granted a truce, on the terms described in the previous section, for the reason that the time of year and the lack of supplies prevented further Roman expeditions into their territory. The phrase *alienum tempus* can be used to denote a moment or a period, which is 'inopportune'; cf. *alienum pervidens tempus* (26.8.6, p. 223). Zos. 4.17.2 remarks that when winter, i.e. the winter of 375–376, lasted longer than usual the Quadi sent envoys with unreasonable demands (Τοῦ δὲ χειμῶνος παρὰ τὸ εἰωθὸς ἑκταθέντος, ἔστελλον πρὸς αὐτὸν οἱ Κουάδοι πρέσβεις λόγους ὑπὲρ τὸ μέτρον φέροντας). The causality between the long winter and the sending of envoys by the Quadi does not become obvious from Zosimus; nor can the chronological information provided by Zosimus be made to harmonize with that of Amm. Although Amm. is vague about who decided about the truce, presumably Valentinian himself had approved signing a treaty with the Quadi. For Equitius, *magister militum per Illyricum*, see 26.1.4 (pp. 18–19) and 29.6.3 (pp. 227–228).

The *consistorium* is the advisory council consisting of the *proximi* of the emperor; normally these *proximi* are the principal civil and military officers of the *comitatus*, although formal criteria for membership are not known; see 20.4.22 (pp. 110–111) and add to the literature mentioned there Matthews 267–269; Schlinkert, 1996; Harries, 1999, 38–42; Karamboula, 2004; Amarelli, 2004–2005; Demandt, 2007², 276–277. In this case, as for instance in 20.4.22 (*asciti in consistorium*), 25.10.2 (*cum horrendo stridore sonuerunt in consistorio trabes*) and 28.1.25 (*intromissi in consistorium*), *consistorium* does not refer to the actual council but to the room where the council met. The treaty was probably finalized during the meeting of the *consistorium*. Henri de Valois firmly rejects Gelenius' *introducete* as "contra scriptorum Codicum auctoritatem" and concludes: "proinde non dubito quin aut *Equitio*

vadente scribendum sit...aut sane *Equitio suadente*". The former of the two would be Amm.'s only instance of the verb *vadere*, whereas the verb *suadere* occurs quite often in the *Res Gestae*.

cumque membris incurvatis starent metu debiles et praestricti, docere iussi, quae ferebant, usitatas illas causationum species iurandi fidem addendo firmabant Like the members of the *consistorium*, who were not seated but stood during the meetings of this advisory body (see ad 20.4.22 [pp. 110–111]), the envoys had of course also to stand (*starent*). In a satirical description of Roman customs the way in which important people are greeted by deep bowing "humiliationis causa" (TLL VII 1.1095.62–67) is described in the following words: *salutantes humum paene curvatis contingentibus membris* (28.1.38, pp. 80–81). The phrase *metu praestricti*, 'overcome by fear' also occurs in 21.9.7 and 31.7.7. See for Amm.'s frequent use of the verb *praestringere* ad 21.7.2 (p. 98). See for *ferre*, "to bring (news)," OLD s.v. 26.

Cf. for *causatio*, 'excuse' or 'pretext', 18.6.5 *omni causatione posthabita* (pp. 166–167). One wonders whether haplography has caused the loss of *iuris* before *iurandi*; cf. 26.6.13 *sub consecratione iuris iurandi* (p. 154). There are, however, other examples without *iuris*: 17.10.7 and 27.5.9. The author censures the use of an oath to add strength to 'notorious' (*illas*, see OLD s.v. 4) 'time-worn' (*usitatas*) excuses.

nihil ex communi mente procerum gentis delictum asseverantes in nostros, sed per extimos quosdam latrones amnique confines evenisse, quae inciviliter gesta sunt It is possible that the actions against the Romans in the year before were not supported by all the leaders of the Quadi, but the claim that not the Quadi themselves but non-Quadian brigands living on the bank of the Danube were responsible for the incursions into Roman territory is ludicrous; for the identity of the invaders see 29.6.6 (pp. 232–233) and Colombo, 2006, 163. With *latro* and the rare adv. *inciviliter* the envoys of the Quadi curry favour with the Romans.

etiam id quoque addendo ut sufficiens ad facta purganda firmantes, quod munimentum exstrui coeptum nec iuste nec opportune ad ferociam animos agrestes accendit The atmosphere deteriorated considerably because of yet another addition to their excuses (*id...quod...accendit*), viz. a reference to the construction of the *castra praesidiaria* by the Romans in Quadian territory as related by Amm. in 29.6.2–3 (pp. 224–226). The construction of this stronghold, illegitimate and uncalled for in the eyes of the Quadi, justified their incursions into Roman territory: according to them these building

activities took place neither *iuste* (according to the pact with the Romans) nor *opportune* (for strategic reasons). Amm. agreed with the Quadi, and called the building of the stronghold a just cause for complaint (*ratio iusta querellarum*, 29.6.1). Note that here again, as in *ex communi mente procerum gentis* in the preceding lemma, the *proceres* of the Quadi go scot-free.

6.3–6 In these sections the last hours of Valentinian's life are described. Various sources, which describe Valentinian's death, mention the rupture of veins and/or arteries which caused effusive bleeding, and an apoplexy. According to Hier. *Chron.* a. 375 Valentinian died suddenly at Brigetio because of an apoplexy (*Valentinianus subita sanguinis eruptione quod Graece apoplexis vocatur Brigitione moritur*); *epit.* 45.8 has a similar report, but adds that the emperor also lost his voice although his senses remained intact (*Valentinianus apud Bergentionem legationi Quadorum respondens, anno aevi quinto et quinquagesimo impetu sanguinis voce amissa, sensu integer, exspiravit*); also according to Oros. *hist.* 7.32.14 he died of an eruption of blood (*Anno autem undecimo imperii sui Valentinianus, cum Sarmatae sese per Pannonias diffudissent easque vastarent, bellum in eos parans apud Brigitionem oppidum subita effusione sanguinis, quod Graece apoplexis vocatur, suffocatus et mortuus est*); cf. Zos. 4.17.2 αἵματος κάτωθεν ἀναχθέντος ἐπὶ τὸ στόμα συσχόντος τε τὰς τῆς φωνῆς ἀρτηρίας ἐξέλιπεν ('he died because a flush of blood flowed into his mouth in a hiccup which squeezed the conduits of his voice', i.e. he choked). Socr. *HE* 4.31.5–6 has a comparable report: Καὶ τοσοῦτον ἐν τῇ βοῇ διασπαράξας ἔτυχεν ἐνυτόν, ὥστε πᾶσαν μὲν ἀναστομωθῆναι φλέβα, πᾶσαν δὲ ἀρτηρίαν διαρραγῆναι. Καὶ οὕτως αἷματος ἐκδοθέντος τελευτᾷ ('The violence of his manner and utterance of these words was so great, that all his veins were opened by the effort, and all the arteries ruptured; and from the quantity of blood which thereupon gushed forth he died'; tr. Zenos); see also Soz. *HE* 6.36.4: ἐπὶ πολὺ δὲ χαλεπαίνοντος καὶ τοιάδε βοῶντος, ὑπὸ ἀμέτρου διατάσεως σπαρχθέντων αὐτῷ τῶν ἔνδον, φλέψ ἅμα καὶ ἀρτηρία ἐρράγη, καὶ ἀναδοθέντος αἵματος...ἐτελεύτησε τὸν βίον ('He spoke in this strain for some time in a very high pitch of voice, and his rage was so violent and so unbounded, that at length he burst simultaneously a blood-vessel and an artery. He lost, in consequence, a great quantity of blood, and expired'; tr. Hartranft).

In modern medical terms Valentinian's death was probably caused by a stroke which made him speechless and caused breathing problems; this is triggered by a blockage of the blood supply to the brain which at the same time cuts off the oxygen supply of the brain. What brought about the disturbance of the blood supply and hence the stroke is hard to say but it may have been an embolism, i.e. a clot of blood, a gas or a fat bubble in the

bloodstream which produced a blockage. Modern studies on Valentinian without exception mention that the emperor died of an apoplectic stroke; e.g. Tomlin, 1973, 236 (“a massive apoplectic stroke”); Humphries, 1999, 122 (“fatal fit of apoplexy”). Amm.’s account differs considerably from other reports. He does not mention any great loss of blood, but indeed the very opposite (*cohibito sanguine*). Moreover, he relates a number of important details, which could well originate from first-hand information provided by an eyewitness, as Angliviel de la Beaumelle suggests in his note 298.

ad haec imperator ira vehementi percussus et inter exordia respondendi tumidior increpabat verborum obiurgatorio sonu nationem omnem ut beneficiorum immemorem et ingratam The words of the Quadi brought about an uncontrolled fit of anger from Valentinian. Amm. uses both *percussus* and *percitus* around forty times. As is noted ad 21.9.5 (p. 120), there is no clear-cut difference between the two terms; *percitus ira* occurs six times, *percussus ira* three.

6.3

While Amm. omits to give his opinion about the demands and excuses of the Quadi, Zos. 4.17.2 remarks that the demands of the Quadi were excessive, which drove Valentinian berserk: ἔστελλον πρὸς αὐτὸν οἱ Κουάδοι πρέσβεις λόγους ὑπὲρ τὸ μέτρον φέροντας, ἐφ’ οἷς Οὐαλεντινιανὸς ἀγανακτήσας, καὶ ὑπὸ τῆς ἄγαν ὀργῆς παραφορᾶς οὐ πόρρω γενόμενος (“the Quadi sent to him ambassadors with unreasonable demands, at which Valentinian went almost mad because of his frenzied anger”, tr. Ridley, slightly adapted). Cf. Socr. *HE* 4.31.3–4 who speaks of Sarmatian instead of Quadian envoys: Τῶν πρέσβεων δὲ εἰσελθόντων καὶ φανέντων οὐκ ἀξιοπρεπῶν ἠρώτησεν, εἰ τοιοῦτοι Σαυρομάται πάντες εἰσίν. Ἀποκριναμένων δὲ τῶν πρέσβεων τοὺς ἀρίστους Σαυροματῶν ἡκείνῳ πρὸς αὐτόν, πληροῦται θυμοῦ Οὐαλεντινιανὸς καὶ μέγα βοῶν ἔλεγεν κακῶς πράττειν τὴν Ῥωμαίων ἀρχὴν περιελθοῦσαν εἰς αὐτόν, ὅπου τοιοῦτο βαρβάρων γένος εὐτελὲς οὐκ ἀγαπᾷ παρ’ ἑαυτῷ μένειν σωζόμενον, ἀλλ’ ὅπλα αἰρεῖται καὶ Ῥωμαίων ὄρους πατεῖ καὶ εἰς πόλεμον θρασύνεται (“As the ambassadors were introduced to the emperor’s presence, and appeared to him to be not very dignified fellows, he enquired whether all the Sarmatae were such as these? As they replied that the noblest personages of their whole nation had come to him, Valentinian became excessively enraged, and exclaimed with great vehemence, that ‘in a period in which the Roman Empire was in dire straits it was his turn to become its ruler, when a nation of such despicable barbarians, not content with being permitted to exist in safety within their own limits, dared to take up arms, invade the Roman territories, and break forth into open war’”, tr. Zenos, adapted); Soz. *HE* 6.36.2–4 has a similar account.

paulatimque lenitus et ad molliora propensior tamquam ictus e caelo vitalique via voceque simul obstructa suffectus igneo lumine cernebatur et repente cohibito sanguine letali sudore perfusus At the beginning of his answer Valentinian was *tumidior*; since this word is obviously the opposite of *ad molliora propensior* it probably characterizes his tone and choice of words, which gradually became calmer after the furious start. Precisely at this moment, and not during the aggressive first part of his reaction, the emperor, as if he was hit by a thunderbolt, became unwell. Amm. may have borrowed the phrase *ictus e caelo* from Cic. *Div.* 1.16 *cum Summanus in fastigio Iovis optumi maximi...e caelo ictus esset* (see Pease ad loc.).

For the emperor's lack of self-control, which manifested itself particularly in frenzied outbursts of rage and of which Amm. likes to remind his readers regularly, see chapter 7 of Book 27 and chapter 3 of Book 29; add to the literature mentioned there Harris, 2001, 261; Sidwell, 2010, 160–162, 174–176. *Natio* refers to the Quadi. The phrase *vocis obiurgatorio sonu* is found in 14.7.12, 18.8.5 (*vocis sonu obiurgatorio*) and 27.1.5; see De Jonge ad 18.8.5 (p. 262), who like Hertz, 1874, 290 traces it to Gellius 9.2.3 (*sonituque vocis obiurgatorio*), and for *sonu* the note ad 14.6.18 (p. 144). Amm. leaves his readers in the dark as to which imperial *beneficia* the Quadi should be grateful for.

Amm. presents a more detailed account of Valentinian's death than other sources. He reports that as if he was struck by a blow from heaven, Valentinian's breathing and speech were obstructed. The phrase *vitalis via* also occurs in Ov. *Met.* 2.828 *vitalesque vias et respiramina clausit*, where Bömer wrongly notes “die Junktur ist ohne Parallele”, and Tert. *anim.* 53.2 *viarum vitalium eversio* (as a cause of death). Waszink ad loc. assumes that here and in Ovid *via vitalis* denotes the windpipe. A fiery flush colored his face: this is Amm.'s only example of *suffectus* meaning “suffused (with a colour)” (OLD s.v. *sufficio* A 3); subsequently his bloodflow stopped suddenly and he broke out in a deadly sweat.

ne laberetur spectantibus et vilibus, concursu ministrorum vitae secretioris ad conclave ductus est intimum The respectability of the emperor had to be preserved and low class spectators such as the Quadian envoys should not witness the spectacle of Valentinian's sudden physical decline. Therefore his personal attendants carried him from the *consistorium* to a private, inner room, from which unauthorized people could be kept away. The verb *labi* here means “to collapse (at the onset of death)” (OLD s.v. 7a).

V and Gelenius both have *et vilibus*, which was enthusiastically greeted by Adrien de Valois as far better than e.g. *exsulibus*. See for *vilis* denoting

lower class people 21.6.9 (p. 93). The phrase *vita secretior*, which also occurs in 14.11.3, 18.4.4 and 19.9.4, denotes those areas in a highly placed person's life which are private. Cf. for the meaning of *conclave* Paul. *Fest.* p. 38M *conclavia dicuntur loca, quae una clave clauduntur*. The final position of the adj. *intimus*, 'remote', is c.c., but also emphasizes the private character of the *conclave*.

ubi locatus in lecto exiguas spiritus reliquias trahens nondum intellegendi minuto vigore cunctos agnoscebat astantes, quos cubicularii, ne quis eum necatum suspicaretur, celeritate maxima corrogarant Valentinian was brought to the *conclave*, where he was laid upon a bed. In spite of his stroke he had retained consciousness since he recognized those standing around his bed, probably the military and administrative officials in the emperor's retinue who had been sent for by the *cubicularii* to forestall any suspicion that the emperor was the victim of murder. This was a prudent measure, as had been shown by Jovian's lonely death: *super cuius obitu dubietates emersere complures* (25.10.12, p. 333). Strictly speaking *cubicularii* were servants of the imperial bedchamber, but the word is often used to denote court servants in general; 20.8.4 (p. 186). *Cubicularii* with almost no exception were eunuchs; 29.2.7 (p. 85). Valentinian had been on the threshold of death twice before, but had recovered. Shortly after he had nominated his brother Valens as co-ruler both emperors were seized by a violent and lingering fever; a plot was suspected but could not be proven; 26.4.4 (pp. 84–86). In 367 Valentinian was again seriously ill (27.6.1, pp. 128–129).

et quoniam viscerum flagrante compage laxanda erat necessario vena, nullus inveniri potuit medicus hanc ob causam, quod eos per varia sparserat curaturos militem pestilentiae morbo temptatum Bloodletting (φλεβοτομία) was an often used method in ancient medical practice. It was employed in the treatment of various diseases. In his note 298 Angliviel de la Beaumelle aptly refers to section 65 (*Ad apoplexiam*) in Cassius Felix' *De medicina* (4th century A.D.), where the author says: *flebotomia in praedictae passionis periculo adiuvat*. In a passage in the *Ἱατρός*, wrongly ascribed to Galen, but, as Caroline Petit notes in the introduction of her recent Budé edition (Paris 2009), a "témoignage doxographique important" there is more urgency: *Λέγει δὲ Ἱπποκράτης περὶ τοῦδε τοῦ πάθους. ἀποπληξὶν ἰσχυρὴν μὲν λύειν ἀδύνατον, ἀσθενέα δὲ οὐ ῥῆϊδιον. φλεβοτομεῖν δὲ εὐθὺς τοὺς κεκρατημένους, ἐὰν καὶ τὰ τῆς ἡλικίας συνάδῃ καὶ ἡ δύναμις ὑπακούῃ*: 'Hippocrates says about this disease "Putting an end to a severe form of apoplexia is impossible, curing a weak one is not easy. Start immediately bloodletting on those who are victims

of the disease, provided their age is in harmony with it and their strength complies” (13.18). Celsus 3.26–27 is slightly less pessimistic. He also prescribes bloodletting: *his* (‘these patients’) *sanguis mittendus est* and agrees that completely regaining one’s former health is rare, but some improvement is possible. These three statements of medical experts show that in the case of an apoplexy timely bloodletting was regarded as normal practice. It is therefore fully understandable that those who were present in the *conclave* and saw the symptoms of the patient’s suffering regarded it as vital. This enhances the credibility of Amm.’s report. See for further information the lemma ‘Apoplexie’ in Leven, 2005, 71–73.

This is the first time we hear about pestilential diseases among Valentinian’s soldiers. Apparently the outbreak of the plague was so serious that all available doctors were sent out to help cure the soldiers. See for *per varia* in a topographical sense 24.4.9 (p. 112), 27.9.7 (p. 215). The subject or *Agens* of *sparserat* is Valentinian. See for the ‘collective’ use of *miles* Szantyr 13. Amm. has a short digression on the origin of *pestilentia* in 19.4 (with commentary by De Jonge on pp. 65–74). The fleshy structure of the emperor’s body was blazing hot, so that a bloodletting was regarded as necessary. As is still the case in most countries, only a qualified person was allowed to perform this task, but it was difficult to find one. There is a strange omission in the text: the causal clause *quoniam laxanda erat vena* ought to have been followed by ‘a physician was needed, but’. If *quoniam* is substituted by *quamquam*, the problem is solved. Cf. for *compages* denoting the human body 14.7.16 *membrorum divulsa compage*, 24.4.28 *disiecta compage membrorum*. In the succinct description of the death of Constantius (21.15.2–3, pp. 231–233) the great heat of his body (*urenti calore nimio venas*) is also mentioned.

- 6.5 *unus tamen repertus venam eius iterum saepiusque pungendo ne guttam quidem cruoris elicere potuit internis nimietate calorum ambustis vel, ut quidam existimabant, arefactis ideo membris, quod meatus aliqui, quos haemorrhoidas nunc appellamus, obserati sunt gelidis frigoribus con crustati* Cf. *sanguinis per quaedam velut ora venarum* (αἱμορροΐδας Graeci appellant) *profusio* (Cels. 2.1.21; see Serbat’s note ad loc. on p. 141 of his Budé edition). The physician was unable to carry out his task, because of the excessive heat within the body or, alternatively, because the bloodvessels had become ‘bolted’ (*obserati*) as a result of the frosty cold outside. The word *con crustatus*, ‘covered with a crust’, occurs only here and in 17.7.11 in a passage on earthquakes.
- 6.6 *sensit immensa vi quadam urgente morborum ultimae necessitatis adesse praescripta dicereque conatus aliqua vel mandare, ut singultus ilia crebrius*

pulsans stridorque dentium et brachiorum motus velut caestibus dimicantium indicabat, iam superatus liventibusque maculis interfusus animam diu colluctatam efflavit This passage contains two allusions to death scenes in the *Aeneid*: *singultus ilia crebrius pulsans* was inspired by A. 9.415 *longis singultibus ilia pulsata* (about Sulmo, when he was killed by Nisus). The words *liventibusque maculis interfusus* clearly allude to Verg. A. 4.643–644 about Dido: *maculisque tremantis / interfusa genas*.

Cf. for some comparable phrases with the gen. plur. of *morbus* 14.6.23 *morborum acerbitates*, 16.7.10 *vexatam asperitate morborum*, 23.6.24 *insanabilium vi concepta morborum*, 27.6.1 *Valentiniano magnitudine quassato morborum* (p. 128), 28.6.16 *vexatus acerbitate morborum* (pp. 279–280). The gen. can be interpreted as genitivus inversus. Similar instances do occur sporadically in other authors, for instance Hier. *in Ezech.* 7.21, l. 203 *in morborum magnitudine* and in Ps. II 89, l. 92 (*senectus*) *vario morborum induratur horrore*, but Amm.'s predilection is idiosyncratic. Cf. for *praescribere* denoting the decisions of fate 15.3.3 *praescriptum fatorum ordinem*, 25.3.9 *hic enim obitum se praescripta audierat sorte*, 25.10.12 *praescriptus vitae finiendae dies*. The phrase *ultima necessitas* occurs with different meanings in various contexts. Tac. *Ann.* 15.61.4 *intromisitque ad Senecam unum ex centurionibus, qui necessitatem ultimam denuntiaret* (see Koestermann ad loc.) is perhaps closest to the present text.

After a final struggle Valentinian breathed his last: *animam diu colluctatam efflavit*. In 21.15.3 the verb *colluctari* is used in a different way: Constantius fell silent *diuque cum anima colluctatus iam discessura abiit e vita*. As is noted ad loc. (p. 233), the contrast with Julian's peaceful departure from life is clear: *vita facilius est absolutus* (25.3.23). Because Valentinian was unable to speak, there were no *ultima verba* by which the Ancients set great store. Such words were also absent in the case of the emperor Jovian. Constantius *deflebat exitium* and is said to have nominated Julian as his successor (21.15.2, p. 232). The impressive deathbed speech of Julian, composed by Amm., can be found in 25.3.15–20.

aetatis quinquagesimo anno et quinto, imperii minus centum dies secundo et decimo Valentinian was 54 years of age when he died on 17 November 375 in Brigetio: Socr. *HE* 4.31.6 τελευτᾷ ἐν φρουρίῳ ᾧ προσωρυμία Βεργιτίων, μετὰ τὴν ὑπατείαν Γρατιανοῦ τὸ τρίτον καὶ Ἐκυτίου περὶ τὴν ἑπτακαιδεκάτην τοῦ Νοεμβρίου μηνός, ζήσας ἔτη νδ', βασιλεύσας ἔτη ιγ' ("He died in the fortress named Bergitio, after Gratian's third consulate together with Equitius, on the seventeenth day of November and after having lived fifty-four years and having been emperor for thirteen years", tr. Zenos, adapted); *Consul. Con-*

stant. a. 375 (= *Chron. Min.* I, 242) *Et ipso anno diem functus Valentinianus senior XV kal. Dec. in castello Virgitione*. He became emperor on 25 February 364; Socr. *HE* 4.1.1; see ad 26.1.5 (p. 23). In contrast to Socrates, who mentions that he ruled for thirteen years, Amm.'s information about the duration of his reign is correct: the period between 25 February 364 and 17 November 375 is exactly 12 years minus 100 days; cf. also *epit.* 45.1 *Valentinianus imperavit annos duodecim minus diebus centum*. Soz. *HE* 6.36.4 remarks that the emperor died in a fortress in Gaul: ἐν φρουρίῳ τινὶ τῆς Γαλλίας ἐτελεύτησε τὸν βίον. He was transferred to Constantinople—just as his predecessors Constantius (21.16.20, p. 277), Julian (25.10.5, p. 319) and Jovian (26.1.3, p. 17)—where he was buried: *inter divorum reliquias* (30.10.1), meaning that he had his final resting place between his predecessors, i.e. in the Church of the Holy Apostles as we may conclude from Leo Gramm. *Chron.* p. 96 Bonn ἐτέθη ἐν τῷ ναῷ τῶν ἀγίων ἀποστόλων. According to *Consul. Constant.* a. 376 (= *Chron. Min.* I, 242) it took more than a year before Valentinian's body arrived in the eastern capital on 28 December 376: *et ipso anno introivit corpus Aug. Valentiniani Constantinopolim die V k. Ian.* The actual burial only took place in 382; *Consul. Constant.* a. 382 (*Chron. Min.* I, 243) *Theodosius Aug. corpus Aug. Valentiniani in sarcofago deposuit die VIII kal. Mar.*; Marcell. a. 382. See further Johnson, 1991.

CHAPTER 7

Introduction

The preserved books of the *Res Gestae* contain extensive necrologies or *elogia* of Constantius (21.16), Julian (25.4), Valentinian (30.7–9) and Valens (31.14), and short ones of Gallus (14.11.27–29) and Jovian (25.10.14–15). For these necrologies, which Ammianus has inserted in his books ‘several times’ (*aliquotiens*), see in general the introductions to 21.16 (pp. 239–240) and 25.4 (pp. 111–113). Ammianus’ necrology of Valentinian is by far the longest, surpassing even that of Julian, and consisting of three capita (7–9). Its structure is unusual in that the *elogium* proper, containing the discussion of the emperor’s *mala* and *bona* (chs. 8 and 9), is preceded by a brief sketch of the life of the emperor’s father Gratianus in sections 2–3 of chapter 7, and a survey of Valentinian’s *actus* in sections 4–11. A comparison of this chapter with Julian’s necrology in 25.4 shows that Ammianus had almost nothing to say about Julian’s father, who had been murdered as a young man in 337, whereas Julian’s *actus* receive due praise, albeit briefly, in the sections 25.4.23–27.

In her fundamental study Samberger, 1969 has argued forcefully, on pp. 391–393, against the opinion of Seeck, 1894 and Leo, 1901, later followed by Pauw, 1972, 139, who had characterized these *elogia* as “das biographische Element in der ammianeischen Geschichtsschreibung, losgelöst vom historischen Bericht” (p. 392). The *elogia* are no biographical appendices, but rather summaries of the preceding narratives in which Amm. weighs up the virtues and vices of his protagonists. Ammianus announces that he will give his survey of Valentinian’s reign *per epilogos breves*, that is to say in the concise, and at times elliptical, style that is fitting for a summary.

Samberger, 1969, 395 proposes the attractive suggestion that this survey of Valentinian’s *actus* may give the reader an idea of the style in which the synoptic lost books of the *Res Gestae* were written: “vielleicht lässt sich an diesem Abschnitt des Nachrufs für Valentinian ablesen, wie Ammian in den nichterhaltenen Büchern die Geschichte der Kaiser, von der er als *actus Gordianorum* (14,1,8), *actus principis Marci* (14,4,2) usw. spricht, dargestellt hat”.

Replicare nunc est opportunum, ut aliquotiens fecimus, et ab ortu primigenio pátris huiusce príncipis ad usque ipsius obitum actus eius discurrere per epi- 7.1

logos breves For *replicare* see ad 20.9.6 (pp. 228–229) and cf. 21.6.1 *Replicare nunc convenit tempora* (p. 74). The intransitive use of this verb ‘to go back (in time)’ is extremely rare; the only other instance in Amm. is 27.8.4 *ut Ulixes Homericus apud Phaeacas ob difficultatem nimiam replicare formidat*. As regards *ortus primigenius* Hagendahl, 1924, 206 observes: “In iis vocabulis quibus notio incipiendi vel oriendi inest, abundantia saepissime occurrit atque varia quidem ratione efficitur”. Amm. uses the expression both of a human being (Valens, 29.1.16) and of a river (the Rhine, 15.4.2). The suffix *-ce* in *huiusce* is necessary for the *cursus* (velox). *Ipsius* refers to Valentinian. There is a note on *discurrere* in military contexts ad 20.6.2 (p. 137). As is evident from the present passage, Amm. also uses it to denote a quick sketch; cf. 17.4.1 *super quo nunc, quia tempestivum est, pauca discurrem*. The noun *epilogus* normally refers to the *peroratio* (TLL V 2.668.64). One of its functions is to recapitulate the main facts of a case; cf. Quint. *Inst.* 11.3.170 *epilogus, si enumerationem rerum habet, desiderat quandam concisorum continuationem* (“The *peroration*, if it involves a recapitulation, requires an even utterance of short, clear-cut clauses”, tr. Butler). Sections 7–11 of this chapter and 9.1–5 are clear examples of this ‘telegram style’.

nec vitiorum praetermisso discrimine vel bonorum, quae potestatis amplitudo monstravit nudare solita semper animorum interna Cf. 21.16.1 *Bonorum igitur vitiorumque eius differentia vere servata*. In other *elogia* the *bona* precede the *mala*. Since the account of the *actus* is mainly positive, Amm. probably put the negative characteristics in the middle in order to achieve some sort of balance. Pollmann, 2011, 370 n. 64 remarks that the idea that absolute power lays bare the true character of a man is a *topos*, quoting in support inter alia Sen. *Phoen.* 582–584 *tam ferus durum geris / saevumque in iras pectus? Et nondum imperas*. Viansino aptly refers to Tac. *Hist.* 1.15.3 *secundae res acrioribus stimulis animos explorant, quia miseriae tolerantur, felicitate corrumpimur*. One is reminded of Abraham Lincoln’s observation: “Nearly all men can stand adversity, but if you want to test a man’s character, give him power.”

- 7.2 *Natus apud Cibalas, Pannoniae oppidum, Gratianus maior ignobili stirpe cognominatus est a pueritia prima Funarius ea re, quod nondum adultus venalem circumferens funem quinque militibus eum rapere studio magno conatis nequaquam cessit* Cf. *epit.* 45.2 *Huius pater Gratianus, mediocri stirpe ortus apud Cibalas, Funarius appellatus est, eo quod venalicium funem portanti quinque milites nequirent extorquere*. Gratianus’ (PLRE I, Gratianus 1) date of birth is unknown but considering the date of birth of his oldest son Valen-

tinian in 321 (see ad 30.6.6, p. 147), we may assume that he was born at the end of the third century. See Drijvers, 2015. For the use of *apud* with names of cities see ad 14.11.21 (p. 137) and ad 30.5.11 (p. 123), to which can be added that the use of the locative in Amm. is a measure of the importance of a town. The only names that occur in the locative are Rome (always), Alexandria, Antiochia, Constantinopolis and Mediolanum (occasionally in the locative, more often with *apud*). Cibalae (Talbert 20 F4), modern Vinkovci in Croatia, was one of the main cities of Pannonia Secunda. Probably under Trajan rather than under Hadrian it received municipal rights (*CIL* 3.3267; so, rightly, Boatwright, 2000, 40–41 n. 15 against Patsch, 1899 and others); later it became a *colonia* (cf. e.g. *CIL* 3.14038 and *AE* 1980.724, 725); see in general for Cibalae Iskra-Janošić, 2004. Pannonia had a rich tradition of producing forth soldiers and Cibalae was the birthplace of several imperial guards; Lenski, 2002, 36.

Amm. is our main source for Gratianus and his career. He is designated as *maior* to distinguish him from his grandson, the co-Augustus Gratian. See Seeck, 1912 and Solari, 1932. As a young man Gratianus was called “Rope Man” (Hamilton) or rather ‘Rope Pedlar’. Nouns ending in *-arius* denote people dealing in specific articles (Leumann 297–298) and *venalem circumferre* means to carry around for sale, cf. *Dig.* 14.3.5.4 *vestiarii vel lintearii* (‘dealers in clothes or linen’) *dant vestem circumferendam et distrahendam* (‘sell’).

aemulatus Crotoniaten Milonem, cui mala saepe cohaerenter laeva manu retinenti vel dextra nulla umquam virium fortitudo abstraxit Milo of Croton was a Greek wrestler from the second half of the sixth century B.C.; Decker, 2000. He is said to have won six times at the Olympic games and seven times in Delphi. Apart from being a wrestler, he was a general fighting for Croton; in that capacity he defeated Croton’s neighbouring city Sybaris in 511/510 B.C.; D.S. 12.9.5–6. For the story of Milo’s strength cf. Plin. *Nat.* 7.83 *Milonem athletam, cum constitisset, nemo vestigio educebat, malum tenenti modo digitum corripiebat* (“When the athlete Milo took a firm stand, no one could make him shift his footing, and when he was holding an apple, no one could make him straighten even a finger”, tr. Rackham, adapted). The emperor Maximinus was compared to Milo: (ut) *alii denique eum Crotoniaten Milonem, alii Herculem, Antaeum alii vocarent* (HA *Max.* 6.9). Amm.’s comparison of Gratianus with Milo is probably based on a collection of exempla, as Lippold, 1991, 376–377 argues.

Most often *aemulari* is used of examples worthy of imitation, as here. Occasionally it is neutral, as in Tac. *Ann.* 3.30.2 (Sallustius Crispus) *Maecenatem aemulatus sine dignitate senatoria multos triumphalium consula-*

riumque potentia anteit, or it even refers to bad examples, as in the elogium of Constantius 21.16.8 *Caligulae et Domitiani et Commodi immanitatem facile superabat, quorum aemulatus saevitiam* eqs. Lenski, 2002, 46 takes the verb too literally (“He cultivated this strong man image by imitating the famous wrestler Milo of Croton”). The adverb *cohaerenter* is found seven times in the *Res Gestae*; the only other author who uses it is Florus; see ad 20.7.4 (p. 159). Here it means ‘tightly’.

- 7.3 *ob ergo validi corporis robur et peritiam militum more luctandi notior multis post dignitatem protectoris atque tribuni comes praefuit rei castrensi per Africam* For *ergo* see Krylová, 2001. A similar instance of *abundantia sermonis* is found in 29.6.16 *Gallicani militis validum...robur*. For wrestling by soldiers cf. HA *Max.* 6.5 *exercebat cum militibus ipse luctamina*. It is unclear in what respect wrestling in military style differed from ordinary wrestling. The sport was considered a good training for soldiers preparing for military encounters; Lippold, 1991, 369. The phrase *notior multis*, in which the comparative serves to obtain a *cursus planus*, is the equivalent of *postquam innotuit*.

Gratianus apparently served in the corps of the *protectores* (*domestici*), for which see ad 21.16.20 (p. 276). The heavily damaged *CIL* 3.12900 from Salona (Split) in Dalmatia possibly refers to a Gratianus: [*gr*]atiani pr[otectoris] [*d*]omestici. Seeck, 1912 followed by Solari, 1932, 160–162 believes that the inscription refers to the father of Valentinian and concludes that he served at the court of Diocletian. This is highly dubious for several reasons. Firstly, it is not certain that the inscription denotes ‘our’ Gratianus or even a Gratianus at all; there are other names ending in *-atianus*, such as Tatianus or Pacatianus; Gauthier, Marin & Prévot, 2010, 1053–1054. Secondly, Gratianus was probably born at the end of the third century (see above) and Diocletian died on the third of December 311 (Barnes, 1982, 32); he was therefore too young to have served at Diocletian’s court. Whatever function or functions Gratianus may have had in his early military career, he was soon promoted to *tribunus*, a title often used loosely for all commanding military officers; Jones 640. See also ad 30.1.7 (p. 11). It is not known whether Gratianus became a commanding officer of a contingent of *protectores* (*domestici*)—we know of one *trib(unus) protec(tor)*, *CIL* 3.1985, cf. *PLRE* I, Sabinianus 7—or of another unit (“The corps [of *protectores*] was formed of picked men, who after a few years’ service in it were posted to equestrian commands”, Jones 53–54); Amm.’s wording (*post dignitatem protectoris atque tribuni*) makes the latter possibility more likely. Presumably Gratianus fulfilled these functions under Constantine, but we have no information when exactly; cf. Seeck,

1912 who, without any evidence in the sources, argues that he served as *tribunus* in Illyricum around 321. That he had served in Africa is confirmed by Symmachus' first panegyric on Valentinian from 368/69: *an non ipsam quoque Africam iure patriam tuam dixerim, quae te prima in contubernio parentis edocuit, qualis princeps esse deberes?* (Or. 1.1). Valentinian is likely to have accompanied his father in Africa when he was still a boy. Since Valentinian was born in 321 Gratianus possibly held the office of *comes rei castrensis per Africam*, also called *comes rei militaris Africae*, or just *comes Africae* (see ad 21.7.4 [p. 99] and 28.6.5 [p. 263]), in the late 320s or early 330s; Tomlin, 1973, 3.

unde furtorum suspicione contactus digressusque multo postea pari potestate Britannicum rexit exercitum tandemque honeste sacramento solutus revertit ad larem For the connotation of contagion in *contactus* see ad 29.2.3 *nullo contacti delicto* (p. 78). For *digredi* in the sense of 'to be cashiered' see ad 20.2.5 (p. 20) and TLL V 1.1154.63–69. The expression *sacramento solvere* implies that the person involved left military service and went home; see ad 24.3.2 (p. 73). On *lar(es)* as a poetic term for home, see ad 21.5.12 (p. 70).

Amm. leaves his readers in the dark with respect to the embezzlement that forced Gratianus to go into retirement. Presumably he returned to his native Pannonia. Quite a long time after his dishonourable dismissal from Africa, he was appointed *comes* in Britain. This appointment is perhaps connected with troubles at the northern frontier which prompted Constans to visit Britain in the early months of 343; 20.1.1, 27.8.4; Firm. *err.* 28.6. As Tomlin, 1973, 4 and Lenski, 2002, 47 suggest, Gratianus was possibly ordered to restore fortifications and to patrol the frontier. How long he served in Britain cannot be specified but he retired from military service before 351. By that time he was back at his estate in Pannonia, where he offered hospitality to the usurper Magnentius (see below, p. 154). *Epit.* 45.3 has the unique information that Gratianus rose to the civil position of praetorian prefect (*Eo merito ascitus in militiam usque ad praefecturae praetorianae potentiam conscendit*); however, since he had become *persona non grata* under Constantius because of his behaviour towards Magnentius this is a mistake, as PLRE I, Gratianus 1 correctly argues. By way of contrast to Gratianus' dubious performance in Africa Amm. emphasizes that his final discharge from military service was honourable (*honeste*).

et agens procul a strepitu multatione bonorum afflictus est a Constantio hoc nomine, quod civili flagrante discordia hospitio dicebatur suscepisse Magnen-

tium per agrum suum ad proposita festinantem For *multatio* = *multa* 'fine' see Heumann-Seckel s.v. Gratianus' disgrace as an old-age pensioner is reminiscent of Alypius, *ex vicario Britanniarum*, who *post otiosam et repositam vitam...ut veneficus reus citatus est* (29.1.44) and Remigius, who, living on his family estate, *negotiis se ruralibus dedit* until he was driven to suicide by Maximinus (30.2.10). The verb *flagrare* is used metaphorically in a variety of ways, for which see TLL VI 1.847.78–848.31 and cf. Aur. Vict. *Caes.* 40.20 *flagrante per Italiam bello*.

Magnentius (*PLRE* I, Magnentius), who is mentioned eight times in the *Res Gestae*, had a military career under the emperor Constantius II. He usurped imperial power and was proclaimed Augustus on 18 January 350. He committed suicide on 10 August 353 after which his body was mutilated; 22.14.4 (p. 247). His revolt was dealt with by Amm. in one of the lost books (21.8.1 [p. 107]), presumably Book 13, as can be surmised from the opening sentence of Book 14. On his usurpation see Elbern, 1984, 19–21 and *passim*; Szidat, 2010, *passim*. It has been supposed that Magnentius was a pagan and that his coup was religiously motivated (Solari, 1932, 161). Cf., however, Barnes, 1993, 102 who considers him a Christian, Rubin, 1998, who takes a nuanced stance by arguing that Magnentius' personal beliefs remain mysterious but that the soldiers who supported him did so because they considered him a pagan and hoped for a revival of the traditional cults, and Conti, 2007, who argues that it cannot be established whether he was Christian or pagan.

The very vague *proposita* ('purposes'; see ad 20.5.4, p. 120) probably means that Magnentius stayed at Gratianus' estate when he was heading for Mursa (modern Osijek), directly north of Cibalae, Gratianus' birthplace, for the fatal battle against Constantius, who defeated him there on 28 September 351. Mursa, also in Pannonia, was located some 22 Roman miles from Cibalae. Gratianus may have supported Magnentius when he seized imperial power, but not for religious reasons as Solari, 1932, 161 argues.

Whether Gratianus lived to see his sons rise to imperial power cannot be determined, but is not unlikely. He died before 24 August 367 as can be concluded from an inscription on a lost statue from Cirta in Numidia set up by the vicar of Africa: [*memoria*]e felic[issimae viro atq]ue per omn[ia saecula cel]ebrando, Gra[tiano patri] dd. principumque [nostrorum] Valentiniani et V[alentinis no]bilium ac triumphat[orum semper Au]gustorum; *CIL* 8.7014 = *ILS* 758. Had he died after 24 August 367 his grandson Gratian, who became Augustus on that date, would have been mentioned in the inscription. Them. *Or.* 6. 81 d refers to another statue of Gratianus in Constantinople.

Cuius meritis Valentinianus ab ineunte adolescentia commendabilis contextu suarum quoque suffragante virtutum indutibus imperatoriae maiestatis apud Nicaeam ornatus For the choice of Valentinian as successor of Jovian by the principal civil and military leaders (26.1.3, p. 17), and his elevation to the throne in Nicaea at 25 February 364, see 26.1.5 (pp. 20–24) and 26.2 with the notes on pp. 37–58. Also according to *epit.* 45.3 the reputation of Gratianus was an important factor in the choice of Valentinian as emperor: *ob cuius* [Gratianus'] *apud milites commendationem Valentiniano imperium resistenti oggeritur*. For *commendabilis* cf. 25.5.4 *paternis meritis mediocriter commendabilis* about Jovian (p. 185) and 31.13.18 (Potentius) *meritis Ursicini patris, magistri quondam armorum, suisque commendabilis*. According to Frank, 1967, 310 the term denotes “a new kind of hereditary status” for military men, which is questionable since the adj. is also used of Hypatius in 29.2.16 who had followed a civil career (consul in 359, PVR in 379 and PPO Italiae et Illyrici in 382–383). For *contextu suarum...virtutum*, “l’ensemble de ses qualités personnelles” (Sabbah) cf. 23.6.2 *clarorum contextu factorum*. Normally, *suffragare* refers to the support of influential people, as in 15.2.8 *Eusebia suffragante regina*. According to some scholars it is used with a non-human Head also in 20.5.7 *alio quodam praeter merita suffragante*. The rare plural of *indutus* is used about the mail-clad Persians in 24.2.5 *horrentes indutibus rigidis*; TLL VII 1.1280.55–56. For the imperial insignia see ad 24.4.4 (p. 106).

in Augustum collegium fratrem Valentem ascivit ut germanitate, ita concordia sibi iunctissimum, inter probra medium et praecipua, quae loco docebimus competenti For Valentinian’s choice of his younger brother Valens as co-Augustus, who received the imperial insignia in Constantinople at 28 March 364, see 26.4.1–3 with the notes on pp. 75–84. For Valens’ vices and virtues see the elogium in 31.14. The expression *Augustum collegium*, formed by analogy with expressions like *in collegium factorum* (16.1.1) and *in collegium trabeae* (23.1.1) is unique. In 27.6.16 Amm. had emphasized that Valentinian had deviated from the traditional procedures when he granted Valens (and later his son Gratian) the title of Augustus (*morem institutum antiquitus supergressus*). The two Augusti are called *concordissimi principes* at the start of their dual reign in 26.5.1 (p. 94).

For the concept of *medius princeps* see ad 24.3.8 (p. 85) and Neri, 1992. Its first attestation is Tac. *Hist.* 1.49.2 (Galba) *ipsi medium ingenium, magis extra vitia quam cum virtutibus*. It is found in some fourth century authors, such as Eutr. 7.13.1 (Claudius) *hic medie imperavit, multa gerens tranquille atque moderate, quaedam crudeliter et insulse*; 10.7.1 (Constantine) *Vir primo*

imperii tempore optimis principibus, ultimo mediis comparandus; HA Car. 3.8 (Carus) *medium, ut ita dixerim, virum et inter bonos magis quam inter malos principes conlocandum*. About this concept Neri writes on pp. 105–106: “la sua origine, o comunque la sua fioritura, nel IV secolo non sorprende, perché va probabilmente legato alla consapevolezza, diffusa particolarmente nella storiografia pagana contemporanea, della mancanza nel proprio tempo di figure esemplari, tanto nel positivo quanto nel negativo, ad esclusione della figura di Giuliano”.

- 7.5 *igitur Valentinianus post periculorum molestias plures, dum esset privatus, emensas imperitare exorsus, ut arces prope flumina sitas et urbes...et Gallias petit* Amm. frequently uses “ab urbe condita” constructions of the type *post molestias emensas*, characterized by Helttula, 1985 as a form of “Roman bureaucratism”; see ad 22.2.2 (p. 9). For deponent verb forms with a passive meaning see Flobert, 1975, 358 and Pinkster I 5.4.1 *Periculorum molestias* is a gen. inhaerentiae or identitatis, for which see ad 22.12.7 (p. 222). For *dum* with coni. imperf. see ad 22.9.9 (p. 168) and 27.4.10 (p. 90).

Amm. reports two dangerous situations in which Valentinian had found himself involved before he became emperor. In 16.11.6–7 he had mentioned Valentinian’s dishonourable dismissal from the army in 357 after he had been accused of letting the Laeti escape who had attempted to plunder Lugdunum (Lyons). In that case Valentinian was the victim of the *tribunus Scutariorum* Cella, who had forbidden Valentinian and his fellow tribune Bainobaudes to guard the road the Laeti would use. In an official report to Constantius the *magister peditum* Barbatio said that Valentinian and Bainobaudes had tried to bribe the soldiers under his command. For these alleged undermining activities he was cashiered and returned home as a private citizen. In 25.10.7 (pp. 324–325), Amm. had reported that Valentinian had narrowly escaped a band of riotous soldiers, who killed Lucillianus and Valentinian’s fellow tribune Seniauchus. The story that Valentinian had been banished by Julian because of his Christian conviction as reported by some Christian authors is disputed on good grounds by modern scholars; see ad 26.1.5 (p. 22).

In the context the most attractive solution for filling the gap after *urbes* is to read <*munir*>*et* with Heraeus; cf. 28.2.1 *Valentinianus...Rhenum omnem... magnis molibus communibat* and *Rhenum celsioribus castris munivit atque castellis* in §6.

Alamannicis patentes excursibus reviviscentibus erectius cognito principis Iuliani interitu, quem post Constantem solum omnium formidabant For *patere*

‘to be exposed’ cf. 31.3.1 (Huni) *Ermenrichi late patentes et uberes pagos repentino impetu perruperunt*. The verb *reviviscere* has an abstract noun as its subject in a similar context in 28.3.6 *ne...reviviscerent provinciarum turbines* (‘lest...the disturbances in the provinces should revive’). The comparative of the adverb *erecte* ‘with greater confidence’ is extremely rare (TLL V 2.785.82–88); Amm. uses it also in 15.5.11 and 26.6.16 (p. 165). The addition *omnium* serves only to emphasize *solum*, since between Constans and Julian the only emperor on the scene had been Constantius.

After Valentinian and Valens had arranged the *divisio regni* in Mediana and Sirmium in June and July 364, Valentinian went to Milan (26.5.1–5, pp. 93–107). From there he went to Paris and Rheims where his presence is attested for late 365 and early 366 (26.5.14, p. 122). His presence at the northern frontier was demanded because of the renewed threat of the Alamanni invading Roman territory; e.g. 26.4.5 (p. 88). In 27.1.1 Amm. observes that the Alamanni had grown in strength again after the death of Julian: *Alamanni post aerumnosas iacturas et vulnera, quae congressi saepe Iuliano Caesari pertulerunt, viribus tandem resumptis licet imparibus pristinis ob causam expositam supra Gallicanos limites formidati iam persultabant*. As Caesar Julian had conducted several campaigns against the Alamanni and other Germanic peoples and concluded treaties with them in the 350s and in 360 and 361; 16.11, 16.12.1–61, 17.1–3, 17.8–10, 18.2, 20.10 (pp. 234–243), 21.3–4 (pp. 32–49). For Constans (*PLRE* I, Constans 3), Augustus in the years 337–350, see ad 20.1.1 (p. 4) and 27.8.4 (p. 191). He is known to have fought the Franks in Gaul in 341–342; *Consul. Constant. a. 341 (pugna facta est cum gente Francorum a Constante Aug. in Gallis)*, a. 342 (*victi Franci a Constante Aug. seu pacati*); *Hier. Chron. a. 342*; *Socr. HE* 2.13.4. Campaigns against the Alamanni by Constans are not attested according to Drinkwater, 2007, 200, but see Maraval, 2013, 46–47, who refers to the present passage, *epit.* 41.24 (where Alamanni are not mentioned) as well as to coins celebrating victories of Constans over barbarians (but not explicitly Alamanni). His brother Constantius, however, certainly fought several campaigns against the Alamanni; 14.10, 15.4.1. Constans was killed by the usurper Magnentius on 18 January 350 at the village of Helena in Gaul close to the Pyrenees; *epit.* 41.23.

ideo autem etiam Valentinianus merito timebatur, quod auxit et exercitus valido supplemento et utrobique Rhenum celsioribus castris munivit atque castellis, ne latere usquam hostis ad nostra se proripiens possit The postposition of *et* after *auxit* is defended by Blomgren 95, but the parallels he gives are unconvincing (see ad 26.4.5, p. 89). Heraeus was probably right in deleting it as a form of dittography. According to Wagner ad loc. *latere* followed by

a participle is a Grecism, but see ad 27.12.7 *ut lateant id temptantes* (pp. 279–280). For reflexive *proripere* cf. 14.2.18 and 20.6.4; TLL X 2.2148.39sq. The remark that these fortifications served as watchtowers to give advance warning of barbarian raids implies that Amm. is thinking primarily of towers on the right bank of the Rhine.

Valentinian's fortifications on the Rhine frontier were mentioned by Amm. in 28.2.1 (with the notes on pp. 118–124): *At Valentinianus magna animo concipiens et utilia Rhenum omnem a Raetiarum exordio ad usque fretalem oceanum magnis molibus communibat castra extollens altius et castella turresque assiduas per habiles locos et opportunos, qua Galliarum extenditur longitudo*. The combination of *castra* and *castella* is found ten times in the *Res Gestae*; see ad 27.4.6 (pp. 86–87), and cf. for the meaning of *castra* in late antiquity also Geuenich and Zotz, 2008. This is the first and only time that Amm. mentions an expansion of the armies by Valentinian.

- 7.7 *Utque multa praetereamus, quae egit moderatoris auctoritate fundati quaeque per se vel duces correxit industrios* In his elogium Amm. pays less attention to Valentinian's merits as an administrator of undisputed authority than to his military achievements. For *fundatus* see ad 20.4.15 (p. 88) and 25.3.18 (p. 98). The verb *corrigerere*, frequently used of Julian's successes as Caesar in Gaul, refers to the military activities of Valentinian and his generals; see ad 25.4.25 (p. 167) and 28.3.7 (p. 157). For *industrius* 'energetic' cf. 15.8.13 *verissimus testis affuturus industriis et ignavis*. The term *moderator* is used not only for emperors (20.8.17, 22.9.12, 26.1.3, 29.2.18, 30.5.5) but also for military commanders/offices (18.7.7, 20.8.14), provincial governors (30.1.6) and city prefects (27.3.5); see ad 20.8.14 (p. 205). Just as he does in § 11 of this chapter, Amm. refers respectfully to Valentinian's generals, who were responsible for most of the emperor's victories. The general to whom Valentinian owed most of his successes was Theodosius the Elder (*PLRE* I, Theodosius 3); see for him ad 27.8.3 (pp. 186–188). Other generals are Equitius (26.1.4, pp. 18–19), Dagalaifus (26.5.9, pp. 114–115), Charietto (27.1.2, pp. 5–6), Severianus (27.1.2, pp. 6–7), Iovinus (27.2.1, pp. 15–16), Severus (27.6.3, pp. 133–135) and Mero-baudes (28.6.29, p. 300). Neither the defeat of Charietto and Severianus by the Alamans, nor the victories won by their successor Iovinus, recorded in 27.1–2, are mentioned in this summary.

post Gratianum filium in societatem suae potestatis assumptum Vithicabium regem Alamannorum, Vadomario genitum, adolescentem in flore primo genarum, nationes ad tumultus cientem et bella, clam, quia non potuit aperte, confodit Valentinian made his 8-year-old son Gratian (*PLRE* I, Gratianus

2) co-Augustus on 24 August 367; 27.6.4–5 (pp. 136–139). On Gratian see ad 26.9.1 (p. 242) and McEvoy, 2013, 48 ff. For Vithicabius (*PLRE* I, Vithicabius) see ad 27.10.3 (p. 228); by order of Valentinian he was murdered in April/May 368 (27.10.4). For Vadomarius (*PLRE* I, Vadomarius), who made a career in Roman service after having been captured by Julian in 361 (21.4.5, p. 45), see ad 21.3.1 (pp. 33–34) and 26.8.2 (p. 215).

Vithicabius has been described as outwardly *molliculus* in 27.10.3, which tallies well with the time-worn phrase about the first down on the cheeks; cf. 31.10.18 (about Gratian) *dum etiamtum lanugo genis inserperet speciosa*; Pac. *trag.* 362 *nunc primum opacat flore lanugo genas*; Chalcid. *comm.* 1.37 *Tertia vero hebdomade ostentat se flos et lanugo circa genas*. The opposition *clam*—*aperte* corresponds to 27.10.4 *superari vel prodi*. For the use of the ‘transitive active’ *confodit* (‘he had Vithicabium murdered’) see Kühner-Stegmann 1.100, where it is observed that this phenomenon is much more common in Greek than in Latin.

et Alamannis congressus prope Solicinium locum, ubi insidiis paene perierat circumventus, ad exitium ultimum delere potuit universos, ni paucos velox effugium tenebris amendasset The episode of the battle at Solicinium—there is controversy about the location of this place—in the summer of 368, including Valentinian’s narrow escape from an Alamannic ambush, is elaborately described in 27.10.8–15 (with notes at pp. 237–248). The hyperbolic expression *ad ultimum exitium* is the equivalent of *ad internecionem*. Amm. uses it also for individuals in 19.11.13 and 28.1.55. *Tenebris* refers to dark hiding places in the woods; cf. 27.10.15 *silvarum se latebris amendarunt*.

Inter haec tamen caute gesta iam conversos ad metuendam rabiem Saxonas semper quolibet inexplorato ruentes delatosque tunc ad...res tractus, quorum spoliis paene redierant locupletes, malefido quidem, sed utili commento peremit praeda raptoribus vi fractis excussa For the loss of the adversative force of *tamen* in Late Latin see ad 20.5.1 (p. 114). The reading *caute gesta iam conversos* for V’s *caute graviam conversus* is due to Gelenius. It is plausible, but not certain. Petschenig’s *caute gradiens*, although it does not form a regular *cursus*, is attractive in view of 17.1.9 *gradientes cautius*, 24.1.2 *cautius gradientes* and 31.6.5 *caute gradiebantur*. For Valentinian’s caution as a general see also 30.9.4 *Ad inferenda propulsanda bella sollertissime cautus* (p. 190).

The account of the Saxon raids in the north-western regions of the Roman Empire in 370 and the slaughtering of the Saxons by the Romans after they had concluded a truce with them, is given in 28.5.1–7 (with notes at pp. 231–240). About the Saxons Amm. remarks *quocumque ventus duxerat, erumpen-*

7.8

tum, calling them *repentini* 'unpredictable' in 28.2.12 (p. 141), which tallies with *quolibet inexplorato ruentes*. For adverbial *inexplorato*, "without previous reconnaissance" (OLD), cf. Liv. 21.25.9 *inexplorato profectus in insidias praecipitatur*; TLL VII 1.1330.17–23.

V has a lacuna of 10 letters between *tunc* and *restractus*. Gelenius conjectured *ad maritimos tractus*, no doubt because the Saxons had invaded from the sea, *oceani difficultatibus permeatis* (28.5.1). Exactly for that reason Hadrien de Valois' *ad terrestres tractus* (apart from accounting for *res*) is more logical. However, in view of the fact that the relative clause mentions the rich booty with which the Saxons returned home Stolte's ingenious *ad uberes tractus* (1973, 154), which moreover produces a regular *cursus*, deserves consideration; cf. 23.3.5 *Chiliocomo uberi Mediae tractu* and 31.6.4 *opimas regiones et uberes*. For *excudere* 'to shake down' cf. 30.4.21 (advocates) *opes cuiusque modi fortunae rimantes alienis gremiis excutiunt praedas*. As for *malefido quidem, sed utili commento*, also in 28.5.7 (pp. 239–240) Amm. shows some qualms about the Roman perjury, but bows to the demands of 'Realpolitik'.

- 7.9 *Itidemque Britannos catervas superfusorum hostium non ferentes spe meliorum assumpta in libertatem et quietem restituit placidam nullo paene redire permissio grassatorum ad sua* The account of the campaign in Britain to deal with the Picts, Attacotti and Scots, and the restoration of the province to its former condition is given in 27.8 (pp. 181–202) and 28.3 (pp. 147–163). The invasions had started in 367; the military campaign took place in 368–369 and was conducted by Theodosius the Elder.

Amm. uses *itidem* 'likewise' more than 70 times; see De Jonge ad 16.12.17 (p. 200) and Blomgren 34. For *superfundere* see ad 25.3.4 (pp. 63–64). *Placida quies* is a Vergilianism; for instance A. 1.691–692 at *Venus Ascanio placidam per membra quietem / inrigat*. There is a note on *grassator*, 'vagabond', 'highwayman' ad 28.2.11 (p. 140). The 'Satznachtrag' *nullo-sua* has no basis in the accounts of the British campaigns in books 27 and 28.

- 7.10 *Efficacia pari Valentinum quoque, Pannonium exsulem, per has provincias molientem otium turbare commune, antequam negotium effervescat, opprēsit* In 369, during his campaign in Britain, Theodosius was confronted with the rising of Valentinus, the brother-in-law of Amm.'s arch-enemy Maximinus (PLRE I, Valentinus 5), described by Amm. in 28.3.4–6 (pp. 152–157). Amm. had characterized Theodosius the Elder, who was the commander in Britain, as *dux efficacissimus* in 27.8.6. Other instances of *moliri* with inf. in the *Res Gestae* are 14.2.5 *pro viribus repellere moliens*, 21.11.2 *novare quaedam*

moliebantur, 23.1.7 *aliena pervadere molienti rectori*; TLL VIII 1360.72–1361.6. Am. writes the subj. praes. *effervescat* instead of *effervesceret* to obtain a regular cursus (planus). Note the opposition *otium* ('peace')—*negotium* ('troubles').

Africam deinde malo repentino percussam discriminibus magnis exemit, cum voraces militarium fastus ferre nequiens Firmus ad omnes dissensionum motus perflabiles gentes Mauricas concitasset Amm. uses *percussus* regularly in the context of unexpected events; see ad 21.9.5 (p. 120), 28.2.13 (p. 144). The reason for Firmus' rebellion against the Romans is stated much more bluntly here than in the two long accounts in 28.6 and 29.5. Firmus could not tolerate the greed of the military commanders, more in particular the *comes Africae* Romanus (*PLRE* I, Romanus 3), which had also aggravated the plight of the African provincials, *quam rem militaris augebat socordia et aliena invadendi cupiditas maximeque Romani nomine comitis* (27.9.1). Cf. the more veiled terms in which Firmus defends his revolt in 29.5.8 *eum non sponte sua ad id (e)rupisse, quod norat scelestum, sed iniquitate grassante licentius* (p. 165). Firmus started his insurrection c. 370. It was also suppressed by the elder Theodosius who arrived in Africa in April (?) 373. It took him two years to subdue the uprising which ended with the death of Firmus.

Similique fortitudine clades ingemiscendas Illyrici vindicasset, ni morte praeventus reliquisset rem seriam imperfectam A reference to Valentinian's Illyrian campaign of 375 to punish the Quadi and Sarmatians for their inroads into Roman territory the year before; 30.5.

Ac licet opera praestabilium ducum haec, quae rettulimus, consummata sunt, tamen ipsum quoque satis constat, ut erat expeditae mentis usuque castrensis negotii diuturno firmatus, egisse complura For *opera* + gen. 'with the help of', 'thanks to' cf. 25.3.14 *Salutius praefectus actus in exitium praeceps et opera sui apparitoris ereptus*. Valentinian shares the honour of being characterized as *expeditae mentis* 'quick-witted', 'decisive' with Hannibal (15.10.11). For *usu diuturno firmatus* cf. 20.5.5 (Julian to his soldiers) *vigore ususque diuturnitate fundati*; 28.5.1 (Nannienus) *dux diuturno bellorum labore compertus*; 30.9.4 (Valentinian) *Ad inferenda propulsanda bella sollertissime cautus, aestu Martii pulveris induratus* and 31.2.25 (the Goths) *iudicesque etiam nunc eligunt diuturno bellandi usu spectatos*.

7.11

inter quae illud elucere clarius potuit, si Macrianum regem ea tempestate terribilem vivum capere potuisset, ut industria magna temptarat, postquam

eum evasisse Burgundios, quos ipse admoverat Alamannis, maerens didicisset et trístis Oddly enough, there is only one example of an action by the emperor himself, and that action was an utter failure. His attempt to eliminate the Alamannic king Macrianus in a concerted action with the Burgundians went wrong because Valentinian did not keep his end of the bargain (28.5.8–13, where there is no mention of an attempt by the Burgundians to capture the king). An expedition into Alamannic territory led by Valentinian to catch Macrianus was unsuccessful because of the undisciplined behaviour of his own troops (*hac Valentinianus gloria defraudatus nec sua culpa nec ducum sed intemperantia militis*, 29.4.2–6). Macrianus had been a formidable enemy (*ea tempestate terribilem*), but in the end Valentinian and Macrianus became friends and the king remained loyal to Rome till the end of his life (30.3.3–7). The verb *admovere* is normally used of siege engines, see ad 29.5.25 (p. 186). The Burgundians had been ‘brought to bear’ on the Alamans; cf. 28.5.9 (Valentinian decided) *Burgundios in eorum excitare perniciem*. As Viansino observes, this is the only instance of *postquam* + *coni.*; Amm. probably wanted to avoid the unmetrical *didicerat et trístis*.

CHAPTER 8

Introduction

After the brief survey of Valentinian's actions in chapter 7 Ammianus now turns to his virtues and vices. In contrast to the comparable overview of Constantius' characteristics in the final chapter of Book 21 he first deals with the negative aspects, the *vitia*. He himself gives no reason for this, but it has been suggested that in this way the entire survey in chapters 7, 8 and 9 ends on a positive note. Such a suggestion is perhaps attractive, but its defenders must then also explain why the negative part is more than twice as long as the list of his laudable deeds in various fields in chapter 9.

In the present chapter Amm. straightaway sets the tone by stating that the deceased emperor had a strong inclination towards harshness, which resulted in excessive punishments. Indeed, he was never content with a mild form of punishment or inclined to call a halt to the execution of a death penalty. Such an attitude is, according to the author, inexplicable in view of the large number of examples of prudent restraint set by powerful men, such as the Persian king Artaxerxes and the Roman politician Papirius Cursor. Their practicing of the virtues *humanitas* and *pietas* proved to be no obstacle to a successful career. Valentinian, however, preferred punishment of a kind which normal leaders only use as a last resort.

Secondly, he displayed a greedy attitude when it came to refilling the empty coffers of the treasury, which led to the impoverishment of many well-to-do people. Here again there were excellent examples of the opposite behaviour, for instance of the Athenian politician Themistocles and, remarkably, of the common people in Rome. Furthermore, there was his jealousy and the fact that he tended to panic in certain situations. Finally the coda of the survey concludes its gloomy message by mentioning his astonishing predilection for judges who did their job *immaniter*, that is in the style of barbarians. The emperor, however, put such men on a par with Lycurgus or Cassius. He himself did not want to be a safe harbour for those who were harassed by a turbulent sea. This refusal was caused by his failure to understand that the essence of righteous government consists in the care for the well-being of its subjects, as had been strongly emphasized by the emperor Julian in his deathbed's speech, only twelve years before.

- 8.1 *Haec super actibus principis brevi sunt textu percursa* The present text has been included in TLL X 1. 1230.74–1231.41, a long list of examples in which *percurrere* is used in a transferred sense: ‘to go quickly through relevant information’; cf. *advertite, oro, benevole, quae sermone brevi percurram* (21.5.2). As is noted ad 20.4.11 (p. 76), Amm. uses *textus* in two different meanings: 1. ‘train of events’, 2. ‘written text’. The remarkable history of this word has recently been admirably analyzed by Bažil, 2013, who explains the important role of Amm. in the development from its first meaning to its second, in which the relationship of the facts has been construed and written down in a text: from facts to words, from history to historiography.
- 8.2 *nunc confisi quod nec metu nec adulandi foeditate constricta posteritas incorrupta praeteritorum solet esse spectatrix, summatim eius numerabimus vitia post et praecipua narraturi* In 26.1.1–2 Amm. addresses his contemporary readers, whose understanding of the genre ‘historiography’ leaves much to be desired. See the notes ad loc. (pp. 2–16). In the present text he explicitly describes what he expects from future readers, the *posteritas*. In his *Lexicon Viansino* notes about this word: “Tacitus adamat”. In an important passage Tacitus deals explicitly with the role of future readers as envisaged by the historian: *praecipuum munus annalium reor, ne virtutes sileantur utque pravis dictis factisque ex posteritate et infamia metus sit* (Ann. 3.65.1). A tyrant may be able to ‘organize’ a fine reputation among his contemporaries. He cannot, however, repeat this feat with regard to future generations and as a result he might perhaps moderate his evil conduct. Amm.’s words can be regarded as an explicit homage to the ‘strategy’ of his famous predecessor. Future generations do not suffer from the fear of a tyrant nor do they need to flatter him. Some translators interpret *spectatrix* as denoting ‘beholder’, others prefer a reference to a judgment, e.g. Seyfarth: “ein unparteiisches Urteil über die Vergangenheit.” This tallies with Amm.’s use of *spectare* in the meaning of ‘to investigate’; see ad 20.2.2 (p. 13). TLL X 2.470.66 notes that *praecipuus* denotes “quod (qui) prae aliis capitur, ponitur, habetur”. As in 21.16.1, at the beginning of the elogium of Constantius, *praecipua* is here used as a synonym of *bona*: the emperor’s ‘virtues’.

assimulavit nonnumquam clementiae speciem, cum esset in acerbitem naturae calore propensior oblitus profecto, quod regenti imperium omnia nimia velut praecipites scopuli sunt evitanda If Gelenius’ *adsimulavit* is correct, *speciem* is a pleonasm: Valentinian did not feign ‘the outward appearance’ of *clementia*, but that virtue itself, with only *speciem* as a result. However, Amm. may, in fact, have written *assumpsit*. Cf. for *clementiae species*

29.1.21 *inde factum est, ut clementiae specie penatibus multi protruderentur insontes praeceps in exsilium acti*, 29.5.24 *salutaris vigor vincit inanem speciem clementiae*. The phrase also occurs in other authors. As is pointed out ad 21.12.20 (p. 179), *clementia* is a vital quality of a good ruler and has no primary ‘emotional’ implications, but rather testifies to a prudent restraint where punishments and other harsh measures are concerned; see Brandt, 1999, 179–189 and Braund, 2009, 30–44. At the end of his *De ordine* Augustine praises Pythagoras for only entrusting the government of the state to a man, *qui et in regendo paene divine scopulos evitaret et, si omnia defecissent, ipse illis fluctibus quasi scopulus fieret* (2.20). This suggests that Amm.’s metaphor is maritime. Not avoiding *nimia*, “extremes” (tr. Hamilton), is the exact opposite of *clementia*. In 27.7.4 we heard that Valentinian, at least in the early years of his reign and in order to soften his reputation for harshness, occasionally tried to suppress his savage impulses: *inter imperitandi exordia, ut asperitatis opinionem molliret, impetus truces retinere nonnumquam in potestate animi nitebatur*. Moreover, the emperor sometimes paid attention to advisers in his entourage and then changed an overhasty and injudicious decision (27.7.6, 28.1.25, 30.5.19; cf. also 27.7.3). On the other hand, in 27.7.8 (p. 177) Amm. had spoken of Valentinian’s *inclementia*, a word which occurs only three times in the *Res Gestae* and which most probably was chosen to contrast Valentinian with Julian, who is called *placabilis imperator et clemens* (21.12.20, p. 179). For Valentinian’s *acerbitas* see 28.6.22 (p. 287) *Valentinianus ad acerbitatem proclivior* and 29.3.2 (p. 120) *adolescente enim acerbitate*. Examples of his hot temper and savage ferocity (cf. 29.4.1 *morum eius et propositi cruenti...documenta*) can be found in 27.7.4–8 (pp. 164–179) and 29.3.1–9 (pp. 118–134). Zos. 4.1.1 refers to Valentinian’s inborn choleric temper which, because of the illness at the beginning of his reign, developed into considerable cruelty, and even to acute madness (νόσου δὲ...ἐνσκηψάσης αὐτῷ καὶ τὸ φύσει πρὸς ὀργὴν τοῦ ἀνδρὸς ἔτοιμον εἰς ὠμότητα μείζονα καὶ παραφορὰν ἄκραν ἀναστησάσης). From Hier. *Chron.* a. 365, quoted ad § 8 below (pp. 174–175), it can be deduced that people were not unanimous in their interpretation of the emperor’s character. Amm. himself clearly sees both the pros and cons of the Pannonian emperor, witness 29.3.9 *Horrescit animus omnia recensere simulque reformidat, ne ex professo quaesisse videatur in vitia principis, alia commodissimi*. In the note ad loc., pp. 132–133, mention is made of the different opinions in modern scholarly literature about Amm.’s portrait of Valentinian. Add to the works cited there Carrasco Serrano, 2006.

nec enim usquam reperitur miti coercitione contentus, sed aliquotiens quaestiones multiplicari iussisse cruentas post interrogationes funestas nonnullis ad

usque discrimina vitae vexatis The verb *repperire* here means “to find to be” (OLD s.v. 5). This is Amm.’s only instance of *coercitio*, aptly chosen by the author because it denotes a “summary punishment” (OLD s.v. 2), which squares with the adj. *mitis*. The phrase *discrimina vitae* means ‘mortal dangers’.

In Book 28 we find several examples of *quaestiones* in the city of Rome during the reign of Valentinian. In Late Antiquity *quaestiones* (in the *Res Gestae*, apart from the present text, no fewer than six times called *cruentae quaestiones*) normally involved torture, as is noted ad 22.3.1 (p. 19), where Dig. 47.10.15.41 is quoted: *quaestionem intellegere debemus tormenta et corporis dolorem ad eruendam veritatem*. Literature on torture is cited ad 22.3.1 (p. 19), 26.10.5 (p. 272), 28.1.19 (p. 46) and 29.1.36 (p. 61). For torture *ad usque discrimina vitae* cf. 28.1.55 *mancipia...ad usque ultimum lacerabat exitium* and 28.1.56 *contigua morti tormenta*. According to 28.1.11 Valentinian “ruled that all those whom the justice of the ancient code and the edicts of deified emperors had made exempt from inquisitions by torture should, if circumstances demanded, be examined with torments” (*omnes, quos iuris prisci iustitia divorumque arbitria quaestionibus exemere cruentis, si postulasset negotium, statuit tormentis affligi*, tr. Rolfe).

The man whom Amm. singles out as the most prominent in carrying out these *quaestiones* in Rome was Maximinus (*PLRE* I, Maximinus 7), *regens quondam Romae vicariam praefecturam* (28.1.5, pp. 14–15), but Maximinus and the emperor kept in close touch with each other, as we learn from 28.1.10–11 (pp. 26–29). In 28.1.20–23 (pp. 46–53) there is another example which proves that Valentinian himself was involved in the trials at Rome. Cf. further for Valentinian’s interference with the trials in Rome, be it indirectly, 28.1.51–56 (pp. 100–112).

et ita erat effusior ad nocendum, ut nullum aliquando damnatorum capitis eriperet morte subscriptionis elogio leni, cum id etiam principes interdum fecere saevissimi Cf. Eusebius *tunc praepositus cubiculi effusior ad nocendum* (14.11.2). Valentinian was, like Eusebius, rather “prone to” (OLD s.v. *effusus* 4b) harm people. “By merciful terms in a warrant which was presented for his subscription” is Rolfe’s appropriate translation for *subscriptionis elogio leni*. *Subscriptiones* were the emperor’s answers to written petitions addressed to him, so called “because they were, at least in principle, written under the petitions themselves” (Millar, 1977, 242). They had the force of law: *Quodcumque igitur imperator per epistulam et subscriptionem statuit...legem esse constat* (Dig. 1.4.1). Millar, 1977, 240–252 gives many examples of such *subscriptiones*. For *elogium* in the sense of “codicillus, quo reo-

rum reatus inscribebantur”, “sententia iudicis” (TLL V 2.405.78–79, 406.35) see 29.3.6 with the note on p. 127. The *elogium* of Valentinian there is not *lene* at all: “*abi*”, *inquit*, “*comes, et muta ei caput, qui sibi mutari provinciam cupit*”. We find the word *elogium* in the same meaning in 14.5.5 (*oblato de more elogio*), in a section in which Constantius II, like Valentinian in the present text, is compared unfavourably with other emperors: *quod* (sc. to give an accused a second chance) *inexorabiles quoque principes factitarunt*. See for Amm.’s use of both the ablative and the dative with *eripere* ad 29.2.5 (p. 82).

atquin potuit exempla multa contueri maiorum et imitari peregrina atque interna humanitatis et pietatis, quas sapientes consanguineas virtutum esse definiunt bonas This is Amm.’s only instance of the particle *atquin*, which fits well in a dialogue, expressing surprise about a person’s conduct or ideas. Here the author again pays homage to a predecessor, namely with a reference to the numerous examples of the virtues *humanitas* and *pietas*, which are analyzed by philosophers. In the preface of his *Ab urbe condita* Livy sings the praises of historiography, which offers the readers a treasure of examples, which show what constitutes good conduct, worthy of imitation, and its opposite. Amm.’s *exempla multa contueri* is a clear allusion to Livy’s *omnis te exempli documenta...intueri* (*praef.* 10). See Pollmann, 2011, 373n. 73. The reference also introduces the adapted version of a few edifying ‘Livian’ stories about the exemplary conduct of some rulers. For the use of *exempla* by Amm. see the literature cited ad 25.3.13 (p. 83) and 29.2.18 (p. 102) to which Zecchini, 2007 and Scardigli, 2010 can be added. Valentinian is the opposite of Julian, who, *ut antiquitatum peritus* (23.5.21, p. 124 and Pellizzari, 2003), was fully qualified to learn lessons from the past and acted accordingly; cf. 24.2.17 (p. 60).

e quibus haec sufficiet poni: Artaxerxes, Persarum ille rex potentissimus, quem Macrochira membri unius longitudo commemoravit, suppliciorum varietates, quas natio semper exercuit cruda, lenitate genuina castigans tiaras ad vicem capitum quibusdam noxiis amputabat et, ne secaret aures more regio pro delictis, ex galeris fila pendentia praecidebat Artaxerxes I, son of Xerxes, was king of Persia from 465 until 425/424 (see for the date of his death Depuydt, 1995 and see in general Briant, 2002, 569–587). His nickname *Macrochir* is also found in *Nep. Reg.* 1.3 and *Iord. Rom.* 64. We find *Longimanus* in e.g. *Hier. Chron.* a. 465 a. Chr. (cf. TLL VII 2.1623.39–42) and *Longibracchius* in *Comput.* a. 452 *chron.* I p. 152, 39. Plutarch’s explanation of the epithet is similar to that of Amm.: Ἀρτοξέρξης ὁ Ξέρξου, ὁ μακρόχειρ προσαγορευθεὶς

διὰ τὸ τὴν ἑτέραν χεῖρα μακροτέραν ἔχειν (*Mor.* 173 d; cf. *Art.* 1.1). Pollux knows this literal interpretation, but offers in addition a metaphoric one: ὅτι τὴν δύνανται ἐπὶ πλεῖστον ἐξέτεινεν (2.151; incidentally, the lexicographer confuses Artaxerxes I and Artaxerxes III).

In his excursion on Persia Amm. had given some examples of the way in which the Persians maintained law and order: *cutes vivis hominibus detrahunt particulatim vel solidas* (23.6.80, pp. 221–222), *leges apud eos impendio formidatae, inter quas diritate exsuperant latae contra ingratos et desertores, et abominandae aliae, per quas ob noxam unius omnis propinquitas perit* (23.6.81, p. 223, where 24.5.3 is cited as an illustration of the practice of collective punishment); see Feraco, 2004, 284–288. Herodotus’ story about Zopyrus (3.154–160) makes clear that in Persia deserters and defectors had their noses and ears cut off when they were caught. Cf. Hdt. 3.118.2 about Intaphrenes’ punishment of a chamberlain and some palace guards who supposedly had lied to him: ἀποτάμνει αὐτῶν τὰ τε ὦτα καὶ τὰς ῥίνας. These cruel forms of punishment inspired Amm. to use the adj. *crudus* to characterize the Persian people: this adj. denotes uncivilized cruelty. Note that the *lenitas genuina* (‘inborn mildness’) of Artaxerxes in § 4 is the exact opposite of Valentinian being in *acerbitatem naturae calore propensior* in § 2. Amm.’s description of Artaxerxes’ deviation from the Persian norm resembles that of Plut. *Mor.* 173 d: (Artaxerxes was the first king to order as a punishment for wrongdoers of the ruling class that) ἀντὶ τοῦ τὸ σῶμα μαστιγοῦσθαι καὶ τὴν κεφαλὴν ἀποτίλλεσθαι μαστιγοῦσθαι μὲν ἀποδυσσάμενων τὰ ἱμάτια, τίλλεσθαι δὲ τὴν τιάραν ἀποθεμένων (“instead of having their bodies scourged and the hair plucked from their heads, they took off their outer garments and these were scourged, and put off their head-dress and this was plucked”, tr. Babbitt). Cf. for this practice Plut. *Mor.* 35 e, 565 a and D. Chr. 37.45 φασὶ Περσῶν τοὺς ὁμοτίμους λαμβάνειν πληγάς, ἀντὶ τοῦ σώματος τὸν κἀνδυν (“we are told that the peers of the realm in Persia are beaten—their cloak instead of their body”, tr. Lamar Crosby).

This is the second time in the *Res Gestae* that the word *tiara* occurs, the headdress of the Persians and other oriental peoples, of which there existed several types (cf. Hinz, 1974 and Hurschmann, 2002), among them that of the Persian king (cf. Tuplin, 2007), his relatives and his dignitaries. The first time was in 18.8.5 about Antoninus, the Roman who had defected to the Persians: *sublata tiara, quam capiti summo ferebat honoris insigne*. According to Hdt. 3.12.4 the Persians had thin skulls because they always wore felt tiaras to protect their heads against the sun (ὅτι ἀσθενέας φορέουσι τὰς κεφαλὰς, αἵτιον τόδε· σκιητροφέουσι ἐξ ἀρχῆς πῖλους τιάρας φορέοντες).

*quae temperantia morum ita tolerabilem eum fecit et verecundum, ut adniten-
tibus cunctis multos et mirabiles actus impleret Graecis scriptoribus celebratos*
Artaxerxes was *tolerabilis*, which expresses either that his reign was bearable
or that he was tolerant, probably the latter, and *verecundus*, “restrained by
scruples of morality” (OLD s.v. 1). The designation *Graecus scriptor* is used
by many Roman authors, but this is Amm.’s only example: such scarcity
indirectly testifies to his “deep familiarity with the Latin literary tradition”
(Fornara, 1992, 438). Among the Greek writers who mention Artaxerxes are
Herodotus (e.g. 6.98.3, where the name Artaxerxes is explained: μέγας ἀρ-
ιος, ‘Great Warrior’), Plutarch, who in *Art.* 1.1 praises Artaxerxes’ gentleness
and magnanimity (τῶν ἐν Πέρσαις βασιλέων πραότητι καὶ μεγαλοψυχίᾳ πρω-
τεύσας; cf. *Mor.* 173 d, already cited) and Diodorus Siculus, who calls the king
a capable ruler with a good reputation among the Persians (τὴν βασιλείαν
ὄλην ἐπιεικῶς διοικῶν μεγάλης ἀποδοχῆς ἐτύγγχανε παρὰ τοῖς Πέρσαις, 11.71.2).
Thucydides (1.137–138) relates that Themistocles took refuge with this king
after he had been ostracised.

*Praenestino praetore, qui bello quodam Samnitico properare iussus ad prae-
sidium venerat segnius, ad crimen diluendum exhibito Papirius Cursor ea tem-
pestate dictator securem per lictorem expediri homineque abiecta purgandi
se fiducia stupefacto visum prope fruticem iussit abscidi* See for *exhibere*
as a juridical term (‘to summon’) ad 21.4.6 (p. 46) and for the inf. *praes.*
pass. expediri and *abscidi* ad 23.1.4 (p. 12). Cf. for *abicerē*, “to abandon” (OLD
s.v. 9) 29.6.16 *abiecta pugnandi fiducia*. The source of this anecdote could
well be Liv. 9.16.17–18: *Praenestinus praetor per timorem segnius ex subsidiis
suos duxerat in primam aciem; quem cum inambulans ante tabernaculum
vocari iussisset, lictorem expedire securem iussit; ad quam vocem exanimi
stante Praenestino: ‘agedum, lictor, excide radicem hanc’ inquit ‘incommodam
ambulantibus’ perfusumque ultimi supplicii metu multa dicta dimisit* (‘Out
of fear a praetor of Praeneste had been rather slow in bringing his men
up from the reserve-ranks to the front of the army. Papirius then, walking
up and down before the praetor’s tent, gave the command to call the man,
and ordered a lictor to bring forward his axe. When the praetor heard this,
he was half dead with fear, but Papirius said: “come on, lictor, cut out this
root; it is inconvenient for those who walk”. He then fined the man and sent
him away, quaking because he had feared the death penalty’). Cf. Plin. *Nat.*
17.81 (*Excide radicem, inquit, istam, Papirius Cursor imperator, ad terrorem
Praenestinatorum praetoris destringi securi iussa*), *Vir. ill.* 31.4 (*Papirius de Sam-
nitibus triumphavit. Idem cum Praenestinum praetorem gravissime increpui-
set: Expedi, inquit, lictor, secures. Et cum eum metu mortis attonitum vidisset,*

incommodam ambulantibus radicem excidi iussit) and D.C. 8.36.24 ("Οτι ὁ αὐτὸς ἐφοδεύων ποτὲ τὰς φυλακὰς καὶ μὴ εὐρών τὸν Πραϊνεστίνων στρατηγὸν ἐν τῇ τάξει ὄντα ἡγανάκτησεν, εἴτα μεταπεμψάμενος αὐτὸν ἐκέλευσε τῷ ῥαβδούχῳ τὸν πέλεκυν προχειρίσασθαι· ἐκπλαγέντος τε αὐτοῦ πρὸς τοῦτο καὶ καταδείσαντος, τῷ τε φόβῳ αὐτοῦ ἠρκέσθη καὶ οὐδὲν ἔτι δεινὸν αὐτὸν ἔδρασεν, ἀλλὰ ῥίζας τινὰς παρὰ τὰ σκηνώματα οὔσας ἐκκόψαι τῷ ῥαβδούχῳ, ἵνα μὴ τοὺς παριόντας λυπῶσι, προσέταξεν, "The same man one day while making the rounds of the garri-son became angry on not finding the general from Praeneste at his post. He summoned him and bade the lictor made ready his axe. When the general thereupon became alarmed and terrified, his fear sufficed for Papirius; he harmed him no further, but merely commanded the lictor to cut off some roots growing beside the tents, so that they should not injure passers-by", tr. Cary).

L. Papirius Cursor has been referred to before (28.3.9, p. 162). He was a successful general in the war against the Samnites. Amm.'s *bello quodam Samnitico* refers to the Second Samnite War (327–321, 316–304). Cursor was five times consul, for the first time in 326 (Broughton, 1951, 146), and twice dictator, in 325 and 310 (Broughton, 1951, 147 and 162). According to Amm. Cursor was *ea tempestate dictator*, which at first sight does not seem to tally with the chronology furnished by Livy, who inserts the anecdote after his narrative of the events of 319, the year in which Cursor was *consul* for the third time (9.15.11). However, the anecdote forms part of a kind of *epilogium*, a "laus Cursoris" (Oakley ad loc.), so that Cursor's encounter with the praetor from Praeneste (if historical at all) may have occurred earlier. Cf. in general for Cursor Münzer, 1949; Müller, 2000 (who is rather sceptical about the historicity of the successes in 320–319 which Cursor achieved according to Livy) and Briquel, 2009.

In Cursor's time Praeneste (Palestrina), a town in Latium some 40 km east of Rome, was a *civitas foederata* (Salmon, 1969, 50; Morciano, 2001). The highest administrative magistrates of this and other country towns were called *praetores*, *praetores duoviri* or *praetores quattuorviri* (Ruoff-Väänänen, 1977). Cf. e.g. Liv. 23.19.17–18 and *CIL* 14.2890, 2897, 2902, 2906, 2994 and 2999 (if indeed, as seems likely, the editors of the *CIL* are right in assuming that *pr.* in these inscriptions from Praeneste stands for *praetor*).

hocque ioci genere castigatum cum eum absolveret, non ideo contemptus bella diuturna patrum superavit et gravia solus ad resistendum aptus Alexandro Magno, si calcasset Italiam, aestimatus Petschenig, 1892, 687 proposes to read *eum absolvit*, at instead of *cum eum absolveret*. OLD s.v. *supero* 5 offers a meaning which suits the text: "to deal successfully with". If Gronovius'

patrum is correct, *bella diuturna patrum* probably means the ‘long wars he had inherited from previous generations.’ Amm.’s source of his remark about Alexander the Great could well be Livy again, who in 9.16.19 brings the story of Papirius and the praetor from Praeneste to a close with the following words: *haud dubie illa aetate, qua nulla virtutum feracior fuit, nemo unus erat vir, quo magis innixa res Romana staret. quin eum parem destinant animis magno Alexandro ducem, si arma Asia perdomita in Europam vertisset* (“No age has been more prolific in great and noble characters than the one in which he lived, and even in that age there was no one whose single arm did more to sustain the commonwealth. Had Alexander the Great, after subjugating Asia, turned his attention to Europe, there are many who maintain that he would have met his match in Papirius”, tr. Roberts). In the *Res Gestae* Alexander is mentioned eighteen times; see ad 21.8.3 (p. 112), ad 24.4.27 (p. 142) and Zecchini, 2007, 211–214. The verb *calcare* here means “to set foot on” (OLD s.v. 4).

haec forsitan Valentinianus ignorans minimeque reputans afflicti solacium status semper esse lenitudinem principum poenas per ignes augebat et gladios 8.6
See for the (imperial) virtue of *lenitudo* and its synonym *lenitas* Brandt, 1999, 189–193. In this respect Valentinian is the total opposite of emperors like Antoninus Pius (HA MA 8.1), Marcus Aurelius (Aur. Vict. *Caes.* 16.9) and of course Julian. Some examples of Julian’s *lenitudo* are given ad 25.4.9, pp. 132–133. Even Constantius sometimes changed his mind *in lenitudinem* (15.2.6) and Tac. *Ann.* 13.11.2 mentions Nero’s *lenitas* versus Plautius Lateranus. Cf. further 21.16.10 about Gallienus: *mortem factura crimina aliquotiens lenius vindicabat*. The case of Orfitus can be mentioned in favour of Valentinian: the emperor recalled this former prefect of Rome from exile and restored his patrimony (27.7.3). On the other hand, Valentinian was deaf to the reasonable requests of people who, when on trial, challenged a judge because of his personal enmity (27.7.8).

Angliviel de la Beaumelle n. 323 points to the fact that, as far as we can judge from the Codes, the number of crimes in Valentinian’s criminal legislation for which he introduced the death penalty is relatively small (“seulement deux nouveaux cas de peine de mort”). He ordered the stake for those people who cut off their fingers to avoid military service (*Cod. Theod.* 7.13.5), and the sword for those *scribae* who helped people to obtain “step bread by usurpation” (*usurpatum gradilem* sc. panem, *Cod. Theod.* 14.17.6, tr. Pharr). And indeed, Valentinian compares favourably with e.g. Constantine, whose “reign produced several dozen laws for which the sanction was death; and the great majority of these broke new ground” (MacMullen, 1986, 157, with

references in n. 32). All the same, the judicial practice during Valentinian's reign does show many forms of capital punishment, by the stake, by the sword and otherwise. We read in 27.7.5 about the burning on the stake of Diocles by order of the emperor (*flammis iussit exuri*) and the execution of others (*inter alias humilium neces*). More deaths by fire are reported in 28.1.28 (*carnifex...vividus exustus est*), 28.1.29 (*flammis Campensem haruspicem dedit* sc. Maximinus) and *Chron. Pasch.* a. 369 (τὸν πραιπόσιτον τοῦ παλατίου αὐτοῦ, Ῥοδανὸν ὀνόματι...ἐποίησε ζωοκαυστὸν; cf. *PLRE I*, Rhodanus for more sources concerning this case). Other people, who were condemned to death and executed, include Terentius (27.3.2), Diodorus (27.7.5), three *apparitores* of the *vicarius Italiae* (ibid.), Marinus (28.1.14), Cethegus (28.1.16), some *humiles* (ibid.), Amantius (28.1.21), Lollianus (28.1.26), Claritas and Flaviana (28.1.28), Paphius and Cornelius (28.1.29), a *procurator monetæ* (ibid.), Sericus and Asbolius—because Maximinus had promised not to kill anyone *igni vel ferro*, they were slain by means of a whip with balls made of lead (ibid.). To these can be added Rufina (28.1.45), many others (*alios deinde complures*, ibid.), Abienus (28.1.50), Aginatus (28.1.56) and Anepsia (ibid.).

quod ultimum in adversis rebus remedium pietas repperit animorum, ut Isocratis memorat pulchritudo: cuius vox est perpetua docentis ignosci debere interdum armis superato rectori iustum quid sit ignoranti Instances of the phrase *ultimum remedium* are remarkably rare in extant Roman literature: apart from the present text it occurs only in Lact. *epit.* 62.1 and Ambr. *fug. saec.* 3.15. Amm. probably wants to state that true *pietas* uses such cruel measures only as a last resort. Isocrates (436–338 B.C.), listed among the ten most famous Attic orators (for which see ad 30.4.5, pp. 73–74), is only mentioned once in the *Res Gestae*. See for him e.g. Weißenberger, 1998a and Cawkwell, 2012, 747–748. Amm. paraphrases §185 of the *Panathenaicus*: θαυμάζω δ' εἴ τινες τὰς μάχας καὶ τὰς νίκας τὰς παρὰ τὸ δίκαιον γιγνομένας μὴ νομίζουσιν αἰσχίους εἶναι καὶ πλειόνων ὀνειδῶν μεστὰς ἢ τὰς ἡττας τὰς ἀνὲς κακίας συμβαινούσας, καὶ τοῦτ' εἰδότες ὅτι μεγάλαι δυνάμεις πονηραὶ δὲ πολλάκις γίγνονται κρείττους ἀνδρῶν σπουδαίων καὶ κινδυνεύειν ὑπὲρ τῆς πατρίδος αἰρουμένων (“I marvel that there are some who do not regard battles and victories won contrary to justice as more disgraceful and fraught with greater reproaches than defeats which are met without dishonor—and that too, knowing that great, but evil, powers prove often stronger than good men who choose to risk their lives for their country”, tr. Norlin, adapted). Wagner rightly regards *Isocratis pulchritudo* as comparable to *amplitudo Platonis* in 30.4.3. Amm. probably wants to stress the aesthetic quality of Isocrates' rhetoric, whilst at the same time correcting his omission in the list of great Athenian *oratores* above in chap-

ter 4. Cf. for the beauty of an *oratio* Cic. *Orat.* 227 *pulchre et oratorie dicere*, Tac. *Dial.* 20.3 *pulchritudinem orationis*.

The editors do not agree about the Latin version of Isocrates' remark. Both Valesius and Wagner print V's *quam* after *rectori*. Sabbah follows suit, and so does Viansino. Clark, on the contrary, leaves out *quam*; Seyfarth follows in his footsteps, first in his bilingual edition and then in the Teubneriana. This prompted a somewhat sarcastic comment from Češka, 1995, 13–15, who pointed out that the omission of *quam* and various other solutions imply the assumption that Amm. did not understand Isocrates' Greek. There is, in fact, no problem at all, when *quam* is interpreted as the equivalent of *potius quam*, 'rather than'. See for this use of *quam* above ad 30.4.21 (p. 97).

unde motum existimo Tullium praeclare pronuntiasse, cum defenderet Oppium: "etenim multum posse ad salutem alterius honori multis, parum potuisse ad exitium probro nemini umquam fuit" See ad 22.4.10 (p. 49) for the correct interpretation of *unde motum*: "inspired by these words". The preposition *ad* here means "for the purpose of" (OLD s.v. 44), in the first case to further safety, in the second to prevent disaster. As is noted ad 27.11.4 (p. 263), Amm. normally uses the name *Tullius* or the adj. *Tullianus* when he quotes from or refers to Cicero. The only cases in which he uses *Cicero* are 27.11.4 and 30.4.7. See for Amm. and Cicero, whom our author greatly admired, ad 21.16.13 (p. 263), 26.1.2 (p. 15) and 28.1.40 (p. 83) with the bibliographical references cited there.

Cicero defended Oppius in 69 against charges of bribery and mutiny levelled by M. Aurelius Cotta (Quint. *Inst.* 5.13.17, 20; D.C. 36.40.3). Oppius, who was quaestor in 74 (Broughton, 1952, 103), had gone in 73 to Bithynia, where he served under Cotta (Broughton, 1952, 111–112). The two fell out with each other and Oppius is even reported to have drawn his sword against Cotta (Quint. *Inst.* 5.10.69). The *pro Oppio* is one of Cicero's fragmentary speeches; see Crawford, 1994², 23–32.

Aviditas plus habendi sine honesti pravique differentia et indagandi quaestus varios per alienae vitae naufragia exundavit in hoc principe flagrantius adolescens As in 30.5.5–7 (pp. 110–116), Amm. interprets Valentinian's fiscal policy as inspired by pure greed (cf. 30.5.5 *propositum principis quaerendae undique pecuniae vias absque iustorum iniustorumque discretione scrutantis*). This amazing judgment (which we also find in *epit.* 45.5 *Valentinianus...infectus vitiis maximeque avaritiae*) is neither fair nor credible. According to Amm. Valentinian pitilessly increased the revenues of the state (see also the note ad 30.9.1, pp. 185–186). That seems plausible, although, as

Tomlin, 1973, 386 remarks, “we have no statistics of the incidence of taxation during Valentinian’s reign, so as to assess this judgement in any but general terms” (1973, 386). The emperor had good reasons for this policy, as the analogy with his predecessor Aurelian in the next lemma shows. However, a ruthless fiscal and economical policy is one thing, greed and the pursuit of personal profit is another. There is no concrete evidence that Valentinian was guilty of the latter, either in Amm. or anywhere else. Amm.’s *exempla* in the present section (about Themistocles) and the next (about the Roman *plebs*) are therefore completely beside the point (“two *exempla* of doubtful relevance”, Tomlin, 1973, 393). Cf. Drexler, 1974, 72: “Dies hier (sc. 30.5.5–7) wie auch anderswo auf das Laster der avaritia zurückzuführen, ist so töricht, daß man es vielmehr böswillig nennen muß”.

See for *aviditas* and its synonyms in Amm. Brandt, 1999, 402–412 (“anstelle von *avaritia* erscheint regelmäßig *aviditas*”, 403).

As the lemma in the OLD shows, *naufragium* is often used in a transferred sense, denoting ‘disaster’. This is Amm.’s only example of such a use. The verb *exundare* denotes the excesses of Valentinian’s financial demands in a weird combination with *flagrantius*. See also the note on *flagrante hieme* (25.10.4, pp. 317–318).

quam quidam praetendentes imperatorem Aurelianum purgare temptabant id affirmando, quod, ut ille post Gallienum et lamentabiles rei publicae casus exinanito aerario torrentis ritu ferebatur in divites, ita hic quoque post procinctus Parthici clades magnitudine indigens impensarum, ut militi supplementa suppeterent et stipendium, crudelitati cupiditatem opes nimias congerendi miscebat It is perhaps worth noting that in the sentence beginning with *quam quidam* the pron. rel. *quam* refers to *Aviditas* and is the object of *purgare*, to ‘justify’, whilst *imperatorem Aurelianum* is the direct object of *praetendentes*. See on this verb, which means ‘to put forward’ (often concerning dubious statements) ad 23.5.11 (pp. 104–105). Amm. does not say who those *quidam* were. Perhaps, as Tomlin, 1973, 393 suggests, “the numerous contemporary historians, to whom Symmachus makes passing allusion in his panegyric of Valentinian” (*Or. 2.29 inter tot scriptores rerum tuarum*).

Valentinian’s permanent quest for money is justified by Aurelian’s example. The emperor Aurelian is mentioned in the *Res Gestae*, apart from the present text, in 22.16.15 (pp. 302–303), 26.6.7 and 31.5.17. To the literature cited ad 26.6.7 (p. 142) can be added Saunders, 1991 and Jacob, 2004. A comparison between Valentinian and Aurelian is also found in Hier. *Chron.* a. 365 (cf. Iord. *Rom.* 307): *Valentinianus egregius alias imperator et Aureliano moribus similis, nisi quod severitatem eius nimiam et parcitatem quidam*

crudelitatem et avaritiam interpretabantur ('Valentinian was otherwise an excellent emperor and was like Aurelian, except that some people interpreted his excessive severity and parsimony as cruelty and avarice'; *eius* is ambiguous, as Schwartz, 1980, 225 observed, and it is not easy to decide whether it refers to Valentinian or to Aurelian). It has been suggested that Amm. and Jerome had a common source; see for discussion e.g. Ratti, 1997, 479–482; Raimondi, 2001, 193–210 and Burgess, 2005, esp. 177–178. According to Paschoud, 1992, 82 Amm. adapted his pro-Valentinian source *in malam partem*, but see Angliviel de la Beaumelle n. 326: "Elle (sc. la comparaison avec Aurélien) a, pour le prince pannonien, une signification plutôt flatteuse, vu le caractère très positif de l'image d'Aurélien, y compris dans les *Res gestae*; cf. 31, 5, 17".

Gallienus is mentioned in the *Res Gestae* in 14.1.9, 18.6.3, 21.16.9 and 23.5.3. Ancient literary tradition is almost unanimously hostile to this emperor, as is noted ad 21.16.9 (p. 259; add to the literature cited there Geiger, 2013). The view that Gallienus brought ruin on the empire (HA *Gall.* 1.1, 17.9; *Cl.* 7.4) and that his successors picked up the pieces left by him and his father is expressed in HA A 41.7: *respirare certe post infelicitatem Valeriani, post Gallieni mala imperante Claudio coeperat nostra res publica; at eadem reddita fuerat Aureliano toto penitus orbe vincente* ("For after the misfortune of Valerian and the evil ways of Gallienus our commonwealth did indeed under Claudius' rule begin to breathe once more; but Aurelian it was who won victories throughout the entire world and restored it again to its former state", tr. Magie).

For the contention that the expensive Persian campaign of his predecessors was Valentinian's excuse to raise taxes cf. Zos. 4.16.1: ἐποιεῖτο δὲ τοῦτου πρόφασιν τῆς στρατιωτικῆς δαπάνης τὸ πλῆθος, ὅπερ ἡνάγκασεν αὐτὸν ἐκδαπανῆσαι τὰ τῷ δημοσίῳ φυλαττόμενα χρήματα ('As an excuse he alleged that the enormous military expenditure had forced him to exhaust the reserves of the treasury'). See for Valentinian's fiscal policy above, ad 30.5.6 (pp. 112–115). *Ad torrentis ritu*: the comparison with the rush of a mountain stream occurs throughout Latin literature. Perhaps the most famous case is Augustine's quotation from Sallust in *civ.* 2.18: *ex quo tempore, ut ait, maiorum mores non paulatim ut antea, sed torrentis modo praecipitati*.

dissimulans scire, quod sunt aliqua, quae fieri non oportet, etiam si licet, Themistoclis illius vere dissimilis, qui, cum post pugnam agminaque deleta Persarum licenter obambulans armillas aureas vidisset humi proiectas et torquem, "tolle" inquit "haec" ad comitem quendam prope astantem versus "quia Themistocles non es" quodlibet spernens in duce magnanimo lucrum Cf.

est enim aliquid quod non oporteat, etiamsi licet; quicquid vero non licet, certe non oportet (Cic. *Balb.* 8) and 29.2.10 about Heliodorus *cui nihil licere debuerat, quia omnia sibi licere etiam iniusta existimabat*. Themistocles is also mentioned by Amm. in 22.8.4. According to Thuc. 1.138.3 φύσεως μὲν δυνάμει, μελέτης δὲ βραχύτητι κράτιστος δὴ οὗτος αὐτοσχεδιάζειν τὰ δέοντα ἐγένετο (“by natural power of mind and with the least preparation he was of all men the best able to extemporise the right thing to be done”, tr. Jowett), but “die moderne Forschung ist in ihrem Urteil nicht einheitlich” (Kinzl, 2002, 307). We find the anecdote related here in Plut. *Them.* 18.2 (cf. *Mor.* 808f.): Τῶν δὲ νεκρῶν τοὺς ἐκπεσόντας ἐπισκοπῶν παρὰ τὴν θάλατταν, ὡς εἶδε περικειμένους ψέλια χρυσᾶ καὶ στρεπτούς, αὐτὸς μὲν παρήλθε, τῷ δ’ ἐπομένῳ φίλῳ δείξας εἶπεν· ‘ἀνελοῦ σαυτῷ· σὺ γὰρ οὐκ εἶ Θεμιστοκλῆς’ (“Surveying once the dead bodies of the Barbarians which had been cast up along the sea, he saw that they were decked with golden bracelets and collars, and yet passed on by them himself, while to a friend who followed he pointed them out and said: “Help thyself, thou art not Themistocles””, tr. Perrin). In the version of Ael. *VH* 13.40 Themistocles is accompanied by a slave: Στρεπτῷ κειμένῳ ἐπὶ τῆς γῆς χρυσοῦ Περσικοῦ ὁ Θεμιστοκλῆς παρεστὼς τῷ παιδί εἶπεν ‘οὐκ ἀναιρήσεις, ὦ παῖ, τὸ εὖρημα τόδε;’ δείξας τὸν στρεπτόν· ‘οὐ γὰρ σὺ Θεμιστοκλῆς εἶ δῆπου’ (“Themistocles stopped near a necklace of Persian gold that lay on the ground. He pointed to it and said to his slave: ‘Boy, won’t you pick up this find? After all, you are not Themistocles’”, tr. Wilson). The words *post pugnam agminaque deleta Persarum* refer to the aftermath of the battle of Salamis in 480 B.C.

- 8.9 *huius exempla continentiae similia plurima in Romanis exuberant ducibus* For *duces* as way of describing exemplary heroes of the past, especially of the Roman Republic, see e.g. 31.5.12 *Teutones...per duces amplissimos superati*, V. Max. 5.6.6, Hier. *epist.* 60.5 and Claud. *IV Cons. Hon.* 399; cf. Eigler, 2003, 12–13. Cicero offers this definition of *continentia*: *est per quam cupiditas consilii gubernatione regitur* (*Inv.* 2.164).

quibus omissis, quoniam non sunt perfectae virtutis indicia—nec enim aliena non rapere laudis est—, unum ex multis constans innocentiae vulgi veteris specimen ponam. cum proscriptorum locupletes domus diripiendas Romanae plebei Marius dedisset et Cinna, ita vulgi rudes animi, sed humana soliti respectare alienis laboribus pepercerunt, ut nullus egens repperiretur aut infirmus, qui de civili luctu fructum contrectare pateretur sibi concessum See for *laudis est* Szantyr 62 on the ‘genitivus proprietatis’, best known from the phrase *moris est*. Not stealing what belongs to someone else has no merit.

V. Max. 4.3.1–10 has a catalogue of incorruptible Romans during the Republic (Scipio, Cato, Coriolanus, Curius, Fabricius Luscinus, Tubero Catus, Aemilius Paulus, Fabius Gurgus, Numerius Fabius, Ogulnius, Calpurnius Piso). Amm. does not regard this as necessary. Instead he borrows the example of the incorruptibility of the Roman people in the time of Marius and Cinna from V. Max. 4.3.14: *In illa quoque procella, quam C. Marius et L. Cinna rei publicae inflixerant, abstinencia populi Romani mirifica conspecta est: nam cum a se proscriptorum penates vulgi manibus diripiendos obiecissent, inveni-ri nemo potuit, qui civili luctu praedam peteret: unus enim quisque se ab his perinde ac si a sacris aedibus abstinuit. quae quidem tam misericors continentia plebis tacitum crudelium victorum convicium fuit* (“Also in the tempest which C. Marius and L. Cinna had brought down upon the commonwealth the abstinence of the Roman people came marvellously to view. For although they had offered the houses of those they proscribed for plunder at the hands of the common people, nobody could be found to seek booty from the mourning of citizens. Everyone kept away from them as though from sacred edifices. Such compassionate continence of the public was a silent reproach to cruel victors”, tr. Shackleton Bailey). For the way in which Amm. uses Valerius Maximus see Rohrbacher, 2005.

L. Cornelius Cinna, initially a follower of Sulla, was one of the consuls of 87. He was expelled from Rome by his colleague Cn. Octavius. With an armed force Cinna returned, joined by Marius, and occupied Rome, whereupon a reign of terror followed (Broughton, 1952, 45–46). See for the *Cinnanum tempus* (the term is found in Cic. *Dom.* 83 and *Red. Sen.* 9) e.g. Bulst, 1964; Seager, 1994 and Lovano, 2002. Marius has been mentioned before in the *Res Gestae*, in 21.14.5 (p. 224); see for his place in the literature of Late Antiquity Felmy, 1999, 231–264.

Amm. summarizes these reports in an elegant phrase. He offers only one example, which in fact consists of many examples (*ex multis constans*): the exemplary conduct of the common people manifested itself in all individual cases, none (*nullus*) excluded. See for *constare ex* meaning ‘to consist of’ TLL IV 527.51–528.3. Common people may have been uneducated (*rudes*), but they were in the habit of respecting human standards (*humana*) and did not touch what belonged to other people (*alienis laboribus*); *labor* here denotes “a result or product of work” (OLD s.v. 4). Cf. also 19.10.3 *vulgus ad clementiam suapte natura proclive*. As to *plebei*: this dative is Amm.’s only instance of the former fifth declension noun *plebes*, which was gradually replaced by the third declension noun *plebs*. See Leumann 447.

8.10 *Invidia praeter haec ante dictus medullitus urebatur et sciens pleraque vitiorum imitari solere virtutes memorabat assidue livorem severitatis rectae potestatis esse individuum sociam* Brandt, 1999, 265 n. 480 (cf. 268) wonders “gegen wen sich dieser Affekt (*invidia*) richtet” and, rightly it would seem, suggests that the *bene vestiti* etc. of what follows are meant. Cf. Zos. 4.16.2 τοῖς...ἐκ τοῦ ζῆν ἀμέμπτως ἔχουσι δόξαν ἐφθόνει (‘Valentinian envied those people who reputedly led an irreproachable life’). See for Amm.’s predilection for *ante dictus* ad 27.6.3 (p. 135). OLD s.v. *uro* 6 offers instances of this verb denoting a burning passion. The addition *medullitus* (OLD s.v. 2: “in the depths of the heart and mind”) emphasizes that *invidia* was a characteristic of Valentinian’s nature.

Amm. is not the first author to mention the ethical problem that vices sometimes bear a certain likeness to virtues. Wagner quotes Juv. 14.109 *fallit enim vitium specie virtutis et umbra*; see also Courtney ad loc. Some other examples: Cic. *Part.* 81 *ne fallant ea nos vitia, quae virtutem videntur imitari* (a list of examples has been added by the author), Sen. *Cl.* 1.3.1 *vitia quaedam virtutes imitantia*; August. *c. Iul.* 4.748 *pertinacia quae constantiam videtur imitari*.

Henri de Valois deleted *livorem* as the addition of someone, “vt cum praecedenti periodo haec cohaereret” and also printed “severitatem”. This certainly makes more sense, as does the conjecture of Petschenig, 1892, 687: *liberam severitatem* instead of *livorem*, but neither version is fully convincing.

bene vestitos oderat et eruditos et opulentos et nobiles et fortibus detrahebat, ut solus videretur bonis artibus eminere, quo vitio exarsisse principem legimus Hadrianum Cf. for *bonis artibus* Ov. *Ars* 1.459 *disce bonas artes, moneo, Romana iuventus*; Hollis ad loc. interprets the term as denoting a good education in literature, mathematics, music etc., in short: that was the proper preparation for becoming a member of the elite. The chapter which most prominently shows the hatred of the Pannonian emperor and his Pannonian cronies Maximinus and Leo for “the well-dressed, the educated, the rich, and the highly born” (Hamilton) is 28.1, devoted to a series of criminal proceedings in the city of Rome. In it several aristocrats, male and female, are listed among the victims. As is noted ad 28.1.10 (p. 25), *nobilis* and *nobilitas* occur in the said chapter six and two times, respectively; the meaning of these terms in Late Antiquity is also discussed there.

The emperor Hadrian (117–138) appears five more times in the *Res Gestae* (18.6.18, 22.12.8, 22.15.1, 22.16.2, 25.4.17; cf. Gilliam, 1972, 129–130; Stertz, 1980, 504). His self-conceit as regards *artes* is chided in HA *H* 15.10 *et quamvis*

esset oratione et versu promptissimus et in omnibus artibus peritissimus, tamen professores omnium artium semper ut doctior risit contempsit obtrivit (“And although he was very deft at prose and at verse and very accomplished in all the arts, yet he used to subject the teachers of these arts, as though more learned than they, to ridicule, scorn, and humiliation”, tr. Magie). D.C. 69.3 refers to Hadrian’s jealousy of people who excelled in anything: ὁ δὲ δὴ φθόνος αὐτοῦ δεινότατος ἐς πάντας τοὺς τιμὴν προέχοντας ὧν πολλοὺς μὲν καθεῖλε συχνοὺς δὲ καὶ ἀπώλεσε. βουλόμενος γὰρ πάντων ἐν πᾶσι περιεῖναι ἐμίσει τοὺς ἐν τιμῇ ὑπεραίροντας (“His jealousy of all who excelled in any respect was most terrible and caused the downfall of many, besides utterly destroying several. For, inasmuch as he wished to surpass everybody in everything, he hated those who attained eminence in any direction”, tr. Cary). Cf. also *epit.* 45.5–6 cited ad 30.9.4 (p. 191).

Arguebat hic idem princeps timidos saepius maculosos tales appellans et sordidos et infra sortem humilem amendandos, ad pavores irritos aliquotiens abiectius pallens et, quod nusquam erat, ima mente formidans TLL VIII 30.39–58 registers a number of passages in which *maculosus* is used “translate” as the equivalent of adjectives like *vitiosus*, *turpis*, *famosus*. As to the punishment of their cowardice, it seems likely that the conduct of soldiers is concerned and that their degradation is comparable to Julian’s measures in 24.5.10 (p. 164). Valentinian’s disparaging words about angst-ridden men contrast sharply with his own terrified reactions to non-existing threats, when he turned pale in a despicable way. One wonders whether the description of such conduct is an exaggerated caricature of his being *attonitus cogitationibus anxiiis* (30.3.2, p. 49). The *magister officiorum* Remigius (see for him the next lemma) exploited such reactions by mentioning barbarian attacks, which resulted in Valentinian becoming as *serenus* and *clemens* as the emperor Antoninus had been. As is noted ad 20.6.9 (p. 150) the adverb *aliquotiens* occurs nearly ninety times in the *Res Gestae*, sufficient to relieve the 150 instances of *saep(issim)e* and *saepius*.

8.11

quo intellecto magister officiorum Remigius, cum eum ex incidentibus ira fervere sentiret, fieri motus quosdam barbaricos inter alia subsebat hocque ille audito, quia timore mox frangebatur, ut Antoninus Pius erat serenus et clemens This is the third time that the *magister officiorum* Remigius (PLRE I, Remigius) is mentioned in the present book, 30.2.10 and 11 being the other two times. See for the man ad 27.9.2 (pp. 206–207) and 28.6.8 (p. 268), for his function ad 20.2.2 (p. 13). The statement that Valentinian was “overcome...with fear” (Rolfe) when he heard of *motus quosdam barbaricos* is

8.12

a bit surprising in view of *fortitudine* in 30.7.10, *usu...castrensis negotii diuturno firmatus* in 30.7.11, *aestu Martii pulveris induratus* in 30.9.4 and the emperor's way of acting in 27.10.10–11. According to Blockley, 1975, 43 “the story is apocryphal and a perversion of the Emperor's willingness on occasions to recognize his hasty temper and to allow his angry impulses to be deflected by good advice”. Brandt, 1999, 44 points to the preceding section and sees Amm.'s statement here as a convincing illustration of how Valentinian's psyche worked. Cf. also Pollmann, 2011, 375–376.

The substantivized neuter plural of the part. praes. of the verb *incidere* (not to be confused with *incidere*) occurs several times in the *Res Gestae*; see ad 21.2.3 (p. 28) and 28.4.6 (p. 178). In the present text *ex incidentibus* can be rendered with for instance “à la suite de tel ou tel incident” (Sabbah). See for the verb *subserere*, ‘to add’, ad 14.11.3 (p. 115) and 25.7.10 (p. 239). Antoninus Pius (138–161) appears, apart from the present text, only in 16.1.4, where Julian is called *clemens ut Antoninus*. Cf. Gilliam, 1972, 131 and Stertz, 1980, 501–504.

- 8.13 *iudices numquam consulto malignos elegit, sed si semel promotos agere didicisset immaniter, Lycurgos invenisse praedicabat et Cassios, columina iustitiae prisca, scribensque hortabatur assidue, ut noxas vel leves acerbius vindicarent* Here we reach the nadir of Valentinian's behaviour: praising judges who did their job *immaniter*: like barbarians; see for *immaniter* above ad 30.3.3 (p. 52). Cf. for the Athenian statesman Lycurgus and for L. Cassius Longinus Ravilla ad 22.9.9, where it is said of Julian that he was *iudicibus Cassiis tristior et Lycurgis* (p. 167). Cf. further 26.10.10 *Catonianae vel Cassianae sententiae* (p. 284). Judges did not always act as the emperor wished. In 28.1.23 (pp. 52–53), for example, Amm. relates that Valentinian was displeased by the fact that the judges, in this case the senate, had imposed a less severe penalty on an accused man than he himself had proposed.

- 8.14 *nec afflictis, si fors ingruisset inferior, erat ullum in principis benignitate perfugium* See ad 26.6.11 (p. 148) for Amm.'s use of *fors* as Agens, usually, but not exclusively, in formulaic phrases. In the present text it threatens to attack violently. The term *fors inferior* may have something to do with augury: a low flying bird bodes ill; see Gel. 7.6.10 and Wissowa, 1912³, 530, n. 3. In that case Petschenig's *infestior* (1892, 687) is not necessary. The verb *ingruere* denotes threatening action.

finis enim iusti imperii, ut sapientes docent, utilitas oboedientium aestimatur et salus This is the third time that Amm. expresses this thought. Cf. 25.3.18

(pp. 95–96) *iusti esse finem imperii oboedientium commodum et salutem* and 29.2.18 (p. 101) *nihil aliud esse imperium, ut sapientes definiunt, nisi curam salutis alienae*.

CHAPTER 9

Introduction

This chapter deals with Valentinian's good qualities. It is far shorter than the chapter on the emperor's *vitia*, which contains one glaring contradiction with this chapter. Whereas in 30.8.8 Ammianus had criticized Valentinian's ruthless greed for money (*aviditas plus habendi*), here we read that Valentinian was considerate (*parcus*) in his dealings with the provincials and even lightened the burden of taxation. Obviously, it was the fact that the elogium had to treat both the positive and the negative sides of the person in question, which led to these contradictory statements.

Ammianus discusses successively Valentinian's military qualities, paying special attention to his efforts to strengthen the Rhine and the Danube frontiers. As a disciplinarian his record was uneven. His severity towards the lower ranks contrasted with his lenience when he dealt with people in high positions, which in some cases led to unrest in the provinces (§ 1).

Valentinian's personal life was blameless. He avoided nepotism and curbed corrupt practices in obtaining high posts in the administration. He was a seasoned soldier, cautious in matters of war and peace, showed sound judgement, and kept a close watch over military promotions (§ 2–4). Surprisingly, we learn that this typically military man was a reasonable calligrapher and painter and an adequate speaker; he was also a man of taste with regard to the pleasures of the table (§ 4).

The most notable praise is awarded to Valentinian's tolerance. He avoided the excessive involvement of both Constantius and Julian in religious matters and stayed neutral both regarding the relationship between Christians and pagans, and between the religious divisions within the Christian church. In this respect he is without doubt Ammianus' favourite (§ 5).

The chapter ends with a short description of the emperor's *forma*. The picture is two-edged like the rest of the elogium. Valentinian's physique radiated health and dignity, but his eyes betrayed his harsh nature (§ 6).

Consentaneum est venire post haec ad eius actus sequendos recte sentientibus et probandos: si reliqua temperasset, vixerat ut Traianus et Marcus For a similar authorial statement cf. 31.2.12 *quoniam huc res prolapsa est, consentaneum est demonstrare*. The *si*-clause is problematical, because the meaning

of *temperare* is unclear. Gelenius and Heraeus, who conjectured *cum quibus si* and *ad quos si* respectively, thought that *temperare* here meant “to modify, blend” (OLD s.v. 7). Clark, obviously dissatisfied with their conjectures, postulated a lacuna after *probandos*. Since Valentinian’s most notorious shortcoming was his lack of self-control, it seems more natural to start from the meaning “to exercise restraint” (OLD s.v. 1). A simple remedy would be to read *si <sibi> reliqua temperasset* (‘if he had otherwise exercised restraint’) with *reliqua* as an acc. respectus. For reflexive *temperare* cf. Cic. *Fam.* 10.7.2 *usque mihi temperavi, dum* (‘I made myself wait until’, tr. Shackleton Bailey); Verg. *G.* 1.360 *iam sibi tum a curvis male temperat unda carinis* (‘then too the waves do not spare the curved keels’, tr. Thomas) with Mynors ad loc.; Plin. *Ep.* 9.5.3 *temperare mihi non possum, quominus laudem*. For the acc. respectus *reliqua* see ad 28.4.3 *lectus alia et ad populi favorem adipiscendum aptissimus* (p. 174). Szantyr 37–38 mentions as instances *alia, cetera, cuncta, omnia* and *reliqua*. De Jonge ad 14.3.2 (p. 80 sprachlich) gives a list of indicatives in the apodosis of an irrealis; see also ad 22.10.4 (p. 190). The whole phrase is reminiscent of the characterization of Julian as Caesar: *Primum igitur factuque difficile temperantiam ipse sibi indixit* (16.5.1).

The emperor Trajan (98–117) is mentioned fifteen times in the *Res Gestae*; see ad 23.5.17 (pp. 115–116). Amm. usually refers to him only in passing, but a few times he honours him for his conquests and military skills; 14.8.13, 16.1.4, 23.5.17. Marcus Aurelius is referred to twelve times; see ad 29.6.1 (p. 223). This is the only time that Trajan and Marcus Aurelius are mentioned together in one and the same breath. If Valentinian had conducted himself in a better way he might have been compared, like Julian (16.1.4), to Trajan and Marcus Aurelius; however, his vices blotted out his virtues. Julian admired Marcus Aurelius as an exemplary emperor, witness his *De Caesaribus* (333 c–334 d, 335 c); in the same work Trajan is considered comparable to Alexander (333 a–b, 335 d), presumably because of his eastern conquests. For a comparison between Valentinian and Marcus Aurelius as regards their policy towards barbarian peoples see Scardigli, 2009. Remarkably, under Theodoric the times of both Trajan and Valentinian served as a model for the Gothic king: (Theodoricus) *ut etiam a Romanis Traianus vel Valentinianus, quorum tempora sectatus est, appellaretur* (Anon. Vales. 12.60).

in provinciales admodum parcus, tributorum ubique molliens sarcinas For *parcus* ‘considerate’ cf. Tac. *Hist.* 3.75.1 *multi moderatum et civium sanguinis parcum credere*; TLL X 1.344.22. Brandt, 1999, 396–402 discusses in depth *parcus* and its derivatives in the *Res Gestae*. Valens is similarly praised for his fiscal policy towards the provincials: 31.14.2 *provinciarum aequissimus tutor*,

quarum singulas ut domum propriam custodibat indemnes, tributorum onera studio quodam molliens singulari, nulla vectigalium admittens augmenta, in adaerandis reliquorum debitis non molestus, with which Viansino aptly compares Tac. Ag. 19.4 *tributorum exactionem aequalitate munerum molli-re*. However, Valentinian's alleged indulgence towards the provincials with regard to taxation is surprising since Amm. had observed in 30.5.5 (p. 110) that he ruthlessly increased taxes, and in 30.8.8 (p. 173) that he was notorious for his avarice. Amm.'s information about the emperor's taxation policy is not sustained by other sources either. *Epit.* 45.5 informs us that avarice was the emperor's greatest vice (*infectus vitiis maximeque avaritiae*). According to Zos. 4.16.1 Valentinian was very heavy-handed demanding taxes, and exceedingly ruthless when collecting them (Οὐαλεντινιανὸς...βαρύτερος ἦν ταῖς ἀπαιτήσεσι τῶν εἰσφορῶν σφοδρότερον ἐπιτείμενος). Amm.'s information is also contradicted by Valentinian's legislation. *Cod. Theod.* 12.13.2 (28 August 364) proves that the *aurum coronarium*, which had become voluntary under Julian (see ad 25.4.15, pp. 142–143), became compulsory again soon after his accession; *Cod. Theod.* 4.13.7 (7 Sept. 374; cf. for this date Pergami, 1993, 636–637) decreed that municipalities had to transfer two-thirds of their tax income to the imperial treasury, after Valentinian and Valens had initially, shortly after their accession, confiscated all the lands and revenues of the cities; the remaining one-third was for public works, and if a municipality did not have the necessary amount of money available it had to be supplied from the funds of the neighbouring cities; cf. *Cod. Theod.* 15.1.18 (26 Jan. 374). Moreover, Valentinian seems to have given Probus a free hand during his prefecture to wrest money from the provincials and exact additional tributes and taxes thereby causing the ruin of many landowners; 30.5.4–7, pp. 109–116. This was in contradiction of *Cod. Theod.* 11.16.11, issued by the Pannonian brothers on 19 March 365, which forbade the levy of extraordinary taxes. By way of contrast see ad 25.4.15 (pp. 140–142) which deals with the way in which Julian treated the provincials in this respect.

Valentinian's taxation policy may be explained by the necessity to reorganize the finances of the empire after Julian's disastrous Persian expedition as well as by the increasing costs needed to suppress the military crises in various parts of the western empire—Britain, Africa, the Rhine and Danube frontiers. Probably, this was also the reason why Valentinian (and Valens) attempted to increase the production of gold and the taxes for gold miners, as is evident from various laws; *Cod. Theod.* 10.19.3 (10 December 365), 10.19.5 (30 April 369 or 370; cf. Pergami, 1993, 503), 10.19.6 (4 June 369), 10.19.7 (19 March 370 or 373; Pergami, 1993, 491). Palatine civil servants, the clergy and even powerful individuals were liable to the *collatio lustralis* if they

were engaged in commerce; *Cod. Theod.* 13.1.5 (17 April 364). Valentinian also declared void special exemptions for private individuals, because tax should be levied equally on all; *Cod. Theod.* 11.12.3 (20 February 365). On Valentinian's tax policy see further Jones 146–148; Tomlin, 1973, 386 ff.; and for a detailed discussion Schmidt-Hofner, 2008, 117–187.

oppidorum et limitum conditor tempestivus; militaris disciplinae censor eximius, in hoc tantum deerrans, quod, cum gregariorum etiam levia puniret errata, potiorum ducum flagitia progredi sinebat in maius The combination with *oppidorum* suggests that *limites* is used here in the sense of 'border fortifications'. See for *limes* ad 28.5.1 (p. 233) and Drijvers, 2011. For Valentinian's fortification of the Rhine and Danube frontiers, see 28.2.1–4 (pp. 118–128), 29.4.1 (pp. 136–137), 29.6.2 (p. 224), 30.5.15 (pp. 131–133) and 30.7.6 (p. 158). This is the only instance in the *Res Gestae* of *tempestivus* used to describe a person 'acting at the proper time'; for its usual meaning 'timely' see ad 20.7.16 (p. 174).

The contrast between Valentinian's severity towards common soldiers and his leniency in his dealings with superior officers is also criticized in 27.9.4 *indeflexa saevitia punientem gregariorum errata, parcentem potioribus* (pp. 208–209) and 30.5.3 *erat severus in gregariis corrigendis, remissior erga maiores fortunas* (p. 108). Valentinian, for instance, never punished Romanus, the *comes Africae*, who, according to Amm., was guilty of exploiting the African provincials. The emperor also turned a deaf ear to the complaints of the envoys of Tripolitana as well as to the grievances of Firmus, as the author explains in 28.6 (with relevant notes ad pp. 253–301) and 29.5.2 (pp. 155–156). Neither was Marcellianus, military commander of Valeria, punished for the murder of the Quadian king Gabinus (29.6.5, pp. 230–231): *cum illuc venisset, ita intepuit, ut neque in Gabinii regis inquireret necem neque inusta rei publicae vulnera, quo sinente vel agente segnius evenissent, curatius vestigaret* (30.5.3, p. 108). Implicitly Valentinian made it possible for his officials to misbehave by not enquiring whether they refrained from accepting bribes; cf. Zos. 4.16.2 καὶ οὐτε τοὺς ἄρχοντας ἤθελεν ἐξετάζειν εἰ κέρδους ἀπέχονται. For *potior* 'greater', 'higher', 'more powerful' cf. 23.6.43 *haec potiora residuis sunt oppida*, 20.5.7 (p. 126) *ad potiores veniat gradum*, 26.5.4 (p. 105) *diviso palatio, ut potiori* (Valentinianus) *placuerat, Valentinianus Mediolanum, Constantinopolim Valens discessit*.

ad querellas in eos motas aliquótiens obsurdéscens. unde Britannici strepitus et Africanae clades et vastitas emersit Illyrici Amm. considers the problems in Africa and Illyricum to be a direct result of Valentinian's indulgence to

people like Romanus and Marcellianus. In the case of Britain, Amm. refers to Valentinus; 28.3.4 (pp. 152–153) and 28.3.6 (p. 156), who was liquidated by the elder Theodosius. For the juridical t.t. *querellam movere* cf. *Dig.* 5.2.8.10 *qui eandem querellam movere potest*; 5.2.17 *qui eandem querellam movere volunt*; Heumann-Seckel s.v. *movere* 4; TLL VIII 1545.47–54. For *obsurdescere ad* ‘to be deaf to’ see TLL IX 2.267.63–67 and cf. 19.12.5 (Constantius) *obsurdescens in aliis etiam nimium seriis*. It is the opposite of *audire* in the sense of “to pay attention to”, “to take seriously” (OLD s.v. 10); TLL II 1284.1sq. V’s *obsuro obsurdescens* looks suspiciously like a case of dittography. *Aliquotiens* is printed by Seyfarth, but not mentioned in his app. crit., which should mean that it is in V. According to Clark’s edition, however, *aliquotiens* is found only in EAG. Since E has been used both by Accursius and by Gelenius, it is practically certain that both editors found the adverb in this manuscript. What is amazing is that the scribe of E, which is a copy of V, conjectured *aliquotiens obsurdescens* for V’s *obsuro obsurdescens*. Palaeographically, *aliquotiens* is a far cry from *obsuro*, but it suits the context well and is metrically impeccable. Theoretically it is possible that *aliquotiens* was also in the Hersfeldensis. In that case the scribe of E, who had no access to this ms., had by sheer chance (or ingenuity) hit on the same word. For the enigmatical triangular relationship between E, Accursius and Gelenius see Clark, 1903, 66–72 and Seyfarth, 1962.

The terms *strepitus*, *clades*, *vastitas* form a climax. The first term is an echo of 28.3.8 *vicinarum gentium strepitus* about unrest among the barbarians in the north of Britain. In the context of the raids of the Austoriani in Africa Amm. uses *clades* in 28.6.5, 12 and 25. In 29.6.6 Amm. describes the reaction of the Quadi to the report of the murder of their king Gabinius as follows: *Quados et gentes circumsitas efferavit regisque flentes interitum in unum coactas misere vastatorias manus*.

Omni pudicitiae cultu domi castus et foris, nullo contagio conscientiae violatus obscenae, nihil incestum The gen. *pudicitiae* is objective: Valentinian practiced chastity in all his relationships. For *domi et foris* cf. 25.4.4 about Julian *Hoc autem temperantiae genus crescebat in maius iuvante parsimonia ciborum et somni, quibus domi forisque tenacius utebatur*. Amm.’s praise of Valentinian is cumbersome: ‘he was not defiled by any pollution caused by the guilty awareness of indecency’ (*conscientiae obscenae* is an explicative gen. dependent on *contagio*, in which the adj. *obscenae* is the equivalent of an objective gen.). The only other instance of *obscenus* in the *Res Gestae*, *obscenae vitae flagitiis ita acceperimus mersam, ut apud eos nefandi concubitus foedere copulentur maribus puberes* (31.9.5, about the tribe of the Taifali), sug-

gests that Amm. is thinking here of homosexuality, whereas *incestus* is best taken “latiore sensu de quolibet genere impudicitiae” (TLL VII 1.894.66). For *nihil incestum* instead of *nihil incesti* see ad 20.4.15 (p. 89). According to Sabbah, 1994, 339 Amm. shows even greater respect for Valentinian, as a married man and founder of a dynasty, than for Julian, who totally renounced sexuality after the death of his wife Helena.

Constantius was also known for his chastity; *perque spatia ita longissima impendio castus* (21.16.6, p. 253), as was Julian (25.4.2–3, pp. 120–123). Jovian, however, was partial to wine and women; *vino venerique indulgens* (25.10.15, p. 340). Socr. *HE* 4.31.10–17 has the curious story that Valentinian was a bigamist; see the note ad 28.1.57, p. 115; add to the literature mentioned there Astolfi, 2010. Licentious and incestuous sexual behaviour was considered a typical vice of bad emperors; cf. e.g. Suet. *Cal.* 24, 36; *HA Hel.* 5.

hancque ob causam tamquam retinaculis petulantiam frenarat aulae regalis For *petulantia* see ad 26.7.11 (p. 201) and 28.1.34 (p. 74). Elsewhere in the *Res Gestae* it is used in the sense of ‘recklessness’, ‘impertinence’; in the present context it refers primarily to sexual *mores* and means ‘wantonness’. *Retinaculum* in its literal sense refers to the moorings of a ship or the reins of a horse (hence the verb *frenare*). Used figuratively it denotes some form of restraint; cf. 14.6.5 *leges fundamenta libertatis et retinacula sempiterna*; see ad 25.1.13 (pp. 25–26). As Matthews, 1975, 54 observes: “Like his colleagues among the emperors of the fourth century, Valentinian was thoroughly respectable in his private life.”

quod custodire facile potuit necessitudinibus suis nihil indulgens, quas aut in otio reprimebat aut mediocriter honoravit absque fratre, quem temporis compulsus angustii in amplitudinis suae societatem assumpsit This observation is not quite true, as Pauw, 1972, 148 observed, because Valentinian appointed his young son Gratian as Augustus; 27.6.4 (pp. 136–137; add to the literature mentioned there McEvoy, 2013, 48 ff.). He also appointed his brothers-in-law Constantianus (*PLRE* I, Constantianus 1) and Cerialis (*PLRE* I, Cerialis 1) as *tribuni stabuli*. More importantly, Valentinian appointed his brother Valens as co-ruler, contrary to the demand of Dagalaifus and probably others, who had expressed the wish that he would choose the best candidate rather than a relative in the interest of the state; 26.4.1–3 (pp. 75–84). Angliviel de la Beaumelle n. 335 suggests that Amm.’s observation about Valentinian’s avoidance of nepotism may be an implicit criticism of Theodosius I, who in his political and dynastic arrangements relied heavily on his family and intimates; Matthews, 1975, 109–110.

Scrupulosus in deferendis potestatibus celsis nec imperante eo provinciam nummularius rexit aut administratio venundata Constantius and Valens receive a similar compliment in 21.16.1 *erga tribuendas celsiores dignitates impendio parcus* (p. 244) and 31.14.2 *erga deferendas potestates vel adimendas nimium tardus* (“he was excessively slow towards conferring or taking away official positions”, tr. Rolfe). *Scrupulosus* is used in its literal sense ‘stony’ in 16.12.11 *nos...scrupulosi tramites excipient*. Its metaphorical meaning is defined in Isid. *orig.* 10.252: *Scrupulosus, animi minuti et asperi*, but Amm. also uses it in a more positive sense; cf. 30.2.9 of *Iustitiae vigor: scrupulosus quaesitor gestorum recte vel secus* (p. 42). The word *nummularius* ‘money changer’ is found in Suet. *Gal.* 9.1. It is a disparaging term, as is evident from the fact that Cassius Parmensis taunted Octavian with being the grandson of a baker and a money-changer (Suet. *Aug.* 4.2). Viansino, 1999, 180 lists the choice of *nummularius* here as a nice example of what he calls “satira indignata e ironia grottesca in Ammiano Marcellino”.

Whether Amm.’s observation about Valentinian’s policy with regard to appointments is quite correct is questionable. It seems that during the reign of the Pannonian brothers the number of military and civil officials from Pannonia increased; some of them reached high positions such as Equitius (*PLRE* I, Equitius 2; see ad 26.1.4, pp. 18–19), Ursatius (*PLRE* I, Ursacius 3; see ad. 26.4.4, p. 85) and Maximinus (*PLRE* I, Maximinus 7; see ad 28.1.5, pp. 14–15). In general Amm. is outspoken in his negative judgement about these officials, some of whom had a detrimental influence on Valentinian; Drijvers, 2012, 89–91. Viventius (*PLRE* I, Viventius) is the only exception; 27.3.11 (pp. 61–62).

nisi inter initia ut solent occupationis spe vel ꝥ impuniae quaedam sceleste committi V has *nisi inter ut solent occupationis*. Van Looy, 1966 proposed to supply *imperatoris* after *inter* and to connect the preposition with *occupationes* (acc. pl.), translating “si ce n’est pendant les périodes de grande occupation de l’empereur”. This makes good sense and may be compared with 28.6.9 (p. 270) *eo more, quo solent inter potiorum occupationes ludi potestates excelsae* (‘in the way in which high officials are often hoodwinked while they are occupied with more important business’). There are, however, no parallels for the separation of preposition and noun by an insertion like *ut solent*. The alternative is to write *inter imper(it)andi exordia* (Heraeus), for which there are good parallels (21.16.8, 27.7.4). As to *occupationis spe vel ꝥ impuniae* there is the problem that, even if we read *impunitatis*, the sentence is unbalanced, since *occupatio* refers to the emperor, but *impunitas* to the person who commits the crime. This problem disappears if the text

is repaired in this way: *occultationis spe vel impunitatis* 'in the hope that it will be unnoticed or unpunished', for which cf. 27.7.2 *lucrandi opportunas occasiones occultationis spe numquam praetermittens*.

- 9.4 *Ad inferenda propulsanda bella sollertissime cautus, aestu Martii pulveris induratus, boni pravique suasor et dissuasor admodum prudens, militaris rei ordinum scrutantissimus* In Julian's deathbed speech we find a similar asyndeton, 25.3.17 *examinatis rationibus bella inferens repellens*. For the opposition *inferre*—*propulsare* cf. Caes. Gal. 6.15.1 (*uti*) *aut ipsi iniurias inferrent aut inlatas propulsarent*. The collocation of *sollers* and *cautus* is also found in Coripp. Ioh. 8.278 *cautoque in pectore sollers / volvebat magnas...curas* ('and in his cautious heart he shrewdly turned over his grave worries'). As was observed ad 21.12.22 *exercitum pulvere coalitum Martio* (p. 181), dust rather than mud is characteristic of the battlefields of antiquity. For another characteristic, heat, cf. 25.3.10 *quamvis offundebatur oculis altitudo pulveris et aestus calescens officeret alacritati membrorum*. Obviously *boni pravique* must be interpreted in the context of military decision making. The different meanings of *ordo* are discussed ad 20.5.7 (p. 125). Here it refers to military ranks. Valentinian resembled Constantius in keeping a close watch on military promotions; cf. the latter's elogium in 21.16.3 *examinator meritorum nonnumquam subscruposus* and *non nisi pulvere bellico indurati praeficiebantur armatis*. The superlative *scrutantissimus* is unique, but may be compared to 21.16.8 *sine fine scrutando*.

Amm. had implicitly praised Valentinian's military skills in 30.7.6: *merito timebatur*. Obviously he was impressed by Valentinian's military qualities exemplified by his victories over the Alamanni (27.10.8–15, pp. 237–248) and his defence works along the Rhine-Danube frontier (see above ad § 1). Amm. characterizes him not only as a competent general but also (sometimes with a sarcastic undertone) as a careful military leader who played safe; *princeps, ut prae se ferebat ipse, cautissimus* (27.9.2, p. 206); *tutius prope ripas accessit* (30.3.5, p. 55); *Inter haec tamen caute gesta* (30.7.8, p. 159); see also Pauw, 1972, 140–141; Brandt, 1999, 45. The emperor's skill as a designer of new arms has made some scholars think that the treatise *De Rebus Bellicis* had been dedicated to Valentinian (and Valens); Thompson, 1952, 5; cf. Brandt, 1996.

scribens decore venusteque pingens et fingens et novorum inventor armorum; memoria sermoneque incitato quidem, sed raro facundiae proximo vicens, amator munditiarum laetusque non profusis epulis, sed excultis Even though Amm. calls Valentinian boorish (*subagrestis*, 29.3.6, p. 127) and Zos. 3.36.2 denies him any kind of culture (*παιδεύσεως οὐδεμιᾶς μετεσχέχει*), this pas-

sage presents a different picture of the emperor's talents. This is corroborated by Themistius in *Or.* 9. 126 b addressed to Valentinian II, who describes Valentinian as a man who knew some Greek (see also ad 30.5.9, pp. 117–119) and was a well-educated man. Valentinian apparently also knew his Vergil since Ausonius remarks that the emperor had written a *cento nuptialis* based on verses from the Aeneid; (*cent. nupt.* 1). Even though we should take both Themistius and Ausonius with a pinch of salt, obviously Valentinian was aware of the importance of a cultural upbringing, as may be concluded from the appointment of Ausonius as tutor of his son Gratian in 366/7; Sivan, 1993, 104, 108–109. See further Alföldi, 1952, 121–123.

Other emperors with artistic gifts were Nero (Suet. *Nero* 52.1 *habuit et pingendi fingendique non mediocre studium*), Hadrian (*epit.* 14.2 *pictor ficatorque ex aere vel marmore proxime Polycletos et Euphranoras*) and Marcus Aurelius (HA MA 4.9 *operam praeterea pingendo sub magistro Diogeneto dedit*). The author of the *Epitome* compares Valentinian to Hadrian in this respect, 45.5–6 *in his, quae memoraturus sum, Hadriano proximus: pingere venustissime, meminisse, nova arma meditari, fingere cera seu limo simulacra*, which is strikingly similar to Amm.'s description; see Schlumberger, 1974, 215–219, who concludes that Amm. must have been familiar with the source of the epitomator. In later times Theodosius II was even named after his beautiful handwriting: Georgius Monachus *Chron.* II 604.8–9 (De Boor) Μετὰ δὲ Ἀρχάδιον ἐβασίλευσε Θεοδοσίος υἱὸς αὐτοῦ ὁ καὶ καλλιγράφος. *Incitatus* 'forceful' goes with *sermone* only; for its use in a literary context see TLL VII 1.932.84–933.14. Valentinian had a very good memory and a style of speaking which, although forceful, rarely reached the level of real eloquence. For *vigere* 'to excel' cf. 16.7.5 (Euthérius) *memoria vigens*. For *excultus* 'refined' cf. Min. Fel. 18.4 *si ingressus aliquam domum omnia exculta disposita ornata vidisses*.

Postremo hoc moderamine principatus inclaruit, quod inter religionum diversitates medius stetit nec quemquam inquietavit neque, ut hoc coleretur, impetravit aut illud Although Valentinian repealed pro-pagan laws issued by Julian such as the restoration of the property of temples to the privy purse (*Cod. Theod.* 5.13.3, 23 December 364), Amm. praises Valentinian's religious tolerance. The verb *inclarescere* is highly complimentary; Amm. had used it in 25.4.8 with regard to Julian's righteousness: *Quibus autem iustitiae inclaruit bonis, multa significant*. For *medius* 'neutral' see TLL VIII 591.79–592.5 and cf. Suet. *Nero* 2.3 *consultante autem Cn. Pompeio de mediis ac neutram partem sequentibus*. Amm. clearly prefers Valentinian's neutral stance regarding religious matters to that of Julian, whom he severely criticized in his elogium (25.4.20, p. 158) for his anti-Christian school law. It is not unlikely

that in praising this aspect of Valentinian's reign Amm. obliquely criticized the anti-pagan decrees issued by the emperor Theodosius in the years during which he was writing his *Res Gestae*.

Valentinian's neutral policy with regard to religion is clearly formulated in *Cod. Theod.* 9.16.9 (29 May 371) addressed to the Roman senate: *Haruspicinam ego nullum cum maleficiorum causis habere consortium iudico neque ipsam aut aliquam praeterea concessam a maioribus religionem genus esse arbitror criminis. Testes sunt leges a me in exordio imperii mei datae, quibus unicuique, quod animo inibisset, colendi libera facultas tributa est. Nec haruspicinam reprehendimus, sed nocenter exerceri vetamus* ('I judge that divination has no connection with cases of magic, and I do not consider this religion, or any other that was allowed by our elders, to be a kind of crime. Of this opinion the laws given by Me in the beginning of My reign are witnesses, in which free opportunity was granted to everyone to cultivate that which he had conceived in his mind. We do not condemn divination, but We do forbid it to be practiced harmfully'; tr. Pharr; slightly adapted). Zos. 4.3.2–3 reports that Valentinian repealed a law against nocturnal sacrifices after the protest of Vettius Agorius Praetextatus (*PLRE* I, Praetextatus 1), then proconsul of Achaëa (cf. 22.7.6 with the notes on pp. 79–81), that this law would make life unbearable for the Greeks because it would prevent the divinely prescribed practice of the mystery cults. Thereupon Valentinian abandoned the proposal and allowed everything to be done in the traditional manner: ἐπέτρεψεν ἀργούντος τοῦ νόμου πράττεσθαι πάντα κατὰ τὰ ἐξ ἀρχῆς πάτρια. Cf. Wiebe, 1995, 241–246, who denies the information provided by Zosimus and argues against the emperor's concession to Praetextatus.

Religionum diversitates is an instance of the gen. inversus, for which see ad 20.6.7 (p. 146) and 22.4.5 (p. 43), meaning 'the different religious persuasions'. Apart from the opposition between Christians and pagans, *religionum diversitates* could also refer to the differences between Valentinian as a follower of the Nicaenum and his Arian brother Valens. The church historians also praise Valentinian's religious policy; see Leppin, 1996, 91–95. Socr. *HE* 4.1.12–13: Οὐαλεντινιανὸς...τοὺς μὲν οἰκείους συνεκρότει, τοῖς δὲ Ἀρειανίζουσιν οὐδαμῶς ἦν ὀχληρὸς, Οὐάλης δὲ Ἀρειανοὺς αὐξῆσαι προαιρούμενος δεῖνὰ κατὰ τῶν μὴ τοιαῦτα φρονούντων εἰργάσατο ('Valentinian supported those who were of the same faith, but did not trouble the Arians in any way, whereas Valens furthered the Arian cause and treated those who were in disagreement harshly'). Sozomen has the same information (*HE* 6.6.10, 12.13) but adds that Valentinian never imposed commands upon priests because he considered ecclesiastical matters beyond his jurisdiction; *HE* 6.21.7 Τάδε [decisions regarding ecclesiastical issues] γὰρ κρείττω τῆς αὐτοῦ δοκιμασίας ἡγεῖτο. See

also Ambr. *epist.* 10.75.2 who quotes Valentinian as saying *In causa fidei vel ecclesiastici alicuius ordinis eum iudicare debere qui nec munere impar sit nec iure dissimilis* and in 10.75.5 *non est meum iudicare inter episcopos*. Theodoret presents a different picture: he sketches Valentinian as a ruler who propagated the orthodox faith and even ordered a council to be held (in Illyricum) in order to re-establish the Nicene Creed (*HE* 4.7.6–7). Theodoret's information, however, is possibly spurious; Hunt, 2007, 89. All three church historians also mention Valentinian's active involvement in the appointment in 374 of Ambrose as bishop of Milan: Socr. *HE* 4.30.6–8; Soz. *HE* 6.24.4; Thdt. *HE* 4.7.1–6. Valentinian's religious policy is best characterized in the words of Hunt (2007, 90) as “non-interventionist, and non-coercive”. The emperor left religious matters to the bishops as much as possible and did not appreciate episcopal interference in the affairs of state, as Hunt, 2007 has convincingly made clear. Lenski, 2002, 242 concludes that Valentinian favoured Christianity in a moderate way and that he generally was indifferent on matters of doctrine.

nec interdictis minacibus subiectorum cervicem ad id, quod ipse voluit, inclinabat, sed intemeratas reliquit has partes, ut repperit The use of the imperfect *inclinabat* is explained by the plural *interdictis*; it was not Valentinian's habit to intimidate his subjects. One would have expected the same tense in the relative clause, but that would have been both cacophonous and unmetrical. The word *partes* is extremely vague; presumably denoting aspects of policy-making; see TLL X 1.485.82 “saepe vergit in notionem q.e. ‘res’”.

Corpus eius lacertosum et validum, capilli fulgor colorisque nitor, cum oculis caesiis, semper obliquum intuentis et torvum, atque pulchritudo staturae lineamentorumque recta compago maiestatis regiae decus implebat The sentence is not well structured. The main verb *implebat* is in the singular, despite the fact that there is a multiple subject. V's *intuentis*, to go with *eius*, is just about acceptable.

9.6

Amm. believed that there was a relationship between a person's physiognomy and his character; cf. 15.8.16 (the soldiers who studied Julian's eyes and face) *qui futurus sit, colligebant uelut scrutatis ueteribus libris, quorum lectio per corporum signa pandit animarum interna*. See also 20.1.2 (p. 6); 21.16.19 (pp. 274–275); 23.6.75 (pp. 216–217); 27.6.15 (p. 156) and add to the literature Boys-Stones, 2007 and Rohrbacher, 2010, 107–108. Of the emperors portrayed in the *Res Gestae* Valentinian is physically by far the most attractive, muscular and strong with gleaming hair, a healthy complexion (for *nitor* see

ad 27.6.15, p. 156) and a majestic bearing. According to Cedrenus (p. 541, Bonn) Valentinian bore a striking resemblance to King David. The only disturbing feature are the eyes. Like Nero and his predecessor Jovian he has grey-blue eyes, which were not considered beautiful and were thought to betray a harsh and unbending nature; see ad 25.10.14 (p. 336). Also his threatening sidelong glance, for which see ad 28.1.45 (p. 92) and 28.4.10 (p. 187), is a negative element. All in all, this portrait is, like the rest of Valentinian's eulogium, a somewhat disturbing mixture of good and bad features. For *compago* cf. Amm.'s description of eunuchs in 14.6.17 *obluridi distortaque liniamentorum compage deformes* ("sallow and disfigured by the distorted form of their members", tr. Rolfe). The phrase as a whole is reminiscent of 25.4.22 on Julian: *liniamentorum recta compago*.

As regards modern views on Amm.'s description of Valentinian's *forma*, Seeck, 1920–1923²⁻⁴, V, 2 was of the opinion that Amm. had portrayed him as a barbarian: "Sein hoher, kräftiger Wuchs, seine weisse Haut, sein blondes Haar, die blauen, wild und finster blickenden Augen verrieten seine barbarische Abstammung". Paschoud, 1992, 67–68 also suggested that Amm. had sketched a stereotypical barbarian emperor. However, Alföldi, 1952, 9 argued that his physique resembles that of the Illyro-Celtic population of Pannonia and that there is no reason to consider Valentinian as a German barbarian. See further Baldwin, 1981, 14; Bleckmann, 2007, 20–22 and Teitler, 2007, 53–54. The bronze statue of Barletta has often been thought to represent Valentinian (e.g. by Nagl, 1948, 2201–2202), but this identification of the statue is debatable; cf. Demougeot, 1982 who, building upon the thesis of Testini, 1973, believes that the statue represents Honorius at the end of his life; see also <http://laststatues.classics.ox.ac.uk/>, record LSA-441.

CHAPTER 10

Introduction

This is the last chapter in the *Res Gestae* exclusively devoted to events in the West. It is a *coda* following the death of Valentinian I, the real conclusion of Amm.'s narrative about the western half of the empire. As such it might be compared to the second half of Book 25, which deals with the short reign of Jovian, after Julian had fallen in battle. The central event in this short chapter is the elevation of Valentinian's four-year old son, who had the same name as his father, to the rank of Augustus.

The death of an emperor, especially when it had not been foreseen, often led to a political crisis, which was only resolved when a successor had firmly taken the reins of power in his hands. In this case there was a successor at hand in the person of Valentinian's son Gratian, now sixteen years old, made co-Augustus by his father eight years before and residing in Trier. However, the military and civilian leaders, who had participated in Valentinian's campaign against the Quadi, decided otherwise and hurriedly chose the infant Valentinian II as his father's successor. According to Ammianus they acted out of fear for the Gallic troops, brought over to Illyricum for the Quadian campaign, who had a reputation for wilfulness and a tendency to push forward one of their own as a candidate for the throne. Merobaudes, one of Valentinian's generals, tricked the Gallic troops into believing that Valentinian had given orders that they should return to the Rhine border under his command. He also sent his colleague Sebastianus away, whose popularity with the soldiers made him a risk factor.

After these measures had been taken, Merobaudes and his unnamed colleagues had the young Valentinian II brought over from the villa Murocincta, where he was staying with his mother Iustina, to the army camp at Brigetio, where they declared him Augustus in the traditional manner. They did worry whether Gratian would take offence at this, because he, like his uncle Valens in Antioch, had not been consulted. However, their worries were unfounded, because Gratian accepted the nomination and took the young Augustus under his wings.

This is how Ammianus describes the succession, but recent scholarship has called his presentation of the events into question. Ammianus seems to be reticent about the details of the affair, and to have glossed over the

problems caused for the senior Augustus Valens and his younger colleague Gratian by the succession of Valentinian II. It is striking that Ammianus uses many passive verb forms, thus avoiding to have to name those responsible for the procedures, except Merobaudes, who was a German, and therefore could not be a candidate himself. A plausible explanation for Amm.'s somewhat superficial and anodyne version of events would be that he wrote it before 392, when Valentinian II was still in power.

10.1 *Post conclamata imperatoris suprema corpusque curatum ad sepulturam, ut missum Constantinopolim inter divorum reliquias humaretur* Cf. 26.1.3 about Jovian: *corpore curato defuncti missoque Constantinopolim, ut inter Augustorum reliquias conderetur*. There is a note on *conclamare* 'to call the name of the dead' ad 21.15.4 (p. 235) *supremis cum gemitu conclamatis*. For *corpus curare* in the sense of 'to embalm' see ad 25.5.1 (p. 170).

Like his predecessors Constantius (21.16.20, p. 277), Julian (25.10.5, p. 319 + Johnson, 2008) and Jovian (26.1.3, p. 17) Valentinian was transferred to Constantinople. It took more than a year before his body arrived in the eastern capital on 28 December 376; *Consul. Constant. a. 376 et ipso anno introivit corpus Aug. Valentiniani Constantinopolim die V k. Ian.* The actual burial only took place in 382; *Consul. Constant. a. 382 Theodosius Aug. corpus Aug. Valentiniani in sarcofago deposuit die VIII kal. Mar.*; Marcell. a. 382. Valentinian was given his final resting place between his predecessors, i.e. in the Church of the Holy Apostles, as is stated by Leo Gramm. *Chron.* p. 96 Bonn ἐτέθη ἐν τῷ ναῷ τῶν ἁγίων ἀποστόλων. See further Johnson, 1991.

The words *inter divorum reliquias* suggest that Valentinian too was to be consecrated. See on this matter ad 25.4.1 (pp. 114–115), where it is observed that Amm. does not explicitly mention the consecration of any of the five emperors whose death he reports. The main evidence that the practice of deification of (Christian) emperors continued in the fourth century is provided by Eutropius. According to him Constantine was officially deified after his death: *inter divos meruit referri* (10.8.2) ; cf. Aur. Vict. *Caes.* 41.5 *pro conditore seu deo habitus*. A *solidus* of the first Christian emperor, issued after his death, depicts the emperor's ascension to heaven and designates him as *divus* (DIVUS CONSTANTINUS AUG PATER AUGG); *RIC* 7, 447 Nr. 1. See for Constantine's deification Alföldi, 1969, 117–118; Jones, 1980, 1052; Clauss, 1999, 203–205; Kolb, 2001, 253–254. Also about Constantius II Eutropius writes *meruitque inter divos referri* (10.15.2). The same author reports about Julian: *inter divos relatus est* (10.16.2) and about Jovian: *benignitate principum, qui ei successerunt, inter divos relatus est* (10.18.2). For deification of fourth-century emperors in general see Clauss, 1999, 196–215.

suspensio instante procinctu anceps rei timebatur eventus cohortibus Gallicanis, quae non semper dicatae legitimorum principum fidei velut imperiorum arbitrae ausurae novum quoddam in tempore sperabantur For *suspendere* ‘to postpone’ cf. 23.5.4 (Sallusti) *orantis suspendi expeditionem*. In 30.5.17 (p. 136) Amm. had stated that Valentinian left his army camp (presumably in Brigetio) to go *ad procinctum* to continue the military expeditions in the territories of the Quadi and Sarmatae, which had started earlier in 375; 30.5.13–14 (pp. 126–130). Although Amm. does not mention it, he must have returned to Brigetio, since that is where he died.

The Gallic troops were brought along by Valentinian when he had come to Illyricum; they are the same troops as those mentioned in 29.6.16 *quod ad tutelam Illyrici Gallicani militis validum accesserat robur* (p. 245). The syntactic function of *cohortibus Gallicanis* is not clear, as is evident from the vague and evasive translations: “La campagne imminente fut alors suspendue, car [?] l’on craignait que la situation ne prît un tour délicat par le fait des cohorts Gauloises” (Sabbah), “man verharrte voller Furcht vor der zweifelhaften Annahme des Ereignisses bei den gallischen Truppen” (Seyfarth), “an uncertain outcome of the situation was feared, because of the cohorts serving in Gaul [?]” (Rolfe). The translations have in common that they interpret *cohortibus Gallicanis* as a cause of fear. The same applies to the most unambiguous translation “there were fears of an uncertain outcome of the situation thanks to the Gallic cohorts” (Kelly, 2013, 361). The use of a human constituent functioning as an abl. of cause is, however, highly irregular. One would expect *cohortibus Gallicanis* to be the Head of an abl. abs., but no participle follows. The alternative would be to take the word group as a dat. auctoris, which is not uncommon in Amm. (see ad 22.8.42, p. 139): ‘the uncertain outcome of the situation was feared by the Gallic contingents.’ The problem then is that in the first part of the sentence the Gallic troops are said to be afraid, while in the second part it is they who are feared. Since fear of a coup by the Gallic forces remains the dominant element in this chapter, it seems unavoidable to accept the interpretation of *cohortibus Gallicanis* as an abl. of cause or else to conjecture <ex> *cohortibus*. For ex cf. 25.5.8 *periculum ex inimico metuens*; Kühner-Stegmann 1.339.

The death of an emperor created a potentially dangerous situation because of the succession issue. Amm. is the only author who mentions the threat posed by the Gallic troops in this situation. They had made themselves heard in several of the imperial successions reported in the *Res Gestae*. There was no real discussion after the death of Constantius because of the proximity of Julian with his army, *cum novandis rebus imminens obsisteret Iulianus*, although some of the courtiers did put out feelers (21.15.4). After

Julian's demise *Nevitta et Dagalaifus proceresque Gallorum* favoured a candidate from among their midst (25.5.2). The acceptance of Jovian by the army in Gaul is greeted with relief in 25.10.8 *his ita tristibus laetum aliud addebatur missos a Iovino militares adventare...nuntiantes aequo animo Ioviani imperium amplecti exercitum Gallicanum*. During a critical illness of Valentinian Gallic commanders put forward Rusticus Iulianus as a possible candidate, 27.6.1 *convivio occultiore Gallorum, qui aderant in commilitio principis, ad imperium Rusticus Iulianus...poscebatur* (pp. 129–130). For the wilfulness of the Gauls Henri de Valois aptly compared HA T 3.7 *more illo, quo Galli novarum rerum semper sunt cupidi* and Q 7.1 *Saturninus oriundo fuit Galus, ex gente hominum inquietissima et avida semper vel faciendi principis vel imperii*; see Paschoud's note on p. 234 of the Budé-edition.

For *dicatus* 'devoted' cf. 17.13.30 *Zizaim praefecimus Liberis* (the Free Sarmatians) *dicatum nobis futurum et fidum*. The plural of *imperium* in the *Res Gestae* normally refers to imperial orders. The present formula *velut imperiorum arbitrae* 'as if they had the authority to decide who was going to be emperor' is striking and can be compared to 20.4.20 *Augustum eorum arbitrio declaratum* (also about Gallic troops) and 30.3.4 (Macrianus) *flatu distentus ut futurus arbiter superior pacis*. As so often, *spes* and its derivatives do not denote hope, but expectation, or even fear. Cf. *temptandae novitatis spes* in the next lemma. For the revolutionary connotations of *novus* and its derivatives see ad 20.8.3 (p. 184). In combination with *audere* it is already found in Liv. 23.2.3 *per occasionem novandi res magnum ausuram facinus* and Tac. *Hist.* 1.6.2 *ingens novis rebus materia, ut non in unum aliquem pronofavore, ita audenti parata*. For *in tempore* 'when the opportunity arises', 'at the right moment' cf. 15.5.3 *ut perniciosum aliquid in tempore moliretur*.

hoc temptandae novitatis spes acuate, quod gestorum ignarus etiamtum Gratianus agebat tum apud Treveros, ubi profecturus eum morari disposuerat pater This is Madvig's convincing correction of V's *hoc temptandae novitatis res aduate*, in which *novitatis spes* echoes the preceding words *novum quoddam in tempore sperabantur*; cf. 14.10.5 *ne eum...acueret in fiduciam exitiosa coeptantem* and 24.2.5 *ira tamen acuate virtutem*. The words give concrete meaning to the preceding *in tempore*. The fact that Gratian was far away and not aware of Valentinian's death provided the army in Brigetio with the opportunity to present a fait accompli. This had not been the case after Constantius' death because Julian was in the vicinity. For *etiamtum* 'still (at that moment)' see ad 30.1.2 (p. 4). For *disponere* 'to order' see ad 20.4.9 (p. 74). *Tum*, coming so soon after *etiamtum*, is unelegant, but it would

be rash to delete it, since *etiamtum* goes with *ignarus*, while *tum* refers to the situation after the death of Valentinian.

Gratian (*PLRE* I, Gratianus 2) was sixteen years old when his father died. Kelly, 2013, 366 makes the interesting suggestion that Valentinian, when he departed for Illyricum, left Gratian, who is generally considered an Augustus without territory, behind in Trier as the acting Augustus of the Gallic prefecture. It may have taken a while, at least until the beginning of December 375 (see below ad § 6), before Gratian was informed about the death of his father (and the subsequent nomination of his half-brother Valentinian II as Augustus).

cum negotium in his esset angustiiis et tamquam in eadem navi futuri periculi, si accidissent, participes omnes eadem formidarent Amm. uses *angustiae* eight times in its literal sense ‘narrowness’, as in 21.13.16 *in Succorum angustiiis*. In 29.1.21 *angustiiis formidandae paupertatis attriti*, 30.9.2 *temporis compulsus angustiiis* and in the present passage it has the metaphorical meaning ‘straits’, ‘critical situation’. The proverbial expression of being ‘in the same boat’ is found for the first time in Cicero; Otto, 1890, 239. Amm. follows the version of Liv. 44.22.12 *qui in eodem velut navigio participes sunt periculi*, which means that it is best to take *participes* as the end of the colon instead of *accidissent*. Amm. seems to be deliberately vague here. Who were ‘all these people’? Flavius Equitius (*PLRE* I, Equitius 2), the *magister militum per Illyricum*, and Petronius Probus (*PLRE* I, Probus 5), the praetorian prefect of Illyricum, Italy and Africa, as well as the *magister peditum* Merobaudes (*PLRE* I, Merobaudes 2) were certainly among them (see below, p. 202). 10.2

sedit summatum consilio avulso ponte, quem compaginarat ante necessitas invadens terras hostiles, ut superstitis Valentiniani mandato Merobaudes protinus acciretur For the Vergilianism *sedit* ‘it was decided’ with dative see ad 28.5.9 (p. 243) and cf. 25.10.3 *sedit quorundam opinioni* (p. 315) followed by an Acl. In the present passage it is paratactically connected with the subjunctive *acciretur*, while *ut* goes with *superstitis Valentiniani* ‘on the order of Valentinian, as if he were still alive’. For similar paratactical subjunctives cf. 26.6.2 *mandaratque, ut susurravit obscurior fama, ... pro cognitorum ageret textu* (pp. 129–130) and *altiore cura prospectum... Valentinianus puer... vocaretur* in section 4 of this chapter. See also ad 20.5.9 (p. 130). There is a note on the post-classical use of *superstes* as a synonym of *vivus* ad 21.7.5 (p. 101). The *summates* must be the higher echelons of the civil service and the military, just like the *potestatum civilium militiaeque rectores* of 26.1.3

(p. 17), who assembled to choose a successor to Jovian. There is no parallel for V's *mandato*, so Mueller's *mandatu* is preferable; cf. 14.11.20 *velut mandatu principis* (also in 16.11.12, 20.6.7, 25.7.12) and cf. 31.4.5 *permissu* (V *permissum*) *imperatoris* and 31.7.4 *Merobaudis suasu*.

Amm. uses personification freely (see ad 23.8.82, p. 224, and Blomgren 90), but Petschenig, 1892, 688 seems justified in scoffing at "eine Nothwendigkeit, die Brücken schlägt und in Feindesland einfällt". According to him the subject of *compaginarat* is "natürlich" Valentinian. Petschenig's conjecture *recensitas* for *necessitas* is brilliant, not just palaeographically, but also as a reference to 29.6.6 *et Quados et gentes circumsitas*, 29.6.8 *latius se cum Sarmatis Quadi pandentes*. For the phrasing Petschenig compares 14.7.21 (provincias) *quas recensere puto nunc oportunum*; 29.1.40 (multitudo) *quam nominatim recensere est arduum*, to which may be added 23.6.62 *quas nunc recensere alio properans superfluum puto* and 31.2.17 *Halani, quorum gentes varias nunc recensere non refert*.

The Romans probably constructed temporary bridges across the Danube at various places for their expeditions into Quadian territory. Amm. refers to a boat bridge at Aquincum (30.5.13, p. 128). Seeck, 1920–1923²⁻⁴, V, 39 thinks this bridge is referred to in the present passage, but it is more likely that a bridge at Brigetio is meant as was argued ad 30.5.15 (p. 132). Mary, 1992, 608 observes, "le démontage du pont marque la fin de l'offensive", but there may be more to it. Seeck ascribed the decision to break the bridge to Merobaudes, who by doing so intended to separate the troops, which were with him and Sebastianus in Quadian territory, from the main force which had stayed with Valentinian on the right side of the Danube. This certainly makes sense, but it must be noted that the order, in which Amm. presents the events, strongly suggests that the decision was taken by the *summates*. For Merobaudes see the note ad 30.5.13 (p. 126).

- 10.3 *hocque ille ut erat sollertis ingenii, quod evenerat, ratus aut forte doctus ab eo, per quem vocabatur, rupturum concordiae iura Gallicanum militem suspicatus* For *rer* 'to guess' cf. Sal. Jug. 7.3 *sed ea res longe aliter, ac ratus erat, evenit*; Verg. A. 6.96–97 *via prima salutis, / quod minime reris, Graia pandetur ab urbe*; Iust. 1.10.7 *ratus...futurum quod evenit*. Surprisingly, the phrase *rumpere concordiam* or *concordiae iura* is not at all common; the only parallel in the *Res Gestae* is 21.3.4 *tamquam rupto concordiae pacto*, used of the German king Vadomarius when he broke his alliance with Rome. Here the fear is made explicit: Merobaudes obviously suspected that the Gallic troops would choose their own emperor, just as they had appointed Julian Augustus in Paris.

missam ad se tesseram finxit redeundi cum eo ad observandas Rheni ripas quasi furore barbarico crudescente For *tessera* cf. Veg. mil. 2.7 *tessera autem dicitur praeceptum ducis, quo vel ad aliquod opus vel ad bellum monetur exercitus*, and see ad 21.5.13 (p. 71). *Cum eo* does not mean “with the messenger”, as Rolfe and Kelly, 2013, 361 translate, but ‘with the Gallic troops’. It refers to the preceding *Gallicanum militem*. For the collectivum *Gallicanus miles* cf. 25.4.13 *exhortatum eum supplici contione militem Gallicanum...ad usque confinia traxisse Medorum* and 29.6.16 *ad tutelam Illyrici Gallicani militis validum accesserat robur*. Merobaudes pretends to have received orders (from Valentinian) to return to the Rhine border with the Gallic troops, allegedly to deal with the barbarians (Alamanni most likely) there. Merobaudes left Quadian territory and joined the other officials at Brigetio, as may be concluded from § 4 *Reverso itaque Merobaude*. For *furor*, used specifically of barbarians, see Seager 57 and Sidwell, 2010, 11. The expression *furor barbaricus* is also used by Ambrose (*epist.* 51.11, *hex.* 3.5.22). For *crudescente*, which is found from Vergil onwards, cf. 25.9.3 *Constantium immani crudescente bellorum materia superatum a Persis* (p. 285).

utque erat secrete mandatum, Sebastianum principis adhuc ignorantem excessum longius amendavit, quietum quidem virum et placidum, sed militari favore sublatum, ideo maxime tunc cavendum For the *comes rei militaris* Sebastianus (*PLRE* I, Sebastianus 2), with whom Merobaudes had invaded Quadian territory earlier in 375, see the notes ad 23.3.5 (pp. 42–43) and 30.5.13 (p. 127). Where to Merobaudes sent Sebastianus remains in the dark, but it was definitely far away from the Gallic troops. His popularity with the soldiers made him a likely candidate to be hailed as emperor; McEvoy, 2013, 54; Kelly, 2013, 363.

The adverb *secrete* ‘in private’, ‘unnoticed’ is not found in classical Latin, but becomes normal in later texts, cf. 15.5.5 *imperator...secrete obtulit soli ingressus*; August. *epist.* 237.4 *hymnus domini, quem dixit secrete sanctis apostolis discipulis suis*; Oros. *hist.* 3.7.6 *tyrannidem nemo nisi celeriter maturatam secrete invadit et publice armat, cuius summa est adsumpto diademate ac purpura videri antequam sciri*. For *sublatus* with the negative connotation of ‘overconfident’ cf. 15.1.3 *quo ille studio blanditiarum exquisito sublatus immunemque se deinde fore ab omni mortalitatis incommodo fidenter existimans*.

Reverso itaque Merobaude altiore cura prospectum expedito consilio, Valentinianus puer defuncti filius tum quadrimus vocaretur in imperium cooptandus After the arrival of Merobaudes in Brigetio, the matter of Valentinian’s

succession was discussed by the highest-ranking military and civilian officials. The phrasing may be compared to 29.5.46 *haecque cogitationibus anxiiis altioreque prospiciens cura*, but note the persistent use Amm. makes of the passive, to obscure who exactly were responsible for the decision to make the young Valentinian emperor. For the ellipsis of *est* after *prospectum* see Blomgren 68–79. It seems best to take *expedito consilio* as an abl. of manner “in a hurried plan” (tr. Kelly, 2013, 36); cf. 30.7.11 (Valentinianus) *expeditae mentis* and 31.5.7 *utque erat Fritigernus expediti consilii*. The subjunctive *vocaretur* is connected paratactically with *prospectum*; cf. *acciretur* in section 2 of this chapter. The addition of *in* before *imperium* seems to be necessary; cf. Aur. Vict. *Caes.* 41.9 (Licinius) *ad auxilium sui Martiniano in imperium cooptato una oppressus est*; TLL IV 895.34–60. The gerund *coop-tandus* represents, as is often the case, a future passive participle expressing intention; see ad 20.2.4 *opitulari* (p. 18) and 26.9.5 (p. 250).

As in the case of Jovian (25.5.4 [pp. 183–185]), Amm. does not inform his readers about the identity of those responsible for the infant Valentinian's elevation, but, as was stated in section 2 of this chapter (p. 199), among them were in certainly Flavius Equitius, Merobaudes, and Petronius Probus. Cf. Zos. 4.19.1 Οὐαλεντινιανού δὲ τελευτήσαντος ὁρῶντες οἱ ταξίαρχοι Μεροβαύδης καὶ Ἐκίτιος Οὐάλεντα καὶ Γρατιανὸν πόρρω που διατρίβοντας (ὃ μὲν γὰρ ἔτι κατὰ τὴν ἐψῶν ἦν, ὃ δὲ ἐν τοῖς ἐσπερίοις Γαλάταις παρὰ τοῦ πατρὸς ἀπολελειμμένος), ὑφορώμενοι μὴ ποτε συμβῇ τοὺς ὑπὲρ τὸν Ἰστρον βαρβάρους ἀνάρχους ἐπιπσεῖν τοῖς πράγμασι, παῖδα Οὐαλεντινιανοῦ νέον, ἐκ γαμετῆς αὐτῷ τεχθέντα τῆς πρότερον Μαγνηντίῳ συνοικησάσης, οὐ πόρρω που μετὰ τῆς μητρὸς ὄντα μεταπεμψάμενοι παράγουσι μετὰ τῆς ἀλουργίδος εἰς τὰ βασιλεια, πέμπτον ἄγοντα μόλις ἐνι-αυτόν (‘After Valentinian's death, the tribunes Merobaudes and Equitius, seeing that Valens and Gratian were far away, one in the East and the other left behind by his father with the Gauls in the West, suspected that the barbarians beyond the Danube might attack while there was no emperor. So they sent for the young son, whom Valentinian had with the woman who before had been the wife of Magnentius, and who was not far away in the company of his mother, and they led him to the palace clothed in purple, although he was barely in his fifth year’); *epit.* 45.10 *Itaque eo mortuo Valentinianus adhuc quadriennis auctore Equitio ac Merobaude e propinquo, ubi cum matre fuerat, allatus creatur imperator*. Philost. *HE* 9.16 suggests that Iustina, mother of Valentinian II, in collaboration with the army in Pannonia, had a role in the elevation of her son; ὃν αὐτίκα ἢ τε μήτηρ Ἰούστῖνα καὶ ὁ κατὰ Παιονίαν στρατὸς βασιλέα ποιεῖ (“whom his mother Justina and the army in Pannonia immediately made emperor”, tr. Amidon). However, that is not very likely since she was some 100 miles away from Brigetio (see the next lemma);

Kelly, 2013, 362–363. Although Zosimus ascribes the elevation of Valentinian to the throne to the barbarian threat, this is not very likely either, since a child-emperor of four could not be expected to organize the military defense against the barbarians. The question as to why the matter of succession was raised while there was a successor in the person of Gratian, who had been nominated Augustus by his father in 367 obviously to succeed him in case of a sudden death, has been answered in different ways. Recently, Kelly, 2013 and McEvoy, 2013, 54–60 have come up with complementary arguments. Kelly reasons plausibly that the highest-ranking military and civilian officials did not want Gratian to take over the prefecture of Illyricum, Italy and Africa because he was supposed to be controlled by Maximinus, praetorian prefect of Gaul. There is also something in favour of McEvoy's argument that Valentinian's sudden elevation to the throne served the purposes of Mero-baudes and other officials such as Equitius and Probus, and reflected their political opportunism in exercising power behind the throne rather than claiming the throne itself; cf. Errington, 2006, 26. Szidat, 1989, 185–187, however, argues exactly the opposite: Valentinian II was nominated emperor to safeguard Gratian's position, because otherwise the Gallic soldiers would have pushed forward a candidate of their own to usurp imperial power.

This is the only time that the younger Valentinian is mentioned by Amm. He was born in 371 (cf. Oaks, 1996) as son of Valentinian I and his second wife Iustina; *epit.* 45.10; Zos. 4.19.1; Socr. *HE* 4.31.7; Thdt. *HE* 5.13.1. He died on 15 May 392 possibly by committing suicide; Zos. 4.54.3; Marcell. a. 391; Oros. *hist.* 7.35.10; Philost. *HE* 11.1; cf. Croke, 1976; Grattarola, 1979; Szidat, 2012. All authors agree that Valentinian was four years of age when he became emperor.

centesimo lapide disparatus degensque cum Iustina matre in villa, quam Murocinctam appellant The younger Valentinian and his mother Iustina had probably travelled in the company of their father and husband Valentinian I from Trier to Illyricum and lodged at the imperial estate of Murocincta, some 100 miles from Brigetio. Ad 28.2.10 (p. 139) it is wrongly stated that Murocincta is near Sirmium, but even in spite of the identification by Mócsy, 1970 of Murocincta with the palace complex near Bruckneudorf in Austria (cf. Zabehlicky, 2011) the location of Murocincta is far from certain. On *villae* (imperial residences) in the *Res Gestae* see ad 29.6.7 (p. 234). Considering the distance Murocincta-Brigetio, and the fact that Valentinian was acclaimed emperor on the sixth day after his father's death (§5), we can assume that the decision to make him Augustus was taken within twenty-four hours after the death of Valentinian I; Potter, 2014², 529. Iustina (*PLRE* I, Iustina) was

the daughter of Iustus (*PLRE* I, Iustus 1), governor of Picenum in 352/361 under Constantius II, and sister of Constantianus (*PLRE* I, Constantianus 1) and Cerialis (*PLRE* I, Cerealis 1); see ad 28.2.10 (p. 139) and 30.5.19 (p. 138). As a young girl she had been married to the usurper Magnentius (*PLRE* I, Magnentius). Valentinian married her c. 367 after the banishment of his first wife Marina Severa (*PLRE* I, Severa 2; 28.1.57, p. 115). Apart from the younger Valentinian, she bore her husband three daughters: Iusta (*PLRE* I, Iusta 1), Grata (*PLRE* I, Grata) and Galla (*PLRE* I, Galla 2).

- 10.5 *hocque concinenti omnium sententia confirmato Cerialis, avunculus eius, ocus missus eundem puerum lectica impositum duxit in castra* General consensus is a recurrent element when an imperial succession is described; cf. 25.5.3 *nulla variante sententia* and 26.1.5 *nulla discordante sententia* (p. 20). However, in the present case unanimous consent only pertained to the highest-ranking officers present at Brigetio. For most people in the empire, including the *Augusti* Valens and Gratian, the nomination of Valentinian's infant son came as a big surprise (see ad § 6). For Cerialis (*PLRE* I, Cerealis 1), *tribunus stabuli* and brother of Iustina, see ad 28.2.10 (p. 139). On the basis of Amm.'s account, although he does not say so explicitly, it is most likely that Valentinian was hailed emperor at Brigetio; Valesius' chapter heading (*Valentinianus, iunior Valentiniani filius, in castris apud Brigionem Augustus appellatur*) is therefore correct, in spite of Kelly's hesitation (2009, 235–236). Kelly, 2013, 362 cannot be right in assuming that Valentinian was made emperor in the military camp at Aquincum (modern Budapest). He refers to Socr. *HE* 4.31.7 (who derived his information from a version of the *Consularia Constantinopolitana*): Τελευτήσαντος οὖν Οὐλεντινιανοῦ οἱ κατὰ τὴν Ἰταλίαν στρατιῶται ἕκτη ἡμέρᾳ μετὰ τὴν τελευτὴν τὸν ὁμώνυμον τῷ πατρὶ Οὐαλεντινιανόν, νέαν ἄγοντα κομιδῇ τὴν ἡλικίαν, βασιλέα ἀνηγόρευσαν ἐν Ἀκίνκῳ πόλει τῆς Ἰταλίας ('After Valentinian had died the soldiers in Italy proclaimed six days after his death the Valentinian, who was named after his father and still a young child, emperor at Aquincum, a city in Italy'). Socrates' information is dubious, because a city with the name of Aquincum in Italy is unknown, and it would be rather strange if the boy, who happened to be in an Illyrian villa, was made emperor in Italy. Moreover, as Amm. mentions in 30.5.14, Valentinian (the father) could not find a convenient place for winter quarters at Aquincum, which makes it highly unlikely that there was a military camp, as Kelly supposes, where the elevation of Valentinian (the son) could have taken place.

In all probability Novák, 1896, 79 was right in proposing *lecticae*; cf. *inter alia* 14.8.15 *exuviae classi impositae*; 23.4.6 *lapide rotundo fundae imposito*;

31.10.21 *super corona capiti imponenda Iuliano Caesari*; Suet. *Jul.* 82.3 (Caesarem) *lecticae impositum, dependente brachio, tres servoli domum rettulerunt*; id. *Cl.* 10.2 *ab his lecticae impositus*.

sextoque die post parentis obitum imperator legitime declaratus Augustus nuncupatur more sollemni Since Valentinian died on 17 November (see ad 30.6.6, pp. 147–148) the sixth day is 22 November 375; e.g. Socr. *HE* 4.31.7; Soz. *HE* 6.36.5; *Consul. Constant.* a. 375. By their decisive action Merobaudes cum suis managed to prevent what happened later to Maximus, Sulp. Sev. *dial.* 2.6.2 *diadema non legitime tumultuante milite impositum*. See for the importance Amm. attaches to the legitimacy of the *princeps* ad 25.5.3 (p. 179). By using the words *imperator legitime declaratus Augustus nuncupatur* Amm. wants to make clear, that the legitimacy of the election of the young Valentinian is not in doubt; the emphasis on Valentinian's legitimacy was probably a reply to those who considered his elevation illegal, and hence an usurpation; Szidat 1989. Straub, 1964, 20 has called attention to two obligatory stages of an imperial election: the transmission of power expressed by *imperator declaratus*, and the attribution of the title of Augustus as articulated by *Augustus nuncupatur*. For the official *nuncupatio* cf. 23.6.5 (p. 137); 26.2.3 *principali habitu circumdatus et corona Augustusque nuncupatus cum laudibus amplis*; Eutr. 10.2.3 *Romae interea praetoriani excito tumultu Maxentium...Augustum nuncupaverunt*; HA *Gd* 31.3 *appellato igitur principe Philippo et Augusto nuncupato*. Kelly, 2013, 363 points out that while Valentinian's elevation was in accordance with the ceremonial norms, it was common practice in the fourth century, that if there was a senior emperor, he would be present to create the new Augustus and bestow his new colleague with the regalia. On imperial succession in Amm. in general see Drijvers, 2008.

et licet, cum haec agerentur, Gratianum indigne laturum existimantes absque sui permisso principem alium institutum, post tamen sollicitudine discussa vivere securius, quod ille, ut erat benivulus et pius, consanguineum pietate nimia dilexit et educavit Amm. uses *licet* occasionally with a present participle (for a list see De Jonge ad 14.1.5, pp. 59–60 sprachlich). However, a finite verb expressing fear or worry like 14.11.6 *quae licet ambigeret metuens...cruentum*, ('although she hesitated fearing his cruelty') would have resulted in a better contrast with *vixere securius*. Still, changing the text is too drastic. Note the continuing use of the passive in *agerentur*. The Agents of *agerentur* and the subject of *existimantes* and *vixere* should be identical with the *summates* mentioned in section 2. Emphatic *sui* instead of a form of *suus* is

10.6

found frequently in Tacitus; Kühner-Stegmann 1.599; cf. 31.5.17 *latrociniales globi vicina cum sui exitio rarius incursabant* (“bands of robbers raided the parts nearest to them and brought destruction on themselves”, tr. Hamilton) and 31.7.9 *ob iustiore sui causam* ‘because justice was on their side’. For *solicitudine discussa* cf. Apul. *Met.* 7.1 *discussa sollicitudine iam possumus esse securi*. Sabbah’s conjecture *apertus* for V’s *pertus* (*pious* Bentley) has found favour with Den Boeft, *Gnomon* 74 (2002) 412. It is palaeographically attractive, the meaning ‘open-hearted’ suits the context well, and it is metrically impeccable; cf. Cic. *Off.* 3.57 *certe non aperti non simplicis non ingenui non iusti non viri boni*; TLL II 222.47–63.

Amm. gives the impression that Valentinian was not forced on Gratian as co-emperor. However, both Socrates (*HE* 4.31.8–9) and Sozomen (*HE* 6.36.5) report that Gratian as well as Valens were irritated by the fact that the military and civil officials had made Valentinian emperor without their consent even though, as both church historians add, they themselves would also have proclaimed him their colleague. If we can believe Philost. *HE* 9.16 Gratian was not amused that he had to share his power with his half-brother, and initially withheld his approval; the church historian mentions that he even punished some officials, who were responsible for Valentinian’s elevation: Γρατιανὸς μέντοι γε τὴν ἀναγόμευσιν μαθὼν, ὅτι μὴ διὰ γνώμης αὐτοῦ γέγονεν, οὐκ ἐπήνεσεν· ἀλλὰ καὶ τινὰς τῶν αὐτοῦ νεωτερισάντων ἐκολάσατο (“Gratian, however, when he found out about the proclamation, did not approve of it, since it had been made without his consent, and he even punished some of those involved there in this illegal move”; tr. Amidon). According to Zos. 4.19.2 the two brothers divided the western empire: Διελομένων δὲ πρὸς ἑαυτοὺς Γρατιανοῦ καὶ Οὐαλεντινιανοῦ τοῦ νέου τὴν βασιλείαν, ὡς ἐδόκει τοῖς περὶ αὐτοὺς τὰ πράγματα κρίνουσιν (αὐτοὶ γὰρ οἱ βασιλεῖς οὐκ ἦσαν κύριοι διὰ τὴν ἡλικίαν), Γρατιανῶ μὲν τὰ Κελτικά φύλα καὶ Ἰβηρία πᾶσα καὶ ἡ Βρεττανικὴ νῆσος ἀπεκληροῦτο, Οὐαλεντινιανὸν δὲ ἐδόκει τὴν Ἰταλίαν τε καὶ Ἰλλυριοὺς καὶ τὴν ὅλην ἔχειν Λιβύην (‘Gratian and the young Valentinian divided the empire between them in accordance with the advice of those around them who governed (the emperors themselves had no authority because of their age). Gratian was allotted the Celtic peoples, the whole of Spain and the island of Britain, while they decided that Valentinian should have Italy, Illyricum and the whole of Africa’). However, such a division of power, although accepted in older scholarly literature (e.g. Seeck, 1920–1923²⁻⁴, V, 39–40) is now looked on with scepticism (e.g. Paschoud n. 140 ad Zos. 4.19.2 and Lenski, 2002, 358–359, who is of the opinion that Valentinian II was only theoretically Gratian’s equal in power). The division of the western provinces between the two young emperors is questionable, as is the notion of two separate

courts; Kelly, 2013, 373 esp. nn. 71 and 72. There was in all likelihood one court for all western provinces. Gratian was clearly the superior emperor and had Valentinian under his control, as appears from Amm.'s remark that Gratian saw to his half-brother's education, and Philostorgius' observation (*HE* 9.16) that Gratian played the role of a father towards his infant step-brother (ὅμως ἔστεργε τὸν ἀδελφὸν ἔχειν βασιλεύοντα, καὶ πατὴρ αὐτῷ τάξιν ἀποπληροῦν, "he did, however, consent to have his brother as emperor and to take the place of a father for him", tr. Amidon). In the rhetoric of Gratian's court Valentinian's inferiority is emphasized; Auson. *Grat. act.* 2.7 *instar filii ad imperium frater ascitus*; Them. *Or.* 13.167 c, 169 b, 177 b–c, 179 c only mentions Gratian and Valens as co-rulers and is silent about Valentinian; Lenski, 2002, 359–361 and Kelly, 2013, 373–374.

It may have taken two weeks before the news of Valentinian's elevation reached Gratian in Trier; Valens, who resided in Antioch at the time, may have heard about his brother's death by the end of December 375 or the beginning of January 376; Hughes, 2013, 138. It took several months before the new status of Valentinian was recognized. The terminus ante quem for his recognition in the west is *CIL* 6.751 (= *ILS* 4268) of 8 April 376 *DD(ominis) nn(ostris) Valente V et Valentiniano / Iunior primus Augg(ustorum) VI Idus April(es) / tradidit hierocoracica* ("symbols of the *χόρακες*, in the cult of Mithras", LSJ; cf. TLL VI 3.2781.62–65) *Aur(elius) Victor / Augentius v(ir) c(larissimus) p(ater) p(atrum) filio suo (A)emiliano / Corfoni Olympio c(larissimo) p(uero) anno tricensimo / acceptionis suae felic(iter)*. Recognition in the east would only have taken place in May or June 376, probably after Valens had consulted with Gratian's court; Girardet, 2004, 121–127; Kelly, 2013, 370–371.

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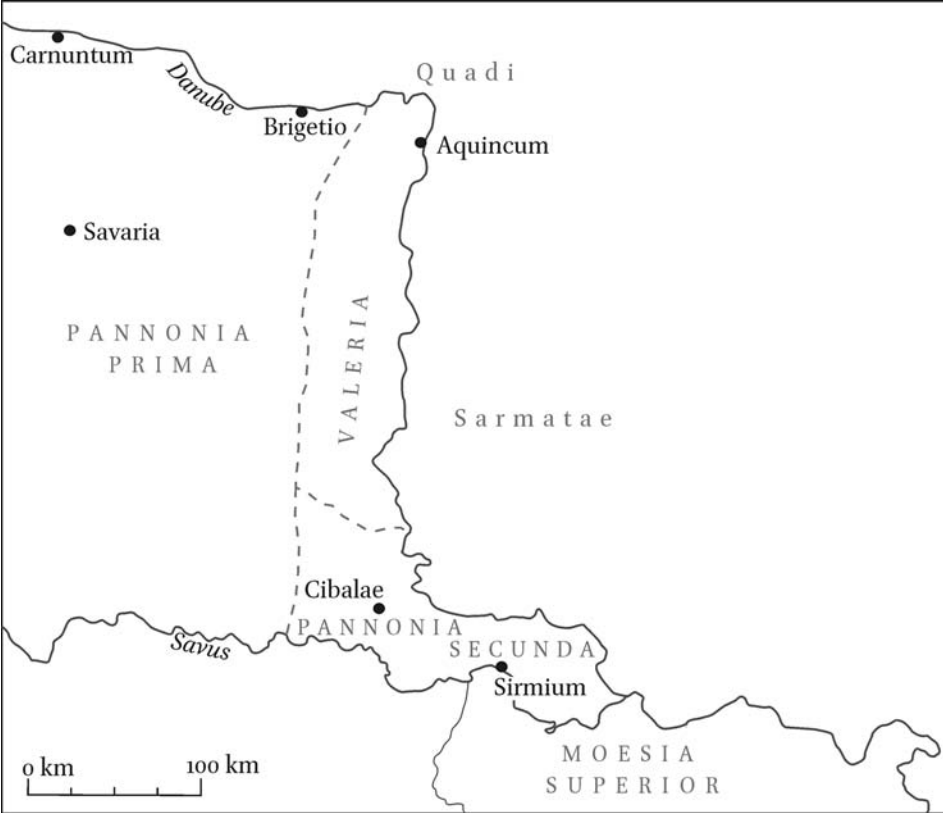
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MAPS



A. The Danube Frontier



B. Armenia (and surrounding regions)

